APPEAL & REVIEW: THE BASICS

2010
EDITION

Oregon State Bar

NOTE: This package contains the 2010 edition of *Appeal and Review: The Basics*. *This edition completely replaces the 1993 revision and 2002 cumulative supplement.*

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PREFACE

This new edition of APPEAL AND REVIEW is a major departure from the past two editions. The editors have comprehensively revised the subjects and contents of the chapters to provide a clearer and more useful guide to Oregon appellate practice. This volume covers the basic procedural and substantive areas with which every appellate practitioner, at every level of experience, should be familiar. A second volume, to be published in the near future (expected 2012), will provide greater depth on certain topics of interest to attorneys who work on more than an occasional appeal.

The publication of this book coincides with the adoption of amendments to the Oregon Rules of Appellate Procedure, which became effective as of January 1, 2011. As in the past, Legal Publications plans to update this book periodically to reflect changes in the rules and in appellate law and practice.

We gratefully acknowledge the many hours of work of the authors who contributed to this book. Their job was to draft entirely new chapters, not to update existing ones. They have done it with skill and style. Their willingness to share their appellate expertise is gratifying, and their patience with our editorial review is remarkable.

We also gratefully acknowledge the help of the Legal Publications staff for their help in organizing, designing, and producing this book.

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TABLE OF FORMS

Click here to download a zip file of all the forms in Word format.

Chapter 3: TAKING AN APPEAL

Form 3-1 Stipulation Waiving Undertaking for Costs on Appeal

Form 3-2 Stipulation Waiving Costs and Supersedeas Undertaking on Appeal

Form 3-3 Notice of Deposit in Lieu of Undertaking for Costs on Appeal

Form 3-4 Undertaking on Appeal—Civil Action Supersedeas Appeal Bond

Form 3-5 Cost Bond on Appeal

Chapter 4: SPECIAL CONSIDERATIONS FOR CERTAIN TYPES OF APPEAL

Form 4-1 Notice of Appeal (NOAP) Due Date Worksheet

Chapter 9: MEDIATION AT THE APPELLATE LEVEL

Form 9-1 Order to Reactivate

Form 9-2 Settlement Conference Statement

Chapter 1: INTRODUCTION AND GUIDE TO THE VOLUME

Chapter Outline

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I. (§1.1) THE NATURE OF APPELLATE ADVOCACY

Most lawyers don't immediately associate the term *litigator* with appellate attorneys, but advocacy in the appellate courts is indeed a form of litigation. Appellate practice is a procedural specialty that encompasses the full range of substantive law, so it offers a variety of legal issues within a consistent procedural framework of briefing and oral argument before the few appellate courts.

In many ways, appellate advocacy is the purest form of legal argument. When the case goes up on appeal or on judicial review, in almost all cases the record has been fixed in the lower tribunal. (One appellate attorney, now a court of appeals judge, once described it this way: "The appellate lawyer's universe is defined by the rubber band around the file." Now, of course, the file may be electronic and the rubber band merely figurative.) Although researching the law is obviously a major part of an attorney's work on appeal, as in any forum, often the most challenging parts of handling an appeal are deciding which arguments to make, framing them in a way that is consonant with both the law and the court's sense of justice, and honing the arguments so that they are clear and compelling. Even attorneys who have spent months drafting and editing briefs at several stages of appeal will find that they continue to simplify and refine arguments until the day before oral argument. Indeed, one of the most fascinating aspects of appellate practice is that legal analysis and arguments rarely stand still, and when the "bingo!" moment finally comes, one wonders why it took so long to arrive.

Litigation undergoes a transformation between the trial court and the appellate court. Because appellate advocacy emphasizes somewhat different skills

than trial litigation, and because it can be hard for a trial attorney to "let go" of issues that were important at trial but should play little or no role on appeal, most appellate judges recommend having a different attorney handle the appeal. An appellate specialist provides not only procedural expertise but also a fresh perspective on the merits of the case. Nonetheless, the additional cost for a new attorney to review the record and become familiar with the issues as they were framed in the trial court can be substantial. The wisdom of engaging an appellate specialist to handle an appeal will depend on a number of considerations, including cost, the importance of the case to the client, the complexity of the record, whether the appellate attorney is already conversant with the legal issues, and other situational factors.

The client is no less curious about the status of his or her case while it is on appeal than when it was in circuit court. Appellate attorneys quickly learn to explain why, for substantial periods of time, the answer to "What's happening on my case?" is "Not much." For example, for a party who prevailed in circuit court, several months—and sometimes close to a year—will pass between the filing of the notice of appeal and the due date for the respondent's brief. At least from the client's perspective, until the appellant's brief is filed, usually not much is happening. Although oral argument is a milestone in the appellate process, from the client's perspective it often seems opaque, esoteric, and unsatisfying. Unless the clients are unusually knowledgeable about the law, most appellate attorneys do not encourage their clients to attend oral argument. After oral argument, usually nothing happens until the court issues a decision; that may occur as soon as several weeks after argument but also may take as long as a year (or more). The appellate attorney should be careful to maintain contact with his or her client during the dormant phases.

II. OREGON'S APPELLATE COURTS

A. (§1.2) Overview

The Oregon Supreme Court and the Oregon Court of Appeals are very different courts, with distinct functions and operating styles. In 2009, the supreme court issued 77 opinions, while the court of appeals issued 503 signed opinions and decided an additional 1,493 cases without opinion. (Those numbers reflect only a portion of the courts' work: the supreme court devotes considerable time to deciding which petitions for review to grant, and the court of appeals resolves a

substantial number of cases short of the merits.) *See* OREGON REPORTS (Supreme Court), vols 345–347; OREGON REPORTS (Court of Appeals), vols 225–233. The court of appeals' 10 judges sit in panels of three, while the seven justices of the supreme court hear cases as a full court. The court of appeals is primarily a "decisional" court that processes an extraordinarily high volume of cases, and it is bound to follow supreme-court precedent. The supreme court is principally a "doctrinal" court, though it does have mandated jurisdiction in some cases—for example, ballot title appeals—when it focuses more on resolving a dispute than on announcing legal principles. The supreme court has much more control over its docket than the court of appeals, and it selects most of its caseload with an eye toward resolving important legal issues on which the bench and bar need its guidance. Although it is faithful to principles of stare decisis, the supreme court must often decide novel legal questions, and it retains the power to overrule its prior decisions. As discussed in §§1.3–1.4, the different functions of the two courts call for different types of advocacy.

B. (§1.3) Oregon Supreme Court

The Oregon Supreme Court predates statehood, and the Oregon Constitution guarantees its existence. Or Const art VII, art VII (amended). Initially, the constitution and implementing legislation limited the supreme court to appellate and "revisory" jurisdiction over final decisions of the circuit courts. Or Const art VII, §6; 1862 Code of Civil Procedure (the "Deady Code") §525 (citation not verified by publisher).

In 1910, an initiative measure amended article VII, and the supreme court acquired discretion to take original jurisdiction in mandamus, quo warranto, and habeas corpus proceedings. Or Const art VII (amended), §2. Today, by statute, the supreme court has original jurisdiction in a wide range of matters. Some examples:

- Mandamus. The supreme court has discretionary original jurisdiction in mandamus cases generally. Or Const art VII (amended), §2; ORS 34.120(2), 34.250.
- Legislative reapportionment. Or Const art IV, §6(2)–(3); *Hartung v. Bradbury*, 332 Or 570, 33 P3d 972 (2001).
- Ballot titles and voters' pamphlet statements for state measures. The supreme court has original jurisdiction over challenges to ballot titles

prepared by the legislature or the attorney general, ORS 250.085, and explanatory statements in voters' pamphlets, ORS 251.235.

- Judicial review of decisions by the Energy Facilities Siting Council approving or rejecting applications for site certificates. ORS 469.403.
- Certified questions of law from a federal court or an appellate court of another state. ORS 28.200–28.255 (Uniform Certification of Questions of Law Act).
- Bar admissions and discipline. ORS chapter 9.

See chapter 2 for additional grounds of original jurisdiction in the supreme court.

In addition, in an aggravated murder case, a "judgment of conviction and sentence of death" is subject to automatic and direct review by the supreme court, bypassing the court of appeals. ORS 138.012.

Still, despite the numerous types of cases in which the supreme court has original jurisdiction, it is primarily a court of discretionary review. Since the court of appeals' jurisdiction was expanded in 1977 (*see* §1.4), the supreme court's docket has consisted primarily of cases that the court has selected. In this way, the creation of the court of appeals fundamentally changed the nature of the supreme court.

For a party hoping the supreme court will reverse a court of appeals decision, the process involves two very distinct stages. Before relief is even possible, the attorney must persuade the court to allow review. Except for the rare case that by itself is extraordinarily significant, simply arguing that "the court of appeals' decision is incorrect" will not suffice. The Oregon Rules of Appellate Procedure (ORAPs) contain an illustrative, nonexclusive list of 16 criteria that the court may consider in deciding whether to grant or deny review. ORAP 9.07. Although "significant issue of law" (ORAP 9.07(1)) is obviously an important criterion, the court may decide to grant review for a variety of reasons. Thoughtful, creative advocacy at this stage is especially important, because without a successful petition for review, the appellate process ends with the court of appeals' decision.

Should the party who prevailed at the court of appeals file a response to a petition for review? It depends on a number of factors. Does the petition make the case look attractive? If so, does the petition omit a procedural fact or a rule of law

that, if disclosed to the court, would make the case much less interesting? If a short, simple response is likely to negate the petition's attraction, it is usually worth filing. On the other hand, if engaging the petitioner at this stage will serve only to pique the court's interest even more, the best strategy is to resist the temptation to argue the merits at the petition stage. Forbearance gives the court a chance to help an attorney's client by simply declining to review the court of appeals' decision. Cost is also an obvious consideration, as is the importance of the case to the client.

If the supreme court grants review, both sides are entitled to file briefs on the merits, and that is almost always advisable. Just as the nature of the arguments changed when the case went from a circuit court or state agency to the court of appeals, it undergoes another metamorphosis in the supreme court. Advocates should expect to delve into the subject matter in depth, and they should not rely on court of appeals opinions as having precedential value in the supreme court. If the correct interpretation of a provision in the Oregon Constitution is at stake, extensive historical research may be essential. *See, e.g., Smothers v. Gresham Transfer, Inc.*, 332 Or 83, 23 P3d 333 (2001). If the case turns on the meaning of an Oregon statute, close textual analysis is essential, and the attorney must at least review the legislative history to see if it provides any insight into legislative intent. *See* §§1.15–1.16.

C. (§1.4) Oregon Court of Appeals

The Oregon Court of Appeals is a creation of the 1969 Legislative Assembly, and its jurisdiction is wholly statutory. ORS 2.510. Before 1969, Oregon had no intermediate appellate court, so the supreme court considered every appeal from the circuit courts.

Initially, the court of appeals' jurisdiction was limited to appeals in criminal cases, domestic relations cases, juvenile matters under ORS chapter 419, various special statutory proceedings, and judicial review of state agency actions under the Oregon Administrative Procedures Act. *See* 1969 Or Laws ch 198, §1. In 1977, the legislature expanded the court's jurisdiction to include all appeals from circuit courts (except for a few categories of cases when appeal is directly to the supreme court) and judicial review of state agency decisions in contested cases, declaratory rulings, and administrative rules. ORS 2.516, 183.400, 183.410, 183.482. The court of appeals has no original jurisdiction of its own.

The Oregon Court of Appeals is one of the busiest appellate courts in the nation, and it is under constant pressure to decide cases as quickly as possible. *See* Oregon Court of Appeals Web site, at http://courts.oregon.gov/COA. In simple cases, when the court finds no reversible error in the lower court proceedings, the court of appeals frequently affirms without opinion (known as an AWOP)—sometimes as soon as two weeks after oral argument. At the same time, because the court encounters a substantial number of recurring issues, especially in criminal cases, and the supreme court's relatively few written opinions can provide only so much guidance, the court of appeals will also try to provide guidance to lower courts and attorneys in areas of law where controversy has been bubbling for a while. Thus, sometimes a specific argument will be rejected in an AWOP a few times, but after several iterations, the same basic argument will generate an opinion.

In contrast to many other states where intermediate appellate courts are divided into districts that are based in different cities, all of the 10 court of appeals judges are based in Salem. The judges generally sit in panels of three to hear oral argument and decide cases (except those that are referred to the full court after consideration by a panel). In 2009 the legislature authorized two-judge panels, and in 2010 the court began using two-judge panels for a limited number of cases in which it was unlikely that a third vote would be needed to create a majority. *See* ORS 2.570(2)(b). The membership of the panels is not fixed. Occasionally, a senior judge will replace one of the panel judges, or one judge will sit for another who has recused him- or herself or who has a schedule conflict. When a judge retires, the panels will usually be rearranged.

In 2008, the court of appeals abolished the Office of Appellate Legal Counsel and replaced it with the Appellate Commissioner's Office. Chief Judge Order 08-04 (available at www.publications.ojd.state.or.us/CJOrder0804.pdf). The appellate commissioner is authorized to decide motions that the chief judge would otherwise decide, and the commissioner may issue and decide certain "own motion" matters such as an order to show cause why an appeal should not be dismissed for lack of jurisdiction. Chief Judge Order 08-04, *supra.* A party may move for reconsideration of a decision by the appellate commissioner; the commissioner may grant reconsideration and modify the outcome. However, if the commissioner would deny the request or would grant the request but not change the outcome, the commissioner must forward the request for reconsideration to the

chief judge or the court's Motion Department, as appropriate for the underlying motion. Chief Judge Order 08-04, *supra*.

An advocate preparing a brief in the court of appeals should be mindful of both the court's heavy workload and the wide range of legal issues it resolves. For a judge who reads dozens of briefs each month, irrelevant factual detail, repetitive arguments, and general verbosity are annoying. On the other hand, if the case involves a subject that the court does not encounter frequently, the advocate should not assume that the court will recognize terms of art and acronyms familiar to a lawyer who specializes in the field.

Briefing in the court of appeals brings to mind the saying, "If I had more time, I could have made it shorter." The investment is worthwhile—not just because a more succinct brief will earn the judges' goodwill, but because continued refinement improves the legal argument and makes it more compelling.

D. (§1.5) Oregon Tax Court

Like the court of appeals (*see* §1.4), the Oregon Tax Court is a statutory creation. ORS 305.405. The tax court includes the tax court judge and the magistrate division, which consists of magistrates appointed by the judge. ORS 305.404, 305.498. In cases within its jurisdiction, the tax court has the same general powers as a circuit court. ORS 305.405(2). It is not, strictly speaking, an appellate court, but it does decide "appeals" from decisions by county assessors and the Department of Revenue, and the tax court judge hears appeals from the court's magistrate division. ORS 305.410, 305.425, 305.501. Subject to appeals to the supreme court and a few narrow exceptions, the tax court's jurisdiction is exclusive and final over all questions of law and fact arising under the tax laws of the state. *See* ORS 305.410 (defining *jurisdiction* in general terms, listing exclusions from meaning of *tax*, and providing for concurrent jurisdiction of tax court and circuit courts to resolve specific issues).

Appeals of the tax court judge's decisions go directly to the Oregon Supreme Court. The supreme court's scope of review is "limited to errors or questions of law or lack of substantial evidence in the record to support the tax court's decision or order." ORS 305.445.

III. BASIC CONCEPTS IN APPELLATE PRACTICE

A. (§1.6) The Role of Procedure

Much like other court rules, the rules governing the appellate process provide a structure for advocates to present legal arguments and for judges to resolve them. *See generally* Oregon Rules of Appellate Procedure. Before an attorney can begin to argue the merits, careful attention to the procedural posture of the case is necessary. Without that, the attorney risks wasting resources on an argument that the court can't even consider.

B. (§1.7) Jurisdiction; Justiciability

At the outset, the appellate attorney must consider whether the case belongs in the appellate court. For example, is there a controversy susceptible to judicial resolution in an adversarial system? Is the case moot or likely to become moot during the appeal? Did the circuit court issue a judgment or appealable order? *See* ORS chapter 19. If the appeal is from a state agency's action, did the agency issue a final order or take other action subject to judicial review? *See* ORS chapter 183.

C. (§1.8) Notice of Appeal

As discussed in detail in chapter 2, timely filing and service of the notice of appeal are jurisdictional requirements. ORAP 2.05 specifies the required contents.

D. (§1.9) The Record

The nature of the appellate process is that the appellate court reviews a decision by a lower tribunal. Except for matters that are subject to judicial notice, the court can review a lower tribunal's finding of fact—or even make its own findings if review is de novo—based only on the record made in the lower tribunal. Thus, an argument that lacks a factual basis in the record will not get very far, unless the record can be supplemented by the court taking judicial notice. In addition, as noted in §1.12, the appellant will need to identify where in the record he or she preserved the claim of error.

E. (§1.10) Assignments of Error

The appellant or petitioner in the court of appeals must "assign error" to an action of the circuit court or agency. ORAP 5.45. This requirement, relatively unusual among appellate courts, is one of several ways that the Oregon Rules of Appellate Procedure encourage advocates to narrow the issues and help the court

focus on precisely what it needs to decide. Often, an assignment of error is as simple as "The circuit court erred by denying defendant's motion to suppress evidence seized from his person at the time of his arrest," or "The trial court erred by granting plaintiff's motion for partial summary judgment on her claim for tortious interference with contract." The error is an action, not the reason for the action; the lower court's mistakes in law or analysis are part of the argument, but they are not the "error" for purposes of assigning error. Even experienced appellate advocates often devote considerable attention to identifying the actions to be assigned as error on appeal. An assignment of error should be specific enough that there is no question as to precisely what action is being challenged, but not so detailed that numerous, repetitious assignments are needed to identify all the aspects of what is essentially a single error.

F. (§1.11) Questions Presented

The "statement of the case" must include questions presented on appeal, stated "without argument and in general terms." ORAP 5.40(6). Although in the brief they precede the assignments of error, analytically it makes sense to identify the claimed errors first and then frame the legal questions they present.

> PRACTICE TIP: Questions presented differ from assignments of error, in that they need not be as specific and should describe the legal issue the court needs to answer to resolve the appeal. Similarly, the summary of argument should do more than restate the questions presented or the assignments of error. Each of the three elements provides a different vehicle to advance the argument; an attorney who treats them merely as variations in sentence structure has missed an opportunity.

G. (§1.12) Preservation

For each assignment of error, the appellant must set forth the pertinent portions of the record constituting the alleged error, identifying where the issue was raised and how the claim of error is preserved. ORAP 5.45. Preservation means that a party should have explained its objection or motion with enough detail and clarity that the trial court or agency had a fair opportunity to correct the error so that no appeal will be necessary. *O'Hara v. Bd. of Parole & Post-Prison Supervision*, 346 Or 41, 47, 203 P3d 213 (2009); *State v. Wyatt*, 331 Or 335, 343 & n 6, 15 P3d 22 (2000).

Preservation rules derive from the nature of an appeal, in which the record is settled and the question for the appellate court is whether the lower court or agency committed some kind of error on that record. If the lower tribunal was not presented with the information or argument now asserted as a basis for the appellate court to act, in most cases the lower tribunal cannot have erred by failing to account for a fact or argument it wasn't asked to consider. *See Wyatt,* 331 Or at 343.

The court will usually not consider an unpreserved issue. Nevertheless, appellate courts do retain discretion to consider error apparent on the face of the record, but the error must be one "of law," it must be obvious and not reasonably in dispute, and the reviewing court should not have to choose between competing inferences or go outside the record. *Ailes v. Portland Meadows, Inc.*, 312 Or 376, 381–382, 823 P2d 956 (1991). Even then, a reviewing court must exercise its discretion, and it should proceed to act on an unpreserved claim of error only with "utmost caution." *Ailes,* 312 Or at 382.

H. (§1.13) Standard of Review

For each assignment of error, there is an appropriate standard of review, and the appellant must identify it in the brief. ORAP 5.45(5). The standard of review defines the court's function with respect to the particular assignment of error and, accordingly, helps the advocate to address the specific question that the court must decide as it applies the rule of law to the procedural posture of the case on appeal. For example, if the court will be reviewing a state agency's decision for substantial evidence to support its findings of fact, an argument that the petitioner's evidence was more persuasive than the respondent's is simply unavailing. Similarly, a trial court's denial of a motion for mistrial is reviewed for abuse of discretion; an argument that fails to account for the scope of the trial judge's discretion will get no traction on appeal.

I. (§1.14) References, Tools, and Sources of Law and Guidance

ORS chapter 2, comprising only four pages, describes the two appellate courts and defines some of their powers. For appellate attorneys, the Oregon Rules of Appellate Procedure (ORAP) is the more essential guide to the nuts and bolts of appellate practice. The ORAPs govern or provide information about everything from filing and service of notices of appeal to format of briefs and contents of petitions for supreme court review. In case of a conflict between the ORAPs and a

statute, however, the statute controls. *State v. Harding*, 347 Or 368, 372, 223 P3d 1029 (2009). The ORAPs are published as a stand-alone volume, are included in the Oregon Rules of Court published by Thompson/West, and are available at the Oregon Judicial Department Web site (www.ojd.state.or.us/Web/OJDPublications.nsf/Rules?OpenPage). The Oregon Appellate Courts also publish a style manual (available at www.publications.ojd.state.or.us), which is a helpful resource for citation formats, word usage, punctuation, and more.

IV. SPECIAL NOTE ABOUT CONSTITUTIONAL AND STATUTORY INTERPRETATION IN OREGON

A. (§1.15) The State Constitutional Law Revolution

Oregon was at the forefront of the state constitutional law revolution that began in the early 1980s, and the Oregon Constitution now plays a greater role than the United States Constitution in criminal law and perhaps in civil law as well. Oregon courts take care to resolve all state law issues before turning to federal constitutional claims: "all questions of state law [must] be considered and disposed of before reaching a claim that this state's law falls short of a standard imposed by the federal constitution on all states." *State v. Kennedy*, 295 Or 260, 262, 666 P2d 1316 (1983).

Of course, state constitutions cannot diminish the protections that the federal constitution affords, so if the state constitution provides less protection, the federal constitution serves as a safety net. In other words, a state constitution operates as a ratchet that can enhance constitutional rights but not decrease them. For example, the Oregon Constitution often provides criminal defendants greater procedural rights than the federal constitution does, but even if the state courts interpreted a comparable state provision to provide less protection than the federal one, the defendant could invoke the federal constitutional right instead.

Because the Oregon courts resolve state statutory and constitutional claims before considering a federal claim, when there is a state law analogous to a federal constitutional right, the state version usually renders a federal claim superfluous. For example, although the words of the search and seizure provisions in article I, §9, of the Oregon Constitution are almost identical to the federal Fourth Amendment, the Oregon courts have adopted a substantially different analysis than

the federal courts, *see State v. Campbell*, 306 Or 157, 163–172, 759 P2d 1040 (1988), and the courts rarely reach the federal question.

The starting point for the appellate courts' interpretive methodology for the Oregon Constitution is a three-level inquiry described in *Priest v. Pearce*, 314 Or 411, 840 P2d 65 (1992). The goal is to determine the original intended meaning. The three levels examine:

(1) The specific wording of the constitutional provision;

(2) The case law surrounding it;

(3) The historical circumstances that led to its creation. *See* INTERPRETING OREGON LAW ch 7 (OSB Legal Pubs 2009). For provisions adopted by initiative, the inquiry is slightly different, because it is the voters' intent—rather than the drafters'—that is crucial. *Ecumenical Ministries v. Oregon State Lottery Comm'n,* 318 Or 551, 559, 871 P2d 106 (1994); *see* INTERPRETING OREGON LAW, *supra*, §§7.19–7.30.

For many provisions in the Oregon Constitution, the supreme court's interpretation is heavily guided by the history of the particular provision. For instance, the rights protected by the remedy clause in article I, §10, are those rights that were recognized at common law when the Oregon Constitution was drafted. *Smothers v. Gresham Transfer, Inc.*, 332 Or 83, 124, 23 P3d 333 (2001); *see also Lakin v. Senco Prods., Inc.*, 329 Or 62, 69, 987 P2d 463, *clarified*, 329 Or 369 (1999) (right to jury trial, "whatever the right to a jury trial in a civil case meant in 1857, it has the same meaning today").

Yet the historical approach to interpretation does not apply to the entire constitution. Although history influences the supreme court's view of free expression under article I, §8, it does not tell the whole story. *See State v. Robertson*, 293 Or 402, 649 P2d 569 (1982) (adopting framework for analyzing article I, §8, cases with limited reference to history of the provision, while recognizing possible "historical exceptions" to breadth of protection). Certainly the modern court's understanding of the rights protected by Oregon's equal privileges and immunities clause, article I, §20, would not permit the kinds of discrimination that were accepted and even encouraged when Oregon was admitted to the Union.

In addition to the text of a particular constitutional provision, Oregon lawyers must pay careful attention to the case law that describes the courts'

interpretative approach for that provision and be ready to perform historical research surrounding the adoption of the provision in question.

B. (§1.16) Textualism and Statutory Construction

More than two-thirds of Oregon appellate court opinions involve construction of a statute, ordinance, or administrative rule, so every appellate attorney must be well-versed in the courts' analytical approach to interpreting legislation. *See* INTERPRETING OREGON LAW, Preface (OSB Legal Pubs 2009). Since 1993, the courts have used a fairly consistent model. In the 17 years since it was decided, *Portland Gen. Elec. Co. v. Bureau of Labor & Indus.*, 317 Or 606, 859 P2d 1143 (1993) (hereinafter *PGE*), has become the most cited case in Oregon history, and for years almost every appellate court discussion of statutory construction began with a brief discussion of *PGE*'s analytical framework. In 2009, in *State v. Gaines*, 346 Or 160, 206 P3d 1042 (2009), the court modified its approach slightly to account more readily for legislative history, but the basic approach of *PGE* remains in place. *See generally* INTERPRETING OREGON LAW, *supra*, chs 1–4.

To construe a statute, the court must determine the legislature's intent, and under *PGE* it does that by first considering the text of the statute in its context, which is the best evidence of intent. At that first level, the court considers rules of construction in reading the text, such as not inserting or omitting language in the statute and giving common words of usage their ordinary meaning. *PGE*, 317 Or at 611; *see* INTERPRETING OREGON LAW, *supra*, ch 2. The context of the statute includes other provisions of the same statute and related statutes. *PGE*, 317 Or at 611. If the first level of analysis does not allow the court to determine the meaning of the statute, under *PGE* the court considers legislative history. *See* INTERPRETING OREGON LAW, *supra*, ch 3. If that does not resolve the issue, the court then turns to maxims of statutory construction. *See* INTERPRETING OREGON LAW, *supra*, ch 4.

The *Gaines* case recognized that the legislature had directed the courts to be more willing to consider legislative history. Under ORS 174.020, the court will consider legislative history at the first level of analysis if a party offers it, but the court is bound only to give it such weight as the court considers appropriate. *See* INTERPRETING OREGON LAW, *supra*, ch 3.

The meaning of most statutes becomes clear on close examination of the statutory text, in the context of related statutes. The court adheres strictly to the

text-and-context approach, even when it recognizes that, because of a drafting error, the text does not reflect the legislature's actual intent. *See, e.g.*, *Young v. State*, 161 Or App 32, 983 P2d 1044 (1999). The court's focus on text also leads to frequent reference to the dictionary, even as to very common, ordinary words. *See, e.g.*, *Blacknall v. Bd. of Parole*, 348 Or 131, 140, 229 P3d 595 (2010) (consulting WEBSTER'S THIRD NEW INT'L DICTIONARY (2002) for meaning of *if*).

The appellate courts' narrow focus on statutory text may sometimes appear mechanical and unduly limited in scope, but it has significant advantages for both the court and advocates. For the court, unanimous acceptance of the interpretive methodology means that, even if the judges do not agree on the meaning of a statute, at least they agree on the rules of discussion. Clear ground rules for the debate reduce the likelihood of dissent on the merits and the risk that different methods of statutory interpretation yield an incoherent body of law on substantive issues. Similarly, for advocates, the *PGE/Gaines* methodology provides a consistent framework for arguments about the meaning of a statute, administrative rule, or ordinance.

Chapter 2: APPELLATE JURISDICTION

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I. (§2.1) INTRODUCTION

The merits of a dispute are trouble enough; worries about appellate jurisdiction are the last thing an attorney wants. An attorney will be as attentive to appellate jurisdiction as to a map or a gas gauge when bringing a dispute to an appellate panel in Salem. To help, this chapter outlines the jurisdiction of the state's appellate courts. Their authority is described as jurisdiction to consider classes of cases, in the ways fixed by the constitution and statutes, and as jurisdiction to consider individual cases, in the ways triggered when litigants properly employ appellate procedure.

II. PREREQUISITES FOR REVIEW

A. (§2.2) Finding Jurisdiction

From the beginning, jurisdiction is paramount. A notice of appeal must cite a statute or case law to support jurisdiction if "appellate jurisdiction is not free from doubt." ORAP 2.05(9). The opening brief must cite the statutory basis of jurisdiction and add supporting authority if novelty or doubt require an explanation. ORAP 5.40(3). Oregon's appellate courts have no common-law right of appellate review, and litigants have no inherent or general constitutional right to appellate review. *In re Estate of De Mary*, 294 Or 650, 653, 661 P2d 931 (1983); *Ragnone v. Portland School Dist.*, 289 Or 339, 341, 613 P2d 1052 (1980). Before a court can act, there must be a "power to enter upon an inquiry of the merits of the claim." *Ragnone*, 289 Or at 341. Generally, "[s]tatutes control the question whether appellate courts have jurisdiction over an appeal." *Russell v. Sheahan*, 324 Or 445, 449, 927 P2d 591 (1996) (court has no authority to create a right of appellate review that is lacking in statute). The exceptions are certain original proceedings filed directly in the Oregon Supreme Court. *See State ex rel. Huddleston v. Sawyer*, 324 Or 597, 600–601, 932 P2d 1145 (1997) (illustrating

circumstances permitting state to pursue mandamus). Since jurisdiction is a fundamental question of the court's own authority, the parties cannot manufacture jurisdiction, otherwise lacking, as a matter of convenience or agreement.

The parties cannot create jurisdiction by stipulation. *State v. Threet*, 294 Or 1, 4, 653 P2d 960 (1982); *Johnson v. Assured Employment, Inc.*, 277 Or 11, 14, 558 P2d 1228 (1977); *compare Rauda v. Oregon Roses, Inc.*, 329 Or 265, 269, 986 P2d 1157 (1999) (parties cannot appeal from a stipulated judgment), *with* ORS 19.245(3) (enacted 2001) (party to stipulated judgment may appeal if judgment reserves right to appeal and the controversy is justiciable); *see also Brown & Shiban*, 155 Or App 238, 243, 963 P2d 105 (1998) (party may appeal from stipulated judgment on question whether appellant stipulated); *Allen v. County of Jackson*, 169 Or App 116, 121–122, 7 P3d 739 (2000) (parties did not stipulate to judgment but rather stipulated to certain facts, recited contested rulings, and conceded only that plaintiff's evidence would result in amount awarded in judgment). For the criminal context, see ORS 135.335(3) (conditional plea of guilty or no contest that reserves right of appeal of order on specified pretrial motion).

B. (§2.3) Challenging Jurisdiction

The court has a duty to examine its own jurisdiction regardless of whether a party raises the issue. Dismissal may happen on the court's own motion. *Meyer v. Joseph*, 295 Or 588, 590, 668 P2d 1228 (1983); *Rauda v. Oregon Roses, Inc.*, 329 Or 265, 268–269, 986 P2d 1157 (1999) (Oregon Supreme Court may inquire sua sponte whether court of appeals had jurisdiction). The court has no power to waive a lack of jurisdiction. *Baugh v. Bryant Ltd. Partnerships*, 312 Or 635, 640 n 5, 825 P2d 1383 (1992). The appellate panel that eventually hears the case may revisit the question of jurisdiction even when the chief judge or the trial court has entered orders finding appellate jurisdiction. *State v. Roy*, 198 Or App 209, 211 n 1, 108 P3d 88 (2005); *Berger Farms v. First Interstate Bank, N.A.*, 148 Or App 33, 36–37 & n 2, 939 P2d 64 (1997) *rev'd on other grounds,* 330 Or 16, 22 (2000); *see also Jensen & Jensen*, 169 Or App 19, 22 n 2, 7 P3d 691 (2000) (panel may reconsider chief judge's rulings on jurisdiction).

Under ORAP 7.05(1)(c), a party may question appellate jurisdiction by motion at any time during the appeal. *State ex rel. Juvenile Dep't v. Paull (In re Sawdon)*, 129 Or App 227, 229, 878 P2d 1135 (1994). A party may challenge

jurisdiction even when the party has indicated it will not file a brief or present oral argument. *Paull*, 129 Or App at 299. Typically, a respondent who has prevailed in the trial court will be motivated to move to dismiss the appeal to preserve a favorable outcome. On occasion, though, an appellant who has appealed out of an abundance of caution will ask the appellate court to determine whether it has jurisdiction, given the particular status of the case.

C. (§2.4) Finding Justiciability

As with jurisdiction (*see* §2.2), the parties cannot stipulate to justiciability. Justiciability cannot be conferred by the parties' agreement or consent when an actual controversy is lacking. *Barcik v. Kubiaczyk*, 321 Or 174, 182, 186, 895 P2d 765 (1995). Traditionally, it has been understood that a justiciable controversy exists when the interests of the parties conflict and the court's decision will have some practical effect on their rights. If the court's decision will have no practical effect on the parties' rights, then even a case once justiciable becomes moot. *Barcik*, 321 Or at 182. In the absence of constitutional authority, the court cannot exercise jurisdiction over nonjusticiable controversies because the court cannot render advisory opinions. *Barcik*, 321 Or at 186. "'Deciding hypothetical cases is not a judicial function.'" *Barcik*, 321 Or at 188 (quoting *Oregon Creamery Mfrs. Ass'n v. White,* 159 Or 99, 109, 78 P2d 572 (1938)).

Under the Oregon Constitution, the understanding has been that judicial power does not extend to moot cases even if it could be said that they are capable of repetition yet evade review. *Yancy v. Shatzer*, 337 Or 345, 97 P3d 1161 (2004) (*overruling In re Suspension of License by Oregon Liquor Control Com.*, 180 Or 495, 498–499, 177 P2d 406 (1947)). The court will not decide moot cases, due to the court's respect for the separation of the branches of government. *Yancy*, 337 Or at 350 (citing *Mid-County Future Alternatives Committee v. Metropolitan Area Local Government Boundary Com.*, 304 Or 89, 92, 742 P2d 47 (1987)).

It has been said that even the legislature cannot confer justiciability when justiciability does not otherwise exist. Under article VII (amended) of the Oregon Constitution, the legislature cannot confer jurisdiction on a court to decide nonjusticiable controversies. *Utsey v. Coos County*, 176 Or App 524, 548, 32 P3d 933 (2001) (although statute permitted any party to petition for review of a Land Use Board of Appeals decision, the court dismissed the petition for judicial review

because the court's decision would have no practical effect on any legally protectable interest of the League of Women Voters).

Nonetheless, the legislature has recently declared that a party may pursue a challenge to the lawfulness of an act, policy, or practice of a public body or employee, even after the act, policy, or practice no longer has a practical effect on the party, if the court determines that, at the time of filing the action, the party had standing, the act challenged is capable of repetition or the policy or practice continues in effect, and the act, policy, or practice is likely to evade judicial review in the future. ORS 14.175 (2007 Or Laws ch 770, §1); *cf. Corey v. Dep't of Land Conservation & Dev.*, 344 Or 457, 467, 184 P3d 1109 (2008) (because procedures under Measure 49 provide review, ORS 14.175 does not).

III. JURISDICTION OVER CATEGORIES OF CASES

A. Oregon Court of Appeals

1. (§2.5) Generally

Because it is not a court of constitutional origin, the Oregon Court of Appeals has only the jurisdiction that has been granted by statute. *State ex rel. Hall v. Riggs*, 319 Or 282, 294, 877 P2d 56 (1994); *Portland v. Trumbull Asphalt Co.*, 2 Or App 1, 3, 463 P2d 606 (1970). Since 1977, the intermediate appellate court has had exclusive jurisdiction of virtually all appeals. *See* ORS 2.510–2.520 (establishing the court of appeals and detailing its jurisdiction). Most exceptions are provided in ORS 2.516. Those exceptions involve cases in which the Oregon Supreme Court has original jurisdiction and cases when the court of appeals certifies a question to the supreme court. ORS 2.516 (reference to original jurisdiction provided by the Oregon Constitution), ORS 19.405 (certification). Another exception involves an appeal from the Oregon Tax Court to the Oregon Supreme Court. ORS 305.445.

2. (§2.6) Civil Cases from Circuit Courts

The court of appeals has jurisdiction over appeals from judgments of circuit courts in civil cases. ORS 19.205(1). If, however, the action sought money or damages in a sum less than $250, then no appeal may be taken. ORS 19.205(4). If, however, the action seeks a declaratory judgment—even a request to invalidate a related judgment of less than $250—then the appellate court has jurisdiction to

consider a constitutional challenge to a small-claims judgment. *Carden v. Johnson*, 282 Or 169, 577 P2d 513 (1978).

3. (§2.7) Special Statutory Proceedings

The court of appeals has jurisdiction over appeals from "special statutory proceedings" in circuit courts unless an appeal is barred in a particular statutory proceeding. ORS 19.205(5). Special proceedings are separate from other judicial proceedings. Special proceedings are summary and complete in themselves, and they do not disrupt other judicial proceedings. *See State v. Threet*, 294 Or 1, 4–7, 653 P2d 960 (1982) (enforcement of subpoenas to appear before a grand jury is not a special proceeding).

Appellate review of a special statutory proceeding "requires a final and complete determination of the matter in the special proceeding before an appeal is appropriate." *Garganese v. Oregon Dep't of Justice,* 318 Or 181, 186, 864 P2d 364 (1993). The ruling appealed must be final and completely dispose of the matter. *Department of Revenue v. Universal Foods Corp.*, 311 Or 537, 544, 815 P2d 1237 (1991); *see also Roe v. Pierce*, 313 Or 228, 832 P2d 1226 (1992) (discussing appeals from orders of distribution of wrongful death proceeds).

Examples of special statutory proceedings include:

- Appointment of a special conservator in a probate proceeding. *Connell v. Franklin*, 120 Or App 414, 418, 852 P2d 924, *aff'd as modified*, 123 Or App 68 (1993);
- Restraining order in a Family Abuse Prevention Act proceeding. *Strother & Strother*, 130 Or App 624, 628, 883 P2d 249 (1994);
- Order setting aside conviction and sealing conviction under ORS 137.225. *State v. K.P.*, 324 Or 1, 6, 921 P2d 380 (1996);
- Order for forfeiture of animals. *State v. Branstetter*, 332 Or 389, 29 P3d 1121 (2001) (order appealable despite pending criminal neglect charge).

4. (§2.8) Criminal Appeals—By Defendants

The court of appeals has jurisdiction of appeals in criminal cases. ORS 138.040–138.050, 138.060. For points on procedure and more on jurisdiction, see §§4.1–4.29. Generally speaking, a defendant may appeal a variety of errors after

imposition of a sentence of conviction. ORS 138.053(1)(a). The defendant may also appeal the imposition of a sentence that is not within the presumptive sentence set by sentencing guidelines. ORS 138.222(2), 138.053(1)(a). Additionally, the defendant may appeal the following:

(1) Suspension of imposition of any part of a sentence;

(2) Extension of a period of probation;

(3) Imposition or modification of conditions of probation or sentence suspension; or

(4) "Imposition or execution of a sentence upon revocation of probation or sentence suspension." ORS 138.053(1). *See also* §§4.4–4.5 (guilty pleas and conditional pleas).

A defendant may not appeal an order denying a motion to correct a judgment. *State v. Hart*, 188 Or App 650, 652–653, 72 P3d 671 (2003).

5. (§2.9) Criminal Appeals—By the State

The state may seek review in the court of appeals of a variety of orders, which are set forth in ORS 138.060. The list is said to be exclusive. *State v. Rietveld*, 151 Or App 318, 321, 948 P2d 758 (1997). The statute permits the state to appeal nine rulings. Case law has added related points. The appealable circumstances are as follows:

(1) "An order made prior to trial dismissing or setting aside the accusatory instrument." ORS 138.060(1)(a). The statute does not permit an appeal from a judgment of acquittal entered without a trial pursuant to ORS 136.130. *State v. Carrillo*, 311 Or 61, 804 P2d 1161 (1991). The statute does permit an appeal from an order sustaining a demurrer to one count of a multiple-count indictment. *State v. Parker*, 299 Or 534, 538–539, 704 P2d 1144 (1985).

(2) "An order arresting the judgment." ORS 138.060(1)(b). An order vacating a sentence because the underlying ordinance or statute is unconstitutional is an order "arresting the judgment." *Toledo v. Richards*, 40 Or App 71, 75, 594 P2d 422 (1979).

(3) "An order made prior to trial suppressing evidence." ORS 138.060(1)(c). The phrase "prior to trial" means before the time when jeopardy attaches—that is, when the jury has been impaneled and sworn. *State v. Hattersley*,

294 Or 592, 660 P2d 674 (1983); *State v. Summers*, 151 Or App 301, 305, 948 P2d 754 (1997). An order "suppressing evidence" is construed broadly to include any order that excludes evidence. It is not simply an order granting a pretrial motion to suppress. *State v. Hess*, 342 Or 647, 654, 159 P3d 309 (2007) (order prohibiting state from disclosing to jury that defendant had made admission of prior convictions for public indecency).

(4) "An order made prior to trial for the return or restoration of things seized." ORS 138.060(1)(d).

(5) "A judgment of conviction based on the sentence as provided in ORS 138.222." The phrase "a judgment of conviction" does not include an order in a probation violation proceeding. *State v. Roy*, 198 Or App 209, 215, 108 P3d 88 (2005). The reference to ORS 138.222 restricts the scope of review of sentences for felonies to things such as errors of law, sentences outside the presumptive sentences prescribed by the rules of the Oregon Criminal Justice Commission, or questions of substantial evidence to support the departure from the presumptive sentence. When the state cannot appeal because, for example, the trial court imposed a shorter presumptive sentence under the guidelines than the longer Measure 11 sentence, the state may be able to obtain relief in mandamus. *State ex rel. Huddleston v. Sawyer*, 324 Or 597, 600–608, 932 P2d 1145 (1997).

(6) "An order in a probation revocation hearing finding that a defendant who was sentenced to probation under ORS 137.712 has not violated a condition of probation by committing a new crime." ORS 138.060(1)(f). This circumstance does not include a violation of probation that is not an alleged crime. *See Roy*, 198 Or App at 217 (probation violation, but no crime, when court imposed a 15-day jail sanction other than the 16-month imprisonment originally agreed).

(7) "An order made after a guilty finding dismissing or setting aside the accusatory instrument." ORS 138.060(1)(g).

(8) "An order granting a new trial." ORS 138.060(1)(h). This legislative amendment changed prior practice. *See State v. Vasquez-Hernandez*, 159 Or App 64, 70, 977 P2d 400 (1999), *aff'd,* 335 Or 506 (2003) (under prior statute, no right to appeal from new trial order).

(9) "An order dismissing an accusatory instrument under ORS 136.130." ORS 138.060(1)(i). The authority to dismiss in general is found at ORS 135.755. The effect of dismissal on subsequent prosecution is found at ORS 136.130. The

judgment of dismissal of a felony or Class A misdemeanor is not a bar to subsequent prosecution for the same crime unless the judgment says so, but dismissal of other charges is a bar to another action for the same offense. ORS 136.130.

The list in ORS 138.160 is not perfectly exclusive. Another circumstance for the state's appeal is provided by a statutory provision found within the Oregon Evidence Code. The state may appeal before trial from a pretrial order admitting evidence of the past sexual behavior of the victim of certain sexual offenses. OEC 412(4)(c) (ORS 40.210(4)(c)).

The list in ORS 138.060 contains one important variation. The state's appeal is taken directly to the Oregon Supreme Court, rather than to the court of appeals, when a pretrial order dismisses the accusatory instrument or suppresses evidence in a murder or aggravated murder case. ORS 138.060(2); *see, e.g., State v. Shaw*, 338 Or 586, 113 P3d 898 (2005) (appeal from order dismissing indictment).

6. (§2.10) Postconviction Relief

Either the state or the petitioner may appeal to the court of appeals from the judgment of a circuit court in a postconviction relief proceeding. ORS 138.650.

7. (§2.11) Municipal Court Proceedings

As to convictions in municipal court, the route of appeal depends on whether the municipal court is a court of record. To be a court of record, the municipal court (1) must provide a court reporter or audio recording, (2) must have been the subject of a local ordinance, and (3) must have been the subject of an order of the supreme court acknowledging the filing of the local declaration of the court's status. ORS 221.342. An appeal from a conviction in a municipal court of record will proceed to the court of appeals as provided generally for appeals under ORS chapter 138. ORS 221.359(3); *see also* ORS 138.057, 153.121 (appeals involving violations). An appeal from a conviction in a municipal court, which is not a court of record, will proceed to the circuit court within whose jurisdiction the city has its legal situs. ORS 221.359(1)–(2) (as in appeals from justice court); *see* ORS 157.010 (appeal from justice court); *see also* ORS 138.057, 153.121. From the subsequent judgment in the circuit court, an appeal may then be taken to the court of appeals. *Lake Oswego v. Mylander*, 301 Or 178, 721 P2d 433 (1986); *Toledo v. Richards*, 40 Or App 71, 594 P2d 422 (1979).

The general provisions for appeal under ORS chapter 138 will apply when the conviction is for violation of a state law. *Mylander*, 301 Or at 182–183 (ORS 138.060(3) authorized appeal by state in action prosecuted in municipal court by city attorney).

The municipality may limit the right of appeal when the conviction is for violation of a municipal ordinance or charter, except with respect to appeals challenging the constitutionality of the charter provision or ordinance involved in the conviction. *See* ORS 221.360 (mandating appeal); *Salem v. Polanski*, 202 Or 504, 276 P2d 407 (1954); *see also* ORS 221.380 (appeal by city from invalidating order). This limitation on the right of appeal is constitutionally permissible insofar as there is no constitutional right to appeal. The statutory limitation is not a denial of equal privileges and immunities or of equal protection of the laws. *Salem v. Bruner*, 299 Or 262, 266, 702 P2d 70 (1985); *Klamath Falls v. Winters*, 289 Or 757, 619 P2d 217 (1980).

In an appeal from municipal court to the circuit court, the notice of appeal should be served on the city attorney. ORS 221.359(1)(a). "Failure to serve a notice of appeal on the appropriate attorney shall not preclude jurisdiction in the appellate court." ORS 221.359(1)(b). When the defendant appeals the conviction for an infraction in municipal court, service of the notice of appeal on the city attorney who appeared for the state below, rather than on the district attorney, is not a jurisdictional defect. Although the state is the party, if the city attorney represented the state at the trial court level, service on the city attorney is sufficient to vest the appellate court with jurisdiction. *City of Pendleton v. Elk*, 137 Or App 513, 516, 905 P2d 237 (1995).

By contrast, the requirements of filing the notice are strict. The original notice of appeal must be served on the municipal court, when the municipal court is not a court of record and the appeal is to the circuit court. This is true regardless of whether the conviction is for violation of a municipal ordinance or state law. Service of a mere copy on the municipal court, rather than the original notice of appeal, is a jurisdictional failure. *City of Milton-Freewater v. Ashley*, 214 Or App 526, 532–533, 166 P3d 587 (2007).

8. (§2.12) Justice Court Proceedings

The pattern for municipal court proceedings discussed in §2.11 holds true for appeals from convictions in a justice court. ORS 51.025 (becoming a court of

record), ORS 157.010 (appeal from justice court). A justice court, however, cannot become a court of record if it is "located within 50 driving miles of the circuit court for the county in which the justice court is located." ORS 51.025(7).

An appeal from a judgment in a civil case in justice court, which is not a court of record, may be taken to the circuit court for the county in which the judgment is given. ORS 53.005, 53.020. The sum in controversy must be $30 or more. ORS 53.010. The notice of appeal must be served within 30 days of rendition of judgment. ORS 53.030; *see Thompson v. St. Helens*, 76 Or App 440, 443, 709 P2d 748 (1985) (rendition means entry). Provisions for an undertaking, stay of enforcement, and qualification of sureties are found in ORS 53.040–53.080. The potential for writ of review proceedings before the circuit court for errors of law "upon the face of the judgment or the proceedings connected therewith" are preserved by ORS 53.130.

An appeal from a judgment in a civil case in a justice court, which is a court of record, shall be taken to the Oregon Court of Appeals. ORS 53.005.

An appeal from a judgment in a criminal case in a justice court, which is not a court of record, is taken to the local circuit court. ORS 138.057(1), 157.005, 157.010. An appeal from a judgment in a criminal case in a justice court, which is a court of record, is taken to the Oregon Court of Appeals. ORS 138.057(1); *see also* ORS 153.121 (violations).

9. (§2.13) Oregon APA Review of Agency Orders

The court of appeals has jurisdiction to review agencies' final orders in "contested cases," pursuant to the Oregon Administrative Procedures Act (Oregon APA). ORS 183.480, 183.482(1); *see also* §4.31 (discussion of final orders); *see generally* OREGON ADMINISTRATIVE LAW ch 14 (OSB Legal Pubs 2010). Generally, *agency* means a state board, agency, or officer authorized to issue orders, other than those in legislative or judicial branches. ORS 183.310(1). *Contested case* is defined at length in ORS 183.310(2). *See* OREGON ADMINISTRATIVE LAW, *supra*, ch 4. Under ORS 183.315, some state officials or agencies are exempted from the Oregon APA or its provisions for judicial review. For example, the Oregon APA's contested case and judicial review procedures do not apply to persons committed to the custody of the Department of Corrections. ORS 183.315(5). The stay provisions of the Oregon APA do not apply to appeal of orders of the Public Utility Commission (PUC). ORS 183.315(6). Special statutes

for such appellate matters may govern. *Compare* ORS 756.610 (court of appeals may grant stay of PUC orders), *with* ORS 183.482(3) (agency may grant stay of its order).

An informal disposition in a contested case, other than default, must be written and signed by the parties. It must be incorporated into a final order, but it is not appealable. ORS 183.417(3)(b). Informal settlement may be by agreement of the parties consenting to a suspension, fine, or intermediate sanction. ORS 183.417(3)(a). A unilateral attempt by a licensee to surrender a license is not an "informal disposition." *Pahl v. Board of Chiropractic Exam'rs,* 164 Or App 378, 993 P2d 149 (1999) (rejecting licensee's claim that board lacked jurisdiction to discipline).

If the agency refused to treat the matter as a contested case but should have done so, then the court of appeals has jurisdiction to hear the appeal as an appeal from a contested case. *Patton v. State Bd. of Higher Education,* 293 Or 363, 647 P2d 931 (1982).

If the agency's decision is a final order in other than a contested case, then the circuit court has jurisdiction. ORS 183.484. *See generally* OREGON ADMINISTRATIVE LAW, *supra*, ch 5. After the judgment of the circuit court, a party may pursue the matter before the court of appeals. ORS 183.500.

Needless to say, the litigant may be uncertain whether a particular administrative decision is an order in a contested case to be reviewed by the court of appeals, or is an order in other than a contested case, to be reviewed by the circuit court. Accordingly, ORS 14.165 provides that if an appeal is filed on time in either the circuit court or court of appeals, then the first court will transfer the matter to the other court. If the action was filed in the wrong court on a reasonable interpretation of law and any delay caused by the misfiling does not substantially prejudice an adverse or public interest, then the court will transfer the case to "to the appropriate court or tribunal" and the case "may not be dismissed as not being filed within the time allowed by law." ORS 14.165(7). In cases of doubt, the question of jurisdiction may be referred to the court of appeals for summary determination. ORS 14.165(1)(b), (4); *see also* §4.43 (motions to determine appealability or to transfer).

Although review generally requires a final order, ORS 183.480(3) provides an exception. Judicial review is permitted if an agency is proceeding without

probable cause or if a party will "suffer substantial and irreparable harm if interlocutory relief is not granted." ORS 183.480(3). A persuasive case may be necessary to invoke an exception to the finality principle. *See, e.g., Or. Rest. Servs. v. Or. State Lottery*, 199 Or App 545, 112 P3d 398 (2005) (rejecting challenge to agency's warning letters asking for a business change on pain of termination of contracts).

For a discussion of procedure involving appeals of administrative orders, see §§4.30–4.43.

10. (§2.14) Oregon APA Review of an Agency's Declaratory Rulings

As with agency orders (*see* §2.13), the court of appeals has jurisdiction to review an agency's declaratory rulings. Such rulings are reviewed like final orders from contested cases. ORS 183.410. *See generally* OREGON ADMINISTRATIVE LAW §§6.9–6.23 (OSB Legal Pubs 2010). The court, however, has no jurisdiction to review an agency's refusal to issue a ruling. *United Brokers, Inc. v. Department of Agriculture*, 68 Or App 44, 680 P2d 702 (1984). The matter must be a declaratory ruling. A matter was not a declaratory ruling for the court's review when the request had asked an agency to take actions that did not involve a responsible party, was not on the form required by the attorney general's rules, and was not treated by the parties as a petition for a declaratory ruling. *Forelaws on Bd. v. Energy Facility Siting Council*, 311 Or 350, 811 P2d 636 (1991) (appeal dismissed).

11. (§2.15) Oregon APA Review of an Administrative Rule

A challenge to an administrative rule may be lodged with the court of appeals as an original proceeding. *Troutlodge, Inc. v. Department of Fish & Wildlife*, 113 Or App 123, 125 n 2, 830 P2d 622 (1992). The state's intermediate appellate court has jurisdiction to determine the validity of administrative rules "upon a petition by any person" who is not a party to an order or a contested case in which the validity of the rule could be determined. ORS 183.400(1). The court is not deprived of jurisdiction merely because the petitioner was once a party to an order or contested case, when judicial review of the prior order or contested case is no longer available. *Minor v. Adult & Family Services Div.*, 105 Or App 178, 804 P2d 1170 (1991). Although the proceeding is akin to review of an order in a contested case, the petitioner does not need individualized standing as does a party

in a contested case. *Lovelace v. Bd. of Parole & Post-Prison Supervision,* 183 Or App 283, 288, 51 P3d 1269 (2002). The statute's grant of such broad standing to any person does not violate any limitation imposed by the Oregon Constitution. *Kellas v. Dep't of Corr.,* 341 Or 471, 145 P3d 139 (2006).

The scope of the court's review of agency rules is quite limited under ORS 183.400. The court may declare the rule invalid only if it violates a constitution, exceeds the agency's authority, or was adopted without compliance with rulemaking procedures. ORS 183.400(4); *see, e.g., Fremont Lumber Co. v. Energy Facility Siting Council (In re Amendment of Rules OAR 345 Div. 50),* 331 Or 566, 16 P3d 1147 (2001) (rule challenge based on a claim that administrative rules were inconsistent with statutes); *see also City of W. Linn v. Land Conservation & Dev. Comm'n,* 200 Or App 269, 113 P3d 935 (2005) (discussing facial challenges in rule review). On review of a rule, the record consists only of information as to whether the rulemaking procedure was followed, wording of the rule itself read in context, and statutory provisions authorizing the rule. ORS 183.400(3); *Wolf v. Or. Lottery Comm'n,* 344 Or 345, 355, 182 P2d 180 (2008). The court may only "review the validity of the rule as written." *Hopkins v. Department of Corrections,* 127 Or App 210, 213, 872 P2d 433 (1994). An "as applied" challenge to a rule may not be considered by the court under ORS 183.400. *GTE Northwest v. Public Util. Comm'n,* 321 Or 458, 464, 900 P2d 495 (1995). When the constitutionality of a rule is challenged, the court's review under ORS 183.400 is limited to whether the rule on its face violates the state or federal constitutions. *Halladay v. Bd. of Parole & Post-Prison Supervision,* 229 Or App 45, 48, 209 P3d 854 (2009); *Or. Newspaper Publrs. Ass'n v. Or. Dep't of Corr.,* 329 Or 115, 118, 988 P2d 359 (1999).

A rule challenge upon rulemaking is not the only means to challenge a rule. The validity of a rule may also be determined by a court on review of an order, as in a contested case, or any other enforcement of an order. ORS 183.400(2). A subtle but significant complication, however, may arise when an agency contracts with a party and employs a rule's requirements as contract terms. A contract dispute will not provide the vehicle for a rule challenge. *See, e.g., Coats v. State,* 334 Or 587, 596–597, 54 P3d 610 (2002) (circuit court lacked jurisdiction to determine rule's validity in contract action). The contract may bind the party to the rules even if invalid. *Or. Rest. Servs. v. Or. State Lottery,* 199 Or App 545, 563–

565, 112 P3d 398 (2005) (dismissing petition for judicial review). *See also* §4.33 (challenges to agency rules).

12. (§2.16) Decisions of the Workers' Compensation Board

A host of statutes provide authority for judicial review of decisions relating to workers' compensation. *See, e.g.*, ORS 656.295(8), 656.278(4), 656.298 (decisions of Workers' Compensation Board (WCB)); *see also* ORS 656.262(11)(a), 656.704(2)(a), 656.726(4)(a), 656.740 (decisions of the director of the Department of Consumer and Business Services (DCBS)).

The court of appeals has jurisdiction to review WCB decisions under a special provision, ORS 656.298, which is outside the Oregon Administrative Procedures Act (Oregon APA) (ORS ch 183). The provision sets forth its own content for the document, as in other agency appeals, which resembles a notice of appeal, but which is termed a "petition for judicial review." ORS 656.298(3). Service and filing requirements are described in ORS 656.298(5).

Some matters, such as the determination of whether an employer is a noncomplying employer, will be determined by the director of the DCBS. ORS 656.740. An appeal of the director's final order will proceed under the Oregon APA. ORS 656.740(5); *see Kelsey v. Drushella-Klohk NCE (In re Kelsey)*, 128 Or App 53, 56–57, 874 P2d 1349 (1994) (recognizing Oregon APA route if employer's status had not been consolidated with compensability issue before board; petitioner failed to serve department). If the employer's nonsubjectivity issue is contested at the same hearing as the worker's claim, the issues proceed together as a review from the compensation claim, not an Oregon APA matter. ORS 656.740(5)(c).

For a discussion of procedure involving judicial review of decisions relating to workers' compensation, see §§4.44–4.49.

13. (§2.17) Decisions of the Land Use Board of Appeals

The court of appeals has jurisdiction to review decisions of the Land Use Board of Appeals (LUBA) under a special provision, ORS 197.850. *See* LAND USE §§20.124–20.127 (OSB Legal Pubs 2010). The statute promises that any party to a proceeding before LUBA may seek judicial review of a final order issued in those proceedings. ORS 197.850(1). This provision does not violate any standing requirement of the Oregon Constitution. *Kellas v. Dep't of Corr.*, 341 Or 471, 145

P3d 139 (2006) (addressing standing component of ORS 183.400 and abrogating *Utsey v. Coos County*, 176 Or App 524, 32 P3d 933 (2001), which expressed doubt that ORS 197.850 could confer standing).

The process that governs a review of LUBA orders is markedly different from those that govern review of other agency orders. Timelines are unusually quick. The petition for judicial review, the equivalent of the notice of appeal, must be filed within 21 days of the date LUBA mailed or delivered its order. ORS 197.850(3)(a). The opening brief is due within 21 days of filing the petition for judicial review. The respondent's brief is due in 21 days after the opening brief. ORAP 4.66. With statutory exceptions, continuances are forbidden. ORAP 4.70. Oral argument is expedited. *See* ORS 197.850(7) (49 days from transmittal of record). The usual prerequisites for jurisdiction are equally deadly. *See, e.g., Wal-Mart Stores, Inc. v. City of Cent. Point*, 341 Or 393, 144 P3d 914 (2006) (requirement that a copy of the petition for judicial review be served on adverse parties by certified or registered mail is jurisdictional). Accordingly, the prospect of a LUBA appeal demands careful scrutiny of ORS chapter 197 and ORAP 4.60–4.74.

14. (§2.18) Decisions of the Board of Parole and Post-Prison Supervision

Under ORS 144.335, the court of appeals has jurisdiction to review final orders of the Board of Parole and Post-Prison Supervision. *See, e.g., Waltz v. Board of Parole*, 18 Or App 652, 653, 526 P2d 586 (1974) (judicial review is under ORS 144.335); *see also In re Application of Sterling*, 47 Or App 275, 614 P2d 610 (1980) (challenge to board's refusal to set release date should have been brought under ORS 144.335, not by declaratory judgment proceeding in circuit court); *see also* ORS 144.096–144.109 (postprison supervision). The scope of the court's review has reference to the usual pattern of administrative review for errors of law, abuse of discretion, or lack of substantial evidence. ORS 144.335(3), 183.482(8).

The statute requires exhaustion of administrative remedies. ORS 144.335(1)(b); *Palaia v. State Bd. of Parole*, 57 Or App 781, 646 P2d 654 (1982) (board order setting parole release date is not final while administrative review is pending). Only the board's final orders are subject to review. ORS 144.335(1); *Harris v. Board of Parole*, 47 Or App 289, 296–297, 614 P2d 602 (1980) (order

setting parole release date is a final order); *Harris v. Board of Parole*, 288 Or 495, 503, 605 P2d 1181 (1980) (final order relating to granting of parole is reviewable). The board's denial of a request to reopen a prior final order is not itself a final order that subjects the matter to review. *Mastriano v. Bd. of Parole & Post-Prison Supervision*, 342 Or 684, 159 P3d 1151 (2007); *see also Dawson v. Bd. of Parole & Post-Prison Supervision*, 346 Or 643, 217 P3d 1055 (2009) ("constructive reopening" claim).

In 1993 and 1995, the legislature amended ORS 144.335 to restrict the kinds of orders that are subject to administrative review, including orders that postpone an inmate's parole release date. *Quintero v. Board of Parole & Post-Prison Supervision*, 329 Or 319, 986 P2d 575 (1999); *Kenton v. Bd. of Parole & Post-Prison Supervision*, 180 Or App 548, 43 P3d 1215 (2002) (order establishing release date is not reviewable, notwithstanding that petitioner contended that his sentence had expired). Blocked from direct judicial review of many kinds of board orders, inmates began using petitions for writs of habeas corpus in circuit court. *See Shelby v. Board of Parole & Post-Prison Supervision*, 140 Or App 102, 915 P2d 414 (1996) (prohibition against direct judicial review by court of appeals did not preclude possibility of review by declaratory judgment or habeas corpus proceedings). In 2001, the legislature amended ORS 144.335 to eliminate the preceding restrictions on direct judicial review of board orders.

As with any other administrative agency, the board may withdraw its order for reconsideration. *Compare* ORS 183.482(6) (agency's withdrawal of order subject to review under Oregon Administrative Procedures Act), *with* ORS 144.335(7) (board's withdrawal of order subject to review); *see also* ORAP 4.35 (withdrawal of agency orders). After reconsideration, the petitioner need not refile a petition for review but must file a notice of intent to proceed with judicial review. ORS 144.335(7); ORAP 4.35(4)(a)(ii).

Unique to these issues, however, at any time after submission of the petitioner's brief, the court on its own motion or the board may move that the court summarily affirm the board's order if the court finds that there is no substantial question of law. Briefing need not be complete. There is no oral argument. ORS 144.337(6).

B. Oregon Supreme Court

1. (§2.19) Original Jurisdiction in General

Unlike the typical appeal, particular cases may be filed directly with the Oregon Supreme Court pursuant to its original jurisdiction. Although a matter of discretion, the court may take original jurisdiction in mandamus, quo warranto, and habeas corpus proceedings. Or Const art VII (amended), §2. The court may make "rules governing the conduct in that court of all causes of original jurisdiction therein." ORS 2.130. The court has elaborated with procedural rules governing mandamus, bar discipline, judicial discipline, ballot title review, voters' pamphlet review, and reapportionment review. ORAP 11.05–11.35.

The legislature has the constitutional authority to add to the court's original jurisdiction. Or Const art VII (amended), §2; *In re Constitutionality of ORS 456.720*, 272 Or 398, 407, 537 P2d 542 (1975). With increasing frequency, the legislature has specified that certain legal challenges must be brought in the supreme court in the first instance. *See, e.g., Oregonians for Health & Water v. Kitzhaber (In re Constitutionality of Senate Bill 686)*, 329 Or 339, 344, 986 P2d 1167 (1999) (court given exclusive jurisdiction to review constitutionality of certain sections of statute pertaining to siting of women's correctional facility; court dismissed petition challenging section of statute not included within enumerated sections); *Vannatta v. Keisling*, 324 Or 514, 517–518 nn 4–5, 931 P2d 770 (1997) (court given sole and exclusive jurisdiction to review constitutionality of campaign finance initiative; court limited its review to facial challenges and rejected argument that grant of original jurisdiction violated right to jury trial); *McIntire v. Forbes*, 322 Or 426, 428–430, 909 P2d 846 (1996) (court given exclusive and original jurisdiction over challenges to 1995 act for light-rail funding).

2. (§2.20) Mandamus

Mandamus is an extraordinary remedy, and the supreme court certainly treats it that way. The state's high court chooses to exercise mandamus in less than 5 percent of the occasions presented. Only the supreme court may issue writs of mandamus to the circuit courts, because a writ may be directed to another court only if it is an "inferior court," and because the court of appeals has no mandamus jurisdiction. ORS 34.110–34.120.

A writ of mandamus may not be used to control the exercise of judicial discretion, and it will "not be issued in any case where there is a plain, speedy and adequate remedy in the ordinary course of the law." ORS 34.110. The availability of an appeal after an adverse judgment is usually deemed to provide such a plain, speedy, and adequate remedy despite the delay resulting from the litigation itself. *State ex rel. Automotive Emporium, Inc. v. Murchison*, 289 Or 265, 611 P2d 1169 (1980). The court has described an "adequate remedy" as "one that affords 'any and all relief to which the relator is entitled.'" *State ex rel. Anderson v. Miller*, 320 Or 316, 322, 882 P2d 1109 (1994) (quoting *State ex rel. Hupp Motor Car Corp. v. Kanzler*, 129 Or 85, 276 P 273 (1929)). The court has held that although direct appeal is ordinarily an adequate remedy to redress discovery violations, "[m]andamus may nevertheless be appropriate when direct appeal will not sufficiently serve to vindicate a party's rights with regard to discovery." *State ex rel. Anderson*, 320 Or at 322. The court has cautioned, however, that "not every pretrial discovery order is subject to mandamus" and observed that "[m]any pretrial discovery errors do not have systemic implications and can be remedied on appeal." *State ex rel. Anderson*, 320 Or at 324.

At times, the court's mandamus jurisdiction may be employed as a means of obtaining interlocutory review of trial court rulings. The court has employed mandamus to provide interlocutory review of such matters as a trial court's decision to exercise personal jurisdiction over an objecting party. *See, e.g., State ex rel. Jones v. Crookham*, 296 Or 735, 681 P2d 103 (1984). Mandamus has provided review of discovery rulings that would require the disclosure of information that is claimed to be privileged, since an erroneous disclosure of privileged material cannot be undone. *See, e.g., State ex rel. Oregon Health Sciences Univ. v. Haas*, 325 Or 492, 497, 942 P2d 261 (1997); *State ex rel. North Pacific Lumber Co. v. Unis*, 282 Or 457, 579 P2d 1291 (1978). Examples of other rulings that the court has reviewed by way of mandamus include the following:

(1) A refusal to order a witness in a criminal case to testify, *State ex rel. Lasswell v. Sanders*, 293 Or 41, 643 P2d 1273 (1982);

(2) A refusal to order immediate possession of property by a condemning authority, *State ex rel. Eugene v. Woodrich*, 295 Or 123, 665 P2d 333 (1983);

(3) Orders barring the press or the public from attending judicial proceedings, *State ex rel. Davey v. Frankel*, 312 Or 286, 823 P2d 394 (1991); *State ex rel. Oregonian Pub. Co. v. Deiz*, 289 Or 277, 613 P2d 23 (1980);

(4) A refusal to allow a television station to copy a videotaped deposition, *State ex rel. KOIN-TV, Inc. v. Olsen*, 300 Or 392, 711 P2d 966 (1985); and

(5) A refusal to grant a litigant's motion to disqualify the trial judge, *State ex rel. Hopkins v. Schenck*, 313 Or 529, 836 P2d 721 (1992). The supreme court has also used its mandamus jurisdiction to determine whether a trial judge had erroneously refused to decide a case at all. *See, e.g., State ex rel. Pearcy v. Long*, 234 Or 630, 383 P2d 377 (1963). The range of examples suggests the unusual nature of mandamus. *See Bolt v. Influence, Inc.*, 333 Or 572, 43 P3d 425 (2002) (pleading amendment to allege punitive damages); *State ex rel. Click v. Brownhill*, 331 Or 500, 15 P3d 990 (2000) (access to jury selection records); *Frease v. Glazer*, 330 Or 364, 4 P3d 56 (2000) (attorney-client materials); *State v. Sutherland*, 329 Or 359, 987 P2d 501 (1999) (pretrial release); *Freeman v. Duffy*, 328 Or 564, 983 P2d 533 (1999) (personal jurisdiction); *State v. Peekema*, 328 Or 342, 976 P2d 1128 (1999) (postverdict dismissal in criminal case); and *Chance v. Coquille Indian Tribe*, 327 Or 318, 963 P2d 638 (1998) (sovereign immunity).

In one area, the supreme court's mandamus jurisdiction appears to have become the virtual equivalent of an interlocutory appeal procedure. In civil cases, the denial of a motion for change of venue, if founded on legal error rather than an exercise of discretion, can be challenged only by writ of mandamus and will not be reviewed on appeal. *Miller v. Pac. Trawlers, Inc.*, 204 Or App 585, 591–593, 131 P3d 821 (2006) (distinguishing which venue decisions are subject to mandamus versus appeal); *see also Lee v. Brown*, 264 Or 341, 505 P2d 924 (1973); *Roskop v. Trent*, 250 Or 397, 400, 443 P2d 174 (1968); *Mack Trucks, Inc. v. Taylor*, 227 Or 376, 382, 362 P2d 364 (1961). In criminal proceedings the rule is otherwise. *See, e.g., State v. Rogers*, 313 Or 356, 836 P2d 1308 (1992).

Occasionally the supreme court has exercised its mandamus jurisdiction to review interlocutory rulings by the court of appeals. *See, e.g., State ex rel. Dodd v. Joseph*, 313 Or 333, 833 P2d 1273 (1992); *State ex rel. Emerald People's Utility Dist. v. Joseph*, 292 Or 357, 640 P2d 1011 (1982).

In general, mandamus procedures are found in ORS 34.105–34.240. Special provisions for mandamus in the Oregon Supreme Court are found at ORS 34.250

and ORAP 11.05–11.17. For more discussion see 2 OREGON CIVIL PLEADING AND PRACTICE ch 36 (Oregon CLE 2006) (mandamus).

3. (§2.21) Habeas Corpus

The Oregon statute on habeas corpus lists the circuit court, among others, with jurisdiction to issue a writ of habeas corpus. ORS 34.320. The statute fails to mention the Oregon Supreme Court among the courts that have habeas jurisdiction. The state's constitution grants the high court original jurisdiction in habeas corpus, which may be exercised in the court's discretion. Or Const art VII (amended), §2. A later statute and court rule do recognize the potential. ORS 138.530(3); ORAP 11.20.

In recent years, the court has seldom exercised its original jurisdiction regarding a writ of habeas corpus. *See, e.g., Rico-Villalobos v. Guisto*, 339 Or 197, 118 P3d 246 (2005) (dismissing petition for writ). In the more distant past, the court employed its original jurisdiction to consider habeas corpus matters such as:

(1) The right of a convicted person to be released from custody pending appeal, *Priest v. Pearce*, 314 Or 411, 840 P2d 65 (1992);

(2) The right of a detained person to be released from jail because trial was not commenced within the time required by statute, *Brophy v. Burks*, 307 Or 62, 762 P2d 1017 (1988); *Price v. Zarbano*, 265 Or 126, 508 P2d 182 (1973);

(3) The circumstances under which a person accused of murder may be held in custody beyond the statutory period, *Collins v. Foster*, 299 Or 90, 698 P2d 953 (1985);

(4) Whether a person arrested pursuant to the Oregon Uniform Criminal Extradition Act was entitled to be considered for release from custody pending determination of a challenge to the validity of the extradition warrant, *In re Carden*, 291 Or 515, 635 P2d 341 (1981);

(5) Whether the amount set as security for the release of an accused person is excessive, *In re Application of Liberman*, 293 Or 457, 650 P2d 83 (1982);

(6) Whether and how a person imprisoned for civil contempt could stay imprisonment pending appeal of the contempt order, *In re Application of Strain*, 290 Or 535, 624 P2d 106 (1981); and

(7) The legality of holding a juvenile in detention without a finding of probable cause, *In re Application of Roberts*, 290 Or 441, 622 P2d 1094 (1981).

4. (§2.22) Quo Warranto

Oregon's constitution provides that the high court's original jurisdiction includes quo warranto. Or Const art VII (amended), §2. Yet even before the constitution was adopted, the legislature had abolished the writ of quo warranto. ORS 34.810; General Laws of Oregon ch 4, §351, at 236 (Deady 1845–1864). The legislature has provided instead a substitute proceeding in ORS 30.510–30.640. An action in quo warranto is the means for challenging and ousting a public or private officeholder who enjoys the office without right. *See State ex rel. Madden v. Crawford*, 207 Or 76, 295 P2d 174 (1956); *State by Hagglund v. School Dist.*, 148 Or 273, 36 P2d 179 (1934). The statutory action is the equivalent of the abolished writ. *State ex rel. Boe v. Straub*, 282 Or 387, 391, 578 P2d 1247 (1978).

Since the circuit courts are courts of general jurisdiction, quo warranto proceedings typically occur in circuit courts. *See generally* 2 OREGON CIVIL PLEADING AND PRACTICE §§37.26–37.33 (Oregon CLE 2006). It is the rare case in which the Oregon Supreme Court exercises its original jurisdiction. *See, e.g., State ex rel. Musa v. Minear*, 240 Or 315, 401 P2d 36 (1965) (challenging holder of office of superintendent of public instruction); *State ex rel. O'Hara v. Appling,* 215 Or 303, 334 P2d 482 (1959) (challenging holder of office of secretary of state); *cf. State ex rel. Lincoln Loan Co. v. Court of Appeals*, 336 Or 9, 76 P3d 109 (2003) (denying petition for writ of quo warranto challenging authority of the court of appeals). The high court's original jurisdiction is deemed to engraft the statutory procedures. *State ex rel. Ivanhoe v. Hodgin*, 76 Or 480, 486, 146 P 86, 149 P 530 (1915).

If a petition asks the supreme court to exercise its original jurisdiction, the petition must include a statement as to why the application was not made to the circuit court. ORAP 11.20.

5. (§2.23) Ballot Titles and Voters' Pamphlets

The Oregon Supreme Court has original jurisdiction to review ballot titles that the legislature or the attorney general prepares for state measures. ORS 250.085. Procedures are detailed in ORAP 11.30. The court also has original jurisdiction to review the explanatory statements for initiative and referendum measures to be published in the voters' pamphlet. ORS 251.235. Procedures are set

forth in ORAP 11.32. The court has original jurisdiction to review the estimates of financial impact that are to be published in relation to state measures. ORS 250.131. Procedures are detailed in ORAP 11.34.

The court's review of ballot titles does not violate the principle of separation of powers, required by article III, §1, of the Oregon Constitution. *Rooney v. Kulongoski*, 322 Or 15, 25–30, 902 P2d 1143 (1995). Nevertheless, the issue has been a matter of discussion. *Compare Dudley v. Jenks*, 331 Or 1, 10–11, 10 P3d 257 (2000) (collecting cases and observing hesitation to modify ballot titles or explanatory statement), *with Flanagan v. Myers*, 332 Or 318, 30 P3d 408 (2001) (choosing new option to refer matter to attorney general for revision).

6. (§2.24) Certification of Questions of Law

The Oregon Supreme Court may answer questions of law submitted by a federal court or by an appellate court of another state. The decision to answer certified questions is discretionary. ORS 28.200–28.255. The Oregon rules governing certification are found in ORAP 12.20. The court provided a discussion of the process and how the court decides whether to accept a certified question in *Western Helicopter Services, Inc. v. Rogerson Aircraft Corp.*, 311 Or 361, 811 P2d 627 (1991). *See also* FEDERAL CIVIL LITIGATION IN OREGON §8.31 (OSB Legal Pubs 2009).

Oregon's appellate courts may invoke the same process to learn the law of a sister state. Both the Oregon Supreme Court and the Oregon Court of Appeals are authorized to certify questions of law to the highest court of another state. ORS 28.235.

7. (§2.25) Reapportionment Review

The Oregon Supreme Court has original jurisdiction to review the reapportionment of the state legislature. Or Const art IV, §§6(2)(a), (3)(b); *see, e.g., Ater v. Keisling*, 312 Or 207, 210, 819 P2d 296 (1991); *Linder v. Keisling*, 312 Or 316, 821 P2d 1089 (1991). Reapportionment is prompted by the results of each federal census. Or Const art IV, §6(1). If the legislature fails to enact a plan by July 1st of the year of the regular session following the census, then the secretary of state must reapportion. Or Const art IV, §6(3)(a). The high court may also review the secretary's plan. Or Const art IV, §6(3)(b). Regardless of who drafts the plan, a petition of a voter is necessary for review. Review is not automatic. Or Const art IV §§6(2)(a), (3)(b). Procedural rules are found at ORAP

11.35. Deadlines are unusually short and strict, and reply briefs and amicus curiae briefs are discouraged. *See* ORAP 11.35(5)–(8). The sensitive nature of the process requires compliance. *See* Or Const art IV, §§6(2)(b), (3)(c) (setting ultimate deadlines for court's action). If the deadline for a voter's petition falls on a Saturday or Sunday, the deadline may not extend to the next business day. *See Hartung v. Bradbury*, 332 Or 570, 595 n 23, 33 P3d 972 (2001).

8. (§2.26) Conduct of Lawyers, Judges, and Oregon State Bar

Whether seen as original or as appellate matters, the Oregon Supreme Court has jurisdiction under various statutes to review a variety of matters involving the conduct of attorneys or judges and the Oregon State Bar. These include:

- Certain determinations by the Commission on Judicial Fitness and Disability relating to judicial discipline and determinations of judicial disability, ORS 1.310(8), 1.420–1.430;
- Certain decisions of the Disciplinary Board in attorney disciplinary proceedings, ORS 9.536(1)–(2);
- Contested attorney admissions and reinstatement applications, ORS 9.539;
- Determinations of the Oregon State Bar Board of Governors concerning the eligibility of a candidate for the board, ORS 9.042(3); and
- Determinations of the Oregon State Bar concerning certificates of registration for attorney professional corporations, ORS 58.365.

9. (§2.27) Decisions of the Energy Facility Siting Council

Unlike most administrative appeals, the Oregon Supreme Court has jurisdiction for direct review of the decisions of the Energy Facility Siting Council's approval or rejection of an application for a site certificate for an energy facility. ORS 469.403(3). The court must give priority on its docket to the matter and generally must render a decision within six months. ORS 469.403(6). Special provision is made in the statute concerning stays. ORS 469.403(4)–(5). With some statutory exceptions, the scope of review is akin to the standard of review under the Oregon Administrative Procedures Act. ORS 469.403(6) (akin to ORS 183.482 generally), ORS 469.320 (specific matters); *see generally Don't Waste Or. Comm. v. Energy Facility Siting Council*, 320 Or 132, 881 P2d 119 (1994) (review of a

final order); *see also Fremont Lumber Co. v. Energy Facility Siting Council (In re Amendment of Rules OAR 345 Div. 50)*, 331 Or 566, 16 P3d 1147 (2001) (review of the validity of a council rule).

10. (§2.28) Decisions of the Corrections Facility Siting Authority

The Oregon Supreme Court is given exclusive jurisdiction of any decision relating to the establishment, addition to, remodeling of, or location of a corrections facility. ORS 421.630. The deadline for filing the petition for review is short. ORS 421.630(2)(a) (21 days). Moreover, the requirements for standing to file a petition are not trivial. ORS 421.630(2)(b) (participation in underlying proceedings; $5,000 impact on petitioner; proposed conditions rejected).

11. (§2.29) Decisions on Chemical Process Mining Operations

The Oregon Supreme Court has jurisdiction for direct review of a decision of the Oregon Department of Geology and Mineral Industries to issue or deny a permit to operate a chemical process mining operation. ORS 517.983(5). Although procedures more closely resemble Oregon Administrative Procedures Act review (ORS ch 183), the court must give priority to such a petition. ORS 517.983(5).

12. (§2.30) Injunctions in Labor Disputes

The Oregon Supreme Court has jurisdiction to review a trial court's issuance or denial of any temporary injunction "in a case involving or growing out of a labor dispute." ORS 662.120; *see, e.g., Louisiana-Pacific Corp. v. Lumber & Sawmill Workers, Local No. 2949*, 296 Or 537, 679 P2d 289 (1984) (temporary injunction modified); *Ahern v. Oregon Pub. Emples. Union*, 329 Or 428, 988 P2d 364 (1999) (injunction vacated); *Robert Lloyd Sheet Metal v. Sheet Metal Workers' Int'l Ass'n, Local Union 16,* 325 Or 457, 940 P2d 1214 (1997) (vacating injunction). The statute mandates that these matters must be considered "with the greatest possible expedition, giving the proceedings precedence over all other matters." ORS 662.120.

13. (§2.31) Decisions of the Oregon Tax Court

The Oregon Supreme Court has jurisdiction of all appeals from final decisions and final orders of the Oregon Tax Court. ORS 305.445. Although its scope of review was once de novo, the high court now reviews for errors of law and substantial evidence. *Compare* ORS 305.445 (1993), *with* ORS 305.445 (1995) (1995 Or Laws ch 650, §25); *see Delta Air Lines, Inc. v. Department of*

Revenue, 328 Or 596, 600–603, 984 P2d 836 (1999) (regarding effective date). The requirement for finality in a tax-court ruling is not to be taken lightly. *See Department of Revenue v. Universal Foods Corp.*, 311 Or 537, 815 P2d 1237 (1991) (subpoenas); *Northwest Medical Laboratories, Inc. v. Good Samaritan Hosp. & Medical Center*, 307 Or 448, 770 P2d 905 (1989) (interlocutory orders).

14. (§2.32) Direct Appeal from Certain Circuit Court Decisions

In certain cases, the supreme court reviews appeals directly from the circuit court. For example, actions challenging the validity of a constitutional provision or statute adopted by initiative or referral must be brought in Marion County. If the circuit court invalidates the measure in whole or in part, then any appeal must be filed directly with the supreme court. ORS 250.044(5); *see Lehman v. Bradbury*, 333 Or 231, 237–239, 37 P3d 989 (2002) (discussing that grant of jurisdiction). In a notable addition to the direct review docket, an amended ORS 138.060 provides that in murder and aggravated murder cases state appeals from pretrial orders suppressing evidence or dismissing the accusatory instrument must be brought directly in the supreme court. ORS 138.060(2). The supreme court must decide those appeals within one year from the date that the case is submitted for decision. ORS 138.060(3).

In a transitory example, one piece of legislation authorized challenges—under specified circumstances until January 1, 2003—to the validity of term-limits provisions in the Oregon Constitution. 2001 Or Laws ch 145, §3.

15. (§2.33) Direct Appeal in Death Penalty Cases

In a case in which a defendant is sentenced to death for aggravated murder, the judgment is subject to automatic and direct review by the Oregon Supreme Court. ORS 138.012 (appeal), ORS 163.150(1)(f) (death sentence). The procedures for automatic review are prescribed in ORAP 12.10. Under the rule, the supreme court has jurisdiction to review any other, noncapital convictions arising from the same charging instrument. ORAP 12.10(2).

16. (§2.34) Cases Certified by the Court of Appeals

The court of appeals may choose to certify a case to the Oregon Supreme Court before reaching a decision of its own. ORS 19.405(1). The supreme court may or may not choose to accept the appeal. ORS 19.405(2). A majority of the justices voting is necessary to accept the appeal. ORAP 10.10(6). The supreme

court must decide within 20 days after the court of appeals has certified the case for consideration. No more than a 10-day extension is permitted for the decision on acceptance. ORS 19.405(2); *but see* ORAP 10.10(6) (allowing a 20-day extension). The old prohibition against a party asking the court of appeals to certify the case has now been removed. *Compare* ORS 19.405, *with* 1997 Or Laws ch 389 §3 (repealing prohibition). Similarly, a specific statute provides that a party may ask the intermediate court to certify an appeal to the high court in a case filed in Marion County Circuit Court, which upheld the constitutional validity of an initiative or referral measure. ORS 250.044.

Generally, criminal cases are subject to certification like civil cases. When the state challenges pretrial orders to suppress evidence or to dismiss the accusatory instrument, any party may request that the supreme court certify the appeal. ORS 138.255(2). In considering such a request, the supreme court must consider (1) whether the defendant is charged with a Class A felony subject to mandatory minimum sentencing, (2) speedy trial concerns, and (3) the significance of the legal issues. ORS 138.255(2). The process for an expedited appeal of such matters is detailed in ORAP 12.07.

17. (§2.35) Decisions of the Court of Appeals

Upon the petition of a party, the Oregon Supreme Court has appellate jurisdiction to review the decisions of the court of appeals. ORS 2.520. The content of a petition is detailed at ORAP 9.05. Review is discretionary. ORAP 9.07. The court rarely explains its reasons for denial of review; as a consequence, denial of a petition for review has no significance as precedent. Denial does not mean that the supreme court believes the intermediate appellate decision was correct. *Cutright v. Weyerhaeuser Co.,* 299 Or 290, 294 n 4, 702 P2d 403 (1985); *1000 Friends of Oregon v. Board of County Comm'rs,* 284 Or 41, 584 P2d 1371 (1978). Although the list is not exclusive, an appellate rule expresses 16 factors that may be relevant to review. They range, predictably, from whether the case presents a significant issue of law to whether amicus curiae are available to advise the court. ORAP 9.07. Three justices must vote for review to be allowed. ORAP 9.20(1). If review is allowed, the court may limit the questions on review or may request that the parties address specific questions. If the court has not limited the questions, then the questions before the supreme court include any questions that were properly before the court of appeals and that are raised in the petition or response. ORAP 9.20(2)–(3).

In *Garganese v. Oregon Dep't of Justice,* 318 Or 181, 184–185, 864 P2d 364 (1993), the court held that a "decision" that is subject to review need not be a final decision of the court of appeals. The court noted that it had created an exception in cases involving issues of "sufficient public importance" to justify the supreme court's consideration before the court of appeals has an opportunity to decide the underlying appeal on its merits. *Garganese,* 318 Or at 185. In *Garganese,* the court of appeals had ruled on a motion for a summary determination of appealability, finding that the challenged order was appealable. The supreme court found the issue presented to be of sufficient public importance to justify its interlocutory review. *See Oregon Health Care Ass'n v. Health Div.,* 329 Or 480, 485–486, 992 P2d 434 (1999) (reviewing interlocutory court of appeals order).

IV. JURISDICTION OVER INDIVIDUAL CASES

A. Procedural Requirements for Jurisdiction

1. (§2.36) Final Judgments

Finality remains the key to appellate jurisdiction. With limited exceptions, a party may appeal only "final" judgments. *Propp v. Long,* 313 Or 218, 220, 831 P2d 685 (1992); *see also Vista Management, Ltd. v. Cooper,* 81 Or App 660, 662, 726 P2d 974 (1986). As if finality could be as simple as a grocery list, ORS 19.205 lists the sort of judgments and orders that are subject to appeal. The list includes:

(1) An ordinary judgment;

(2) An order "that affects a substantial right, and that effectively determines the action so as to prevent a judgment";

(3) A postjudgment order that affects a substantial right, including an order for a new trial; and

(4) A ruling in a special statutory proceeding. ORS 19.205 (1)–(3), (5).

In multiparty or multiple-claim cases, the "final judgment" may consist of more than one adjudicatory document. *State ex rel. Zidell v. Jones,* 301 Or 79, 94, 720 P2d 350 (1986).

Appealable events have common characteristics. They all involve a judicial order that determines the essential rights of the parties to the proceeding. The concept of finality rests on a policy premise decrying waste of scarce judicial

resources. The state has determined that interlocutory appellate challenges will prolong litigation. It is better to finally determine the essence of a contested proceeding so as to exhaust all likelihood of settlement or other nonjudicial resolution and to package all components of the proceeding in a single bundle for a single appellate decision. This policy corresponds with the rule that the appellate court may affirm the trial court on any basis contained in the record. *See, e.g., Booras v. Uyeda*, 295 Or 181, 189, 666 P2d 791 (1983) (respondent may, without cross-appealing, assert any defense or theory raised in the trial court, even though the trial court rejected that defense or theory in reaching its result); *Pakos v. Warner*, 250 Or 203, 205–206, 441 P2d 593 (1968); *Bither v. Baker Rock Crushing Co.*, 249 Or 640, 651, 438 P2d 988, *modified by* 249 Or 652 (1968); *see also Outdoor Media Dimensions, Inc. v. State*, 331 Or 634, 659, 20 P3d 180 (2001) (conditions for use of the principle to affirm as "right for the wrong reason").

Finality is a principle easily declared, but in a given case, finality is not so easily discerned. A range of possibilities is illustrated in Oregon's decisions:

(1) *Final decisions—generally*

- There is no danger of "piecemeal" appeals when allowing appeal of one claim based on the same facts as an alternate claim that was voluntarily dismissed at the trial level. *Fessler v. Quinn*, 143 Or App 397, 399–400, 923 P2d 1294 (1996).
- An order is appealable when dismissing a termination-of-parental-rights proceeding based on a motion for directed verdict. *State ex rel. State Office for Servs. to Children & Families v. Cox (In re Cox)*, 152 Or App 756, 762, 954 P2d 1277 (1998).
- Orders were not appealable that required the State Office for Services to Children and Families (SOSCF) to provide copies of adoption home studies to attorneys for all parties in the case, that barred SOSCF from removing the child from the grandmother's home until further order of the court, and that denied SOSCF's motion to stay the first two orders. *State ex rel. State Office for Servs. to Children & Families v. Corbit (In re Corbit)*, 165 Or App 653, 997 P2d 294, *vacated as moot*, 168 Or App 538 (2000); *see also State ex rel. State Office for Servs. to Children & Families v. Williams (In re Williams)*, 168 Or App 538, 542, 7 P3d 655 (2000) (order requiring SOSCF to

provide copy of adoption home study to children's attorney was appealable).

- A judgment to wind down a partnership is appealable, although some judicial steps or intervention remain to be done. *Klenke v. Cleek*, 125 Or App 222, 225 n 2, 864 P2d 1350 (1993).
- An order of the Workers' Compensation Board is not final when withdrawn for reconsideration. *Haskell Corp. v. Filippi (In re Filippi)*, 152 Or App 117, 953 P2d 396 (1998).
- An order denying a motion to refer a case to arbitration—which is an interlocutory matter in Oregon—cannot be deemed to be appealable by the Federal Arbitration Act. *Bush v. Paragon Prop., Inc.*, 165 Or App 700, 708–709, 997 P2d 882 (2000).
- The disposition of a civil forfeiture proceeding was final and appealable, notwithstanding that the forfeiture proceeding was filed as part of criminal case that had not yet been resolved. *State v. Branstetter*, 332 Or 389, 29 P3d 1121 (2001).

(2) *Prejudgment orders affecting a substantial right*

- An order denying a motion to intervene is appealable because the order determines the action as to the person seeking to intervene. *Samuels v. Hubbard*, 71 Or App 481, 692 P2d 700 (1984).
- An order of contempt entered against a person called as a witness in a criminal case is appealable because the person cannot appeal from the disposition of the criminal case. *State v. Nefstad*, 99 Or App 12, 16–17, 781 P2d 358 (1989).
- Because the trial court's denial of a fee waiver affects a substantial right and may prevent a judgment, that order is appealable under that statutory provision (ORS 19.010(2)(a)). *Stanwood v. Multnomah County*, 135 Or App 58, 60, 898 P2d 196 (1995).
- If the trial court has finally disposed of the case, an order denying a motion for entry of judgment is a final judgment for the purpose of appeal. *Gillespie v. Kononen*, 310 Or 272, 279, 797 P2d 361 (1990); *see State ex rel. Lowell v. Eads*, 148 Or App 56, 61, 939 P2d 74 (1997) (court of appeals has jurisdiction over order denying motion to

enter judgment if the record establishes that the trial court has finally disposed of the case but will not enter judgment).

(3) *Postjudgment orders affecting a substantial right*

- An order denying a motion for relief from judgment under ORCP 71 A is appealable. *Johnson v. Overbay*, 85 Or App 576, 581, 737 P2d 1251, *modified*, 87 Or App 540 (1987). An order denying a motion to vacate an appealable order or judgment is not itself appealable, but if the underlying judgment is void, then an order denying a motion to relieve a party from that purported judgment is appealable. *Housing Auth. v. White*, 144 Or App 420, 425, 927 P2d 121 (1996).
- Generally, an order denying a motion to set aside a default judgment was not appealable. *Milton J. Wershow Co. v. McVeety Machinery Co.*, 263 Or 97, 99, 500 P2d 696 (1972), *superseded by statute as stated*, 212 Or App 529 (2007); *but see National Mortg. Co. v. Robert C. Wyatt, Inc.*, 154 Or App 306, 311, 961 P2d 894 (1998) (order denying ORCP 71 motion to set aside default judgment is appealable). Today, specific exceptions are provided in ORS 19.245. The statute provides that a defaulted party may appeal from a default judgment if the default was entered as a sanction, if the party had moved to set aside the default order on which the judgment was based, or if the judgment is void. ORS 19.245(2).
- An order granting a motion to set aside a default judgment is appealable. *Mary Ebel Johnson, P.C. v. Elmore*, 221 Or App 166, 189 P3d 35 (2008) (2003 legislative change to ORS 19.205 no longer requires that an order be final be to appealable, "it need only affect a substantial right"); *see also Bhattacharyya v. City of Tigard*, 212 Or App 529, 159 P3d 320 (2007) (an order affects a substantial right if the right is something "due to a person by just claim, legal guarantee, or moral principle" (internal quotation omitted)).
- A postjudgment order reducing the undertaking on appeal is appealable. *Salazar & Salazar*, 135 Or App 391, 394, 898 P2d 1366 (1995); *see also Fleming Cos. v. Hamilton*, 149 Or App 760, 762 n 2, 945 P2d 588 (1997) (relying on *Salazar*).

(4) *Judgments for attorney fees*

Generally, a judgment awarding or denying attorney fees is appealable. ORS 20.220. However, a mere ruling that finds a party is entitled to attorney fees but fails to affix the amount of the fees is not an appealable judgment. *National Mortg. Co.*, 154 Or App at 311. An interlocutory award of attorney fees (e.g., a judgment imposing attorney fees as a sanction) is not immediately appealable. *King v. Clements (In re King),* 143 Or App 462, 470, 923 P2d 688 (1996) ("a judgment granting or denying attorney fees is not independently appealable unless the underlying 'merits' judgment, on which the alleged attorney fee entitlement depends, is itself appealable").

2. (§2.37) Finality as to Decisions of Court of Appeals

Finality appears not to be a jurisdictional requisite for the supreme court's review of "decisions" of the court of appeals, although usually judicial economy will cause the court to withhold review until the court of appeals has decided the merits of the case. For example, the court had held that an order denying a motion to dismiss was not a decision subject to review. *In re Marriage of Tjernlund*, 275 Or 483, 485, 551 P2d 445 (1976) (domestic relations case in which motion to dismiss was denied without opinion), *overruled in part*, 290 Or 741, 743–744 n 5 (1981) (land use case finding order with opinion denying dismissal). An exception applies, however, "in cases involving issues of sufficient public importance to justify [the] court's consideration before the Court of Appeals has an opportunity to decide the underlying appeal on its merits." *Garganese v. Oregon Dep't of Justice*, 318 Or 181, 185, 864 P2d 364 (1993); *Oregon Business Planning Council v. Department of Land Conservation & Dev.*, 290 Or 741, 743–744 n 5, 626 P2d 350 (1981).

3. (§2.38) Petition for Supreme Court Review

An Oregon statute provides that a party may seek supreme court review of a court of appeals decision within 35 days of the decision. ORS 2.520; *see also* ORAP 9.05(2) (35 days). Timely filing is required but it is not a jurisdictional matter. *See Hickey v. Oregon State Penitentiary, Dep't of Corrections,* 126 Or App 405, 407, 868 P2d 791 (1994) (waiving timing of petition when formerly reviewed as petition for reconsideration by court of appeals). Since the matter is not jurisdictional, the time in which to petition for review may be extended on "proper motion." *Flying Tiger Line, Inc. v. Portland Trading Co.*, 290 Or 605, 608 n 1, 624 P2d 117 (1981); *see also Ludwick v. Yamhill County*, 298 Or 302, 305–306 n 1,

691 P2d 906 (1984) (expressing no view on whether timely filing of notice of intent to appeal is jurisdicational).

4. (§2.39) Class Action Certification

A statute may eliminate the need for finality. In ORS 19.225, provision is made for an interlocutory appeal of a class action order entered pursuant to ORCP 32. The circuit court must determine "that such order involves a controlling question of law as to which there is substantial ground for difference of opinion and that an immediate appeal from the order may materially advance the ultimate termination of the litigation." ORS 19.225. If the trial judge includes this essential language in the order, the court of appeals, in its discretion, may permit an interlocutory appeal from that order. The aggrieved party must make proper application within 10 days from the date of the order. ORS 19.225. This procedure resembles the much broader federal interlocutory appeal procedure in 28 USC §1292(b). The court's jurisdiction is limited to answering controlling questions of law identified by the trial court. *Shea v. Chicago Pneumatic Tool Co.*, 164 Or App 198, 990 P2d 912 (1999). By its nature, this process is exceptional. It involves two acts of judicial discretion. The trial judge must first exercise discretion to determine whether the case meets the statutory standards for certification. Even then, the court of appeals retains independent discretion to determine whether to accept the interlocutory appeal.

Although the circuit court must make the necessary findings for an interlocutory appeal, it is not necessary that the circuit court have actually decided whether or not to certify the class. It is sufficient to treat the matter as a class action for purposes of ORS 19.225 if the action was filed as a class action. *Joarnt v. Autozone, Inc.*, 343 Or 187, 166 P3d 525 (2007) (involving appeal of order on motion for judgment on the pleadings).

The application for appeal, by itself, will not stay proceedings in the trial court. A stay occurs only on the separate order of a court. Application for a stay should be made in the first instance to the circuit court and, if not forthcoming, then to the court of appeals. *See* ORS 19.225; *see also* ORS 19.330 (stays generally), ORS 19.350 (discretionary stay by court of appeals).

The procedure to be followed by an applicant under ORS 19.225 is set forth in ORAP 10.05. The rule establishes the format, the payment of the filing fee, the page limits, and the abbreviated deadlines to which the parties must adhere.

5. (§2.40) Limited Judgments: Appeals of Part of a Pending Case

With the adoption of the Oregon Rules of Civil Procedure in 1980, a new Rule 67 B permitted the court to enter a judgment on a claim or as to a party in a case involving multiple claims or multiple parties. Fredric R. Merrill, Merrill's Oregon Rules of Civil Procedure: 1992 Handbook 188 (1992) (citing action of the Council on Court Procedures, Dec 13, 1980) (citation not verified by publisher). This lesser form of judgment can be entered only if it "'fully adjudicates at least one claim or all of the interests of at least one party.'" *Beaty v. Grady, Harper & Carlson, Inc.*, 126 Or App 388, 390, 868 P2d 778 (1994) (quoting *Lesch v. Dewitt*, 317 Or 585, 589, 858 P2d 872 (1993)); *see also Emmert Indus. Corp. v. Douglass*, 130 Or App 267, 270, 881 P2d 827 (1994) (judgment not appealable under ORCP 67 B). With the adoption of a new scheme on judgments in 2003, a revised ORCP 67 B now describes this form of judgment as a "limited judgment."

By definition, a judgment is a substantive decision of a lower court on one or more claims that is reflected in a written document. ORS 18.005(8) (judgment), ORS 18.005(9) (judgment document). A judgment "consists of [these] two distinct parts, one substantive and one formal." *Interstate Roofing, Inc. v. Springville Corp.*, 347 Or 144, 152, 218 P3d 113 (2009). A judgment is the decision and the writing expressing it. *Interstate Roofing, Inc.*, 347 Or at 1152.

Before entering a limited judgment, the judge must determine "that there is no just reason for delay." ORCP 67 B. The amendments in 2003 mean that it is no longer necessary for the court to make a formal recital in the limited judgment that there is no just reason for delay. It is enough that the trial court has made that determination. *Interstate Roofing, Inc.*, 347 Or at 155. The trial court need not have made such a finding elsewhere in the record. It is enough that the signed document bears the title "limited judgment." *Interstate Roofing, Inc.*, 347 Or at 156.

When considering whether there is no just reason for delay, the trial court is discouraged from making a finding that would permit unnecessary, premature, serial, or duplicative appeals. Nevertheless, the determination that there is no just reason for delay is not subject to appellate review. *See May v. Josephine Memorial Hospital, Inc.*, 297 Or 525, 531–532, 686 P2d 1015 (1984), *superseded by statute on other grounds as stated*, 217 Or App 412, 420 (2008); *Interstate Roofing, Inc.*, 347 Or at 155. Even so, an appellate court may decide that a limited judgment does

not conclusively dispose of one claim or one party, and that the judgment is therefore not appealable. *See Lesch*, 317 Or at 589–590 (ORCP 67 B judgment is not final and appealable when it disposes only of portion of claim rather than fully adjudicating entire claim); *Department of Revenue v. Universal Foods Corp.*, 311 Or 537, 544–549, 815 P2d 1237 (1991) (when one of two theories supporting one legal right is not adjudicated, the claim is not finally determined and is not appealable); *May*, 297 Or at 530–531 (ORCP 67 B gives "no discretion . . . to treat as final that which is only a partial adjudication of the interests of a party or an adjudication of fewer than all grounds alleged in support of a single claim"). This remains still true after the 2003 judgments bill (2003 Or Laws ch 568). *See* ORS 19.205(6) (notwithstanding ORS chapter 18, an appellate court retains authority to dismiss appeals based on its determination that the appeal has not been taken from an appealable judgment).

To be a decision as to a claim or party, the text of the document need not necessarily use the term *adjudged.* It suffices that the document is titled a "limited judgment" and that the document express a concluding decision on one or more of the claims before the court. ORS 18.038; *Interstate Roofing, Inc.*, 347 Or at 158.

If there is a dispute over whether an ambiguous limited judgment resolves a particular claim, the appellate court may not resort to other parts of the record. The judgment document is the exclusive statement of the court's decision. ORS 18.082(1)(a). The judgment document itself must manifest the trial court's decision on the claim or claims. The court's subjective intent to decide a claim is not relevant if the document reflecting a limited judgment fails to expressly reflect that decision. *Interstate Roofing, Inc.*, 347 Or at 159–160.

6. (§2.41) Finality Exception for APA Cases—In Circuit Court

Generally, an appeal of an agency order is limited to final orders, but an interlocutory order may be appealed "upon showing that the agency is proceeding without probable cause, or that the party will suffer substantial and irreparable harm if interlocutory relief is not granted." ORS 183.480(3). An agency has probable cause to proceed "if the facts and circumstances provide an objectively reasonable basis for the agency to proceed." *Brian v. State*, 320 Or 676, 683–684, 891 P2d 649 (1995). The "damage to reputation that attends a lawful [agency] investigation" is not irreparable harm within the meaning of the Oregon Administrative Procedures Act. *Brian*, 320 Or at 691. In *Anderson v. Public*

Employes Retirement Bd., 134 Or App 422, 431, 895 P2d 1377 (1995), the court of appeals held that "[t]he costs and delay caused by participating in the administrative process are not the types of harm that constitute 'substantial and irreparable harm'" under the statute.

Curiously, it appears that if a party wants judicial review of an interlocutory order that the party contends was issued without probable cause or will cause the party substantial and irreparable harm, then the party should pursue the matter in the circuit court, not the court of appeals. *See, e.g., Oregon Health Care Ass'n v. Health Div.*, 329 Or 480, 992 P2d 434 (1999) (circuit court was the proper form for interlocutory relief).

B. Jurisdiction and Notice of Appeal

1. (§2.42) Filing and Service of Notice

An appeal is begun when a party serves the prescribed form for a notice of appeal on (1) all parties who have appeared in the case, (2) the trial court administrator, and (3) the trial court transcript coordinator if a transcript is designated in the notice. ORS 19.240(2). The appellate rules echo these requirements. ORAP 1.35(3)(b) (service on the trial court administrator addressed to "transcript coordinator"), ORAP 2.05(10)(d) (notice must contain proof of service on trial court administrator and transcript coordinator when transcript designated). The notice must be filed within 30 days of entry of the judgment or other appealable order, as provided in ORS 19.255. The form of the notice of appeal is dictated by ORS 19.250 and ORAP 2.05. Appendix 2.05 in the appellate rules offers an example.

When computing filing and service of a notice of appeal, the trigger date is the date the judgment appealed from "is entered in the register." ORS 19.255(1). Entry is distinct from, and does not necessarily occur on the same day as, for example, "signing," "docketing," or "filing." *See In re Marriage of Henson*, 61 Or App 210, 656 P2d 345 (1982). A careful appellant should take the initiative to check the court's file or electronic docket for the date of entry. An appellant should not sit back to await receipt of the clerk's notice of entry of judgment. Waiting for the clerk's notice renders the appellant vulnerable to delayed or forgotten notices and failures of mail service. Waiting for notice invites malpractice exposure. *See State v. Ainsworth*, 346 Or 524, 536, 213 P3d 1225 (2009) (the legislature has fashioned no remedy for a situation in which a clerk fails to send the notice of

entry of judgment and the party fails to check the record for entry of judgment); *Far West Landscaping, Inc. v. Modern Merchandising, Inc.*, 287 Or 653, 659–660, 601 P2d 1237 (1979), *superseded by statute on other grounds as stated*, 113 Or App 82, 86 (1992) (a clerk's failure or delay in sending the notice of judgment does not justify a tardy notice of appeal).

When posttrial motions for a new trial or a judgment notwithstanding the verdict have been filed, the careful appellant will be doubly cautious about computing time. Under ORCP 63 D(1) and 64 F(1), posttrial motions are deemed denied if not determined within 55 days of entry of judgment. The implied date of denial may happen before a denial order, leading an appellant to count time from the later, mistaken date. It is better to file a premature appeal, *Welker v. Teachers Stds. & Practices Comm'n,* 332 Or 306, 27 P3d 1038 (2001), than a late one, *Ryerse v. Haddock*, 337 Or 273, 95 P3d 1120 (2004), and *McCollum v. Kmart Corp.*, 347 Or 707, 226 P3d 703 (2010). *See also Propp v. Long*, 313 Or 218, 220, 831 P2d 685 (1992) (for counting time periods, motion deemed denied on 56th day).

Mailing may accomplish filing and service if done properly by registered or certified mail. ORS 19.260. When done properly, the date of mailing becomes the date of filing and service. ORS 19.260; ORAP 1.35(1)(c). The appellant must have proof of service from the post office of the mailing date. ORS 19.260(1). Proof from the post office is a receipt for certified or registered mail, with the mail number on the envelope, with the date of mailing either stamped by the postal service on the receipt or as shown by a postal service validated imprint on the envelope received by the appellate court's administrator. ORAP 1.35(1)(c). When mailing does not comply with the requirements, filing and service are not accomplished until received. ORAP 1.35(1)(e). As would be expected, disputes frequently arise over the requirements. *See, e.g., Modoc Lumber Co. v. EBI Cos.*, 295 Or 598, 668 P2d 1225 (1983) (urging court of appeals to amend ORAPs to clarify that proof of mailing by certified or registered mail is by receipt obtained from post office at time of mailing); *Hein v. Columbia County*, 96 Or App 576, 580, 773 P2d 791 (1989) (filing and service are separate events; if party relies on mailing as method of filing and service, party must come within statute for both events); *State ex rel. Juvenile Dep't v. Caro (In re Caro),* 149 Or App 631, 634, 945 P2d 543 (1997) (notice of appeal was mailed on 29th day but was not received by court until 31st day; appellant did not file proof of timely mailing by certified or

registered mail; appeal dismissed). When the process is less than perfect, evidentiary problems arise. *See, e.g., Mullens v. L.Q. Dev., Ltd.*, 312 Or 599, 608, 825 P2d 1376 (1992) (when jurisdiction for lack of timely service on a party is challenged, "the appellant must allege and prove timely service," and the court of appeals must resolve issues of fact underlying the resolution of the jurisdictional issue); *Murrieta v. Brewster*, 328 Or 434, 981 P2d 330 (1999) (despite evidence that appellant had failed to timely mail respondent's service copy of the notice of appeal, the supreme court held that the court of appeals erred in dismissing the appeal when the appellant's attorney belatedly submitted an affidavit attesting to timely mailing of the service copy of the notice of appeal). A notice of appeal is not properly served when the envelope wrongly shows the administrator's address instead of the respondent's attorney's address. *In re Marriage of Harris and Harris*, 104 Or App 209, 799 P2d 699 (1990). On the other hand, a mistaken zip code on the envelope containing the respondent's service copy may be deemed adequate service. *Kahl v. SAIF Corp.*, 86 Or App 203, 738 P2d 999 (1987); *see also Gadda v. Gadda*, 341 Or 1, 136 P3d 1099 (2006) (service on attorney who had withdrawn was proper when that attorney forwarded the notice to the new attorney who actually received it within the required time).

As to the notice of appeal, the same principles of timely mailing apply to a prisoner. *State v. Harding*, 347 Or 368, 223 P3d 1029 (2009). A more lenient appellate rule pertains only to filing other documents by mail. Other documents are deemed filed and served when the original and the copies are delivered, "in a form suitable for mailing, to the person or place designated by the institution for handling outgoing mail." ORAP 1.35(4). The appellate rule does not extend to the prisoner's notice of appeal. *Harding*, 347 Or at 372–373.

2. Jurisdictional Effect of Notice

a. (§2.43) Filing and Service

The successful filing and service of a notice of appeal are two of the few jurisdictional acts necessary for appellate jurisdiction. *See* ORS 19.270(2). Failure to adhere to appellate rules or to other statutory commands may be grounds for dismissal or other sanctions, but such lesser failures can be forgiven. *See* ORS 19.270(2) (jurisdictional prerequisites), ORS 19.270(3) (after the court has acquired jurisdiction, the failure to perform acts required for appeal may be grounds for dismissal). No court, however, can forgive the failure to timely and

properly file and serve a notice of appeal. Oregon's appellate courts acquire jurisdiction over a cause only on a timely filing and service of a notice of appeal. *Barber v. Gladden*, 210 Or 46, 298 P2d 986, 309 P2d 192 (1956–1957); *Wills v. Wills*, 203 Or 479, 280 P2d 410 (1955); *see also Hopper v. Wilks*, 149 Or App 114, 116, 942 P2d 300 (1997) (court dismissed appeal from stalking protective order when appellant did not serve notice of appeal on respondents because stalking order forbade contact with them, including contact through mail).

Serving the right people is critical. When a judgment of dissolution of marriage contained a provision permitting the husband's attorney to withdraw, yet the wife served the notice on that attorney, the wife failed to timely serve the notice of appeal on the husband. This was true, although 12 days later the same attorney filed a notice of cross-appeal on behalf of the husband. *Bridge & Bridge*, 166 Or App 458, 462, 998 P2d 780 (2000); *but see Gadda v. Gadda*, 341 Or 1, 136 P3d 1099 (2006) (service on attorney who had withdrawn was proper when that attorney forwarded the notice to the new attorney who actually received it within the required time). In a proceeding for the termination of parental rights, it is not a jurisdictional defect for a parent to fail to serve a copy of the notice of appeal on the children. *In re Shutts*, 29 Or App 121, 563 P2d 1221 (1977).

b. (§2.44) Identification of Party to Appeal

The notice's identification of the parties who are adverse parties to the appeal has jurisdictional implications. The notice must identify all who are adverse. ORS 19.270(2)(a). When the notice fails to accurately identify the adverse parties, then all parties who have appeared in the case must be served with the notice of appeal. ORS 19.270(2)(a). Depending on the parties in the case, the failure to serve a party may result in dismissal of the appeal, or at least dismissal of the appeal as to the omitted party. *See O'Connell, Goyak & Ball, P.C. v. Silbernagel*, 297 Or 207, 681 P2d 1159 (1984) (service on a law firm was insufficient to act as service on individual attorneys who were not representing the firm at the time of appeal and should have received individual notice because they were third-party defendants; the fact that the attorneys were shareholders of the law firm was not sufficient to justify only serving the firm with notice); *Bourgeois v. Grenfell*, 72 Or App 415, 417, 695 P2d 974 (1985) (the remedy for plaintiffs' failure to identify one of the defendants as an adverse party on appeal in the notice of appeal was to dismiss the appeal for that party, not to dismiss the appeal altogether); *Jeffries v. Mills*, 165 Or App 103, 112–113, 995 P2d 1180 (2000)

(failure to identify one of the adverse parties as an adverse party on appeal was a jurisdictional defect requiring dismissal of the appeal for that party only).

c. (§2.45) Identification of an Appealable Judgment

The notice of appeal must identify an appealable judgment or order. An adequate description of that judgment or order remains a jurisdictional requirement. Failure can be fatal to the appeal. *See, e.g., Stahl v. Krasowski,* 281 Or 33, 573 P2d 309 (1978) (appeal dismissed for lack of jurisdiction when notice of appeal described only nonappealable order and had attached to it only a copy of the nonappealable order); *Zacker v. North Tillamook County Hosp. Dist.,* 312 Or 330, 822 P2d 1143 (1991) (appeal dismissed when, on the same day, the trial court entered an order granting a motion to dismiss and a judgment of dismissal, but the notice of appeal purported to appeal only from the order granting the motion to dismiss and had attached to it only a copy of the order, not the judgment, granting the motion to dismiss); *State v. Robinson,* 158 Or App 494, 974 P2d 713 (1999) (appeal dismissed when the trial court entered an order suppressing evidence and, later, an order dismissing the case, and the state appealed only from the order suppressing evidence); *Kent v. Lindstedt,* 138 Or App 316, 908 P2d 833 (1995) (appeal dismissed when the appellant purported to appeal from the trial court's entry of an appellate judgment that terminated an earlier appeal in same case).

Occasionally, the circumstances may rescue an imperfect description if the appealable judgment is somehow described. *See, e.g., Werline v. Webber,* 54 Or App 415, 418–419, 635 P2d 15 (1981) (notice of appeal filed within 30 days of date of entry of the only judgment entered in the case and that stated that the appeal was taken from "the judgment" was sufficient, even though notice also gave wrong date of entry of judgment and attached document other than judgment); *Atherly, Butler & Burgott v. Antonini,* 126 Or App 347, 349, 868 P2d 786 (1994) (in a case with multiple parties and judgments, the notice of appeal was sufficient because, comparing the parties identified as parties to the appeal and various judgments entered by the trial court, only one judgment could have been the subject of appeal).

The appellate court will consider any attachments to the notice and "give the party filing the notice . . . the benefit of all favorable inferences that may be drawn from the notice" or any attachments. *Ososke v. Driver & Motor Vehicle Servs.,* 320 Or 657, 662–663, 891 P2d 633 (1995) (court of appeals could consider envelope in

which order being challenged on judicial review was mailed to determine timeliness of appeal); *Ensley v. Fitzwater*, 293 Or 158, 645 P2d 1062 (1982) (the court had jurisdiction of appeal when notice of appeal described a nonappealable order but also expressly referred to an appealable judgment and had attached to the notice a copy of the appealable judgment).

3. (§2.46) Defects that Do Not Destroy Jurisdiction

Oregon law characterizes several failures as nonjurisdictional defects. These examples demonstrate the courts' forgiveness.

(1) *Failure to pay filing fee*

The failure to pay the required filing fee with the notice of appeal is not jurisdictional, although an uncured failure is cause for dismissal. ORS 19.265; see United States Nat'l Bank v. Underwriters at Lloyd's, London, 239 Or 298, 382 P2d 851, 396 P2d 765 (1964).

(2) *Failure to serve the court reporter, clerk, or administrator*

The failure to serve at least one court reporter, even when all or a portion of the trial transcript is designated, is not a jurisdictional error. McQuary v. Bel Air Convalescent Home, Inc., 296 Or 653, 655–656, 678 P2d 1222 (1984) ("the procedural sins of attorneys should not be visited on their clients"); cf. ORS 19.270(2)(a) (service on parties is jurisdictional).

(3) *Failure to file and serve an undertaking for costs*

The failure to file an undertaking to stay enforcement of a judgment—dubbed a supersedeas undertaking—has never been a ground for appellate dismissal in Oregon. See generally ORS 19.300 (superseadeas undertaking "may" be filed), ORS 19.335 (requisites for supersedeas undertakings). However, an undertaking for costs on appeal must be served and filed within 14 days after the filing of the notice of appeal. The cost undertaking must be filed in the circuit court and a copy must be served on the adverse parties. ORS 19.300. The failure of a party to do any act required for an appeal is potential grounds for a motion to dismiss the appeal. ORS 19.270(3). When left uncured, the failure to file a cost bond could invite dismissal. See ORS 19.270(3). Historically, the court has held that this failure, although subject to discretionary dismissal, does not constitute a jurisdictional defect. Rogers v. Day, 232 Or 185, 195, 375 P2d 63 (1962); Hink v. Bowlsby, 199 Or 238, 260 P2d 1091 (1953). The court's reluctance to dismiss has

been formalized in appellate rule. A motion to dismiss must attest that the moving party gave the errant party at least seven days' prior notice of the motion. ORAP 7.40(1)–(2). The errant party cannot avoid trouble simply by curing the failure. The errant party must offer a copy of the cost undertaking and show good cause for the failure to have complied with the statute. ORAP 7.40(3). The moving party may persist in seeking dismissal by showing prejudice, if any, from the failure to have filed a timely cost undertaking. ORAP 7.40(4).

(4) *Failure to affix proof of service to notice of appeal*

Dismissal is not required when the appellant timely files and actually serves a notice of appeal but neglects to affix the proof of service. *Pohrman v. Klamath County Comm'rs,* 272 Or 390, 538 P2d 70 (1975); *see also Barbre v. Goodale*, 28 Or 465, 38 P 67, 43 P 378 (1896); *but see* ORAP Appendix 2.05 (prescribing the form for a notice of appeal and making the proof of service an integral part of that form).

(5) *Designation of record*

The failure to designate any or all of the record on appeal is not jurisdictional. *Gordon Creek Tree Farms, Inc. v. Layne*, 230 Or 204, 210–211, 358 P2d 1062 (1961). The appellate court may grant relief from such an omission. *See* ORS 19.250(1)(d) (permitting amendment of designation until 35 days after transcript is filed); *see also* ORS 19.365(4) (correction of record). If, however, a "record on appeal is not sufficient to allow the appellate court to review an assignment of error, the court may decline to review" it, and the court may dismiss the appeal if there are no other assignments of error to review. ORS 19.365(5). If the appellant fails to designate a sufficient transcript or other record to support the assignments of error, the appellate court will affirm the trial court on the presumption that the missing record justified the decision below. *King City Realty, Inc. v. Sunpace Corp.*, 291 Or 573, 582, 633 P2d 784 (1981), *superseded by statute as stated in* 216 Or App 541, 550 (2007); *Reeder v. Kay*, 276 Or 1111, 557 P2d 673 (1976); *H.N.M. Enterprises, Inc. v. Hamilton*, 49 Or App 613, 621 P2d 57 (1980). When an appellant fails to designate a necessary transcript on appeal, the appellate court will affirm the judgment on appeal if the pleadings are sufficient to support it. *Reeder*, 276 Or at 1115; *Densem v. Edmunds*, 272 Or 345, 537 P2d 77 (1975).

(6) *Statement of points on appeal*

The statement of points on which the appellant intends to rely on appeal is required when the appellant fails to designate for appeal the entire record of all testimony and jury instructions given. Nevertheless, in such a situation, the failure to include a statement of points on appeal is not a jurisdictional defect. *Millard v. Mitchell Bros. Truck Lines*, 261 Or 165, 492 P2d 783 (1972).

(7) *Mislabeling the judgment in the notice of appeal*

As noted in §2.45, it is not a jurisdictional defect to fail to describe accurately the trial court decision being appealed as long as the information given is sufficient to allow a determination of the judgment from which the appeal was taken. *Werline v. Webber*, 54 Or App 415, 418–419, 635 P2d 15 (1981); *Atherly, Butler & Burgott v. Antonini*, 126 Or App 347, 349, 868 P2d 786 (1994).

(8) *Failure to attach the judgment to the notice of appeal*

The failure to attach a judgment, or to attach the correct judgment, may not be fatal to the appeal. *See State v. Etchison*, 142 Or App 396, 402, 921 P2d 1333 (1996) ("[w]hat the notice must contain is enough information reasonably to apprise the adverse parties that an appeal is being taken from an appealable judgment"); *Smith v. Koors*, 149 Or App 198, 203, 942 P2d 807 (1997) ("[a] notice of appeal is not jurisdictionally defective because it attaches the wrong document . . . if there is in fact a final judgment").

(9) *Failure to file a new notice after a new judgment under ORS 19.270(4)*

The appellate court may give the trial court leave to enter a final judgment when a party prematurely files a notice of appeal, if the appellate court determines that, before the notice of appeal was filed, the trial court had resolved all claims or had resolved the claim or claims that were to be the subject of a judgment for fewer than all claims under ORCP 67 B. ORS 19.270(4); *State v. Rickey*, 97 Or App 41, 775 P2d 327 (1989); *State v. Cortright*, 136 Or App 421, 902 P2d 598 (1995). If the appellate court gives the trial court leave under ORS 19.270(4), it is not then a jurisdictional requirement that a new or amended notice of appeal be filed within 30 days of the date of entry of the judgment. If, however, the appellate court has required the filing of a new or amended notice of appeal within a specific time, and the appellant fails to file a new or amended notice of appeal with the prescribed period from the date of entry of the judgment, then the appellate court

may dismiss the appeal for lack of prosecution. *Baugh v. Bryant Ltd. Partnerships*, 312 Or 635, 825 P2d 1383 (1992).

Despite these examples of leniency, there are limits to an appellate court's ability to forgive. The trial court does have authority to enter a corrected judgment. ORS 18.107; ORCP 71; *see* §2.47. However, if circumstances already mean that appellate jurisdiction is lost, the trial court cannot manipulate the "judgment" to spare a party from its error. *See Far West Landscaping, Inc. v. Modern Merchandising, Inc.*, 287 Or 653, 601 P2d 1237 (1979) ("trial court has no authority to set aside one judgment and enter another *for the sole purpose* of extending the time for appeal"); *State v. Ainsworth*, 346 Or 524, 213 P3d 1225 (2009) ("trial court has no inherent authority to vacate a properly entered judgment and then reinstate the identical judgment, when the sole purpose for doing so is to extend the statutorily fixed time to appeal for a party who failed to check the record and determine that judgment had been entered").

4. (§2.47) Corrected Judgments

Corrected judgments pose a sensitive question of timing. Under ORCP 71, a court may correct the terms of a civil judgment previously entered. The "time for appeal of the judgment commences upon entry of the original judgment" unless "a correction to a judgment affects a substantial right of a party." ORS 18.107(2). If a correction affects a substantial right, and

> the corrected judgment is entered before the time for appealing the original judgment has expired, the time for appeal . . . commences upon entry of the corrected judgment. If the correction affects a substantial right . . . and the corrected judgment is entered after the time for appealing the original judgment has expired, the time for appeal of the corrected portions of the judgment and all other portions of the judgment affected by the correction commences upon entry of the corrected judgment.

ORS 18.107(2)–(3). *See generally In re Marriage of Mullinax*, 292 Or 416, 639 P2d 628 (1982) (If amendment of a final judgment "either materially alters rights or obligations determined by the prior judgment or creates a right of appeal where one did not exist before, the time for appeal should be measured from the entry of the amended judgment." However, if "the amendment has neither of those results, but instead makes changes in the prior judgment which have no adverse effect upon those rights or obligations or the parties' right to appeal, the entry of

the amended judgment will not postpone the time within which an appeal must be taken from the original decree.”).

5. (§2.48) Jurisdiction to Determine Jurisdiction

The appellate courts regard a familiar principle to be elemental: an appellate court has jurisdiction to decide whether it has jurisdiction. *Forelaws on Bd. v. Energy Facility Siting Council*, 303 Or 541, 543, 738 P2d 973 (1987); *Emerald Peoples Util. Dist. v. Energy Facility Siting Council*, 321 Or 562, 564, 902 P2d 1134 (1995).

The Oregon statute that outlines the procedure for determining appellate jurisdiction is ORS 19.235(1). That statute provides that the trial court has authority to make “a summary determination, with or without a hearing, whether the decision is appealable.” ORS 19.235(1). The issue must be raised by any party, or by the trial court on its own motion, after receipt of actual notice of the filing of the notice of appeal. ORS 19.235(1). The trial courts respond by referring the question of appealability to the appellate court. The trial court may stay the proceedings pending appellate determination of appellate jurisdiction. Or, if it determines that its decision is not appealable, the trial court may decide to take steps to enter an appealable judgment. ORS 19.235; *see also* ORS 19.270(4) (trial court may proceed to enter appealable judgment). None of these evaluative choices about the appealability of a would-be judgment are themselves appealable. ORS 19.235(2).

The appellate court may also make a “summary determination of the appealability of the decision” on motion of any party, on its own motion, or on referral from the trial court. ORS 19.235(3). The appellate court on its own motion, or on the motion of any party, may stay proceedings pending the determination of jurisdiction. ORS 19.235(2).

The appellate rules caution, “[i]f an appellate determination of appealability does not expressly state that it is a summary determination of appealability under ORS 19.235(3), then the determination is not subject to ORS 19.235(3) or this rule.” ORAP 2.35(3)(b). An appellate court’s determination of whether a trial court decision is appealable is a “summary determination of appealability” subject to the provisions of ORS 19.235 only if the appellate court specifically denominates the determination as a summary determination of appealability. *Hawkins v. La Grande*, 93 Or App 63, 68, 760 P2d 1346 (1988).

The statute provides for an expedited supreme court review of a court of appeals summary determination of jurisdiction. ORS 19.235(3). The petition for review must be "served and filed within 14 days" after the date of the court of appeals' determination. ORS 19.235(3). "Either the Court of Appeals or the Supreme Court may shorten the time period within which the petition for review shall be filed." ORS 19.235(3).

The statute is express about the circumstances that terminate the trial court's jurisdiction. ORS 19.235(4)(a). The trial court continues to have jurisdiction unless (1) the appellate court has made "an express determination" that the appeal was taken from an appealable order or judgment; (2) all means of review of that appealability decision have been exhausted; and (3) the state court administrator, at the direction of the court, has mailed copies of "the final appellate determination" to the trial court and to the parties. ORS 19.235(4)(a).

6. (§2.49) Motion to Determine Jurisdiction

The motion to determine jurisdiction existed before the Oregon statutes provided a codified process to determine appealability. Attorneys faced the quandary posed by an ambiguous "final order" and a 30-day deadline for appeal. A trial judge might be unwilling or unable to clarify the document. An adversary might be unwilling or indifferent to assist clarification. With malpractice as the cost of misjudgment or inaction, the careful attorney would file a notice of appeal and immediately move that the appellate court determine the appealability of the matter. If the order or judgment was appealable, then the notice had been filed. If it was not appealable, then the trial court could cure the problem later with an appealable judgment, which the appellant could follow with a new notice of appeal. *See* ORS 19.270(4) (curative judgment), ORS 19.255(1) (appeal within 30 days of the later, real final judgment). Today, ORS 19.235 recognizes the role of such caution and provides that the motion can be filed with either the trial or appellate court.

7. (§2.50) Appellate Jurisdiction During Appeal

The general concept has been that once an appeal is properly filed and served, jurisdiction over the case passes to the appellate court. *See generally* ORS 19.270(1); *cf. Burnam v. Garon Dev. Corp.*, 70 Or App 665, 667, 690 P2d 1090 (1984) (trial court deprived of jurisdiction until jurisdiction was returned to it). Appellate jurisdiction ordinarily ends when the state court administrator mails the

appellate judgment to the trial court. ORS 19.270(6). Variations on the rule provide that the appellate court may recall the appellate judgment as justice may require or to stay enforcement of the appellate judgment in light of matters such as a petition for writ of certiorari to the Supreme Court of the United States. ORS 19.270(6). During the appeal, the appellate court generally enjoys full and complete jurisdiction over the case or controversy.

8. (§2.51) Trial Court Authority During a Civil Appeal

Experience has codified predictable situations in which the trial court retains authority to decide matters in a civil case on appeal:

(1) The trial court retains authority to decide requests for attorney fees, costs, and disbursements as typically resolved under ORCP 68. ORS 19.270(1)(a); *see, e.g., Portland v. Carriage Inn*, 296 Or 191, 194, 673 P2d 531 (1983).

(2) The trial court retains authority to enforce a judgment that has not been stayed from enforcement by an undertaking on appeal. ORS 19.270(1)(b).

(3) The trial court retains authority to decide a motion notwithstanding the verdict under ORCP 63, a motion for new trial under ORCP 64, or a motion for relief from judgment under ORCP 71 B. ORS 19.270(1)(c)–(e).

(4) The trial court retains jurisdiction, with leave of the appellate court, to enter an appealable judgment if the appellate court finds that, at the time of the notice of appeal, the trial court had intended to enter an appealable judgment and the judgment was defective, the trial court had lacked jurisdiction, or the trial had failed to enter an appealable judgment. ORS 19.270(4).

(5) The trial court retains jurisdiction to enter a supplemental judgment under several statutes or pursuant to settlement on appeal. ORS 19.270(5).

(6) The trial court retains authority to resolve matters involving the cost or superseadeas undertakings on appeal. It is in the trial court that the adverse party must except to the sufficiency of the surety or the undertaking. ORS 19.305(3). If the parties choose to stipulate to waive any undertaking, then their stipulation is filed in the trial court. ORS 19.310. Similarly "[t]he trial court may waive, reduce or limit an undertaking on appeal upon a showing of good cause, including indigence, and on such terms as are just and equitable." ORS 19.310(2).

(7) The trial court retains authority concerning preparation, objections, and settling of the transcript on appeal. Within 15 days after filing of the transcript,

any party to the proceeding may move the trial court for an order correcting errors in the record. ORS 19.370(5). Paradoxically, motions for time extensions regarding the record must be made to the appellate court, not the trial court. ORS 19.395.

(8) The trial court retains jurisdiction after appeal of a domestic case to entertain a motion for change of circumstances to modify child or spousal support, and such a motion no longer affects the right to continue to pursue an appeal. ORS 19.275(1); *cf. In re Marriage of Nickerson*, 296 Or 516, 678 P2d 730 (1984) (reversed in part by enactment of ORS 19.275). The trial court may decide to hear the motion or may defer ruling until resolution of the appeal. ORS 19.275(2). A ruling on the second matter in the trial court may be appealed and consolidated with the appeal of the original ruling. ORS 19.275(3).

9. (§2.52) Trial Court Authority During a Criminal Appeal

Although an appeal in a criminal case is pending, the trial court retains jurisdiction to modify the judgment and sentence to correct arithmetic or clerical errors and "to delete or modify any erroneous term in the judgment." ORS 138.083(1). The court may do so on its own motion or on motion of one of the parties. ORS 138.083(1).

Similarly, the trial court retains jurisdiction to enter an amended judgment specifying the amount of restitution, if the original judgment provided that the defendant would be liable for restitution. ORS 138.083(2).

A final variation on the theme involves a motion filed in the appellate court directed to the judgment on appeal. On joint motion of the parties, the appellate court may vacate the judgment or order from which the appeal was taken and remand the case to the trial court for reconsideration. ORS 138.227.

While an appeal is pending, the trial court has jurisdiction to remove court-appointed counsel or to appoint substitute counsel. That authority is concurrent with the authority of the appellate court in which the appeal is pending. ORS 138.500(2).

V. (§2.53) CONCLUSION

More information can be found in other chapters of this text related to particular kinds of appeals or various stages of appellate practice. When a review of this text, the statutes, or appellate rules still leaves uncertainty, an informed

question will be welcomed by a member of the court's staff, a colleague in the Appellate Practice Section of the Oregon State Bar, or a claims attorney of the Professional Liability Fund. A thoughtful question will dodge trouble and ensure that an appeal reaches the appellate court on the merits.

Chapter 3: TAKING AN APPEAL

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I. (§3.1) INTRODUCTION

Lawyers have a 30-day period to evaluate a client's practical and strategic needs, consider which legal arguments are most likely to reverse the result below, and address procedural questions about what may be raised on appeal at all. That, combined with the practical minutiae of settling the record and posting the required undertakings, makes commencing an appeal a challenging enterprise. This chapter provides some guidance about the practical and procedural aspects of taking an appeal.

In addition to reviewing this chapter, the prudent lawyer should make use of the additional sources of information described below.

A. (§3.2) Judges

The judges of the court of appeals and the justices of the supreme court often speak at various bar events and conferences. The lawyer should take advantage of these opportunities to get to know the judges and speak informally with them.

B. (§3.3) Court Staff

Staff members at the court records office are extremely helpful with general procedural questions. However, the lawyer should not rely on staff with regard to deadlines and other critical matters. The phone number for the records office is 503-986-5555.

C. (§3.4) Oregon Sources of Information

The following resources are very useful in the practice of appellate law:

(1) ORS chapters 18 and 19.

(2) Oregon Rules of Appellate Procedures (ORAPs). These rules are available on the Oregon Judicial Department's Web site, www.courts.oregon.gov/OJD (click on "Materials and Resources," then "Court Rules"). The judicial department also publishes the rules in notebook form. Copies can be ordered by contacting the OJD Publications Section, 1163 State Street, Salem, OR 97301-2563; telephone 503-986-5656; or online at www.publications.ojd.state.or.us. The ORAPs are also included in Oregon Rules of Court: State, published annually by Thomson/West. The rules are updated periodically. Changes are reported in the advance sheets when they occur.

(3) Oregon Appellate Courts' Style Manual (2002 ed). The courts developed this manual for their own use, but it provides useful guidance for practitioners as well. It addresses citation format, grammar, abbreviations, and the like. Where it varies from the *The Bluebook*, the Oregon appellate lawyer should follow this manual. This manual can also be found at www.publications.ojd.state.or.us.

(4) Oregon Rules of Court: State, published by Thomson/ West. This paperback volume includes the ORAPs as well as rules of civil procedure and evidence and other useful references. Because it is published only once a year, it is wise to check the advance sheets for any rule changes that may occur between publication dates.

D. (§3.5) General Works for Appellate Practice

The following references are helpful in the drafting of appellate briefs:

BRYAN A. GARNER, THE WINNING BRIEF (2d ed 2004)

BRYAN A. GARNER, GARNER'S MODERN AMERICAN USAGE (3d ed 2009)

WILLIAM STRUNK & E.B. WHITE, THE ELEMENTS OF STYLE (4th ed 2000)

WEBSTER'S THIRD NEW INTERNATIONAL DICTIONARY (unabridged ed 2002)

E. (§3.6) Briefs

Lawyers may view filed appellate court briefs at the State of Oregon Law Library in the Supreme Court building, at the state's three law schools, and at the law libraries of Multnomah, Clackamas, and Washington counties. Reading briefs or petitions for review filed by lawyers or firms with substantial appellate experience can help the lawyer hone his or her skills and provide examples of

proper form. However, the lawyer should be aware that formatting rules change from time to time, and older briefs will not necessarily be in compliance with current rules.

Sample forms are available in the ORAP appendixes.

II. (§3.7) WHETHER TO APPEAL

A lawyer's role is not only to provide substantive legal advice, but also to advise the client of the most strategically advantageous use of the legal process. A legal point that is significant to the lawyer may mean little to his or her clients. Even if clients are ready for a fight in the wake of a disappointing ruling, they may not be aware of the time and resources required to appeal.

The lawyer should carefully consider the practical costs and benefits of appealing and discuss them with his or her clients. The prudent lawyer will also formalize the decision in writing (a simple e-mail or letter will suffice). If a client sours on the appeal, some evidence showing that the client made a fully informed decision to appeal may be useful.

Consultation with a lawyer whose practice concentrates on appeals can be helpful, not only in deciding whether to appeal, but also in the handling of any appeal that is taken.

A. Out-of-Pocket Costs to Client

1. (§3.8) Court Fees

As of October 1, 2009, in civil cases the appellant's or petitioner's filing fee of $212 must be paid at the time of the filing of the notice of appeal. The respondent's appearance fee of $180 (for the initial party named) or $172 (for each additional named party) is to be paid at the time of the respondent's first appearance (motion to dismiss, motion for extension of time, brief, etc.). ORS 21.010. On July 1, 2011, legislation will take effect reducing each of those fees to $154. 2009 Or Laws ch 659, §§30–31.

The filing fee or appearance fee is a recoverable cost of the appeal. ORS 20.310(2). A fee deferral or waiver is available for an indigent appellant. The court provides the form for deferral or waiver. The form can be found online, at http://courts.oregon.gov/OJD/docs/OSCA/acs/records/AppellateApplicationAndDeclarationCombo.pdf.

2. (§3.9) Undertakings on Appeal

A client must be prepared for two kinds of undertakings on appeal: one for costs, and one for the amount of the judgment. The details are presented in §§3.64–3.92.

The costs of an undertaking is recoverable, should the appellant prevail. ORS 20.310.

The lawyer should have frank conversations with his or her client about the costs of appellate undertakings, and should try to learn what financial arrangements are feasible and desirable for the client. The lawyer should confirm in writing.

The lawyer for a respondent on appeal should have the same kind of conversations with his or her client about the risks and benefits of waiving or consenting to the reduction of undertakings. Respondents must weigh the financial security of the judgment amount against the chance that they will be saddled with the costs of the undertaking if appellants prevail. This is particularly important when the appeal is of a punitive damages award. A reduced award, even if it is not eliminated, may lead the court to determine that the defendant/appellant is the prevailing party and award bond costs against the plaintiff/respondent. *See Jensen v. Medley*, 170 Or App 42, 59–60, 11 P3d 678 (2000), *aff'd in part, rev'd in part,* 336 Or 222 (2003) (court gave prevailing party choice of 90% reduced award or new trial).

3. (§3.10) Transcript

The party designating the transcript pays for it at the statutory rate of not more than $2.50 per page and 25 cents for each additional copy. ORS 21.470(1). One full day in court may produce 200 to 300 pages of transcript. The cost of an original and two copies of the transcript of a three-and-one-half-day trial could exceed $3,000.

The party designating the transcript must make arrangements for payment that are satisfactory to the court reporter, or the appeal may proceed without the transcript. ORAP 3.30(4). Many court reporters demand full payment in advance.

Practice Tip: The lawyer should ask the court reporter how much the transcript will cost before talking to the client about the costs of appeal. An honest

estimate of the time actually needed for the reporter to complete the transcript is valuable.

The prevailing party recovers the cost of the preparation of the transcript. ORS 20.310(2).

4. (§3.11) Briefs

Whether the parties file electronically or file paper copies, they must pay for copies of briefs filed in the supreme court and court of appeals, as well as petitions for review filed in the supreme court. ORAP 5.10(1), (3), 9.05(3)(b), 16.20(2) (document recovery charges for e-filing briefs). When documents are filed conventionally, the filing party must pay for an original and 13 copies of court of appeals briefs, ORAP 5.10(1), or an original and 12 copies of a supreme court brief or petition for review, ORAP 9.05(3)(b), 9.17(4). For certain briefs, only an original and five copies must be filed: a "Balfour brief" filed pursuant to ORAP 5.90, a respondent's brief confessing error and not opposing the relief sought in the opening brief, and a brief of an indigent party who is appearing pro se or whose brief has been copied at public expense. ORAP 5.10(1).

If the document is filed electronically, the e-filing system charges the filing party 10 cents per page for copies it makes for the court, but service copies are free because the receiving party bears the cost of printing them. When service is not accomplished electronically (which occurs even for e-filed documents if recipients are not registered for the system), parties must also make two service copies of each brief for each party served. ORAP 5.10(3), 16.45(3).

> PRACTICE TIP: The e-filing process is evolving. The lawyer should make sure that he or she is viewing the most recent version of the ORAPs and checking frequently for updates and amendments.

Effective January 1, 2011, the maximum length of an opening brief—exclusive of indexes, excerpts of record, and appendixes—is 10,000 words (or about 35 pages) in the court of appeals and 14,000 words (or about 50 pages) in the supreme court, unless the court allows a longer brief on motion of the party. ORAP 5.05(2), (3).

The prevailing party recovers the cost of printing briefs. ORS 20.310(2). The prevailing party may recover costs for the number of briefs "required to be filed or actually filed, whichever is less, plus two copies for each party served

[conventionally] and two copies for each party on whose behalf the brief was filed." ORAP 13.05(6)(a).

5. (§3.12) Attorney Fees

The amount of time required to brief an appeal depends on the number and complexity of issues involved, the size of the record (including the transcript), and the experience of the lawyer. Briefing an uncomplicated civil appeal involving one or two issues based on a two-day trial may take 50 to 65 hours, depending on whether the lawyer represents the appellant or the respondent. That time includes reviewing the record, researching, drafting, revising, and cite checking. It does not include motion practice, participation in appellate mediation, or oral argument.

> PRACTICE TIP: Before giving a client an estimate of fees, the lawyer should block out the areas of work to be done. The lawyer should also determine whether clerks or paralegals could do some work, such as cite checking.

Oral argument in Salem, including travel time, can be particularly time consuming. Briefing and argument regarding the amount of attorney fees may also be extensive, and the results uncertain.

6. (§3.13) Loss of Use of Money

The prudent lawyer will consider the loss of the use of money needed to pay for bond premiums. The statutory rate of interest on state court judgments is 9% simple interest unless the judgment is on a contract providing for compounding or a greater rate of interest. ORS 82.010(2).

B. Odds of Success

1. (§3.14) Statistics

The court of appeals receives between 3,000 and 4,000 new cases each year. Between 35% and 50% of those cases are dismissed without a decision, typically because the case settles, there are jurisdictional problems, or the appellant fails to prosecute the action. Oregon Court of Appeals Annual Report 2008 at 2. This report can be found at www.publications.ojd.state.or.us/2008CAReport.pdf. In 2008, 3,220 cases were filed. Only 436 of those were decided by opinion. Between 55% and 60% of the cases resolved by the court are affirmed without opinion (AWOP). The reversal rate is low. In 2008, 1,012 petitions for review were filed in the supreme court. The court accepted 75 petitions. Typically, the percentage of

cases accepted for review has been less than 10%. Oregon Court of Appeals Annual Report 2008.

2. (§3.15) Preservation

The chances of success on appeal decrease exponentially if the error was not properly preserved below. The prudent appellate lawyer should review the record to ensure that the legal issues were timely and thoroughly raised with the trial court. Oregon courts require a detailed description of how the error was preserved or, if not, why the error is "apparent on the face of the record." ORAP 5.45(4), (6).

It is not impossible to appeal errors without preserving the objection below, but appellants who do so have an uphill battle. For more on preservation and plain error, see chapter 5.

3. (§3.16) Standard of Review

Clients often think that the appellate court will reconsider all the evidence anew or entertain new arguments based on all the evidence, but that is rarely so. The standard of review affects the odds of prevailing on appeal. Different standards of review will apply to the different issues raised in any given case. The attorney should consider the standards of review when determining the odds of obtaining a reversal or a new trial under that standard. For more information, see chapter 5.

4. (§3.17) Harmless Error

The lawyer should consider each issue's likelihood of altering the judgment. Even if the standard of review favors the appellant, overturning the trial court's decision on a particular issue may not change the bottom line. Oregon appellate courts frequently determine that errors occurred below but that they were harmless. Thus, the lawyer should be prepared to explain why the asserted error mattered. The courts seldom overturn a result on evidentiary grounds alone. For more on harmless error, see chapter 5.

C. Penalties and Sanctions

1. (§3.18) 10% Penalty under ORS 19.445

The lawyer must think carefully before pursuing an appeal to ensure that the issues on appeal have colorable merit. Sloppiness can cause an expensive and frustrating loss for the client and sanctions for a frivolous appeal.

Oregon statutes include a penalty of 10% of the amount of the trial court judgment for appeals filed without probable cause. ORS 19.445. The penalty is available only if the judgment being appealed is a judgment to recover money, personal property, or its value. ORS 19.445. The penalty applies even if the appellant acts in good faith; the standard is "whether any reasonable lawyer would conclude that any of the legal points asserted on appeal possessed legal merit." *Broyles v. Estate of Brown*, 295 Or 795, 801, 671 P2d 94 (1983).

2. (§3.19) Attorney Fees under ORS 20.105

The appellate court may also assess reasonable attorney fees against a party filing an appeal or seeking review if the court finds that the party willfully disobeyed a court order or that there was no objectively reasonable basis for pursuing the appeal. ORS 20.105(1). A party must be the prevailing party in the proceeding in order to obtain an award of attorney fees. *Dep't of Revenue v. Croslin*, 345 Or 620, 636, 201 P3d 900 (2009). ORS 20.105 does not require bad faith on the part of the sanctioned party. The courts had previously held that bad faith was required (*Mattiza v. Foster*, 311 Or 1, 803 P2d 723 (1990)), but the legislature overturned that interpretation by amending ORS 20.105 in 1995. Since then, the courts have awarded fees under ORS 20.105 without an explicit showing of bad faith. *See Gall v. Dep't of Revenue,* 337 Or 427, 98 P3d 390 (2004) (awarding attorney fees when appellant's legal argument directly contradicted existing Oregon tax statute).

3. (§3.20) Sanctions under ORAP 1.40(4) and ORCP 17

A court may impose sanctions if (1) a filing is not grounded in fact or warranted by existing law or a good-faith argument for the extension, modification, or reversal of existing law (ORCP 17 C(3)); or (2) the filing is made for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation (ORCP 17 C(2)). The court, on its own motion or on that of a party, may impose sanctions on the client or the lawyer personally for ignoring either of those proscriptions. ORCP 17 D(1)–(2). If the sanction is based on lack of legal merit, the subjective good faith of the party or the lawyer is irrelevant. *Seely v. Hanson*, 317 Or 476, 483, 857 P2d 121 (1993) (basing the sanctions analysis on the legal merit of the argument after the opposing party declined to argue the existence of bad faith). ORAP 1.40(4) adopts ORCP 17 as a rule of appellate procedure.

Court-imposed sanctions must reimburse the moving party for "attorney fees and other expenses incurred by reason of the false certification" in an amount "sufficient to deter future false certification by the party or attorney." ORCP 17 D(4). *See Schlumberger Techs. v. Tri-County Metro. Transp. Dist.*, 145 Or App 12, 929 P2d 331 (1996) (legislature retained the requirement that sanctions be a result of some misconduct or overreaching); *Wilson v. Armenakis*, 144 Or App 587, 928 P2d 354 (1996) (requirement for show-cause hearing); *Conley v. KCA Fin. Servs.*, 145 Or App 567, 931 P2d 808 (1997) (contents of order imposing sanctions); ORAP 1.40(3); ORCP 17.

> CAVEAT: The lawyer must make sure that each error was preserved at trial and has legal merit. If there is any question, the lawyer should review the likelihood of a sanction with the client before appealing. If an insurance company is defending the claim against the client, the lawyer should notify the insurance carrier and the client of the risk of sanctions and instruct the client to obtain independent legal advice about whether sanctions for frivolous appeals are covered by the policy. *See, e.g., Stumpf v. Eidemiller*, 94 Or App 576, 579–581, 767 P2d 77 (1989) (considering whether the sanction amount was chargeable to the insurance company, either as "damages" covered under the policy or as a claims expense).

D. (§3.21) Delay in Resolution

The court reporter must file the transcript with the trial court within 30 days after the notice of appeal. ORS 19.370(2). The court of appeals can grant extensions. Court reporters are pressed for time to work on transcripts. They routinely need and get extensions. See §3.97 regarding extensions of time for preparing transcripts.

Where the rules allow a reply brief, an unextended briefing schedule runs 119 days (49 days + 49 days + 21 days). ORAP 5.80.

Comment: Oral argument is set at least two months after filing the final brief. A decision can come within a month or after six months; occasionally a decision comes down a year or more after oral argument. Thus, in an appeal in which no extensions are requested and a decision comes within a month, the earliest that the lawyer is likely to receive a decision from the court of appeals is 209 days after the notice of appeal is filed. If a party petitions for review from the supreme court, the petition will delay final resolution from two to 18 months.

Extensions are routinely requested and granted, delaying the time to resolution even further.

III. IS THERE ANYTHING TO APPEAL?

A. (§3.22) Generally

Only certain decisions of a trial court, an administrative agency, or a state board are appealable. The requirements for an appealable decision are discussed in detail in chapter 2. This chapter provides a brief overview to help the lawyer determine whether he or she should consider an appeal.

> PRACTICE TIP: Oregon overhauled its approach to judgments and judgment terminology in 2003. 2003 Or Laws ch 576. Further amendments occurred in 2005. 2005 Or Laws ch 568. Case law predating the overhaul should be scrutinized to ensure it remains relevant in light of the streamlined system of limited, general, and supplemental judgments.

B. (§3.23) Judgments

A judgment is "the concluding decision of a court on one or more requests for relief in one or more actions, as reflected in a judgment document." ORS 18.005(8). A judgment document must meet the criteria in ORS chapter 18. Among these criteria are the following:

- It must be "plainly titled as a judgment." Thus, judgments titled decree, judgment order, or otherwise are suspect, ORS 18.038(1).
- It must be "separate from any other document in the action," ORS 18.038(3).
- It must include the name of the court and the file number, ORS 18.038(4)(a).
- It must include the names of parties in whose favor and against whom judgment is given, ORS 18.038(4)(b).
- It must be signed by the judge (or the court administrator, if appropriate) and entered in the court register, ORS 18.038(4)(c), 18.058(1).

The lawyer must follow these criteria in order for the document to be considered appealable in form, but courts will also consider whether the decision is

appealable in substance. *Lindsay v. Nicewonger Co.*, 203 Or App 750, 754 n 1, 126 P3d 730 (2006) ("[W]hatever the effect of [ORS 18.038 and 18.058], it does not deprive us of the authority to dismiss this appeal if we conclude that the judgment in this case is not an appealable judgment.").

There are three primary types of judgments: limited, general, and supplemental. Each type of judgment may be corrected. It is not necessary to label a judgment as limited, general, or supplemental in order for the judgment to be appealable, as long as the word *judgment* appears in the title. *Galfano v. KTVL-TV*, 196 Or App 425, 436, 102 P3d 766 (2004).

> PRACTICE TIP: To the extent that the term *decree* is still present in older statutes, it should be understood to mean *judgment*. ORS 18.015. Unless the lawyer has a specific reason to use *decree*, the word should be avoided.

1. (§3.24) Limited Judgments

Generally, a limited judgment is a judgment "as to one or more but fewer than all of the claims or parties" presented in a given action. ORCP 67 B; ORS 18.005(13)(a), (d). A court may enter a limited judgment in five situations:

(1) When it disposes of fewer than all claims or parties and determines that there is no just reason for delay, ORCP 67 B;

(2) When it disposes of fewer than all claims or parties and the underlying legal authority specifically authorizes disposition by limited judgment, ORS 18.005(13)(d);

(3) When it enters judgment on the portion of a claim exceeding a counterclaim, ORCP 67 G;

(4) When a circuit court enters a judgment before the conclusion of an action for the partition of real property, defining the rights of the parties and directing sale or partition, ORS 18.005(13)(b); and

(5) When it enters an interlocutory judgment foreclosing an interest in real property, ORS 18.005(13)(c).

> PRACTICE TIP: Most limited judgments will occur under ORCP 67 D. When obtaining such a judgment, the lawyer should make sure that the court specifically notes in the judgment document that it has determined there is

no just reason for delay. *But see Interstate Roofing, Inc. v. Springville Corp.*, 347 Or 144, 155–156, 218 P3d 113 (2009) (entry of document titled "limited judgment," even without ORCP 67 B determination, is sufficient to make it final and appealable).

2. (§3.25) General Judgments

A general judgment is one that decides all requests for relief in the action except those decided by limited judgments or those that may be decided in a supplemental judgment. ORS 18.005(7).

3. (§3.26) Supplemental Judgments

A supplemental judgment is a judgment that may be rendered after a general judgment pursuant to specific legal authority. ORS 18.005(17). The most typical supplemental judgment is a judgment for attorney fees.

4. (§3.27) Corrected Judgments

A court may enter corrected judgments if necessary, and it may use that authority to change a general judgment to a limited judgment under certain circumstances. ORS 18.107–18.112. The corrected judgment is appealable. ORS 18.107–18.112, 19.205(1). The entry of a corrected judgment does not affect the timeline for appeal, unless the corrected judgment affects the substantial right of a party. ORS 18.107(2), (3); *see also* ORS 19.205(2) (orders affecting a substantial right).

C. (§3.28) Orders

Orders are not the same as judgments. An order is "any other determination by a court or judge that is intermediate in nature." ORCP 67 A. For purposes of appeal, some types of orders are treated as if they were appealable judgments. ORS 19.005(2), 19.205. These orders are designated in ORS 19.205(2) and (3). However, a letter opinion is not an order, and it is never final or appealable. *McCollum v. Kmart Corp.*, 347 Or 707, 713, 226 P3d 703 (2010).

D. (§3.29) What Judgments and Orders Are Appealable?

A party does not have an inherent right to appellate court review. The right to appeal is wholly statutory, and the appellate courts may not create their own jurisdiction. The appellant must establish that the decision from which the appeal is taken is appealable under some statutory provision, and the statutes are strictly

applied. *In re Estate of De Mary*, 294 Or 650, 653, 661 P2d 931 (1983). In a close case, the court will resolve doubts in favor of allowing an appeal. *In re Estate of De Mary*, 294 Or at 653.

A party may appeal only from a judgment or a qualifying order, including the following:

(1) A limited judgment (*see* §3.24), ORS 19.205(1);

(2) A general judgment (*see* §3.25), ORS 19.205(1);

(3) A supplemental judgment (*see* §3.26), ORS 19.205(1);

(4) A corrected limited, general, or supplemental judgment (*see* §3.27), ORS 18.107, 18.112, 19.205(1);

(5) "An order in an action that affects a substantial right, and that effectively determines the action so as to prevent a judgment," ORS 19.205(2); and

(6) "An order that is made in the action after a general judgment is entered and that affects a substantial right, including an order granting a new trial," ORS 19.205(3).

> PRACTICE TIP: The 2003 amendments to ORS 19.205(3) overturned the former requirement that the order be a final order. Thus, some orders are now appealable that formerly were not appealable. *See Mary Ebel Johnson, P.C. v. Elmore*, 221 Or App 166, 170, 189 P3d 35, *rev. denied*, 345 Or 301 (2008) (determining that an order granting a motion to set aside a default judgment was appealable, even though it previously would have been unappealable because it was not final).

1. (§3.30) Appealability of Frequently Encountered Orders

One difficult exercise for an appellate attorney is determining whether particular orders are appealable. A full discussion of the case law is beyond the scope of this chapter; see chapter 2 for further information. However, some particular situations arise frequently and are worth mentioning here.

> NOTE: Appealability and reviewability are not the same thing. A decision is appealable if it is the proper subject of a notice of appeal. A decision is reviewable if an appellate court may consider the substantive issues it raises. *See Asman v. State*, 210 Or App 369, 372–373, 150 P3d 1101 (2007) (determining that the trial court's denial of postconviction

petitioner's motion for summary judgment was appealable because there was a final judgment granting defendant's motion for summary judgment, but that it was not reviewable).

a. (§3.31) Orders Granting a Motion to Dismiss or Motion for Summary Judgment

Orders granting motions for summary judgment or dismissal are not appealable. They merely "pave the way" for entry of a judgment. *Cenci v. Ellison Co.*, 289 Or 603, 606, 617 P2d 254 (1980). A judgment must be entered pursuant to the order before an appeal is possible. The granting of the motion is reviewable upon an appeal from the judgment. *See Cenci*, 289 Or at 606–607; *Portland v. Carriage Inn*, 296 Or 191, 673 P2d 531 (1983).

b. (§3.32) Orders Disposing of a Claim

Orders disposing of a claim are not appealable and must be disposed of by judgment. *Portland v. Carriage Inn*, 296 Or 191, 673 P2d 531 (1983) (order dismissing an amended complaint without leave to replead is not appealable, although a judgment based on that order is appealable); *Maduff Mortg. Corp. v. Deloitte Haskins & Sells*, 83 Or App 15, 20–21, 730 P2d 558 (1986) (if claims are withdrawn in open court before trial but not dismissed by a judgment, the judgment disposing of the remaining claims is not appealable unless entered in accordance with ORCP 67 B).

c. (§3.33) Orders Denying Some Motions for Ultimate Relief (New Trial, J.N.O.V., Renewed Directed Verdict, and Summary Judgment)

Orders denying motions for new trial, for j.n.o.v. (judgment notwithstanding the verdict), for renewed directed verdict, and for summary judgment are neither appealable in their own right nor reviewable on appeal from an appealable judgment. *See, e.g., Meyers v. Oasis Sanitarium, Inc.*, 224 Or 414, 418, 356 P2d 159 (1960) (order denying j.n.o.v.); *Steel Products Co. v. FMD Corp.*, 282 Or 513, 519, 579 P2d 855 (1978) (order denying new trial); *Cler v. Providence Health System-Oregon*, 222 Or App 183, 189, 192 P3d 838 (2008) (denial of motion for new trial); *Hamlin v. Hampton Lumber Mills, Inc.*, 222 Or App 230, 238 n 4, 193 P3d 46 (2008), *reh'g granted,* 346 Or 157 (2009) (order denying renewed motion for directed verdict); *Iron Horse Eng'g Co. v. Northwest Rubber Extruders, Inc.*, 193 Or App 402, 415, 89 P3d 1249 (2004) (denial of motions for j.n.o.v. and new

trial); *Mountain Fir Lumber Co. v. Temple Distributing Co.*, 70 Or App 192, 198, 688 P2d 1378 (1984) (order denying summary judgment). *But see Asman v. State*, 210 Or App 369, 372–373, 150 P3d 1101 (2007) (describing rare exceptions in which a ruling denying summary judgment is reviewable but not appealable).

COMMENT: The appropriate way to appeal the substance of those motions is to raise the underlying matters in the form of motions for directed verdict and to challenge the denial of those motions as error after judgment. *Meyers*, 224 Or at 418; *Iron Horse Eng'g Co.,* 193 Or App at 415–416; *Mountain Fir Lumber Co.*, 70 Or App at 195.

d. (§3.34) Orders Denying a Motion for Entry of Judgment

An order denying a motion for entry of judgment on a prior order dismissing the action is appealable under ORS 19.205(2) because it affects a substantial right (the right to judgment) and it determines the action to prevent a judgment or decree. *Gillespie v. Kononen*, 310 Or 272, 279, 797 P2d 361 (1990). *But see State v. Starr*, 210 Or App 409, 416, 150 P3d 1072 (2007) (failure to enter any order at all under the same circumstances is not appealable).

PRACTICE TIP: If the trial court fails to enter any order at all, the potential appellant could consider addressing the matter via a motion for writ of mandamus. *See* ORS 34.110–34.250. 2 OREGON CIVIL PLEADING AND PRACTICE ch 36 (Oregon CLE 2006).

e. (§3.35) Intermediate Orders

Intermediate orders are not appealable in their own right. *Baugh v. Bryant Ltd. Partnerships I through XV*, 98 Or App 419, 422–424, 779 P2d 1071 (1989) (award of sanctions for a discovery violation, even though it was described as a judgment, is not a judgment and so is not appealable). However, if an appeal has been taken from an appealable decision, the court may review an intermediate order that involves the merits or affects the judgment appealed. ORS 19.425.

f. (§3.36) Incorporation of Previous Written Decisions

A general judgment incorporates a previous written decision of the court that is not a judgment, deciding one or more requests for relief if (1) that decision is "consistent with the terms of the general judgment and any limited judgments," and (2) that decision reflects "an express determination by the court that the

decision be conclusive as to the requests for relief that are resolved." ORS 18.082(2)(c).

> PRACTICE TIP: Because there may be some uncertainty as to whether a previous decision meets those criteria, the attorney should ensure that prior claims were dismissed by judgment. If they were dismissed by order only, a judgment should be entered disposing of them. Alternatively, dismissal of those claims can be incorporated into the general judgment disposing of all claims.

g. (§3.37) Judgments by Request

A judgment that a party requested is generally not appealable unless a previous ruling by the trial court (such as an order dismissing a claim from the action) precludes recovery and the party cannot plead the facts more favorably. *Sheets v. Knight*, 308 Or 220, 225, 779 P2d 1000 (1989).

2. (§3.38) Appeals from Limited Judgments

A limited judgment does not need to recite that the trial court has expressly determined no just reason for delay nor that the trial court has expressly directed entry of judgment in order for it to be appealable. ORCP 67 B; *Interstate Roofing, Inc. v. Springville Corp.*, 347 Or 144, 218 P3d 113 (2009). The time for appeal from a limited judgment runs from entry of that judgment, not from the subsequent disposition of the remaining claims.

An appeal from a limited judgment does not divest the trial court of jurisdiction to proceed with the remaining claims in the case. ORS 19.270(7).

3. (§3.39) Appeals from Supplemental Judgments

A judgment that adjudicates all claims other than attorney fees, costs, or disbursements sought pursuant to rule or statute, is final upon entry and immediately appealable. A lawyer who intends to appeal from the underlying judgment must do so within the time set for filing a notice of appeal. But even if the judgment is appealed, the trial court retains jurisdiction to determine attorney fees, costs, and disbursements pursuant to rule or statute. ORS 19.270(1).

The trial court, therefore, has jurisdiction to rule on a petition for attorney fees and expenses incurred by a party in proving facts after the party's requests for admissions were unreasonably denied, even though the petition was submitted after

an appeal had been filed from the judgment on the merits. ORS 19.270(1)(a); *Smo v. Black*, 95 Or App 588, 591, 770 P2d 925 (1989).

If the right to attorney fees is pleaded as a counterclaim, however, a judgment on the merits is not appealable unless it adjudicates that counterclaim or is entered pursuant to ORCP 67 B. *Swagerty v. Joe Romania Chevrolet, Inc.*, 95 Or App 728, 731, 770 P2d 967 (1989).

A supplemental judgment that awards or denies attorney fees, costs, or disbursements made pursuant to rule or statute in accordance with ORCP 68 is appealable by filing a notice of appeal or, if a notice of appeal has already been filed on the underlying judgment, by filing an amended notice of appeal. ORS 19.205(1), (3), 19.255, 19.270(1); ORAP 2.20.

The amended notice of appeal must be filed within 30 days after entry of the trial court's supplemental judgment setting forth the award or denial. ORAP 2.20. Even though the time for filing the amended notice is set by court rule rather than by statute, the 30-day limit established by ORAP 2.20 is jurisdictional. *Jansen v. Atiyeh*, 302 Or 314, 320, 728 P2d 1382 (1986).

E. (§3.40) Timely, Premature, and Late Appeals

The notice of appeal must be "served and filed within 30 days after the judgment appealed from is entered in the register." ORS 19.255(1). However, if a motion for a new trial or a motion for j.n.o.v. (judgment notwithstanding a verdict) has been timely served and filed, the notice of appeal must be served and filed within 30 days after the earlier of the following: (1) the date the order disposing of the motion is entered, or (2) the date the motion is deemed denied by operation of ORCP 63 D or 64 F. ORS 19.255(2)(a). If the deadline for filing the notice of appeal in the ordinary course gives the appellant more time than calculating that date from the posttrial motions, then the later deadline governs. ORS 19.255(2)(b).

The time for serving and filing a notice of appeal begins to run from the date that the judgment being appealed is entered. Entering a judgment differs from filing the judgment. Filing occurs when the clerk receives and stamps a document. Entry occurs later, when the clerk records it in the register of the court. ORS 18.075(1); *see also Simpson v. Simpson*, 73 Or App 1, 4–5, 697 P2d 570, *rev'd on other grounds*, 299 Or 578 (1985). Therefore, a notice of appeal filed and served between filing and entry of the judgment is premature. A premature notice of appeal does not ripen into a proper appeal when the problem that caused the

prematurity is subsequently removed. That is true even when the trial court enters a new judgment nunc pro tunc (a judgment that the court intends to have retroactive effect). *Mangus v. Progress Quarries, Inc.*, 290 Or 377, 380, 622 P2d 319 (1981); *Johnson v. Assured Employment, Inc.*, 277 Or 11, 14–16, 558 P2d 1228 (1977).

Except as provided in ORS 19.270, filing a premature notice of appeal generally deprives the trial court of jurisdiction to enter a judgment, so any judgment entered thereafter is void. In such a case, the appellant must ask the court of appeals to give the trial court leave under ORS 19.270(4) to enter a final judgment, after which the appellant will have to file and serve an amended notice of appeal. The court of appeals may grant a leave to enter final judgment if it determines that (1) the trial court "intended to enter an appealable judgment" and (2) either the judgment is "defective in form," the judgment was entered after a notice of appeal had been filed, or the "trial court had not yet entered an appealable judgment." ORS 19.270(4). *See, e.g., Ellis v. Roberts*, 302 Or 6, 9–10, 725 P2d 886 (1986).

> NOTE: The lawyer should proceed with caution before filing a notice of appeal that may be premature. Early appeals are not always fixable via ORS 19.270(4). If the appellate court cannot determine that the trial court intended to enter an appealable judgment, the appellant may be stuck without a remedy. *See, e.g., Gentry v. Brian Clopton Excavating, Inc.*, 214 Or App 396, 164 P3d 1225 (2007).

The late filing of a notice of appeal in a civil case cannot be cured by any action of the trial court. ORS 19.270(2)(b). Such a defect cannot be remedied even if the reason for the late filing is that the trial court failed to send the parties notice (formerly required by ORCP 70 B(1) but now required by ORS 18.078) that a judgment was entered. *Far West Landscaping, Inc. v. Modern Merchandising, Inc.*, 287 Or 653, 659, 601 P2d 1237 (1979); *United States Nat'l Bank v. Heggemeier,* 106 Or App 693, 698–699, 810 P2d 396 (1991); *Junction City Water Control Dist. v. Elliott*, 65 Or App 548, 551–552, 672 P2d 59 (1983); *State v. Ainsworth*, 346 Or 524, 213 P3d 1225 (2009).

> PRACTICE TIP: In light of the unwaivable jurisdictional defect created by a late appeal in a civil case, the lawyer should continually review the court register until judgment is entered rather than relying on a notice from the court. This is the most foolproof way to ensure a timely appeal, because

the judgment (even if signed) is not appealable until it has been entered in the court's register. *Ainsworth*, 346 Or at 535. Court registers can be downloaded from the Oregon Judicial Information Network (OJIN).

F. (§3.41) Summary Determination of Appealability

A party may move for a summary determination of appealability in the trial court or in the court of appeals by following the procedure set forth in ORS 19.235. This motion is appropriate when a party has actual notice that an appeal has been filed and the party is unsure whether the decision appealed from is appealable.

The trial court has discretion to continue the proceedings through entry of judgment if it finds the decision is not appealable. ORS 19.235(2). A trial court's determination that a decision is not appealable is not itself an appealable decision. Nevertheless, after that determination is made, the appellant may ask the trial court to stay the proceedings pending a final determination of appealability in the appellate courts. ORS 19.235(2).

To limit costs, delay, and uncertainty, the appellant could bypass the trial court altogether and ask the court of appeals to make the summary determination. *See* ORS 19.235(3); *see, e.g.*, *Strawn v. Farmers Ins. Co.*, 195 Or App 679, 685–686, 98 P3d 1158 (2004) ("[D]efendants assert that the 'limited judgment' that the trial court rendered is not appealable under ORS 19.205. If defendants are correct, this court has no jurisdiction over the appeal. A motion under ORS 19.235(3) is an appropriate method to raise that issue."). A summary determination of appealability by the court of appeals is subject to expedited review by the supreme court. The petition for review must be filed within 14 days after the court of appeals decision. ORS 19.235(3).

PRACTICE TIP: ORS 19.235 is complicated and merits careful study. It is especially important to analyze the consequences of the choice of forum.

G. (§3.42) Challenging Appellate Court Jurisdiction

The appellate court's jurisdiction may be challenged at any time during the appeal, and an appellate court will consider its jurisdiction on its own motion even if the parties do not do so. ORS 19.270(3); *see Lorentz Bruun Co. v. Execulodge Corp.*, 313 Or 600, 602, 835 P2d 901 (1992) (superseded on other grounds by 2003 amendments to ORS 19.205); *Bhattacharyya v. City of Tigard*, 212 Or App 529, 159 P3d 320 (2007). Any party or the trial court may move the appellate court for a

determination of appealability. ORS 19.235(3). The appellate court may also make this determination on its own motion. ORS 19.235(3). If the appellate court makes a summary determination of appealability, the order must state that it is a summary determination of appealability and must notify the parties that it is subject to expedited review. ORAP 2.35(3)(a). If the order does not include the notification, the procedures for expedited review do not apply. ORAP 2.35(3)(b). A summary determination of appealability in the court of appeals is subject to expedited review in the supreme court.

The court of appeals can also dismiss appeals on its own motion without prior notice for lack of jurisdiction. *See, e.g., Maduff Mortg. Corp. v. Deloitte Haskins & Sells*, 83 Or App 15, 21–22, 730 P2d 558 (1986).

IV. FILING AND SERVICE

A. (§3.43) Ways to File

There are two ways to file documents in the appellate courts: conventionally and electronically. Conventional filing is accomplished by delivering or mailing the paper document to the State Court Administrator, Records Section, Supreme Court Building, 1163 State Street, Salem, OR 97310. ORAP 1.35(1)(a). Electronic filing is accomplished using the e-filing system, which is available to any member of the Oregon bar who registers, obtains training, and agrees to the conditions for its use. ORAP 16.03, et seq.

> NOTE: Assistance with e-filing is available online, at http://courts.oregon.gov/OJD/OnlineServices/eFile/index.page?. The Web site provides links to the e-filing tutorial and the *Oregon Appellate Courts eFiling User Guide* (2009), both of which provide more extensive directions than are provided here.

1. Conventional Filing

a. (§3.44) Notices and Petitions

The date of mailing will serve as the date of filing for a notice of appeal and, except as otherwise provided by law, for a petition or cross-petition for judicial review and a petition under an appellate court's original jurisdiction, as long as the following three requirements are met:

(1) The notice or petition is mailed by registered or certified mail (first-class mail is not sufficient), ORAP 1.35(1)(c);

(2) A receipt is obtained at the time of mailing, stamped by the U.S. Postal Service, that shows the date of mailing and the certified or registered number, ORAP 1.35(1)(c); *Southwest Forest Industries v. Anders*, 299 Or 205, 213, 701 P2d 432 (1985); and

(3) The certified receipt is submitted as proof of mailing to the state court administrator with proof of service if the item does not arrive on or before the deadline, ORS 19.260; ORAP 1.35(1)(c).

If the party does not meet the requirements of ORS 19.260 and ORAP 1.35(1)(c), the date of filing is the date the administrator receives the document. ORAP 1.35(1)(e).

> NOTE: If the lawyer is filing a petition for judicial review of an agency order in a case other than a contested case, the appropriate forum is the Circuit Court for Marion County or the circuit court for the county in which the petitioner resides or has its principal business office. ORS 183.484(1). The court of appeals has jurisdiction to review agency orders in contested cases, but not orders in cases other than contested cases. ORS 183.482(1). However, the court of appeals and circuit court have authority to transfer the petition to each other, pursuant to ORS 14.165, should the petitioner file in the wrong court. *See Rooklidge v. Driver & Motor Vehicle Servs. Branch of the Or. DOT*, 217 Or App 172, 175–176, 174 P3d 1120 (2007).

b. (§3.45) Briefs, Motions, and Attorney Fee Petitions

For briefs, motions, and attorney fee petitions, the date of filing is the date of mailing, if the document is mailed on or before the due date, by first-class mail through the U.S. Postal Service. ORAP 1.35(1)(d).

2. (§3.46) Electronic Filing

An appellant may file a notice of appeal electronically using the e-filing system adopted by the courts. A notice of appeal is received when the e-filing system receives the document and sends a confirmation by return e-mail. ORAP 16.25(1)(a). Filing is complete only when the court accepts the document, at which time the system will notify the parties by e-mail of that acceptance. ORAP 16.25(1)(b).

The filing deadline for documents filed with the e-filing system is 11:59 p.m. on the due date. ORAP 16.35(2). The court considers the document to have been submitted when the system receives it. ORAP 16.35(3). The court's subsequent acceptance of the filing relates back to the receipt date. ORAP 16.35(4).

B. Service

1. (§3.47) Notice of Appeal; Petition for Judicial Review

Service of a copy of the notice of appeal is a condition of appellate jurisdiction. Service must be both timely (within 30 days of entry of judgment) and made on the correct parties. ORS 19.255(1); ORAP 1.35(2).

An appellant must serve a notice of appeal on the following persons:

(1) All parties who appeared in the action, suit, or proceeding, ORS 19.240(2)(a);

(2) The clerk of the trial court, ORS 19.240(2)(b); and

(3) The transcript coordinator at the trial court, if the appellant designates a transcript as part of the record on appeal, ORS 19.240(2)(c).

The appellate courts have jurisdiction if the notice of appeal is timely served either on (1) every party designated as an adverse party in the notice of appeal or (2) every party who appeared in the action at trial court level, if the notice does not designate adverse parties. ORS 19.270(2)(a); *Zacker v. North Tillamook County Hosp. Dist.*, 312 Or 330, 335, 822 P2d 1143 (1991); *see also Jeffries v. Mills*, 165 Or App 103, 111–113, 995 P3d 1180 (2000).

> CAVEAT: As long as the lawyer designates adverse parties in the notice of appeal, even though additional persons appeared, failing to serve the nondesignated parties will not affect jurisdiction. However, the safest practice is to timely serve everyone who appeared in the trial court.

> PRACTICE TIP: A party dismissed early in the litigation may not be named in the captions of subsequent pleadings. The lawyer should not rely on the caption that appears in the judgment but should check the trial court's record to obtain the names of all parties who appeared at any stage of the case. Serving each of those parties will ensure appellate court jurisdiction.

See Jacobson v. Mountain Park Home Owners Asso., 65 Or App 269, 670 P2d 633 (1983), *superseded by statute on other grounds*, 312 Or 302 (1991).

Anything filed with an appellate court must also be served on the other parties. ORAP 1.35(2)(a). Service may be accomplished by in-person delivery or by first-class mail. Unless otherwise provided by statute, service is complete when the document is deposited in the mail. ORAP 1.35(2)(b). The filing party must include a certificate showing the filing date with the service copies. ORAP 1.35(2)(c).

At time of this publication an "initiating document"—which includes a notice of appeal and a petition for judicial review—may not be served electronically even if it is filed through the e-filing system. ORAP 16.45(2)(a). Instead, it must be served conventionally. ORAP 16.45(3).

The filing party must attach proof of service to any document filed with the appellate courts. ORAP 1.35(2)(d).

> PRACTICE TIP: The lawyer should ensure that the parties are still represented by trial counsel prior to serving the notice by mail. Service on an adverse party is jurisdictional, and service on a party's attorney is not sufficient unless the attorney is still acting for the party at the time of service. *Bridge & Bridge*, 166 Or App 458, 462, 998 P2d 780 (2000). *But see Ginther & Ginther*, 167 Or App 418, 424 n 4, 1 P3d 1062 (2000) (distinguishing *Bridge*). *See also* §3.56.

Service must be to the last known address of a party or the party's attorney; failure to do so is jurisdictional error. *McCall v. Kulongoski*, 339 Or 186, 195–196, 118 P3d 256 (2005); ORS 19.240(2), 19.500; ORCP 9 B.

> PRACTICE TIP: The rules for serving copies of a petition for judicial review of an administrative action can vary by agency. The lawyer should consult the statute or rule applicable to the agency and the type of action before serving documents in administrative cases.

2. (§3.48) Briefs, Motions, and Attorney Fee Petitions

The rules of service specified in §3.47 apply to documents subsequently submitted to the appellate courts, except for a brief, motion, or attorney fee petition filed using the e-filing system. These documents may be served electronically if the party's lawyer participates in e-filing. ORAP 16.45(3). The judicial

department's e-filing Web site contains a regularly updated list of participating attorneys.

V. NOTICE OF APPEAL: CIVIL APPEAL FROM CIRCUIT COURT

A. (§3.49) Form and Content Requirements

Note: Special considerations regarding petitions for review of agency decisions are covered separately in chapter 4.

A notice of appeal must include the following:

(1) The title of the case;

(2) The names of the parties and their lawyers;

(3) A notice to all parties (or their lawyers) who have appeared in the action from which judgment the appellant is taking an appeal, and designating the adverse parties to the appeal;

(4) A designation of the portion of the proceedings and exhibits to be included in the record on appeal, in addition to the trial court file;

(5) If less than the entire record is designated, a plain and concise statement of the points on which the appellant intends to rely; and

(6) The signature of the appellant or appellant's attorney.

ORS 19.250(1).

The courts have provided additional requirements for a notice of appeal, which must include:

(1) The case caption as it appeared in the trial court, including the case number. The parties' designations at trial (i.e., plaintiff, defendant, intervenor) as well as their designations on appeal (i.e., appellant, respondent, cross-respondent) must also be included. For example, one party may be designated Defendant-Appellant and the other Plaintiff-Respondent.

(2) The appropriate heading, "Notice of Appeal" or "Notice of Cross-Appeal."

(3) A statement that the appeal is taken from the judgment or some specified part of the judgment, the name of the court and county from which the

judgment on appeal was issued, and the name(s) of the trial judge(s) who issued the judgment.

(4) A designation of the adverse parties on appeal.

(5) The names of the parties and the names, bar numbers, mailing addresses, telephone numbers, and e-mail addresses of the attorneys for each party, along with the party that each attorney represents. If a party is appearing pro se, include the party's own name and contact information.

(6) A designation of the portions of the proceedings to be transcribed and the exhibits to be included as part of the record in addition to the trial court file.

(7) If the appellant has designated less than the entire record, a plain and concise statement of the points on which the appellant intends to rely.

(8) If the notice of appeal is filed more than 30 days after the date of entry of judgment, a statement as to why the notice is nevertheless timely.

(9) If appellate jurisdiction is uncertain, a citation to statute or case law supporting jurisdiction.

(10) Proof of service on all parties to the trial court proceeding and date of service. In a criminal case, the defendant-appellant must serve both the district attorney and the attorney general.

(11) Proof of service on the trial court administrator and trial court transcript coordinator, if the appellant designates a transcript as part of the record.

(12) One copy each of the judgment, decree, or order appealed from and any other orders pertinent to appellate jurisdiction.

ORAP 2.05. See sample format for notice of appeal at ORAP Appendix 2.05.

1. (§3.50) Case Caption

The case caption must include a specific set of information, as noted in ORAP 2.05(1). For examples of simple and more complex captions, see ORAP Appendixes 2.25 and 5.05. ORAP Appendixes 4.15-1 and 4.15-2 provide examples of captions in petitions for judicial review. If the appellant or petitioner uses an incorrect caption, the court clerk will notify the party to correct the caption and also provide the correct caption.

2. (§3.51) Designation of Adverse Parties: Service Is Jurisdictional

The notice of appeal must identify the parties who are adverse to the appeal. ORS 19.250(1)(c); ORAP 2.05(4). If the appellant designates adverse parties, timely service on those parties is a jurisdictional requirement. ORS 19.270(1), (2)(a). Failure to serve any adverse party will result in dismissal of the appeal. If the appellant does not designate adverse parties, the appellant must serve all who appeared in the action. In that circumstance, failure to serve any party who appeared in the action is a jurisdictional defect requiring dismissal. ORS 19.270(3); *Zacker v. North Tillamook County Hosp. Dist.*, 312 Or 330, 334–335, 822 P2d 1143 (1991); *see Rhodes v. Eckelman*, 302 Or 245, 728 P2d 527 (1986). ORAP 2.25 provides additional details about how various parties should be designated.

3. (§3.52) Designation of Judgment or Order from which Appeal Is Taken

The appellant must designate the judgment or portion of judgment from which it appeals in the notice of appeal, and must attach a copy of that judgment to the notice of appeal. ORS 19.250(1)(c); ORAP 2.05(3), (11). Failure to designate an appealable judgment is a jurisdictional defect and will result in dismissal of the appeal. Failure to attach a copy of the judgment that is being appealed will normally result in an order from the appellate court clerk requiring compliance within 14 days. However, failure to comply can result in dismissal of the appeal. ORS 19.270(3); ORAP 1.20(4).

Not every error made in designating the judgment is a jurisdictional defect. If the appellant has failed to properly designate the judgment, attachment of an appealable judgment may save the appeal from dismissal. The court of appeals must consider both the face of the notice or petition and any attachments thereto to determine whether it has jurisdiction. Dismissal for lack of jurisdiction is appropriate only when, after reviewing the document and attachments and giving the appellant or petitioner all reasonable inferences, there is no question that the court lacks jurisdiction. *Ososke v. Driver & Motor Vehicle Servs.*, 320 Or 657, 662, 891 P2d 633 (1995); *see, e.g., Kent v. Lindstedt*, 138 Or App 316, 320, 908 P2d 833 (1995) (two judgments were entered but the notice referred only to appellate judgment and attached only appellate judgment, therefore the dismissal was appropriate because there was “no way to determine that plaintiff really intended to

appeal from any judgment other than the one she specifically mentioned and attached").

In 2003 and 2005, the Oregon Legislature undertook a comprehensive revision of the statutes concerning judgments, which may affect the identification of an appealable judgment. *See Garcia v. DMV*, 195 Or App 604, 610–611, 99 P3d 316 (2004); *Interstate Roofing, Inc. v. Springville Corp.*, 347 Or 144, 152–153, 218 P3d 113 (2009) (describing legislation). The new laws identify and define three types of appealable judgments: limited judgments, general judgments, and supplemental judgments. ORS 18.005(7), (13), (17), 19.205(1). See §§3.24–3.27 for a more detailed discussion.

4. Designation of Record

a. (§3.53) In General

The appellant is required to identify in the notice of appeal those portions of the proceedings that should be included in the trial court's record on appeal. ORS 19.250(1)(d); ORAP 2.05(6).

> PRACTICE TIP: It is the appellant's obligation, initially, to designate sufficient portions of the record to allow the appellate court to adequately review the claims of error that the appellant raises. If the appellant designates less than the entire record, the respondent should consider whether to designate additional portions of the record to support any arguments opposing the appellant's position. *See* §3.93.

If the appellate court will review a factual issue de novo, the appellant should designate transcripts of pertinent hearings as part of the record on appeal. The court cannot "try this cause anew" without a transcript of testimony. *In re Marriage of Elliott and Elliott*, 107 Or App 89, 91, 810 P2d 1323 (1991).

b. (§3.54) Amending the Designation of Record

The appellant may amend the designation of record any time between filing the notice of appeal and 35 days after the transcript is filed. Prior to amending the designation, the appellant must file and serve a notice of the amendment in the same manner as a notice of appeal. Unless the appellate court grants leave to do so, the appellant may not subsequently amend the designation. ORS 19.250(1)(d).

The respondent may amend the designation of record within 14 days after the filing of a notice of appeal or an amended designation of record. To do so, the

respondent must file and serve a designation of additional parts of the proceedings to be included in the record. The respondent must file and serve the designation in the same manner as a notice of appeal. If the respondent intends to file a cross-appeal, the respondent must include the additional designation in the notice of cross-appeal, rather than filing a separate designation. ORS 19.250(2).

Each party bears the burden of designating a sufficient portion of the record to support its claims on appeal. The court may decline to consider an appellant's claim of error if the designated record provides an insufficient basis to do so. *Vance v. Teplick*, 217 Or App 571, 573–575, 176 P3d 430, *rev. denied*, 345 Or 416 (2008); *Ferguson v. Nelson*, 216 Or App 541, 551–553, 174 P3d 620 (2007). Nor can a respondent rely on undesignated portions of the proceedings to counter an appellant's arguments. *King City Realty, Inc. v. Sunpace Corp.*, 291 Or 573, 582–584, 633 P2d 784 (1981).

The appellate court is authorized to grant its own or a party's motion to supplement the record if an inadequacy in the record may substantially affect the merits of the appeal. ORS 19.365(4); ORAP 3.05(3). However, the parties should not rely on such motions to remedy defects in the designation of record. A court is also authorized to dismiss an appeal for failure to include an adequate record on appeal. ORS 19.270(3); ORAP 1.20(3).

c. (§3.55) Designation of Less than Entire Record

If the appellant chooses to designate less than the entire record, the appellant must include in the notice of appeal a "plain and concise statement of the points on which appellant intends to rely." ORS 19.250(1)(e); ORAP 2.05(7). The appellant may rely only on the points set forth in that statement unless the appellant files an amended statement of points within 15 days after the transcript is filed. The appellant may then only rely on points in the amended statement, unless it obtains court approval. ORS 19.250(1)(e).

The reason for that requirement is to ensure that the designated record provides an adequate basis for addressing the issues raised by the appellant. If, in light of the appellant's itemized points, the respondent believes that the designated record is not adequate, the respondent may designate additional portions of the file. ORS 19.250(2).

Failure of the appellant to itemize the points on which it intends to rely is not a jurisdictional defect. However, it can provide a basis for dismissing the appeal,

under ORS 19.270(3) and ORAP 1.20(4). *See Wynn v. Sundquist*, 259 Or 125, 130–131, 485 P2d 1085 (1971).

d. (§3.56) Court-Reported Proceedings

If the proceedings below were reported and the appellant designates a transcript as part of the record, the appellant must serve a copy of the notice of appeal on the trial court transcript coordinator. ORS 19.240(2)(c). The appellant must also arrange to pay the court reporter. The court reporter is not required to prepare a transcript until financial arrangements have been made. If the failure to make financial arrangements results in the court reporter requesting an extension of time for preparing the transcript, the court may deny an extension and direct the appeal to proceed without the transcript. ORAP 3.05(2), 3.30(4).

Most court reporters require an advance deposit to prepare a transcript. Transcription fees are limited by law to $2.50 per page for the original transcript and 25 cents per page each for appellant's and respondent's copies. ORS 21.470(1). If there are multiple respondents, the person preparing the transcript may provide only one copy and deposit it with the trial court administrator for use by all respondents. ORS 19.370(2).

e. (§3.57) Audio and Video Recordings of Proceedings

The record on appeal from a proceeding in the circuit court must be in the form of a transcript unless the oral proceedings were recorded by audio or video equipment and the appellate court agrees to waive the transcript requirement. ORAP 3.05(2); ORS 19.385. The designation of record in the notice of appeal must note which portions of the proceedings are included. ORAP 3.05(1). If the appellate court waives a transcript, ORAP 3.63 governs the duplication of audio and video recordings.

If the appellate court does not waive a transcript, the party requesting the record must make satisfactory arrangements for paying the transcription fees. *See* ORS 21.470. The transcript coordinator must make arrangements to prepare and certify the transcript in accordance with ORS 19.370(1) and ORAP 3.33, and serve and file the transcript within the time allowed under ORS 19.370(2) or move for an extension of time under ORS 19.330 and 19.395. *See* §§3.97–3.99.

B. Filing and Service of Notice of Appeal

1. (§3.58) Generally

The appellant must file the original notice of appeal with the state court administrator within 30 days after judgment is entered, except when a party has timely filed and served a motion for a new trial or for a judgment notwithstanding the verdict. If such a motion has been filed, the appellant must file the notice of appeal within 30 days of entry of an order disposing of the motion or the date on which the motion is deemed denied, whichever is earlier. ORS 19.255(1), (2). See §§3.44 and 3.46 for means of timely filing.

Separate notices of appeal must be filed in a case that was consolidated for trial but where the trial court issued a separate judgment for each case. ORAP 2.10(1).

2. (§3.59) Timing

An appellant must file and serve the notice of appeal within the proper time frame for the appellate court to obtain jurisdiction. ORS 19.270(2), 19.255. *See* §§3.44, 3.46–3.47.

A timely motion for a new trial or judgment notwithstanding the verdict (j.n.o.v.) extends the time for filing a notice of appeal to 30 days from the earlier of the date of entry of the order disposing of the motion or the date on which the motion is conclusively deemed denied under ORCP 63 D or 64 F (55 days from entry of judgment). ORS 19.255(2); *United Adjusters, Inc. v. Shaylor*, 77 Or App 510, 511, 713 P2d 687 (1986).

A motion for a new trial under ORCP 64 is available in an equity proceeding and, if the rule is followed, will extend the time for filing an appeal. This motion is the equivalent of what was formerly called a motion for reconsideration, which is no longer used. *Schmidling v. Dove*, 65 Or App 1, 5–6, 670 P2d 166 (1983).

If the trial court sets aside a judgment for a legitimate reason connected with the trial, the time for appeal runs from entry of the new judgment. However, the trial court may not set aside a judgment and enter a new one for the sole purpose of extending the time for appeal. *Far West Landscaping, Inc. v. Modern Merchandising, Inc.*, 287 Or 653, 658–659, 601 P2d 1237 (1979); *see also State v. Ainsworth*, 346 Or 524, 536–537, 213 P3d 1225 (2009) (adhering to *Far West* but limiting it to its facts). The trial court also may not set aside an order denying a

motion for j.n.o.v. or a new trial for the purpose of extending the time for appeal. *Simpson v. Simpson*, 73 Or App 1, 5, 697 P2d 570, *rev'd on other grounds,* 299 Or 578 (1985).

The Oregon Supreme Court has provided a guide for counting the days to statutory deadlines. *See generally State ex rel. Smith v. Appling*, 223 Or 576, 355 P2d 760 (1960).

3. (§3.60) Filing Fee

Failure to pay the filing fee is not a jurisdictional error but may be cause for dismissing the appeal. ORS 19.265. See §3.8 regarding filing fees and first-appearance fees.

> PRACTICE TIP: Fee schedules are amended regularly, so the lawyer should make sure he or she is using the most recent schedule before paying a fee.

4. (§3.61) Effect of Incorrect Address

It is important to correctly address the notice of appeal when serving it. Service on a party or the party's attorney at an incorrect address does not confer jurisdiction on the appellate court. *In re Marriage of Harris and Harris*, 104 Or App 209, 212–214, 799 P2d 699 (1990).

VI. (§3.62) AMENDED NOTICE OF APPEAL

A trial court's supplemental judgment of costs and attorney fees pursuant to ORCP 68 C(4)(d) is part of the judgment and may be appealed even though an appeal has already been taken from the judgment on the merits. ORCP 68 C(5)(a).

An appellant who wants to appeal from the supplemental judgment may do so by serving and filing an amended notice of appeal within 30 days after the trial court entered the supplemental judgment. ORAP 2.20(1). The 30-day time limit is a jurisdictional limitation. *Jansen v. Atiyeh*, 302 Or 314, 320, 728 P2d 1382 (1986).

A respondent who wants to appeal from the trial court's supplemental judgment after a notice of appeal or cross-appeal has been filed may do so by filing and serving a notice of cross-appeal or an amended notice of cross-appeal within 30 days after the supplemental judgment is entered. ORAP 2.20(2).

VII. (§3.63) CROSS-APPEAL

A party other than the appellant who has appeared in the action may file and serve a notice of appeal within 10 days after the time for filing the notice of appeal has run. ORS 19.255(3). Any party, other than an appellant or respondent, who becomes an adverse party to a cross-appeal may cross-appeal against any party to the appeal by a written statement in the brief. ORS 19.255(3).

If more than one notice of appeal is filed, the filing date of the last notice is used to determine the time for preparing and filing the transcript and other steps in connection with the appeal, unless the court orders otherwise. ORS 19.255(4).

VIII. UNDERTAKINGS ON APPEAL

A. (§3.64) What Is an Undertaking?

An undertaking on appeal is a "promise secured by sureties or by money, bond, or any other security described in ORS 22.020." ORS 19.005(9).

Two kinds of undertakings are relevant on appeal:

(1) A supersedeas undertaking stays enforcement of the judgment pending appeal. ORS 19.005(5). This undertaking is used most often to stay enforcement of a judgment for damages and to secure payment as far as the judgment is affirmed by the appellate court.

(2) An undertaking for costs—a cost bond—secures payment of costs and disbursements awarded on appeal. ORS 19.005(8), 19.300(1).

NOTE: Neither the state nor any county or incorporated city within the state is required to file any appeal undertaking. ORS 22.010.

B. Why Is an Undertaking Necessary?

1. (§3.65) Perfecting the Appeal

An appellant must file an undertaking for the costs that may be awarded on appeal, absent a stipulation between the parties or a trial court order waiving an undertaking. An appeal is not perfected until the cost bond or its equivalent is served and filed and the time for objecting to the bond or the surety expires. ORS 19.300(1). This means that until the bond process is complete, an opposing party or the court may move for dismissal under ORS 19.270(3).

2. (§3.66) Staying Execution of Judgments

A judgment is enforceable immediately upon entry. ORCP 72 A. Typically, a prevailing party below does not seek to execute a judgment immediately. However, to protect the client's assets, a lawyer considering an appeal should begin arrangements for a supersedeas bond immediately—before the 30-day time for a notice of appeal has expired, and even before a ruling on postjudgment motions. *Thompson v. TLAT, Inc.*, 205 Or App 518, 522, 134 P3d 1099 (2006) (filing of motions for new trial and for judgment notwithstanding the verdict have no effect on immediate enforceability of judgment).

If the respondent seeks to execute the judgment before the bond arrangements are complete, the appellant may seek a short-term stay from the trial court until the bond is in place. ORCP 72 A. These stays, while discretionary, are generally granted.

A supersedeas bond stays execution on judgments for (1) the recovery of money; (2) the transfer or delivery of possession of real property; (3) the transfer or delivery of possession of personal property; (4) the foreclosure of a mortgage, lien, or other encumbrance, and the payment of a debt; or (5) the execution of a conveyance or other instrument, unless the appellant deposits the executed instrument with the trial court clerk. ORS 19.335. In all other instances, the appellant must seek a discretionary stay from the trial court. ORS 19.350(1). An appellant may not seek a discretionary stay if a stay is available by posting a supersedeas bond. ORS 19.350(1).

Although most money judgments may be stayed by filing a supersedeas appeal bond pursuant to ORS 19.355(1), a stay is not available for judgments for child support. In *McGinley & McGinley*, 156 Or App 449, 452–453, 965 P2d 486 (1998), the court of appeals concluded that the language in ORS 19.355(1) that provides for stays of judgments "for the recovery of money" applies only to money due for past events or past conduct. Child support judgments, which involve future financial obligations, cannot be stayed by filing a supersedeas appeal bond.

If the proceedings have been stayed and if perishable property has been seized to satisfy the judgment or has been directed to be sold to satisfy the judgment, the trial court may order that the property be sold as if the proceedings had not been stayed, and that the proceeds of the sale be deposited or invested to abide by the decision of the appellate court. ORS 19.340(2).

A supersedeas bond has no effect on a judgment (or the portion of a judgment) that requires an injunction. An injunction to maintain the status quo is not automatically stayed pending appeal. However, an injunction that compels affirmative action (a "mandatory injunction") may not be enforced after an undertaking for costs is filed. *State ex rel. McKinley Automotive, Inc. v. Oldham*, 283 Or 511, 514–515, 584 P2d 741 (1978); *Helms Groover & Dubber Co. v. Copenhagen*, 93 Or 410, 416, 177 P 935 (1919). The appellate courts have inherent power to stay any injunction pending appeal. An appellate court considers (1) the nature of the injunction, (2) the relative hardship to the parties, and (3) the extent to which irreparable harm would occur in the absence of a stay. *Armatta v. Kitzhaber*, 149 Or App 498, 501, 943 P2d 634 (1997), *aff'd in part, rev'd in part,* 327 Or 250 (1998).

C. How to Eliminate the Undertaking or Reduce Its Amount

1. (§3.67) By Stipulation

Pursuant to ORS 19.310(1), the parties may agree to waive, reduce, or limit the undertaking on appeal, whether the undertaking is only for costs or also to stay an underlying judgment. Any such stipulation must be filed with the clerk of the trial court within 14 days of the filing of the notice of appeal. The stipulation will take effect unless the trial court disapproves or modifies it. ORS 19.310(1). Forms 3-1 and 3-2 are for waiving undertakings on appeal.

> PRACTICE TIP: The lawyer should make sure that the stipulation specifically states not only that the undertaking is waived or reduced, but also that the parties agree the judgment will be stayed during the pendency of the appeal. The trial court will not automatically stay enforcement of judgment.

> PRACTICE TIP: To save attorney fees incurred disputing the amounts of undertakings, the laywer should informally negotiate the amount with opposing counsel and ask for a stipulation rather than filing the undertaking and waiting for objections.

2. (§3.68) Risk to Respondents of Requiring an Undertaking

Respondents should be aware that the premiums appellants pay for a bond are costs that are recoverable on appeal. ORS 20.310(2). Therefore, if the respondent requires the appellant to file a bond and the appellant prevails on

appeal, the respondent is liable, as part of the costs on appeal, for the premiums that the appellant paid for the bond. Fees paid by an appellant to maintain a letter of credit are also recoverable as costs on appeal.

> PRACTICE TIP: The lawyer should be especially careful about requiring an appellant to provide an undertaking when a judgment for punitive damages is under review. The amount of the award can be reduced greatly, making even a plaintiff who protects a punitive damages award the losing party on review and liable for the cost of the undertaking on the entire large award. Plaintiffs in this situation should consider waiving the undertaking or stipulating to a reduced undertaking.

3. (§3.69) Obtaining a Court-Ordered Waiver of Undertaking

The trial court may waive, reduce, or limit the amount of any appeal undertaking (either for costs or supersedeas) upon a showing of good cause and conditions as the trial court determines are just and equitable. Good cause includes indigence. ORS 19.310(2).

Furthermore, the trial court may also dispense with or limit a supersedeas undertaking required by ORS 19.300(1) if the appellant is an executor, administrator, trustee, or other person acting in another's right. ORS 19.340(1).

4. (§3.70) Obtaining a Stay from Court without an Undertaking

If a supersedeas bond is not effective to stay the judgment under ORS 19.335 and a waiver is not available under ORS 19.340, the appellant must request a stay from the trial court. This is the only situation in which the court may grant a stay. ORS 19.350(1).

In addition to any factors that the trial court deems appropriate, the court must consider the following:

(1) The likelihood that the appellant will prevail on appeal, ORS 19.350(3)(a);

(2) Whether the appeal is taken in good faith and not for purpose of delay, ORS 19.350(3)(b);

(3) Whether there is support in law and fact for the appeal, ORS 19.350(3)(c); and

(4) The nature of harm to the appellant, other parties, other persons, or the public that is likely to result from granting or denying the stay, ORS 19.350(3)(d).

The trial court may impose reasonable conditions on any stay, including requiring a supersedeas appeal bond in a specified amount. ORS 19.350(4). If the trial court denies a stay or imposes conditions on the stay, and unless the trial court orders otherwise, the judgment is automatically stayed for 14 days, during which a party may seek appellate review of the trial court ruling regarding the conditions. ORS 19.360(1). The appellate court reviews the matter de novo and on the record before the trial court unless additional relevant information has arisen after the trial court's decision, or unless the party submitting additional information shows good cause. ORS 19.360(2), (3).

A party may request a stay from the appellate court without first going to the trial court only if the party establishes that it would be futile to file a request with the trial court or that the trial court is unwilling or unable to act on the request within a reasonable time. The appellate court must consider the same factors as the trial court and may also consider other factors that it considers important. ORS 19.350(5).

D. Time Within Which to File and Serve

1. (§3.71) Generally

An appellant may file and serve a supersedeas undertaking at any time while the case is pending on appeal. ORS 19.300(2). However, the respondent may execute the judgment until the supersedeas undertaking is filed. ORCP 72 A; ORS 19.330.

An undertaking for costs must be filed within 14 days of the filing of the notice of appeal. ORS 19.300(1).

2. (§3.72) Effect of Filing a Premature Undertaking

An undertaking filed before the notice of appeal is filed does not satisfy the statutory requirements of ORS 19.300. ORS 19.300(1) ("An appellant must serve and file an undertaking for costs within 14 days after the filing of a notice of appeal."); ORS 19.300(2) (a supersedeas undertaking may be served and filed "at any time while a case is pending on appeal"); *see also Hulegaard v. Garrett*, 251 Or 535, 539–540, 446 P2d 975 (1968) (reaching the same conclusion concerning

the prior version of the statute); *Rogers v. King*, 245 Or 627, 634, 423 P2d 761 (1967) (same).

3. Effect of Failure to File an Undertaking, or of Filing a Late Undertaking

a. (§3.73) Supersedeas Undertaking

The failure to file a supersedeas bond is not a jurisdictional defect and also is not grounds for dismissing an appeal. However, absent a supersedeas bond, the respondent is entitled to enforce the trial court judgment at any time. ORCP 72 A; ORS 19.330.

NOTE: A letter of credit is statutorily permitted as the equivalent of a supersedeas undertaking. *See* §3.84.

b. (§3.74) Undertaking for Costs

The timely filing of a cost undertaking is not a jurisdictional requirement. ORS 19.270(2); *D.C. Thompson & Co. v. Hauge*, 300 Or 651, 655, 717 P2d 1169 (1986); *Union Cent. Life Ins. Co. v. Deschutes Valley Loan Co.*, 139 Or 222, 224, 8 P2d 587 (1932). However, the failure to file an undertaking makes the appeal subject to dismissal. ORS 19.270(3).

If a party fails to file an undertaking for costs on appeal, the respondent may move to dismiss the appeal. However, such a motion may not be filed without notice, oral or written, to the appellant. If the appellant does not file an undertaking after receiving that notice, then the respondent may move to dismiss the appeal with at least seven days' notice to the appellant. ORAP 7.40(1)–(2). Filing an undertaking in response to a motion to dismiss is not, in and of itself, a sufficient response to the motion to dismiss. The appellant must still file a response setting forth good cause for the failure to timely file the undertaking or to respond to the notice. ORAP 7.40(3). If the appellant files an undertaking within seven days of the notice, a motion to dismiss for failure to meet the original statutory deadline will not be successful unless the respondent can show substantial prejudice. ORAP 7.40(4).

PRACTICE TIP: In place of a bond for costs on appeal, an appellant is permitted by ORS 22.020 to make a deposit of money into court. This is a much easier way to perfect the appeal where the respondent has declined to waive security for costs. Concurrently with the deposit into the trial court

(typically $500), the appellant files a notice of deposit in lieu of undertaking for costs on appeal. *See* Form 3-3.

E. (§3.75) Sureties: Who May Provide an Undertaking?

Appellants must obtain an undertaking from a third party unless they intend to negotiate for an alternative form of undertaking. Sections 3.76–3.78 describe who may legally act as a surety and under what conditions.

1. (§3.76) Individual Sureties

Individual sureties must meet the requirements of ORCP 82 D–G. *See* ORS 19.305(2), 22.090. Each individual surety must be a resident of Oregon and may not be an attorney, a peace officer, or a clerk or officer of any court. ORCP 82 D(1). An individual surety must be worth twice the sum specified in the undertaking (or, if there are two or more individual sureties, they must together satisfy that requirement), exclusive of property that is exempt from execution and over and above all just debts and liabilities. ORCP 82 D(1). Each individual surety must file an affidavit with the undertaking stating that the surety possesses the necessary qualifications. ORCP 82 E(1).

2. (§3.77) Corporate Sureties

Corporate sureties must meet the requirements of ORCP 82 D–G. *See* ORS 19.305(2), 22.090. The corporation must be qualified by law to issue surety insurance as defined in ORS 731.186. ORCP 82 D(2). The undertaking must include an affidavit or declaration indicating that the surety is so authorized and showing the authority of the agent to act on behalf of the corporation (i.e., a power of attorney). ORCP 82 E(2).

3. (§3.78) Liability of Sureties

The liability of the surety or letter of credit issuer is limited to the amount specified in the undertaking. ORS 19.305(2). A judgment given against the appellant may be entered against the appellant's sureties at the request of the enforcing party. ORS 19.450(4). The party entitled to judgment against the sureties must file and serve a notice requesting entry of judgment as part of the appellate judgment. ORAP 13.30.

F. How to Obtain an Undertaking

1. (§3.79) How to Obtain a Bond

A cost bond or a supersedeas bond from a commercial insurer usually requires filing an application for the bond and, when the surety requires it, copies of the principal's financial statements. Supersedeas bonds may be difficult for individuals and small businesses to obtain and may require the posting of collateral, usually cash, a certificate of deposit, or a letter of credit. If collateral is required, the appellant may want to consider posting a letter of credit rather than obtaining a bond.

COMMENT: Annual rates for supersedeas bonds are generally 1% or 2% of the bond amount.

2. (§3.80) How to Obtain a Letter of Credit

An irrevocable letter of credit may only be issued by a financial institution as defined by ORS 706.008(10). Generally, financial institutions are banks (whose deposits are insured by federal deposit insurance) and credit unions. Through a letter of credit, a bank promises to pay the amount due when certain conditions are met and the appellant fails to pay. Typically, an appellant will obtain a letter of credit through a bank with which the appellant already has a financial relationship. The bank will often issue the letter of credit with a lower annual rate than for a bond (around 1/4% to 1/2% annually) and use the appellant's accounts at the bank as collateral.

A letter of credit is often a less expensive alternative to other forms of undertaking. It may be worth the the lawyer's time to compare different types of undertaking to find the best value for the client.

G. Form of Undertakings

1. (§3.81) Supersedeas Undertaking

A cost bond will perfect the appeal but will not stay execution on the judgment during the pendency of the appeal. To obtain a stay, the appellant must file a supersedeas undertaking that satisfies the requirements of ORS 19.335. *See* Form 3-4. Those requirements include the following:

(1) If the judgment appealed from is for the recovery of money, the supersedeas bond must provide that the appellant will pay the judgment to the extent it is affirmed. ORS 19.335(1).

(2) If the judgment appealed from requires the appellant to transfer or deliver possession of real property, the supersedeas bond must provide that the appellant will not commit or allow waste while the appellant is in possession of the property. It must also provide that if the judgment is affirmed, the appellant will pay the value of the use and occupation of the property for the period of possession. The value of the use and occupation must be stated in the bond. ORS 19.335(2).

(3) If the judgment appealed from requires the appellant to transfer or deliver possession of personal property and the property is not brought into court or placed in the custody of an officer or a receiver appointed by the court, the supersedeas bond must provide that the appellant will obey the judgment of the appellate court or will pay an amount determined by the trial court. The amount to be paid must be stated in the bond. ORS 19.335(3).

(4) If the judgment appealed from requires the foreclosure of a mortgage, lien, or other encumbrance, and also requires the appellant to pay a debt secured by the mortgage, lien, or other encumbrance, the supersedeas bond must state that the appellant will pay any part of the judgment that remains unsatisfied after the foreclosure sale. The bond must state that amount. ORS 19.335(4). The bond must also include any language required by ORS 19.335(2) or (3) regarding delivery or transfer of the property.

(5) If the judgment appealed from requires execution of an instrument, a bond is not required if the instrument is executed and deposited with the trial court administrator. ORS 19.335(5).

> PRACTICE TIP: The attorney should ensure that the bond contains the language that ORS 19.335 requires. The form provided by the surety may not contain the proper wording.

Sureties, like cost bonds, are not liable for an amount greater than that specified in a supersedeas bond. ORS 19.305(2).

> NOTE: Dissolution judgments, as well as other judgments, may involve both money and transfers of real or personal property. Such

judgments are hybrids of the circumstances set forth in ORS 19.335(1)–(5), for which an appellant may be required to post a supersedeas bond in order to stay the judgment. Each provision of a judgment for dissolution of marriage may be stayed pending appeal by complying with the corresponding provision in ORS chapter 19. ORS 19.355(2).

2. (§3.82) Undertaking for Costs

A cost bond must be secured by one or more sureties and must be for a default amount of $500 unless reduced or limited. ORS 19.300(1). The liability of the surety must be stated in the undertaking and is limited to the amount stated in the undertaking. ORS 19.305(2). If the surety is a person, the bond must contain an affidavit of each surety stating that the surety possesses the qualifications required by ORCP 82 D(1) (i.e., that the person is worth twice the sum specified in the bond, exclusive of property exempt from execution and over and above all just debts and liabilities). ORCP 82 E(1). If more than one person is a surety securing the same bond, the sureties together must meet the qualifications. ORCP 82 D(1). If the surety is a corporation, the bond must contain an affidavit showing the authority of the agent to act for the corporation and showing that the corporation is qualified to issue surety insurance as defined in ORS 731.186. ORCP 82 D(2).

The cost bond should state that it secures payment of costs and disbursements that may be awarded against the appellant on appeal, and the 10% penalty that may be awarded under the provisions of ORS 19.445. ORS 19.005(8). A form of cost bond is included as Form 3-5.

Per ORS 20.310(2), costs and disbursements include:

(1) The filing fee;

(2) The reasonable cost for any bond or letter of credit;

(3) The prevailing party fee established by ORS 20.190;

(4) The cost of printing required by rule of the court, including the excerpt of record;

(5) Postage for the filing or service of items that are required to be filed or served by law or court rule; and

(6) The cost of the transcript of the proceedings when necessarily forming part of the record.

Costs covered by the cost bond do not include the interest that will accrue on the underlying judgment while the appeal is pending. That interest is only a concern when the bond is intended to stay execution on the judgment. A supersedeas undertaking fulfills that function, and it should be made in an amount sufficient to cover interest. *Computer Concepts Profit Sharing Plan v. Brandt*, 123 Or App 42, 46–47, 858 P2d 899 (1993).

3. Alternative Forms of Undertaking

a. (§3.83) Generally

The appellant may deposit (in a special fund or place of deposit) cash, a certified check, satisfactory municipal bonds, or obligations of the United States government in lieu of filing a bond or a letter of credit. ORS 22.020, 22.060.

When the appellant posts cash in lieu of a cost bond, it should file a letter or other document reciting that the deposit is intended to cover "payment of costs and disbursements that may be awarded against an appellant on appeal, and any amounts that may be awarded to the respondent under the provisions of ORS 19.445." ORS 19.005(8).

b. (§3.84) Letter of Credit

An appellant may file an irrevocable letter of credit as an undertaking in lieu of a traditional bond. The irrevocable letter of credit must be from an insured institution, as defined in ORS 706.008, that has an office, other facility, or registered agent in Oregon. ORS 19.315(2).

The letter of credit for an undertaking of costs should provide that it is intended to cover "payment of costs and disbursements that may be awarded against the appellant on appeal, and any amounts that may be awarded to the respondent under the provisions of ORS 19.445." ORS 19.005(8)

The letter of credit for both types of undertakings must follow the requirements of ORS 19.315(1), unless the parties elect to waive them. ORS 19.315(4). Those requirements are that the irrevocable letter of credit must contain the following information:

(1) The "name and address of the issuing bank, the date of issuance, and the limit of the bank's liability under the letter of credit." ORS 19.315(1)(a);

(2) The "name of the court that entered the judgment being appealed, and the title and file number of the case for which the judgment was entered." ORS 19.315(1)(b);

(3) The name and address of the party, or its lawyer, that is filing the undertaking. ORS 19.315(1)(c);

(4) The name and address of the beneficiary, or its lawyer, of the undertaking. ORS 19.315(1)(d); and

(5) A statement that the "issuing bank will pay to the beneficiary, up to the limit stated in the letter of credit, the amount of any drafts submitted to the issuing bank under ORS 19.325." ORS 19.315(1)(e).

An irrevocable letter of credit may contain an expiration date. ORS 19.315(3). However, the letter of credit must also "state an automatic renewal period and contain a statement that the issuing bank will automatically renew the letter of credit on the expiration date and at the end of each automatic renewal period thereafter unless the bank has elected not to renew." ORS 19.320(1).

A bank may elect to not renew the letter of credit by giving written notice to the party that filed the letter of credit (or its attorney, if named in the letter) and to the beneficiary of the letter of credit. ORS 19.320(2). The notice must be given by certified mail at least 60 days before the expiration date of the letter of credit or any automatic renewal period. ORS 19.320(3). Unless the beneficiary gives the bank notice that the letter of credit has been released, the bank must then pay to the trial court administrator the amount stated in the letter of credit as the limit of the bank's liability. ORS 19.320(4). Any amount the bank pays is treated as a deposit under ORS 22.020 (the provision allowing a party to deposit money to satisfy the requirements of a supersedeas appeal undertaking). ORS 19.320(5).

The beneficiary must give prompt written notice to the bank if the court enters an order releasing the letter of credit. ORS 19.320(4).

> PRACTICE TIP: The lawyer should make sure that he or she is named in the letter of credit so that he or she receives timely notice of a bank's election not to renew and ensure that the bank follows its obligations under ORS 19.320(4).

c. (§3.85) Others

The parties may also stipulate to other forms of security. Any stipulation in that regard should make clear whether the proceedings in the trial court are stayed pending appeal.

H. Amount of the Undertaking

1. (§3.86) Supersedeas Undertaking

The amount of a supersedeas undertaking should be that which "secures performance of a judgment being appealed." ORS 19.005(5).

The amount that will satisfy the criteria may be a matter of debate between the appellant and the respondent, and it is often the subject of intense negotiation. If the parties are unable to agree, §§3.88–3.89 describe how those disputes are adjudicated.

> NOTE: In a forcible entry and detainer (FED) case between landlord and tenant, the appropriate supersedeas undertaking is the fair market rental of the property, presumably plus accrued interest. *LIG Invs. LLC v. Roach*, 215 Or App 210, 213, 170 P3d 561 (2007) (determining that fair market rental was the value of the use and occupation of the property during the period of possession under ORS 19.335(2)).
>
> In a civil action against a tobacco product manufacturer, the amount of the supersedeas undertaking shall not exceed $150 million unless the trial court determines after the posting of the undertaking that the defendant is purposely dissipating or diverting assets. ORS 19.312(2)–(3).

2. (§3.87) Undertaking for Costs

An undertaking for costs must be for $500, unless otherwise fixed by the trial court. ORS 19.300(1). In determining whether to require an alternative amount, the trial court may not include the interest that will accrue on the underlying judgment while the appeal is pending. That interest is properly considered only for bonds intended to stay execution on the judgment (i.e., if it is a supersedeas bond). *Computer Concepts Profit Sharing Plan v. Brandt*, 123 Or App 42, 46–47, 858 P2d 899 (1993).

The trial court may require the undertaking to include the amount of a penalty that could be awarded for a frivolous appeal under ORS 19.455. ORS 19.005(8).

> QUERY: *Former* ORS 19.040 provided that a cost undertaking would be for "damages" as well as costs and disbursements. That provision was repealed in 1997, and no analogous provision has been implemented. An issue in several cases interpreting *former* ORS 19.040 was whether damages included certain items not listed as cost items in ORS 20.310(2). *See, e.g., Fleming Cos. v. Hamilton*, 149 Or App 760, 764–767, 945 P2d 588 (1997) (attorney fees, penalties under *former* ORS 19.160, now renumbered ORS 19.455); *Computer Concepts Profit Sharing Plan*, 123 Or App at 46–47 (interest). Is it reasonable to assume that those items of "damages" are no longer at issue in determining the amount of a cost bond?

I. Objecting to the Amount or Form of Undertakings

1. (§3.88) How to Object

The respondent may object to the amount specified in the undertaking or to the sufficiency of the sureties or letter of credit issuers within 14 days after service of the undertaking or letter of credit. Objections are waived if they are not filed within 14 days. ORS 19.305(3); *Simpson v. Simpson*, 94 Or App 672, 675–676, 766 P2d 1055 (1989).

Note that ORCP 82 F provides a 10-day timeline but that ORS 19.305 expressly overrules it. The respondent must file exceptions in the form of a motion for a hearing on the objections. The trial court may require the surety to provide additional information and may accept or reject the bond or letter of credit. ORS 19.305(3); ORCP 82 G(1).

2. (§3.89) How to Appeal a Ruling on Objections

Any party may appeal the trial court's decision as to the amount of an undertaking. ORS 19.360(1). The appeal is made by motion, to be filed within 14 days after the entry of the trial court's order. ORS 19.360(1). During that 14-day period, the judgment is automatically stayed unless the trial court orders otherwise. ORS 19.360(1).

On appeal, the appellate court reviews the matter de novo and on the record before the trial court, unless additional relevant information has arisen after the

trial court's decision or unless the party submitting additional information shows good cause. ORS 19.360(2), (3); *see, e.g., LIG Invs. LLC v. Roach*, 215 Or App 210, 170 P3d 561 (2007) (reviewing de novo, reversing, and remanding the trial court order regarding the amount of supersedeas undertaking).

J. (§3.90) Restitution Undertaking

A respondent must file a restitution bond in the trial court within 10 days after perfection of the appeal in order to enforce a judgment on a contract where the appellant has filed a supersedeas undertaking. ORS 19.345. The respondent's undertaking must provide that "if the judgment is reversed or modified the respondent will make such restitution as the appellate court may direct." ORS 19.345. The appellant may object to the undertaking in the same manner and with the same effect as for any other undertaking on appeal. ORS 19.345.

K. (§3.91) Effect of Execution on Right to Cross-Appeal

If the respondent takes any action, including execution, that "affirms" the judgment, the respondent may waive its right to cross-appeal from the judgment. *See Zerkel v. Lindsey*, 270 Or 517, 530–531, 528 P2d 1041 (1974); *Pacific General Contractors, Inc. v. Slate Const. Co.*, 196 Or 608, 611–613, 251 P2d 454 (1952); *Harrington v. Warlick*, 92 Or App 269, 272–273, 758 P2d 387 (1988).

L. (§3.92) What to Do After the Undertaking Is in Place

The lawyer should make sure that his or her client knows that it must continue to pay any necessary premiums for a bond or letter of credit throughout the course of the appeal.

Failing to follow up on knowledge that premiums are due can constitute malpractice. *In re Conduct of Knappenberger*, 337 Or 15, 90 P3d 614 (2004) (the lawyer's course of conduct, including ignoring three letters from a bonding company demanding payment of premiums without notifying the client, constituted violation of the lawyer's duty not to neglect legal matters entrusted to him).

After the appeal has ended and the appellate judgment is entered in the trial court register, the appellant should seek a stipulated order from the respondent stating that the undertakings on appeal may be released. The appellant should expect to pay any appellate costs awarded against it before receiving the respondent's agreement to the stipulation. After the stipulated order is entered, the

appellant may contact the relevant sureties or financial institutions and give instructions to release the undertaking.

IX. RECORD ON APPEAL OR REVIEW

A. Designation of Record

1. (§3.93) Appeal

The party assigning error must ensure that the record on appeal includes everything the appellate court will need to decide the issue presented by the party's claims. Because a party's ability to refer to information outside the designated record is strictly limited, both parties should take care when designating the record. The respondent should not assume that the record designated by the appellant will provide sufficient support for the respondent's arguments.

Unless the lawyer is certain that the issues on appeal will be limited to a narrow issue, the lawyer should designate the record in its entirety.

The appellant, in the notice of appeal, must identify the portions of the proceedings and exhibits, in addition to the trial court file, to be included in the record. ORS 19.250(1)(d); ORAP 2.05(6). Within 14 days after the notice of appeal is filed, any other party may serve and file a designation of additional portions of the proceedings or exhibits. If a party files a notice of cross-appeal, the designation of additional portions of the proceedings should appear in the notice. ORS 19.250(2). The rules also provide for a motion to supplement the record. ORAP 3.05(3).

> PRACTICE TIP: The respondent should quickly evaluate whether the appellant has designated sufficient portions of the proceedings. If it appears that the designated record is inadequate in light of the issues identified by the appellant, and the respondent files a supplemental designation within 14 days, pursuant to ORS 19.250(2), the respondent may also file a motion with the trial court to require the appellant to pay the cost of the additional transcript preparation. ORS 19.375(2).

2. (§3.94) Judicial Review

Special considerations regarding agency records on judicial review are discussed in chapter 4.

B. Record of Proceeding Below

1. (§3.95) Trial Court File

The trial court file consists of the "original papers filed in the trial court whether before or after judgment." ORS 19.005(7). If the notice of appeal designated only the trial court file as the record on appeal, only its contents will be sent to the Court of Appeals. If a party designates items that were never "filed," such as a party's trial exhibits, the trial court will request those items from the appropriate party and include them in the materials sent to the appellate court.

2. (§3.96) Agency Record

Special considerations concerning agency records are discussed in chapter 4.

C. Transcript or Record of Proceedings in Trial Court

1. (§3.97) Reported Record

The appellant must include, in the notice of appeal, a designation of the portions of the reported proceedings, if any, that the appellant wants to be transcribed and included in the record. ORS 19.250(1)(d); ORAP 2.05(6); *see also* ORAP 3.63; §§3.53, 3.56.

The appellant must serve a copy of the notice of appeal on the trial court's transcript coordinator if a transcript must be prepared. ORS 19.240(2)(c). The transcript coordinator will assign the transcription duties to one or more court reporters. Generally, the party designating the transcript must pay for the transcription costs. *But see* ORS 19.375(2) (allowing respondent to move for order requiring appellant to pay for cost of additional transcripts designated pursuant to ORS 19.250(2)).

The court reporter typically requires full payment of the transcription costs, or a substantial portion thereof, in advance. Failure to make satisfactory arrangements for payment can result in a decision by the appellate court to proceed without a transcript. ORAP 3.30(4).

The appellant may amend the designation of record anytime after filing the notice of appeal, up to 35 days after the transcript is filed, by filing and serving a notice of amended designation in the same manner as a notice of appeal. ORS 19.250(1)(d). *See* §3.54.

The court reporter preparing the transcript must file it with the trial court administrator within 30 days after the notice of appeal is filed unless the appellate court grants a motion for extension of time. ORS 19.370(3); ORAP 3.30. The transcriptionist must notify all parties promptly when filing the transcript and must serve the respondent with a copy of the transcript. When additional parties are involved, the transcriptionist must provide the trial court administrator with another copy of the transcript for those parties' use. ORS 19.370(2), (4).

A party wishing to correct errors in the transcript must file a motion with the trial court within 15 days after the transcript is filed. ORS 19.370(5); ORAP 3.40. Only the appellate court has authority to extend the time in which to file a motion to correct the transcript. ORAP 3.40(1) n 2. The filing party must serve a copy of the motion on the state court administrator. ORAP 3.40(1). The administrator then suspends the briefing schedule until the transcript is corrected. ORAP 3.40(2). If additional time is needed to review the transcript for errors, a party may file a motion with the trial court. ORAP 3.40(3).

A party moving for transcript corrections should draft an order for the trial judge's signature. The order should direct the reporter to make the corrections within a certain time, usually 14 days. The trial court must send the administrator a copy of the order after it is entered.

After the reporter has corrected the transcript, the trial court then enters a second order settling the transcript. The party who sought the correction should submit the order after verifying that the requested corrections were made. The trial court clerk then sends copies to the lawyers and the state court administrator. ORS 19.370(7); ORAP 3.10(1).

The briefing schedule is based on the date of entry of the order settling the transcript. ORAP 5.80(1)(a). If no party moves to correct the transcript, it is deemed settled at the end of the 15-day period. The briefing schedule starts the next day. ORS 19.370(7); ORAP 3.40(5)(a).

2. (§3.98) Audio or Video Record

The trial court administrator has a specific set of duties when an appeal will proceed on an audio or video record. ORAP 3.63. If someone other than the court reporter transcribes an audio recording, that person must certify the transcript and the court reporter must certify the recording. Otherwise, the reporter or the trial judge must certify the transcript. ORS 19.370(1).

3. (§3.99) Agreed Narrative Statement

The parties may agree to prepare a narrative statement of the proceedings in the trial court in lieu of a transcript. The parties or their lawyers must sign the statement and file it with the trial court administrator within 30 days after the notice of appeal is filed. The appellant must promptly notify the state court administrator when the statement is filed. ORS 19.380; *see* ORAP 3.45. The briefing schedule begins to run from the date of filing the agreed-upon narrative statement. ORAP 5.80(1)(b).

D. Transfer of Record

1. (§3.100) Trial Court

The trial court administrator must send the case file to the appellate court when requested to do so by the state court administrator. Trial court exhibits, if included in the designation of record on appeal, are not transmitted unless the state court administrator requests them. A party wishing to have one or more exhibits transmitted to the appellate court must send the administrator a letter specifying the exhibit(s) to be transmitted. The party should submit the letter no later than the date that party files its brief; copies must be sent to all parties to the appeal. ORAP 3.25(1).

When the court requests that an exhibit be transmitted, the trial court administrator notifies the party with custody of the exhibit to return it to the court. UTCR 6.120(2). The trial court then transmits it to the appellate court. ORAP 3.25(2).

The lawyer may use trial exhibits in oral argument before an appellate court if the court has granted permission to do so prior to argument. Alternatively, a copy of the exhibit may be included in an appendix to the brief on appeal.

2. (§3.101) Agency

Discussion of special considerations about the agency record when filing a petition for judicial review is included in chapter 4.

FORMS

Form 3-1 Stipulation Waiving Undertaking for Costs on Appeal

Download MS Word

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____,	)	
	)	Trial court no. _____
Plaintiff-Appellant,	)	CA A_____
	)	STIPULATED ORDER
v.	)	WAIVING
	)	UNDERTAKING
_____,	)	FOR COSTS ON
	)	APPEAL
Defendant-Respondent.	)	
	)	

Pursuant to ORS 19.310(1), the parties hereto, by and through their respective attorneys, hereby stipulate that the undertaking provided for in ORS 19.300(1) may be dispensed with.

DATED: _____, 20___.

Respectfully submitted,

/s/_____	/s/_____
[*lawyer's name*]	[*lawyer's name*]
[*OSB no.*]	[*OSB no.*]
Lawyer for Defendant-Respondent	Lawyer for Plaintiff-Appellant

IT IS SO ORDERED.

DATED: _____, 20___.

/s/_____
[*judge's name*]

COMMENT: *See* §3.67.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Form 3-2 Stipulation Waiving Costs and Supersedeas Undertaking on Appeal

Download MS Word

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____,	)	
	)	Trial court no. _____
Plaintiff-Appellant,	)	CA A_____
	)	STIPULATED ORDER
v.	)	WAIVING COSTS AND
	)	SUPERSEDEAS
_____,	)	UNDERTAKING ON
	)	APPEAL
Defendant-Respondent.	)	
	)	

Pursuant to ORS 19.310(1), the parties hereto, by and through their respective attorneys, hereby stipulate that the undertakings provided by ORS 19.300 and 19.335 may be dispensed with and that the filing of this stipulation shall, unless disapproved or modified by the Court, stay execution on the judgment while the appeal in this matter is pending.

DATED: _____, 20___.

Respectfully submitted,

/s/_____
[*lawyer's name*]
[*OSB no.*]
Lawyer for Defendant-Respondent

/s/_____
[*lawyer's name*]
[*OSB no.*]
Lawyer for Plaintiff-Appellant

IT IS SO ORDERED.

DATED: _____, 20___.

/s/_____
[*judge's name*]

COMMENT: *See* §3.67.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Form 3-3 Notice of Deposit in Lieu of Undertaking for Costs on Appeal

Download MS Word

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____,	)	
	)	Trial court no. _____
Plaintiff-Appellant,	)	
	)	CA A_____
v.	)	
	)	NOTICE OF DEPOSIT IN
_____,	)	LIEU OF UNDERTAKING
	)	FOR COSTS ON APPEAL
Defendant-Respondent.	)	
	)	

On [*date*], Plaintiff-Appellant filed a notice of appeal in this action. As provided by ORS 22.020(1), Plaintiff-Appellant has deposited $500 with this Court in lieu of the undertaking for costs on appeal provided in ORS 19.300(1).

DATED: _____, 20___.

/s/_____
[*lawyer's name*]
[*OSB No.*]
Lawyer for Plaintiff-Appellant

COMMENT: *See* §3.74.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Form 3-4 Undertaking on Appeal—Civil Action Supersedeas Appeal Bond

Download MS Word

IN THE _____ COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____,	)	
	)	Trial court no. _____
Plaintiff-Appellant,	)	
	)	CA A_____
v.	)	
	)	UNDERTAKING ON
_____,	)	APPEAL—CIVIL
	)	ACTION
Defendant-Respondent.	)	SUPERSEDEAS
	)	APPEAL BOND

WHEREAS, a judgment in this matter was entered on _____, 20___, in favor of _____, and against _____, for $_____; and

WHEREAS, plaintiff has appealed from that judgment to the Oregon Court of Appeals (no. A_____);

NOW, THEREFORE, [surety] [, a corporation authorized to transact business in Oregon,] undertakes on behalf of the plaintiff-appellant that it will pay the amount directed to be paid by the judgment, or any part thereof is that is affirmed on appeal. The liability of the surety on this undertaking is limited to $_____.

DATED: _____, 20____.

[*Name of Corporate Surety if Applicable*]

/s/_____
[*name*]
Attorney-in-Fact

COMMENT: For a corporate surety, this document should be filed together with an affidavit or declaration showing the authority of the attorney-in-fact to bind the corporation and stating that the surety is qualified to issue surety insurance as defined in ORS 731.186. For an individual surety, this document should be filed with an affidavit or declaration that the individual meets the criteria of ORCP 82 D(1). It may be necessary to include additional guarantees in this form of undertaking, depending on the type of judgment appealed from. *See* §3.81.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Form 3-5 Cost Bond on Appeal

Download MS Word

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF _____

_____,	)	
	)	Trial court no. _____
Plaintiff-Appellant,	)	
	)	CA A_____
v.	)	
	)	COST BOND ON
_____,	)	APPEAL
	)	
Defendant-Respondent.	)	
	)	

WHEREAS, _____, plaintiff, has appealed to the Oregon Court of Appeals from the judgment entered in this matter on _____, 20___; and

WHEREAS, plaintiff-appellant desires to give _____, defendant-respondent in the appeal, an undertaking pursuant to ORS 19.300 to secure payment of costs and disbursements that may be awarded against plaintiff-appellant on appeal, and any amounts that may be awarded to defendant-respondent under ORS 19.445;

NOW, THEREFORE, [surety] [, a corporation authorized to transact business in Oregon,] obligates itself on behalf of the plaintiff-appellant to pay costs and disbursements that may be awarded against plaintiff-appellant on appeal, and any amounts that may be awarded to defendant-respondent under ORS 19.445 in the appeal. The liability of the surety on this undertaking is limited to $500.

DATED: _____, 20___.

[*Name of Corporate Surety if Applicable*]

/s/_____
[*name*]
Attorney-in-Fact

COMMENT: For a corporate surety, this document should be filed together with an affidavit or declaration showing the authority of the attorney-in-fact to bind the corporation and stating that the surety is qualified to issue surety insurance as defined in ORS 731.186. For an individual surety, this document should be filed with an affidavit or declaration that the individual meets the criteria of ORCP 82 D(1). *See* §3.82.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Chapter 4: SPECIAL CONSIDERATIONS FOR CERTAIN TYPES OF APPEAL

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I. CRIMINAL APPEALS

A. (§4.1) Introduction

The statutes governing criminal appeals are found in ORS chapter 138. *State v. Shank*, 206 Or App 280, 283, 136 P3d 101 (2006) ("ORS chapter 138 provides the sole means for appealing judgments in criminal actions"). Many of the rules are the same as those for civil appeals (ORS ch 19), and chapter 138 cross-references chapter 19 on several occasions, such as the following:

- ORS 138.005 (incorporating definitions from ORS 19.005);
- ORS 138.185 (incorporating chapter 19 rules for transmitting the trial court record to the court of appeals; incorporating chapter 19 statutes addressing the contents of a notice of appeal, filing by mail, jurisdiction, audio records, bill of exceptions (not required),

memorandum decisions, appellate judgments, powers of successor trial judge regarding appeals, review of intermediate orders, and loss of record (when defendant is appellant));

- ORS 138.255 (incorporating chapter 19 rules for court of appeals certification to the supreme court).

Sections 4.2–4.29 address rules that are unique to criminal appeals. For a more extensive discussion of criminal appeals, see 3 CRIMINAL LAW ch 28 (Oregon CLE 2005 & Legis Supp 2006).

B. (§4.2) Deciding Whether to Appeal

As with all cases, the decision to appeal should be guided primarily by the chances of winning. A criminal defendant may wish to consider the remedy sought (*see* §§4.10–4.11). Most successful criminal appeals result in a new trial or a new sentencing, as opposed to a straight reversal of the conviction.

Furthermore, if a criminal defendant prevails on appeal and is reconvicted in a new trial or is resentenced for some other reason, he or she could receive a worse sentence. *State v. Partain*, 349 Or 10, 25–26, 239 P3d 232 (2010). However, to impose a harsher sentence than the defendant originally received, the sentencing court must provide, on the record, nonvindictive reasons for doing so "based on identified facts of which the first sentencing judge was unaware." *Partain*, 349 Or at 26. Those facts may include the defendant's behavior since he or she was originally sentenced. *Partain*, 349 Or at 25.

Consequently, in deciding whether to appeal, a criminal defendant should consider: (1) whether the remedy he or she seeks could result in resentencing, (2) whether he or she has already received the maximum sentence allowed by law, and (3) whether there are any facts that were not known to the original sentencing judge that could justify a harsher sentence.

Another consideration in a criminal case is postconviction relief. *See* ORS 138.510–138.686. A petition for postconviction relief cannot be filed while a direct criminal appeal is pending. ORS 138.540. If a defendant's issues relate solely to the adequacy of trial counsel, the defendant may wish to avoid the time delay of a direct appeal (minimally, several months) and proceed directly to postconviction relief. A petition for postconviction relief must be filed within two years of the entry of the trial court judgment, the filing of the appellate judgment, the date of

denial of certiorari, or the date of the final state court judgment following remand from the U.S. Supreme Court. ORS 138.510(3).

However, if a defendant intends to pursue federal habeas corpus relief, exhaustion of state court remedies, including issues appropriate for direct appeal, is required. *Datt v. Hill*, 347 Or 672, 680–681, 227 P3d 714 (2010) (citing 28 USC §2254(b)(1)(A)).

C. Jurisdiction, Reviewability, Standards of Review and Remedies

1. (§4.3) Generally

The right to appeal in a criminal case is governed by statute. ORS 138.020.

A criminal defendant may appeal from the judgments listed in ORS 138.053 and cross-appeal when the state appeals a pretrial order suppressing evidence. ORS 138.040; *see* §2.8; *see also* 3 CRIMINAL LAW §28.6 (Oregon CLE 2005 & Legis Supp 2006). A defendant may not appeal from the denial of a motion to correct the judgment under ORS 138.083. *State v. Hart*, 188 Or App 650, 72 P3d 671 (2003). However, a defendant may appeal from an amended judgment entered pursuant to ORS 138.083. *State v. Harding*, 222 Or App 415, 418–419, 193 P3d 1055 (2008), *adhered to on recons.*, 225 Or App 386, *rev. dismissed and decision vacated*, 347 Or 368 (2009) (notice of appeal not timely filed).

> NOTE: A judgment is final and appealable even if the amount of restitution is to be determined later. ORS 138.083(2).
>
> COMMENT: Criminal defendants are effectively prevented from taking an interlocutory appeal, unless the state appeals from a pretrial ruling and the defendant cross-appeals to challenge a ruling that is interconnected with a ruling that the state has chosen to challenge on appeal. *See* ORS 138.040; §4.6 (discussing cross-appeals). A defendant is generally expected to challenge all pretrial rulings after conviction and sentence.

ORS 138.060 describes when the state may appeal. *See* 3 CRIMINAL LAW, *supra*, §28.7. The most common examples are challenges to a pretrial order dismissing the accusatory instrument, a pretrial order suppressing evidence, or the sentence imposed. See §2.9 for a complete list.

The supreme court has automatic and direct review of death penalty cases. ORS 138.012. *See* §2.32; 3 CRIMINAL LAW, *supra*, §27.88.

NOTE: Violations are not criminal. Appeals from judgments involving violations are governed by ORS 138.057.

2. (§4.4) Guilty Pleas, No-Contest Pleas, Probation Violations, and Resentencings

To appeal from a judgment following a guilty plea, a no-contest plea, a probation violation proceeding, or a resentencing proceeding, the defendant must identify a colorable claim of error in the notice of appeal. ORS 138.050(1), 138.222(7)(a) (guilty and no-contest pleas), ORS 138.053(3), 138.222(7)(b) (probation violations), ORS 138.222(7)(c) (resentencings); ORAP 2.40 (specifying contents of notice of appeal). A colorable claim of error is "a claim that a party reasonably may assert under current law and that is plausible given the facts and the current law (or a reasonable extension or modification of current law)." *State ex rel. Dep't of Human Servs. v. Rardin (In re Rardin),* 338 Or 399, 408, 110 P3d 580 (2005).

COMMENT: When a judgment contains multiple counts, only some of which are resolved by a guilty or no-contest plea, a colorable claim should not be necessary because the defendant has an automatic right to appeal from the judgment of conviction and sentence following a trial.

On appeal from a guilty or no-contest plea, the colorable claim must allege that the disposition exceeds the maximum allowable by law or is unconstitutionally cruel and unusual. ORS 138.050(1). Furthermore, those are the only considerations that an appellate court may review in such a case. ORS 138.050(3). "'*[A] disposition exceeds the maximum allowed by law if it is not imposed consistently with statutory requirements.*'" *State v. Stubbs*, 193 Or App 595, 606, 91 P3d 774 (2004) (quoting *State v. Sumerlin*, 139 Or App 579, 583, 913 P2d 340 (1996)); *see* 3 CRIMINAL LAW §28.6 (Oregon CLE 2005 & Legis Supp 2006). Under those provisions, an appellate court may consider a claim that the sentence is unconstitutionally disproportionate, that is, not proportioned to the offense (*State v. Baker*, 346 Or 1, 202 P3d 174 (2009)), that the convictions should have merged (*Sumerlin*, 139 Or App at 584–585), or that the suspension of driving privileges was erroneous (*State v. Roberts*, 216 Or App 238, 172 P3d 651 (2007)). An appellate court may not review a claim that the plea was not voluntary (*State v. McCallister*, 69 Or App 560, 686 P2d 1044 (1984)), that the defendant should have been allowed to withdraw his or her guilty plea (*State v. Zell*, 89 Or App 394, 749

P2d 1196 (1988)), that the trial court did not have jurisdiction to enter the conviction (*State v. Belzons*, 140 Or App 198, 915 P2d 428 (1996)), or that the trial court erred in concluding that it was not authorized to impose a discretionary lesser sentence than the default statutory minimum sentence (*State v. Anderson*, 197 Or App 193, 104 P3d 1175 (2005)).

NOTE: Appealability and reviewability are distinct issues. However, because the requirements for satisfying the two are the same in guilty and no-contest plea cases, this section does not distinguish between appealability and reviewability.

3. (§4.5) Conditional Pleas

"With the consent of the court and the state, a defendant may enter a conditional plea of guilty or no contest reserving, in writing," the right to review on appeal of the "adverse determination of any specified pretrial motion." ORS 135.335(3). The caption of the notice of appeal must identify the case as a "Conditional Plea Case." ORAP 2.40(3). The pretrial motion on which the defendant seeks review must be specified in writing. *City of Lake Oswego v. Albright*, 222 Or App 117, 119–120, 193 P3d 988 (2008) (oral specification of motion inadequate; writing claiming "reservation of appeal rights" inadequate). That writing must be included in the excerpt of record. ORAP 5.50(3)(b).

If the defendant prevails on appeal, the defendant may withdraw his or her entire guilty plea. ORS 135.335(3). That includes a plea to counts that were not contested on appeal. *State v. Tannehill*, 341 Or 205, 210–212, 141 P3d 584 (2006). Any counts that were dismissed pursuant to the plea agreement may not be revived. *State v. Dinsmore*, 342 Or 1, 147 P3d 1146 (2006).

4. (§4.6) Cross-Appeals

As stated in §4.3, a criminal defendant may cross-appeal when the state appeals a pretrial order suppressing evidence. ORS 138.040. The statute allows review of any matter that would have been reviewable if the defendant had appealed. However, the appellate courts have indicated that ordinarily they will only review "those assignments of error that are inextricably linked, either factually or legally, to the state's assignments of error on appeal." *State v. Shaw*, 338 Or 586, 618–619, 113 P3d 898 (2005); *see also State v. Bellar*, 231 Or App 80, 217 P3d 1094 (2009), *rev. denied*, 348 Or 291 (2010) (making reviewability limitation mandatory).

The defendant must serve and file the notice of cross-appeal within 10 days of the date that the notice of appeal is due. ORS 138.071(3). The late notice of appeal provisions do not apply to cross-appeals. ORS 138.071(5)(b); *see* 3 CRIMINAL LAW §28.11 (Oregon CLE 2005 & Legis Supp 2006).

5. Scope of Review

a. (§4.7) Generally

In a criminal appeal, an appellate court reviews only legal issues (most often in the form of trial court rulings). ORS 138.220 (limiting review to "questions of law appearing upon the record"). It does not review factual matters anew. However, an appellate court will review a trial court's factual findings to ensure that the record contains sufficient evidence to support them. *Ball v. Gladden*, 250 Or 485, 487, 443 P2d 621 (1968). See §4.9 for a discussion of standards of review.

When the defendant appeals, the appellate court may review any decision of the trial court in an intermediate order or proceeding, except in the case of a guilty or no-contest plea, as discussed in §4.4. ORS 138.040(1)(a). It may also review any sentencing disposition as to whether it exceeds the maximum allowable by law or is unconstitutionally cruel and unusual. ORS 138.040(1)(b).

When the state appeals, the appellate court may only review the order from which the appeal is taken, or, in an appeal from a judgment of conviction, the sentence imposed. ORS 138.060.

b. (§4.8) Felony Sentencing

Review of felony sentences is limited by statute. The court may not review a sentence that is the result of a stipulated sentencing agreement between the state and the defendant that the sentencing court approved on the record. ORS 138.222(2)(d); *Blackledge v. Morrow*, 174 Or App 566, 570–571, 26 P3d 851 (2001).

> CAVEAT: "[I]f any part of the sentence imposed varies from the parties' stipulation, that part of the sentence is reviewable." *State v. Ivie*, 213 Or App 198, 208, 159 P3d 1257 (2007); *State v. Davis*, 134 Or App 310, 313–314, 895 P2d 1374 (1995). The court applies "commercial contract principles to plea agreements" to determine the terms of the agreement. *Ivie*, 213 Or App at 208.

The court may not review a presumptive sentence (the sentence provided for by the defendant's grid block classification, ORS 137.717 or 137.719), an optional probationary sentence (a probationary sentence imposed pursuant to OAR 213-005-0006), or the failure to impose an optional probationary sentence. ORS 138.222(2)(a)–(c); *see* 3 CRIMINAL LAW §28.10 (Oregon CLE 2005 & Legis Supp 2006). However, the court may review whether the sentencing court had authority to impose an optional probationary sentence. ORS 138.222(4)(a); *State v. Schuh*, 112 Or App 362, 829 P2d 1040 (1992).

When a departure sentence is imposed, the court may only review whether the trial court's factual findings and reasons justifying departure are supported by evidence in the record and constitute substantial and compelling reasons for departure. ORS 138.222(3).

The court may review two aspects of the sentencing guideline grid block classification: the crime seriousness classification, and the classification of a prior conviction used in the calculation of the defendant's criminal history score. ORS 138.222(4)(b).

In a state's appeal, the court may review a claim that the sentencing court failed to impose a mandatory minimum sentence. ORS 138.222(4)(c).

Finally, the court may always review a claim that "[t]he sentencing court failed to comply with requirements of law in imposing or failing to impose a sentence." ORS 138.222(4)(a).

6. (§4.9) Standards of Review

In a criminal appeal, the appellate court is bound by the trial court's findings of historical fact, unless those findings are not supported by constitutionally sufficient evidence in the record. Any facts not specifically found by the trial court, for which there is competing evidence, are presumed to be decided in a manner consistent with and necessary for the trial court's ultimate conclusion. *Ball v. Gladden*, 250 Or 485, 487, 443 P2d 621 (1968).

Trial court rulings are reviewed either for errors of law or abuse of discretion, depending on the legal issue involved. Questions of discretion are facially simple but can be quite complicated. On the surface, the reviewing court shows great deference to the trial court's ruling. But that deference is warranted only after the reviewing court determines that (1) the trial court had sufficient

information to make the decision, (2) the trial court utilized the correct legal criteria to make the decision, and (3) the trial court's ultimate decision was within the permissible range of choices. *See State v. Rogers*, 330 Or 282, 312, 4 P3d 1261 (2000).

When reviewing a conviction for sufficient evidence (a motion for judgment of acquittal), the appellate court views the evidence in the light most favorable to the state to determine whether a rational factfinder could find that the state had proven every element of the offense beyond a reasonable doubt. ORS 136.445; *State v. Hall*, 327 Or 568, 570, 966 P2d 208 (1998); *Jackson v. Virginia*, 443 US 307, 319, 99 S Ct 2781, 61 L Ed2d 560 (1979) (applying that standard of review under the due process clause of the Fourteenth Amendment). *See* 3 CRIMINAL LAW §28.47 (Oregon CLE 2005 & Legis Supp 2006).

7. Remedies

a. (§4.10) Generally

In a criminal appeal, the appellate court "may reverse, affirm or modify the judgment or order appealed from and shall, if necessary or proper, order a new trial." ORS 138.240. The new trial will be in the trial court. ORS 138.250.

> CAVEAT: Criminal appeals, like other appeals, are subject to harmless-error analysis. An appellate court may reverse only if the trial court ruling is both erroneous and prejudicial. Or Const art VII (amended), §3; ORS 138.230. The error is harmless when there is "little likelihood that the error affected the verdict." *State v. Davis*, 336 Or 19, 32, 77 P3d 1111 (2003). *See* 3 CRIMINAL LAW §28.48 (Oregon CLE 2005 & Legis Supp 2006).

b. (§4.11) Felony Sentencing

When reviewing a felony sentence, the appellate court may reverse or affirm the sentence. ORS 138.222(5)(a). When the trial court's findings are inadequate to support the sentence, the appellate court must remand the case to the trial court for resentencing. When resentencing is required, the appellate court will remand the entire case for resentencing, and the "sentencing court may impose a new sentence for any conviction in the remanded case." ORS 138.222(5)(a); *State v. Muyingo*, 225 Or App 156, 161–166, 200 P3d 601, *adhered to and clarified on recons.*, 226 Or App 327, *rev. denied*, 346 Or 364 (2009).

COMMENT: Whether the sentencing court committed "an error that requires resentencing" is not always easy to determine. The supreme court has suggested that a case requires resentencing when "there remain options that the trial court permissibly could adopt on resentencing." *State v. Edson*, 329 Or 127, 139, 985 P2d 1253 (1999).

Even when it would appear that resentencing is not required because a conviction was reversed without retrial, in cases "involving multiple counts of which at least one is a felony," if the appellate court "reverses the judgment of conviction on any count and affirms other counts, the appellate court shall remand the case to the trial court for resentencing on the affirmed count or counts." ORS 138.222(5)(b); *Muyingo*, 225 Or App at 156, 161–166; *State v. Rodvelt*, 187 Or App 128, 66 P3d 577 (2003).

D. Timelines for Notice of Appeal

1. (§4.12) Generally

Generally, a notice of appeal must be served and filed no later than 30 days after the entry of the judgment or order. ORS 138.071(1). When a motion for new trial or a motion in arrest of judgment has been filed, the notice of appeal must be served and filed within 30 days of either the "entry of the order disposing of the motion" or the "date on which the motion is deemed denied," whichever is earlier. ORS 138.071(2); *see* Form 4-1. See §4.6 for the timeline for a defendant's cross-appeal. *See also* 3 CRIMINAL LAW §§28.13–28.14 (Oregon CLE 2005 & Legis Supp 2006).

2. (§4.13) Supplemental Judgments

When the trial court enters a corrected or supplemental judgment pursuant to ORS 138.083, the notice of appeal from that judgment "must be filed not later than 30 days after the defendant receives notice that the judgment has been entered." ORS 138.071(4); *see* ORAP 8.28(2)(a) (same time limits apply to amended notice of appeal from corrected or supplemental judgment).

CAVEAT: A corrected or supplemental judgment does not extend the time within which to file a notice of appeal from the original judgment, unless the corrected or supplemental judgment "'either materially alters rights or obligations determined by the prior judgment or creates a right of appeal where one did not exist before.'" *Young v. Peterson*, 304 Or 421, 746

P2d 217 (1987) (quoting *In re Marriage of Mullinax*, 292 Or 416, 430, 639 P2d 628 (1982)); *State v. Christopherson*, 159 Or App 428, 432, 978 P2d 1039 (1999) (rule announced in *In re Marriage of Mullinax* applies to criminal cases).

3. (§4.14) Late Notice of Appeal

A criminal defendant may file a delayed notice of appeal no later than 90 days after the triggering dates listed in §§4.12–4.13 (e.g., the entry of judgment) when two conditions are met: (1) the defendant must show by clear and convincing evidence that "the failure to file a timely notice of appeal is not attributable to the defendant personally," and (2) the defendant must identify a colorable claim of error in the underlying proceeding. ORS 138.071(5)(a), (c). *See* 3 CRIMINAL LAW §28.16 (Oregon CLE 2005 & Legis Supp 2006). The notice of appeal must be accompanied by a motion for leave to file a notice of appeal after the time limit that makes the requisite showings, and the state will have an opportunity to respond. ORS 138.071(5)(c)–(d). The delayed notice of appeal provisions do not apply to state's appeals or defendants' cross-appeals. ORS 138.071(5)(a)–(b).

NOTE: See ORAP 2.40(2) regarding the contents of delayed notices of appeal in cases involving guilty pleas, no-contest pleas, probation violations, and resentencings.

E. Notice of Appeal, Filing, Record on Appeal

1. (§4.15) Notice of Appeal

The notice of appeal must be in the form prescribed by ORS 19.250. ORS 138.081. *See* 3 CRIMINAL LAW §28.17 (Oregon CLE 2005 & Legis Supp 2006). When the state appeals, the district attorney for the county or the attorney general signs the notice of appeal. When the defendant appeals, the defendant or his or her attorney signs the notice of appeal. ORS 138.090.

2. (§4.16) Service

In an appeal by the defendant, the notice of appeal must be served on the district attorney and the attorney general. In an appeal by the state, it must be served on the defendant or his or her attorney. ORS 138.081(1); ORAP 2.05(10)(c). If, after due diligence, service cannot be made on the defendant or his or her attorney, service may be made by publication pursuant to court order. ORS 138.110, 138.120. As in civil cases, the notice of appeal must also be served on the

trial court administrator and the transcript coordinator (if a transcript is required for the appeal). ORS 138.081(1); ORAP 2.05(10)(d). *See* 3 CRIMINAL LAW §28.18 (Oregon CLE 2005 & Legis Supp 2006).

3. (§4.17) Presentence Report

The presentence report is part of the record on appeal. ORAP 3.07(2)(a). However, it is not a public record. ORAP 3.07(2)(e). The report is sent to the appellate court in a sealed envelope marked "confidential" and may only be inspected by the attorneys for the defendant and the state; it may not be disclosed to the defendant. ORAP 3.07(2)(c), (e), (3)(b). The trial court may except certain portions of the presentence report from disclosure under ORS 137.079; that material is placed in a separate envelope marked "sealed" and may not be inspected except on court order. ORAP 3.07(2)(d), (4).

The trial court must send a copy of those parts of the presentence report not excerpted from disclosure to the attorneys for the defendant and the state on request after the notice of appeal has been filed. ORAP 3.07(2)(b).

F. (§4.18) Disposition of Defendant on Appeal

In an appeal by the state, the effect of the order or judgment in favor of the defendant is stayed. ORS 138.160. Consequently, any release agreement is continued and any security is held until the final determination of the case. If the defendant is in custody, he or she may be released pending appeal. ORS 138.160. If the defendant remains in custody and the case involves a felony, the case may be subject to expedited review. *See* §4.21.

In an appeal by the defendant, the sentence of confinement may be stayed and the defendant released on security. ORS 138.135(1). The trial court makes the decision whether to release a defendant pending appeal; the court of appeals may not review this decision. *State v. Wimber*, 108 Or App 1, 5, 814 P2d 169 (1991). If the defendant is not released on security, the sentence will be stayed only if the defendant elects not to commence service of the sentence, in which case he or she will be held in custody at the institution designated in the judgment. ORS 138.135(1). *See generally* 3 CRIMINAL LAW §§28.21–28.24 (Oregon CLE 2005 & Legis Supp 2006).

> COMMENT: There appears to be no advantage for an incarcerated defendant to stay execution of the sentence.

A sentence of probation may not be stayed. *State v. Popp*, 118 Or App 508, 848 P2d 134 (1993). Conditions of probation may not be stayed. *State v. Freeman*, 113 Or App 246, 248, 831 P2d 84 (1992).

A sentence to pay a fine or costs may be stayed by the circuit court, the court of appeals, or the supreme court. If the court does so, it may impose conditions to ensure payment if the defendant loses the appeal. ORS 138.135(2).

If a petition for review in the supreme court is filed, any stay remains in effect, unless the supreme court orders otherwise. ORS 138.135(3).

G. Briefing

1. (§4.19) Contents of Brief

In an appellant's brief, the statement of the case must contain the accusatory instrument (e.g., indictment, information, citation, or complaint) and the statutory citation for each crime charged. ORAP 5.40(1). The charging instrument may be quoted verbatim in the brief or attached as an excerpt of record. *See* 3 CRIMINAL LAW §28.40 (Oregon CLE 2005 & Legis Supp 2006).

In all cases, the appellant's summary of facts need only contain those facts material to the determination of the appeal. ORAP 5.40(9). In an appeal following a conviction by jury trial, the summary of facts is stated in the light most favorable to the state. *State v. Johnson*, 342 Or 596, 598, 157 P3d 198 (2007).

The excerpt of record must contain a copy of the judgment or order being appealed. ORAP 5.50(3)(a). In cases involving a conditional plea, the excerpt of record must contain a copy of the writing specifying the pretrial motion on which the defendant seeks review. ORAP 5.50(3)(b); *see* §4.5.

2. (§4.20) Reply Brief

An appellant may not submit a reply brief without permission from the court. ORAP 5.70(3)(a)(ii). A motion for leave to file a reply brief must be submitted within 14 days after the filing of the respondent's brief. ORAP 5.70(3)(b).

3. (§4.21) Expedited Review in State's Appeals

When the state appeals a pretrial order suppressing evidence or dismissing or setting aside the accusatory instrument in a felony case in which the defendant is incarcerated pending appeal, the case will receive expedited review. ORS 138.261;

see 3 CRIMINAL LAW §28.8 (Oregon CLE 2005 & Legis Supp 2006). The case caption of any filing in such a case must contain the words "EXPEDITED APPEAL UNDER ORS 138.261." ORAP 10.25(1)(a). The appellant's brief is due 35 days after the transcript settles. ORAP 10.25(1)(b). The respondent's brief is due 35 days after the appellant's brief is filed and served. ORAP 10.25(1)(c). "Absent extraordinary circumstances, the court will not grant an extension of time or reschedule oral argument," and pre-argument motions will not toll due dates. ORAP 10.25(2); ORS 138.261(2) (authorizing time limits for briefing). The court of appeals must decide the appeal no later than 180 days after oral argument or submission of the case. ORS 138.261(3). If the supreme court allows review, it will issue its decision no later than 180 days after oral argument or submission of the case. ORS 138.261(5). If the court extends those deadlines, it shall serve written reasons on the parties addressing whether the appeal is unusually complex or presents novel questions of law and whether failure to extend the time period would result in a miscarriage of justice. ORS 138.261(4), (6).

Similar expedited direct review of state's appeals in the supreme court is provided for in cases in which the defendant is charged with murder or aggravated murder. ORS 138.060(2). The briefing is on a 28-day schedule with no extensions allowed. ORAP 12.07(1)(b)–(c). The supreme court has one year to issue its decision. ORS 138.060(3).

H. Motions and Special Circumstances

1. (§4.22) Motions for Extension of Time

Motions for extension of time must state whether the defendant is incarcerated. ORAP 7.25(2)(g).

2. (§4.23) Certification to Supreme Court in State's Appeals

In all cases, the court of appeals may certify the appeal to the supreme court pursuant to ORS 19.405. In state's appeals in criminal cases, either party may request the supreme court to take the appeal at any time before oral argument has been set by the court of appeals. ORS 138.255(2). In deciding whether to take the appeal, the supreme court considers whether the defendant is charged with a Measure 11 Class A felony and the extent to which the case presents speedy trial concerns and a significant issue of law. ORS 138.255(2).

3. (§4.24) Motion to Correct the Judgment

Even though a case is on appeal, the trial court retains authority "to modify its judgment and sentence to correct any arithmetic or clerical errors or to delete or modify any erroneous term in the judgment." ORS 138.083(1)(a). The court may do so on the motion of a party or on its own motion after written notice to all parties. ORS 138.083(1)(a). The court should forward a copy of the corrected judgment to the appellate court, the defendant or the defendant's attorney, the district attorney, and the solicitor general of the Department of Justice. ORS 138.083(1)(b); ORAP 3.10(3). The procedures to be followed regarding the appeal when a motion for corrected judgment is filed or a corrected judgment is entered are set forth in ORAP 8.28. *See also* §2.46.

4. (§4.25) Joint Motion for Remand

The appellate court, in response to a joint motion by the appellant and the respondent, may vacate the judgment or order from which the appeal was taken and remand the case to the trial court for reconsideration of the judgment or any order entered by the trial court. ORS 138.227(1). The trial court may either reenter the original judgment or order or enter a modified judgment or order. *See, e.g., State v. Mathena*, 186 Or App 682, 683, 64 P3d 1192 (2003) (specifying trial court's options). Either party may then appeal from the resulting judgment or order under the same timelines that apply to a judgment or order. ORS 138.227(2). *See also* §2.46.

5. (§4.26) Motions for Summary Affirmance

After submission of the appellant's brief, the court of appeals may summarily affirm the judgment on its own motion or on the motion of the respondent without submission of a respondent's brief or oral argument "if the court finds that no substantial question of law is presented by the appeal." ORS 138.225. A "substantial question of law" is "a soundly based, firmly supported question capable of adjudication as to what the law is that is presented by the facts of the particular case." *Atkinson v. Bd. of Parole & Post-Prison Supervision*, 341 Or 382, 390, 143 P3d 538 (2006) (defining term as used in ORS 144.335(6)). The chief judge (as opposed to a two- or three-judge panel) or the appellate commissioner may deny the motion or grant the motion if the appellant does not oppose it. ORS 138.225; ORAP 7.55(2)(c). A summary affirmance constitutes a decision on the merits. ORS 138.225.

PRACTICE TIP: An appellant may move for summary reversal under the general provisions for requesting an order or other relief. ORAP 7.05(1)(a); *see* ORAP Appendix 7.10-1 (listing "Motion—Summary Reversal" as one of the "Commonly Used Motion Titles for ORAP 7.10(1)(b) and (c)").

6. (§4.27) Mootness

A case is never moot as long as the defendant is challenging his or her conviction. *State v. Meyer*, 12 Or App 486, 492–493, 507 P2d 824 (1973); *Sibron v. New York*, 392 US 40, 88 S Ct 1889, 20 L Ed2d 917 (1968). That is true even when the defendant challenges guilty verdicts that were merged into other guilty verdicts that he or she does not challenge. *State v. Link*, 346 Or 187, 202–203, 208 P3d 936 (2009). *See* 3 CRIMINAL LAW §28.37 (Oregon CLE 2005 & Legis Supp 2006).

A challenge to the defendant's sentence is not moot as long as the defendant remains on postprison supervision. *Baty v. Slater*, 161 Or App 653, 984 P2d 342 (1999), *adhered to on recons.*, 164 Or App 779 (2000). A challenge to a sentence is not moot if the defendant owes or paid money such as fines, probationary fees, or treatment fees as a result of an aspect of the sentence that the defendant is challenging on appeal. *Weems v. Bd. of Parole*, 347 Or 586, 594 n 7, 227 P3d 671 (2010); *State v. Blanchard*, 236 Or App 472, 475, 236 P3d 845 (2010).

A challenge to a condition of probation becomes moot when the probation expires or is revoked (unless the challenged condition was the basis for the revocation). *State v. Perez*, 231 Or App 67, 217 P3d 691 (2009); *State v. Bateman*, 94 Or App 449, 765 P2d 249 (1988). A challenge to the revocation of probation becomes moot once the defendant has completed his or her sentence, despite the fact that a person's prior violation history could be considered by a sentencing court in a future criminal proceeding. *State v. Dick*, 169 Or App 649, 10 P3d 315 (2000); *see also State v. Smith*, 223 Or App 250, 195 P3d 467 (2008) (relying on *Dick*).

COMMENT: The decisions in *Dick* and *Smith* may be challenged based on arguments not made in those cases. First, a finding that the defendant has not complied with the conditions of probation is more akin to a conviction (a determination about the defendant's conduct) than a sentence (an action imposed on the defendant). Because that determination remains a part of the

defendant's record unless it is reversed, an appellate court can always grant the relief requested by defendant—removal of that determination. That often is not the case when the challenge is to a fully served sentence. Second, the current injury to the defendant's reputation (apart from any speculative future consequences) from a finding that, even after being given a "second chance" he or she was unwilling to abide by the court's directives, should prevent the case from becoming moot. *See State v. Van Tassel*, 5 Or App 376, 379–385, 484 P2d 1117 (1971) (the defendant's release from the state hospital did not render the case moot, because of the social stigma attached to the defendant's reputation by a civil commitment order); *State v. Gibbens*, 25 Or App 185, 187–188, 548 P2d 523 (1976) (the defendant's interest in clearing his name permitted review of his conviction even after he had paid a fine and had been granted termination from probation); *State v. Linde (In re Linde)*, 179 Or App 553, 41 P3d 440 (2002) (when the appellant challenged continuance of his civil commitment, his release from the state hospital did not render the appeal moot, because the appellant suffered a stigma not only from the original commitment but also from the length of the commitment).

"[W]hen a party becomes aware of facts that probably render an appeal moot," that party is obligated to provide notice of the facts to the court and the opposing party, except as to information protected by the attorney-client privilege. ORAP 8.45.

7. (§4.28) Abscond

If the defendant is appealing an adverse decision and "escapes or absconds from custody or supervision," the state may move for dismissal of the appeal. ORAP 8.05(3). *See* 3 CRIMINAL LAW §28.38 (Oregon CLE 2005 & Legis Supp 2006). "'[A]bscond' requires a showing of some kind of conscious intent to evade or avoid legal process." *State v. Robbins*, 345 Or 28, 34, 188 P3d 262 (2008); *see also State v. Zamora-Martinez*, 210 Or App 22, 150 P3d 25 (2006) (deported defendant who reentered the country illegally did not abscond from supervision); *State v. Ford*, 205 Or App 506, 510, 134 P3d 959 (2006) (failure to complete drug and alcohol evaluation and failure to pay court-ordered fines and fees does not constitute absconding).

The state has the burden of showing that the defendant has absconded or escaped. *See State v. Squeglia*, 208 Or App 496, 500, 145 P3d 292 (2006). If the

defendant has not surrendered when "the motion is decided by the court, the court may dismiss the appeal or judicial review." ORAP 8.05(3). Merely being in custody does not constitute "surrender"; the defendant must "voluntarily give[] himself or herself over to the custody or control of law enforcement authorities." *State v. Fettel*, 210 Or App 404, 407, 150 P3d 1076 (2007). If the court has not been advised otherwise, the court may assume that the defendant has not surrendered. ORAP 8.05(3); *Fettel*, 210 Or App at 407 (defendant has the burden to show that he or she has surrendered).

8. (§4.29) Death of Defendant

Any party who learns of the death of the defendant while the case is pending on appeal must notify the court and all other parties within 28 days of learning of the death. ORAP 8.05(2)(a), 8.45. The notice may include "a memorandum addressing whether the court should dismiss the appeal or vacate the judgment, or both." ORAP 8.05(2)(b). Any other party or interested person may file a memorandum addressing the same issues within 28 days of the filing of the notice. ORAP 8.05(2)(b). The presumptive dispositions are:

(1) "For a state's appeal, the court will dismiss the appeal."

(2) For a defendant's appeal challenging his or her conviction, "the court will vacate the judgment and dismiss the appeal."

(3) For a defendant's appeal challenging his or her sentence (other than a monetary provision), "the court will dismiss the appeal but will not vacate the judgment."

(4) For a defendant's appeal challenging a monetary provision of the sentence, "the court will dismiss the appeal and vacate the challenged monetary provision, but will not vacate the remainder of the judgment."

(5) However, if the defendant dies after issuance of a court of appeals' decision "affirming the judgment and after all right to petition for review has expired, the court will dismiss the appeal but will not vacate the judgment." ORAP 8.05(2)(c).

II. ADMINISTRATIVE APPEALS

A. (§4.30) Whether to Appeal an Agency Order

In appeals from agency orders, even more than in the usual civil appeal, the appellant has an uphill fight. The applicable standards of review strongly favor the agency. See ORS 183.482(8), discussed further in §4.37. It is therefore important to be realistic about the chances of success in advising a client to appeal an agency order. The strongest administrative appeals are those raising issues of statutory or constitutional law; the weakest are those challenging an agency's factual determinations. An agency's failure to follow required procedures may also be a fruitful avenue for appeal. *See, e.g., Villanueva v. Bd. of Psychologist Exam'rs,* 175 Or App 345, 27 P3d 1100 (2001), *adhered to on recons.*, 179 Or App 134 (2002); *but see Gleason v. Ore. Racing Comm'n,* 233 Or App 164, 225 P3d 123 (2010) (failure to hold contested-case hearing within 90 days, as required by administrative rule, did not require reversal of agency order). Moreover, preservation of issues before the agency is vital to success on appeal. *See* §4.38; *see also* OREGON ADMINISTRATIVE LAW §14.26 (OSB Legal Pubs 2010). If the appellate attorney did not handle the case before the agency, or if the client represented him- or herself before the agency, it is important to inquire about these issues before filing the petition for judicial review.

The cost of an administrative appeal does not include transcript costs; the agency prepares transcripts as part of the judicial review record, at the agency's expense.

With the exception of appeals from the Land Use Board of Appeals (LUBA), which are highly expedited for briefing, argument, and decision (ORS 197.855), time may be an issue. A petition for judicial review does not stay the agency decision. ORS 183.482(3)(a). See §4.42 regarding stays of agency orders; *see also* OREGON ADMINISTRATIVE LAW, *supra*, §14.22. Depending on the size of the judicial review record and the resources of the agency, the agency may seek extensions of time in which to prepare the record. The parties may also seek extensions in which to file the briefs. Finally, with the exception of LUBA appeals, petitions for judicial review of agency decisions are not expedited, and it may be as long as 10 months after briefing is complete before the matter appears on the court's argument calendar. *See* §4.35. The client should be advised as to the amount of time required for the appellate process.

See generally OREGON ADMINISTRATIVE LAW, *supra*, §§14.12– 14.34.

B. (§4.31) Agency Orders Subject to Review

The original jurisdiction of the court of appeals is restricted to final agency orders in contested cases. *See* ORS 183.480(1), 183.482(1); *see also* OREGON ADMINISTRATIVE LAW §14.13 (OSB Legal Pubs 2010). A final agency order is simply "final agency action expressed in writing." ORS 183.310(6)(b). For example, orders on discovery issues or proposed orders are not final orders and are not subject to direct judicial review. ORS 183.310(6)(b)(A). Some confusion is created by ORS 183.310(6)(b)(B), which provides that a tentative or preliminary agency statement that does not preclude further consideration of the subject matter is not a final order. Since the agency may reconsider virtually any agency order, few orders entirely preclude further agency action. However, it is generally clear when an order is tentative or preliminary in nature; such orders are not final.

All final orders must contain a statement showing the statutory authority for appeal. ORS 183.470(4).

C. (§4.32) Who Can Appeal an Agency Order

In general, any "party" can petition for review from a final agency order in a contested case. ORS 183.480; *see* OREGON ADMINISTRATIVE LAW §14.17 (OSB Legal Pubs 2010). *Party* is defined in ORS 183.310(7), and includes each person or entity entitled to a hearing of right, and any person or agency named as a party by the agency. In addition, a person who requested party status or limited party status but was denied that status may appeal. ORS 183.310(7)(c). Finally, any person who is "affected or aggrieved" by an agency order may appeal. ORS 183.480(1), 183.482(2). In practice, however, a person who did not participate before the agency will find it nearly impossible to appeal from an order in a contested case, for that party will not have preserved issues for appeal. A party that is adversely affected or aggrieved must file an affidavit establishing standing to seek judicial review. The affidavit must accompany the petition for judicial review. ORS 183.482(2).

Because the final order in a contested case is generally that of the agency itself, there is no reason for the agency to appeal. In certain cases, however, the administrative law judge has final order authority; in such cases, the agency may appeal an adverse decision. *See, e.g.*, ORS 657.683(4)–(5), 657.684. In other cases, an agency itself is a party to the contested case, and may petition for review. *See*,

e.g., ORS 657.282 (Employment Department may appeal decision of Employment Appeals Board).

D. (§4.33) Challenges to Agency Rules

The court of appeals has original jurisdiction to consider facial challenges to agency rules under ORS 183.400. *See* OREGON ADMINISTRATIVE LAW §§14.4–14.11 (OSB Legal Pubs 2010). There are no time limitations applicable to such challenges while a rule remains in effect, except that a challenge based on failure to follow rulemaking procedures must be filed within two years. ORS 183.400(6); *see* OREGON ADMINISTRATIVE LAW, *supra*, §14.6. Aside from procedural issues, this process is limited to facial, as opposed to as-applied, rule challenges. *Or. Newspaper Publrs. Ass'n v. Or. Dep't of Corr.,* 329 Or 115, 118–119, 988 P2d 359 (1999). Although an agency rule may also be challenged in the course of a separate civil proceeding, ORS 183.400 is the exclusive remedy in proceedings seeking solely to have a rule declared invalid. *Alto v. State by & Through State Fire Marshall*, 319 Or 382, 395, 876 P2d 774 (1994).

ORS 183.400 provides that "any person" may bring a rule challenge; that is, there is no requirement that the person be adversely affected or aggrieved by the rule. *Kellas v. Dep't of Corr.,* 341 Or 471, 477, 145 P3d 139 (2006).

Under ORS 183.400, the court may consider whether the agency had authority to adopt the rule, whether the rule is consistent with the governing statutory provision, and whether the rule is consistent with state and federal constitutional standards. ORS 183.400(4); *see* OREGON ADMINISTRATIVE LAW, *supra*, §§14.8–14.9. The court will not consider whether evidence in the agency record does or does not support the agency's policy choice. ORS 183.400(3)(a); *Wolf v. Or. Lottery Comm'n,* 344 Or 345, 182 P3d 180 (2008).

E. (§4.34) Timing of the Petition for Judicial Review

In general, a petitioner has 60 days from the date that the order on which the appeal is based has been served to file a timely petition for judicial review. ORS 183.482(1). Some state agencies allow or require that a petition for reconsideration be filed before filing a petition for judicial review. If that is the case, the petition for reconsideration must be filed within the time provided for the filing of a petition for judicial review, OAR 137-003-0675, and is deemed denied if not ruled on by the 60th day after it is filed with the agency. The petition for judicial review is then due 60 days after the petition for reconsideration is denied, or 60 days after

it has been deemed denied, whichever is earlier. ORS 183.482(1). *See* OREGON ADMINISTRATIVE LAW §14.19 (OSB Legal Pubs 2010).

> CAVEAT: Although 60 days is the operative time for the filing of a petition for judicial review from most agency orders, many statutory schemes provide for a different, lesser period of time. For example, petitions for judicial review of final orders in unemployment tax appeals must be filed within 20 days after the final order is served (ORS 657.684), while petitions in unemployment compensation cases must be filed within 30 days (ORS 657.282). These dates are jurisdictional and cannot be extended or waived by the agency.

Although a final agency order must state the time within which the order may be appealed (*see* ORS 183.470(4)), the litigant may not rely on that statement if it happens to be incorrect. An agency order stating that the opposing party has 60 days in which to appeal will not extend the jurisdictional time if the operative statute provides for a lesser time. *Tidewater Barge Lines, Inc. v. Oregon Envtl. Quality Comm'n,* 159 Or App 296, 299–303, 974 P2d 807 (1999), *appeal dismissed,* 330 Or 253 (2000). The appellate attorney must therefore carefully review the applicable statutes to determine the jurisdictional timing of the appeal.

F. (§4.35) Expedited Appeals

Because of its heavy workload, the court of appeals will not normally expedite agency appeals. However, by statute, certain land use appeals are highly expedited. *See* ORS 197.850 (appeals from the Land Use Board of Appeals (LUBA)), ORS 197.651 (appeals of orders of the Land Conservation and Development Commission concerning rural reserves and urban reserve areas), ORS 196.115(2) (certain orders of the Columbia River Gorge Commission). The most common class of such expedited cases, LUBA appeals, must be filed within 21 days of LUBA's final decision. ORS 197.850(3)(a). Briefing in such cases is also highly expedited (ORAP 4.66), and the briefing deadlines may not be extended except as specifically provided by statute (ORAP 4.70).

G. (§4.36) Judicial Review Record

The next step after the filing of a petition for judicial review (*see* §4.34) is the filing of the agency record. The record must be submitted within 30 days "or such further time allowed by the court." ORAP 4.20. In practice, it is rare for the

record to be filed without one or more extensions of time, depending on the size and workload of the agency involved, as well as the size of the record.

A party has 15 days after the record is filed within which to move for corrections or additions to the record. This time may be enlarged by the court. ORAP 4.22(1). The motion is filed in the first instance with the agency; filing this motion with the court itself is a very common error. However, if the motion is timely filed, an agency will generally treat a motion filed with the court as though it had been properly filed with the agency. A motion filed with the agency must be copied to the court. ORAP 4.22(2). *See* OREGON ADMINISTRATIVE LAW §14.25 (OSB Legal Pubs 2010).

Corrections may be made to the transcript by this mechanism; in addition, any omissions from the agency record should be corrected at this point. For example, if the attorney intends to assign error to the exclusion of evidence in the contested-case proceeding, that evidence should be included in the record on review.

Correcting the record is not a mechanism for adding material to the record that was never before the agency. ORAP 4.22(1)(b). If a party deems it necessary to present additional evidence, that evidence must be presented to the agency first, and a motion for leave to do so must be filed. ORS 183.482(5). A party seeking to reopen the agency record for that purpose must demonstrate that the additional evidence is material and that there was good reason for failing to present it during the original contested case. ORS 183.482(5). After such evidence has been submitted, the agency may either modify its order or elect to stand on its original findings and order. ORS 183.482(5); ORAP 4.25(3). Obviously, in such a case, a supplemental agency record must be filed.

The granting of a motion to submit additional evidence suspends the time for filing briefs, unless the court otherwise orders. ORAP 4.25(4).

The agency itself may sometimes deem it appropriate to supplement the record in this fashion. Should it desire to do so, the agency must also request leave of court and make the showing required by ORS 183.482(5). *Gritter v. Adult & Family Servs. Div.*, 182 Or App 249, 48 P3d 195, *vacated as moot*, 183 Or App 578 (2002). Such a request is often made in conjunction with an agency decision to reconsider its final order. *See* §4.39.

If a critical omission to the record is discovered during the briefing process, the court has discretion to grant a motion to supplement the record. ORS 183.482(4) ("[t]he court may require or permit subsequent corrections or additions to the record when deemed desirable"). The motion should state why the correction or addition is needed and why the correction or addition was not made previously. It is good practice to confer with the opposing attorney before filing such a motion. The motion tolls the time for briefing unless the court has ordered otherwise or in a limited category of appeals, such as appeals from the Land Use Board of Appeals or the Land Conservation and Development Commission and appeals in juvenile dependency and adoption cases. ORAP 4.72 ("Motion Not Tolling Time"), ORAP 7.30 ("Motions that Toll Time"), ORAP 10.15(8) ("Juvenile Dependency and Adoption Cases").

H. (§4.37) Briefing the Administrative Appeal: Special Concerns

The approach taken to briefing an agency case depends on the applicable standard of review. If the petitioner does not accept the agency's findings of fact, error must be assigned to each specific finding that is challenged. *Corcoran v. Bd. of Nursing*, 197 Or App 517, 526, 107 P3d 627 (2005). If error is not assigned to any of the findings of fact, those are the facts for purposes of appellate review. *Meltebeke v. Bureau of Labor & Indus.*, 322 Or 132, 134, 903 P2d 351 (1995).

The agency's findings of fact must be supported by substantial evidence in the record. *See* ORS 183.482(8)(c); *see also* OREGON ADMINISTRATIVE LAW §14.31 (OSB Legal Pubs 2010). Substantial evidence exists, in general, if the record, viewed as a whole, would allow a reasonable person to make that finding. *See Friends of Parrett Mt. v. Northwest Natural Gas Co. (In re Site Certificate for S. Mist Pipeline Extension)*, 336 Or 93, 106, 79 P3d 869 (2003).

> PRACTICE TIP: In practice, an agency's finding of fact will generally be upheld if there is any evidence in the record to support the finding. *But see Castro v. Bd. of Parole & Post-Prison Supervision*, 232 Or App 75, 220 P3d 772 (2009).

The agency's decision must also be supported by substantial reason. *See* OREGON ADMINISTRATIVE LAW, *supra*, §14.32. The appellate court will review the order for the "existence and soundness" of the rationale supporting the ultimate conclusion. *In re Compensation of Furnish*, 124 Or App 622, 625, 863 P2d 524 (1993). If the agency order does not contain a rational explanation of why the

factual findings that it made lead to the final decision that it reached, the agency decision may be reversed or remanded. *Bergerson v. Salem-Keizer Sch. Dist.*, 341 Or 401, 415–417, 144 P3d 918 (2006). If the factual findings are at odds with the ultimate conclusion reached, the decision is not supported by substantial reason and will be reversed. *McGee v. Dep't of Human Servs.,* 195 Or App 736, 741, 99 P3d 337 (2004).

The court of appeals reviews the agency's interpretation of the applicable law for errors of law. ORS 183.482(8)(a); *see* OREGON ADMINISTRATIVE LAW, *supra*, §14.29. As to statutory interpretation, there is essentially no deference to the agency. *Tharp v. Psychiatric Sec. Review Bd.*, 338 Or 413, 425–426, 110 P3d 103 (2005) (declining to defer to agency interpretation of a term of art). This may provide room for argument by the petitioner. However, the court will defer to an agency's plausible interpretation of its own rules. *City of Klamath Falls v. Environmental Quality Comm'n,* 318 Or 532, 870 P2d 825 (1994); *see* OREGON ADMINISTRATIVE LAW, *supra*, §14.28. Nonetheless, this does not necessarily mean that the court will agree with the agency's interpretation of its rule. *Marshall's Towing v. Dep't of State Police,* 339 Or 54, 62–63, 116 P3d 873 (2005) (finding agency's reading of its own rule "inherently illogical").

If the agency has made substantial changes to a proposed order issued by an administrative law judge (ALJ), ORS 183.650 applies, and the standard of review may be more favorable to the petitioner. An agency may make changes to the ALJ's findings of historical fact only if the agency determines that the finding is not supported by clear and convincing evidence in the record. ORS 183.650(3). If the agency does so, the appellate court independently assesses the fact in dispute by conducting a de novo review of the record. ORS 183.650(4).

The standard of review under ORS 183.650(4) applies when the agency changes the ALJ's credibility findings. *See Corcoran*, 197 Or App at 529–530. However, that standard may not apply when the agency makes findings that are in addition to, and not inconsistent with, the ALJ's findings. *See Gienger v. Dep't of State Lands*, 230 Or App 178, 183–184, 214 P3d 75 (2009), *rev. denied*, 348 Or 13 (2010) (assuming without deciding that ORS 183.650(4) applied to additional findings).

Other agency changes to the ALJ's order are not subject to de novo review; however, the agency must identify and explain any such changes in its final order.

ORS 183.650(2). Such changes may provide an opportunity to argue that the agency's final order is not supported by substantial reason.

The petitioner may file a reply brief in administrative law cases. ORAP 5.70. The exception to this rule is appeals from the Land Use Board of Appeals (LUBA); because of the extremely expedited briefing schedule in such cases (*see* ORAP 4.66(1)), no reply brief is allowed. ORAP 5.70(3)(a)(vi). An answering brief on cross-appeal is allowed in LUBA appeals—however, the time for filing such a brief is seven days after the filing of the cross-opening brief. ORAP 4.68(1)(c). No time extensions are allowed. ORAP 4.70(1).

I. (§4.38) Exhaustion and Preservation of Issues for Appeal

Before an appeal of an agency order may be filed, the petitioner must first exhaust any available administrative remedies. *Outdoor Media Dimensions, Inc. v. State*, 331 Or 634, 661, 20 P3d 180 (2001); *see* OREGON ADMINISTRATIVE LAW §14.16 (OSB Legal Pubs 2010). If the agency's procedural rules require that a motion for reconsideration be filed before pursuing an appeal, that procedural step must be followed and reconsideration either denied or deemed denied by the passage of time (generally 60 days) before a petition for judicial review may be filed. *See* §4.34.

In addition, the petitioner must preserve any and all contentions that it intends to raise on appeal by first raising those issues before the agency. *Becklin v. Bd. of Exam'rs for Eng'g & Land Surveying*, 195 Or App 186, 200, 97 P3d 1216 (2004). The attorney should raise such issues at every potential opportunity. In particular, however, the petitioner should avail itself of any opportunity to raise exceptions to the proposed order issued by the administrative law judge, and to any amended proposed order issued by the agency. *Becklin*, 195 Or App at 200. Failure to take advantage of such opportunities may lead to the court's refusal to entertain a meritorious argument on appeal. *BWK, Inc. v. Dep't of Admin. Servs.*, 231 Or App 214, 221, 218 P3d 156, 160 (2009), *rev. denied*, 347 Or 718 (2010).

J. (§4.39) Agency Reconsideration

A unique aspect of agency appeals is the agency's ability to withdraw its order for reconsideration at any time before the case is submitted for oral argument. ORS 183.482(6); *see* OREGON ADMINISTRATIVE LAW §14.23 (OSB Legal Pubs 2010). Such a withdrawal often occurs after the opening brief is filed. The agency must state the reason for the withdrawal (ORS 183.482(6)); in practice,

a statement that the agency is withdrawing the order for reconsideration in light of the contentions made on appeal will suffice. The withdrawal of the order is accomplished by the filing of a notice to that effect. ORAP 4.35(1)(a). The order on reconsideration is due 60 days after withdrawal, although the court may allow additional time. ORAP 4.35(1)(a).

The object of withdrawal of a final order is often the avoidance of attorney fees. If the final order is modified or reversed in the petitioner's favor, the court must allow costs, but may not allow attorney fees to be paid by the agency. ORS 183.482(6); *see* OREGON ADMINISTRATIVE LAW, *supra*, §14.42.

The withdrawal of the agency order suspends the briefing schedule until the order on reconsideration has been filed or the time to do so has passed. ORAP 4.35(2). The agency has 14 days to file an amended record. ORAP 4.35(4)(a)(i), (5). As a matter of practice, the court will allow reasonable extensions of time to file the amended record. *See* ORAP 4.20(2) ("record shall be filed within . . . such further time allowed by the court). If the opening brief had not been filed at the time that the order was withdrawn, and the petitioner desires to proceed on review of the order on reconsideration, the petitioner must file an amended petition for review within the time provided for filing an original petition. ORAP 4.35(4)(a)(i). If the opening brief has been filed, the petitioner must also give notice of his or her intention to file a supplemental opening brief or to stand on the original brief. ORAP 4.35(6). The supplemental brief must be filed 28 days after the amended petition is filed, although additional time may be allowed. ORAP 4.35(6). If the petitioner does not file an amended petition, the judicial review proceeding will be dismissed. ORAP 4.35(4)(c).

If the agency desires to consider additional evidence in conjunction with reconsideration, it must seek leave of the court to do so. ORS 183.482(5). *See* §4.36.

K. (§4.40) Oral Argument in Agency Cases

Unlike most civil appeals, agency cases are allotted only 15 minutes per side for argument. ORAP 6.15(2)(a). If there is more than one petitioner challenging the same agency order, they must share this time; conversely, if there is a respondent in addition to the agency, the time must be shared. If the parties cannot agree to a time-sharing arrangement, the court will split the time evenly. In practice, it is best to confer and agree on the amount of time each party will take. Because the party

going first on the petitioner's or the respondent's side may use or even exhaust time allotted to another petitioner or respondent, consideration should be given to which party will go first.

> PRACTICE TIP: In rare cases, the court may allow additional argument time—up to 30 minutes per side—on motion of the parties. Such requests should be made sparingly, and the motion should emphasize the particular reasons why more time is required.

Questions from the court at oral argument will frequently concern the applicable standard of review and the disposition (remand to the agency, modification of the order, or reversal) if the petitioner should prevail. *See* ORS 183.482(8). The parties should therefore be prepared to address such concerns.

> PRACTICE TIP: Some attorneys regard the time allotted for oral argument as their time, and are resistant or even hostile to questions from the court. Questions from the court explore the strengths and weaknesses of each side's position, and reflect a genuine desire to know what each party's position is. Because administrative law cases often have implications beyond their individual facts, questions are often hypothetical in form. A good appellate attorney prepares for oral argument, but is also prepared to take a different direction or emphasis if asked to do so.

L. (§4.41) Costs and Attorney Fees

Costs are not available to an agency in a case arising under the Oregon Administrative Procedures Act. The availability of costs and attorney fees to a prevailing petitioner in agency cases is governed by ORS 183.497. That statute has a mandatory component, ORS 183.497(1)(b), and a discretionary component, ORS 183.497(1)(a). *See* OREGON ADMINISTRATIVE LAW §14.42 (OSB Legal Pubs 2010). Under the former provision, fees will generally be awarded when an agency acts without a reasonable basis in fact or in law, as when an agency takes an action that is not within its statutory authority. *See, e.g., Kaib's Roving R.Ph. Agency, Inc. v. Empl. Dep't,* 338 Or 433, 111 P3d 739 (2005). A mandatory award may be defeated by an agency showing that its actions were "substantially justified" or that an award of attorney fees would be unjust under the circumstances. ORS 183.497(1)(b).

The court has discretion to award attorney fees in any case in which a petitioner prevails against the agency. In practice, however, such awards are rare.

As the Oregon Supreme Court has stated, "[t]o do so could easily make administrative agencies timorous about pursuing reasonable positions as to what the law is or ought to be." *McKean-Coffman v. Employment Div.*, 314 Or 645, 650, 842 P2d 380 (1992). In determining whether an award of attorney fees is appropriate, the court may consider the factors set forth in ORS 20.075(1).

If the appellate court decides to award fees under either provision of ORS 183.497, the court must consider the factors set forth in ORS 20.075(2). A petition for attorney fees should therefore address those factors. A petition for attorney fees must be filed within 21 days of the appellate decision, and the filing of a petition for reconsideration does not toll the time for seeking fees. ORAP 13.05(5)(a), 13.10; *see* OREGON ADMINISTRATIVE LAW, *supra*, §14.43.

M. (§4.42) Staying Agency Orders

In general, agency orders are not stayed by the filing of a petition for judicial review. ORS 183.482(3); *cf.* ORS 19.330 (filing of a notice of appeal does not automatically stay judgment). For example, orders suspending or revoking a professional license are not stayed during the pendency of an appeal. Although an order imposing a civil penalty is not explicitly stayed by the filing of a petition for judicial review, ORS 183.745(2) provides that the penalty becomes due "10 days after the order imposing the civil penalty becomes final by operation of law or on appeal." Thus, it appears that civil penalties cannot be collected during the pendency of an appeal of the order imposing the penalties. Some final orders cannot be stayed. *See* ORS 676.210 (health care professional license remains suspended or revoked until final determination on appeal).

If the final order may be stayed, the party seeking a stay must first apply to the agency that issued the final order. ORS 183.482(3). The party seeking a stay must demonstrate "[i]rreparable injury" and a "colorable claim of error" in the agency proceeding. If such a showing is made, the agency must grant the stay unless it finds that "substantial public harm will result." ORS 183.482(3)(a)–(b). An agency granting a stay may impose conditions such as time limitations for proceeding on appeal or bonds. ORS 183.482(3)(c).

If the agency denies a motion for stay, the party may seek a stay from the court of appeals. ORS 183.482(3)(d); ORAP 4.30. Once again, the party seeking the stay must show irreparable harm if a stay is not granted and a colorable claim of error on appeal, as well as overcoming any agency finding that substantial

public harm will result if a stay is granted. *See, e.g., Arlington Sch. Dist. No. 3 v. Arlington Educ. Ass'n,* 184 Or App 97, 100, 55 P3d 546 (2002). *See* OREGON ADMINISTRATIVE LAW §14.22 (OSB Legal Pubs 2010).

N. (§4.43) Motions to Determine Jurisdiction and Motions to Transfer

It is not always readily apparent whether an agency order should be appealed to the court of appeals or to a circuit court. In such cases, the petitioner or the respondent may file a motion to determine jurisdiction. Such a motion may be filed at any point during an appeal, ORAP 7.05(1)(c). However, to save time and costs in the resolution of the issues presented, such motions should be filed early in the appellate process, preferably before the record on appeal is filed. Such motions toll the time for filing the record and briefs unless the court has ordered that no further extensions will be allowed. ORAP 7.30(2) (effective January 1, 2011).

Before 2001, cases in which jurisdiction was uncertain were often dual-filed in both circuit court and the court of appeals. These duplicative filings were costly and confusing. In 2001, the legislature adopted ORS 14.165, which allows a timely petition for judicial review filed in the wrong court to be transferred to the court that properly has jurisdiction. If a case is transferred from circuit court to the court of appeals, the petitioner has 10 days in which to pay the appropriate filing fee and file a copy of the order of transfer. ORS 14.165(8).

> PRACTICE TIP: The practice of the court of appeals is to require that the petitioner file a new petition for judicial review with the appropriate caption, and the appeal will not proceed until the petitioner does so.

III. WORKERS' COMPENSATION APPEALS

A. (§4.44) Petition for Judicial Review; Statutory Basis for Jurisdiction

A request for judicial review may be filed within the time limits specified in ORS 656.295 by any party affected by an order of the Workers' Compensation Board. ORS 656.298(1). The board's order is final unless a petition for judicial review is filed in the court of appeals within 30 days after the date of mailing of copies of the order to the parties. ORS 656.295(8). Jurisdiction is lost if a petition is not filed within the 30-day time period. *Southwest Forest Industries v. Anders,* 299 Or 205, 218, 701 P2d 432 (1985); ORS 656.298(5)(b). "Within 10 days after service of a petition for judicial review on a party [to the claim] . . . , such party

may also request judicial review in the same manner." ORS 656.298(4). *See generally* 2 WORKERS' COMPENSATION ch 19 (OSB Legal Pubs 2008). The attorney should be careful to understand that this does not mean there is a 40-day window to file the cross-appeal, but rather a 10-day period after service on a party, then that party can cross-appeal. This means that if service is made on a party on the 30th day after the order issued, that party would have an additional 10 days to cross-appeal and file their own petition for judicial review.

Party is defined as the worker or the employer of the injured worker at the time of the injury, and the insurer, if any, of the employer. ORS 656.005(21). This means that the employer has an independent right to file an appeal even if its insurer chooses not to. Although an attorney may accept service on behalf of a party (as long as they represent that party) the attorney does not have standing to file an appeal on behalf of him- or herself. *Adams v. Transamerica Ins. Group,* 45 Or App 769, 609 P2d 834 (1980).

The attorney must understand an important difference between workers' compensation litigation and all other litigation. Workers' compensation claims frequently have no end. An injured worker has rights to medical care for all conditions related to the worker's injury for the rest of his or her life. ORS 656.245(1). If an insurer denies a claim at the outset, and the claimant challenges that denial and prevails at hearing over that denial, that decision can be appealed. Even if an insurer finds a claim compensable, the insurer's processing of that claim is also subject to litigation that can lead to an appeal. An attorney may need to file an appeal when a small monetary amount or another seemingly trivial matter is at issue. The preclusive effect of litigation on subsequent claims processing can be enormous for either or both sides; an appeal becomes important simply to protect the client's future interests.

1. (§4.45) Is the Board's Order Appealable?

In ORS 656.298, the legislature has provided the authority for any party affected by a Workers' Compensation Board order to request judicial review of that order. *Order* means a final order that "adjudicates a right or imposes a duty." *Beck v. Oregon Steel Mills,* 36 Or App 581, 583, 585 P2d 37 (1978). "A decision which does not either finally deny the claim, or allow it and fix the amount of compensation, is not a final decision." *Mendenhall v. State Acci. Ins. Fund,* 16 Or App 136, 139, 517 P2d 706 (1974). If the order is not final, then the court of

appeals does not have jurisdiction to accept review. *See* 2 WORKERS' COMPENSATION §19.2 (OSB Legal Pubs 2008).

Board orders must contain a statement explaining the rights of the parties under ORS 656.295 and 656.298. Generally speaking, the board provides notice of the parties' right to appeal the case. When the order is not a final order (i.e., there is a remand or some other temporary decision), the statement at the end of the order generally advises the parties that the order is not an appealable order. Nonetheless, it is important for an attorney to review the order carefully. The board may dispose of one part of the claim and remand another part of the claim to the Hearings Division. That order is a final order with regard to the portion that adjudicated the rights of one of the parties. *Price v. SAIF Corp.,* 296 Or 311, 675 P2d 479 (1984).

The court of appeals has jurisdiction under ORS 656.278(4) to decide own-motion cases. An own-motion claim is a claim that has been reopened or the board has refused to reopen more than five years after the claim was accepted as nondisabling or more than five years after the claim was initially closed by notice of closure. *See generally* 2 WORKERS' COMPENSATION, *supra*, ch 22. Own-motion orders are now appealable by any party. Third-party distribution cases entered pursuant to ORS 656.593 are also appealable. *In re Compensation of Schlecht,* 60 Or App 449, 653 P2d 1284 (1982).

The attorney should also be careful with regard to abatement of board orders. If the board abates an order on review and then issues an order on reconsideration, that action extends the appeal time to 30 days from the date of mailing of the order on reconsideration. *See, e.g., Lyday v. Liberty Northwest Ins. Corp.,* 115 Or App 668, 839 P2d 756 (1992); *In the Matter of the Compensation of John W. Wantowski,* WCB No 98-08420, 98-07743, 54 Van Natta 638, 639 (Jun 11, 2002). It is important for the attorney to make sure that the board has actually abated the order, because failure to abate the order does not stay the time within which an appeal must be filed. Generally, a party must file an amended petition for judicial review if the board withdraws an order for purposes of reconsideration after a petition for judicial review of that order has been filed and the board then issues a revised order that is still unsatisfactory to the appealing party. *Haskell Corp. v. Filippi (In re Filippi),* 152 Or App 117, 953 P2d 396 (1998); *cf. Fischer v. State Acci. Ins. Fund Corp.,* 76 Or App 656, 659–660, 711 P2d 162 (1985) (amended petition was not required because the board's order granting

reconsideration did not expressly or implicitly withdraw or modify a previous order); ORS 183.482(6).

2. (§4.46) Frivolous Appeals

The supreme court, in *Westfall v. Rust Int'l,* 314 Or 553, 560, 840 P2d 700 (1992), *superseded by statute as stated in Liberty Northwest Ins. Corp. v. Hughes (In re Hughes),* 197 Or App 553 (2005), defined a frivolous appeal as one in which "every argument made by claimant's lawyer was one that a reasonable lawyer would know was not well grounded in fact, or that a reasonable lawyer would know was not warranted either by existing law or by a reasonable argument for the extension, modification, or reversal of existing law."

In response to the *Westfall* decision, the legislature amended ORS 656.390 to redefine frivolous appeals. The legislature defined *frivolous* to mean "the matter is not supported by substantial evidence or the matter is initiated without reasonable prospect of prevailing." ORS 656.390(2). *See* 2 WORKERS' COMPENSATION §19.3 (OSB Legal Pubs 2008).

Since the change in definition, the court of appeals has found two cases appealed to the court to be frivolous. *Winters v. Woodburn Carcraft Co. (In re Winters),* 142 Or App 182, 920 P2d 1118 (1996); *Liberty Northwest Ins. Corp. v. Hughes (In re Hughes),* 197 Or App 553, 106 P3d 687 (2005). In the *Winters* case, the court of appeals determined an appeal to be frivolous when the petitioner asked the court of appeals to conduct de novo review and argued for reversal of the board's order, but conceded that the board's order was supported by substantial evidence. *Winters,* 142 Or App at 187–188. In *Liberty Northwest Ins. Corp.,* 197 Or App at 557–559, the court determined that the insurer's appeal was frivolous because there was no ambiguity in the administrative rules concerning timely payment of compensation.

3. (§4.47) Department of Consumer and Business Services

The Department of Consumer and Business Services (DCBS) has jurisdiction over matters other than those concerning a workers' compensation claim. ORS 656.704. Matters concerning a claim "are those matters in which a worker's right to receive compensation, or the amount thereof, are directly in issue." ORS 656.704(3)(a). Medical disputes generally—and specifically disputes under ORS 656.245, 656.247, 656.248, 656.260, or 656.372 as well as vocational

disputes under ORS 656.340—are not matters concerning a claim, subject to some limitations. ORS 656.704(3)(a).

ORS 656.704(3)(b) sets forth which medical disputes are matters concerning a claim and which are not, as follows:

> (A) Any dispute that requires a determination of the compensability of the medical condition for which medical services are proposed is a matter concerning a claim.
>
> (B) Any dispute that requires a determination of whether medical services are excessive, inappropriate, ineffectual or in violation of the rules regarding the performance of medical services, or a determination of whether medical services for an accepted condition qualify as compensable medical services among those listed in ORS 656.245(1)(c), is not a matter concerning a claim.
>
> (C) Any dispute that requires a determination of whether a sufficient causal relationship exists between medical services and an accepted claim to establish compensability is a matter concerning a claim.

"A party dissatisfied with an action or order regarding a matter other than a matter concerning a claim" may request a hearing before the director of the DCBS. ORS 656.704(2)(a). The director will refer the request for hearing to the Workers' Compensation Board for a hearing before an administrative law judge (ALJ). ORS 656.704(2)(a). The director will review the ALJ's order and then issue a final order that is subject to judicial review as provided by ORS 183.480–183.497. ORS 656.704(2)(a). The director must prescribe classes of orders that are "final, appealable orders and those orders that are preliminary orders subject to revision by the director." ORS 656.704(2)(b).

Since 2008, the director has determined that all ALJ orders are "proposed and final orders," and that a party must first seek director review of a proposed and final order before petitioning for judicial review under ORS 183.482. *See* OAR 436-001-0246. An order becomes final, and therefore appealable, 30 days after issuance if no party files a written exception. Once the order becomes final, a party has 60 days to petition for judicial review.

If exceptions are filed, then a response to that filing can be filed within 20 days of the date the exceptions were filed; a written reply to the response can be filed up to 10 days after the response filing date. OAR 436-001-0246(2). If exceptions are timely filed, then the director may issue a final order, an amended

proposed and final order, request the ALJ to hold a further hearing, or remand the matter for further administrative actions. OAR 436-001-0246(3). The attorney is urged to be careful at this point. The director can issue a final order but can also issue a proposed and final order. The attorney should ensure that he or she has a final order. Once the attorney has a final order, then the parties have 60 days to petition for judicial review.

The attorney should carefully review the order to determine whether the order is a final appealable order or whether it is an order subject to director revision. Once the director or the director's designate issues a final order, that order can then be appealed to the court of appeals pursuant to ORS 183.480–183.497. Broadly speaking, an attorney would have 60 days within which to file a petition for review.

B. (§4.48) Standard of Review

As a consequence of legislative changes in 1987, the court's standard of review changed from de novo review to substantial evidence for factual matters. "[R]eview by the Court of Appeals shall be on the entire record forwarded by the [Workers' Compensation] board. Review shall be as provided in ORS 183.482 (7) and (8)." ORS 656.298(7). Substantial-evidence review limits the court's review to errors of law, abuse of agency discretion, or inconsistency with an agency rule, violation of a constitutional or statutory provision, or lack of substantial evidence to support the board's order. The court has the ability, depending on the circumstances of the case, to affirm, reverse, set aside, or modify the order, or remand to the board for further action. ORS 183.482(8). *See* 2 WORKERS' COMPENSATION §§19.10–19.13 (OSB Legal Pubs 2008). In *Armstrong v. Asten-Hill Co.*, 90 Or App 200, 206, 752 P2d 312 (1988), the court construed the new law as follows:

> If an agency's finding is reasonable, keeping in mind the evidence against the finding as well as the evidence supporting it, there is substantial evidence. . . For instance, and in a context which is likely frequently to occur in workers' compensation cases, if there are doctors on both sides of a medical issue, whichever way the Board finds the facts will probably have substantial evidentiary support. [The appellate court] would not need to choose sides. The difference between the "any evidence" rule and the substantial evidence test in ORS 183.482(8)(c) will be decisive only when the credible evidence apparently

> weighs overwhelmingly in favor of one finding and the Board finds the other without giving a persuasive explanation.

ORS 183.482(8)(c) provides, "[s]ubstantial evidence exists to support a finding of fact when the record, viewed as a whole, would permit a reasonable person to make that finding." The court in *Garcia v. Boise Cascade Corp.*, 309 Or 292, 295, 787 P2d 884 (1990), held that the substantial-evidence test is whether substantial evidence exists to support the board's decision, not whether substantial evidence exists to support an opposite conclusion. The court of appeals cannot substitute its view of the evidence for that of the board. The court of appeals consistently affirms board decisions regarding competing expert opinions when there is substantial evidence to support those findings. *See, e.g., Dillon v. Whirlpool Corp. (In re Dillon)*, 172 Or App 484, 489, 19 P3d 951 (2001).

The court will, nonetheless, review the board's conclusions to ensure that those conclusions are supported by "substantial reason." The court has held that it "'must be able to know what the Board found as facts and why it believes that its findings led to the conclusions that it reached. That requires a reasoned opinion based on explicit findings of fact.'" *Christman v. SAIF Corp. (In re Christman)*, 181 Or App 191, 45 P3d 946 (2002) (quoting *Armstrong*, 90 Or App at 205).

In *Cummings v. SAIF Corp. (In re Cummings)*, 197 Or App 312, 105 P3d 875 (2005), the court held that the board's reliance on a doctor's opinion lacked substantial reasoning when that doctor opined that the major cause of a need for treatment was a preexisting condition and the doctor had not reviewed any radiographic films that documented the extent of the preexisting condition.

Nonetheless, the court will not analyze evidence to see which medical report is most persuasive, as had been the standard before 1987. *Compare Bluemer v. Southland Industries (In re Bluemer)*, 221 Or App 252, 190 P2d 418 (2008), with *Somers v. SAIF Corp.*, 77 Or App 259, 712 P2d 179 (1986).

C. (§4.49) Workers' Compensation Board vs. Department of Consumer and Business Services

The attorney should be very careful to make sure which agency has issued the order being appealed. Confusion is certainly possible given the fact that the Workers' Compensation Board's (WCB's) administrative law judges (ALJs) will issue orders on behalf of the director of the Department of Consumer and Business Services (DCBS). The orders from an ALJ will provide appeal rights that should

correctly describe the steps that need to be taken to successfully request review of the order.

That said, there are some differences that the attorney should be aware of. The WCB orders provide that a request for review must be made within 30 days of the issuance (mailing) of the order. *See* §4.44; 2 WORKERS' COMPENSATION §19.1 (OSB Legal Pubs 2008). Orders issued by the director of the DCBS provide for 30 days to file exceptions. If the initial 30 days pass without exceptions being filed, then the order becomes final and the attorney has another 30 days within which to request review at the court of appeals. *See* §4.47.

The WCB prepares and delivers records in a different sequence than the DCBS. Pursuant to ORS 656.298(6), the WCB must forward the original copy of the transcribed record prepared under ORS 656.295, all exhibits, copies of all decisions and orders entered in the hearing and review proceedings, within 30 days after service of the petition for judicial review on the WCB, to the clerk of the court of appeals. ORS 656.298(6). However, under ORS 183.482(4), the DCBS must "transmit to the reviewing court the original or a certified copy of the entire record of the proceeding under review" within 30 days after service of the petition for judicial review, "or within such further time as the court may allow." Note that this record may be shortened by stipulation of all parties to the review proceeding. ORS 183.482(4).

Finally, WCB orders are based on a de novo review of the file. The ALJ reviews the case de novo as does the WCB. The scope of an ALJ's review of a DCBS order varies depending on the issue reviewed. In medical service and medical treatment disputes under ORS 656.245, 656.247(3)(a), and 656.327, as well as managed-care disputes under ORS 656.260(16), the ALJ is limited to modifying the director's order only if it is not supported by substantial evidence in the record or reflects an error of law. OAR 436-001-0225.

> In vocational assistance disputes under ORS 656.340, new evidence may be admitted and considered. Under ORS 656.283(2)[(c)], an administrative law judge may modify the director's order only if it:
>
> (a) Violates a statute or rule;
>
> (b) Exceeds the director's statutory authority;
>
> (c) Was made upon unlawful procedure; or

(d) Was characterized by abuse of discretion or clearly unwarranted exercise of discretion.

OAR 436-001-0225(3).

All other departmental orders are reviewed by the judge de novo. As discussed above, the orders issued by an ALJ on referral from the DCBS are proposed and final orders whereas the WCB orders are always final orders.

IV. JUVENILE LAW APPEALS

A. (§4.50) Introduction

For a comprehensive review of appeals in juvenile cases, see Judge Michael C. Livingston's excellent chapter (chapter 9) in JUVENILE LAW (Oregon CLE 2007).

B. Appealable Judgments

1. (§4.51) Generally

Appeals from juvenile court judgments to the court of appeals are governed by ORS 419A.200(1).

NOTE: For interlocutory appeals by the state of some pretrial rulings in delinquency cases, see ORS 419A.208.

An appeal may be taken from a juvenile court judgment that adversely affects the rights or duties of the person or entity taking the appeal. *See generally* JUVENILE LAW §9.5 (Oregon CLE 2007).

2. (§4.52) *Judgment* Defined

Prior to legislative changes made in 2001, appeals were permitted from juvenile court orders. Now appeals must be from "judgments," which are enumerated in ORS 419A.205(1):

(1) For the purpose of being appealed, the following are judgments:

(a) A judgment finding a child or youth to be within the jurisdiction of the court;

(b) A judgment disposing of a petition including, but not limited to, a disposition under ORS 419B.325 or 419C.411;

(c) Any final disposition of a petition; and

> (d) A final order adversely affecting the rights or duties of a party and made in a proceeding after judgment including, but not limited to, a final order under ORS 419B.449 or 419B.476.

This change means that persons dissatisfied with a jurisdictional order—the assertion of court jurisdiction over a child as dependent or delinquent—must appeal from that judgment and may not wait for the disposition to appeal. *State ex rel. Juvenile Dep't v. J.H.-O. (In re J.H.-O.)*, 223 Or App 412, 415–418, 196 P3d 36 (2008). Under previous law, persons seeking relief from a jurisdictional order had to wait for the entry of the dispositional order to appeal. *State ex rel. Juvenile Dep't of Washington County v. Boyce,* 99 Or App 43, 45, 781 P2d 369 (1989).

3. (§4.53) Default Judgments

In *State ex rel. Juvenile Dept. of Multnomah County v. Jenkins (In re Jenkins)*, 209 Or App 637, 149 P3d 324 (2006), the court of appeals held that ORS 19.245 (appeal of default judgments) applies to the appeal from juvenile proceedings and reasoned that the judgment from which a father sought to appeal, a default judgment terminating his parental rights, was one given for "want of an answer" and therefore not appealable. The court suggested that the father's remedy was to move to set aside the default judgment (*Jenkins*, 209 Or App at 646 n 4) and in a later case, *State ex rel. Dep't Human Servs. v. G.R. (In re T.G.R.)*, 224 Or App 133, 197 P3d 61 (2008), said that ORS 419B.923(1)(b) authorizes the court to set aside a judgment for excusable neglect. The court of appeals reviewed the legislative history of ORS 419B.923(1) and concluded that

> the legislature, in enacting the statute's "excusable neglect" provision, was especially concerned with "horror stor[ies]" of parents having their rights terminated in their absence when, because of good faith mistakes, they went to the wrong courtroom or appeared at the wrong time. . . . Given that history, we have no doubt that the legislature intended "excusable neglect" in ORS 419B.923(1)(b) to encompass a parent's reasonable, good faith mistake as to the time or place of a dependency proceeding.

G.R. (In re T.G.R.), 224 Or App at 141–142 (internal citations omitted).

When there is excusable neglect, the factors the court considers in determining whether to exercise its discretion are:

> (1) the nature and magnitude of the interest that was adjudicated and "forfeited" in the movant's absence; (2) the movant's promptness in attempting to rectify his or her nonappearance; (3) the extent to which the interests of other parties and the

> court would be prejudiced if the motion were granted, including because of intervening detrimental reliance on the judgment; and (4) whether the movant can present at least a colorable defense on the merits.

G.R. (In re T.G.R.), 224 Or App at 143.

4. (§4.54) Judgment Signed by a Judge

The Oregon Supreme Court recently held that a "judgment" of the juvenile court must be one of the "judgments" listed in ORS 419A.205(1) and it must be signed by a judge. *State ex rel. Juvenile Dep't v. J.W. (In re J.W.),* 345 Or 292, 297–299, 193 P3d 20 (2008).

Note: The types of judgments that may be appealed pursuant to ORS 419A.205(1) are:

> (a) A judgment finding a child or youth to be within the jurisdiction of the court;
>
> (b) A judgment disposing of a petition including, but not limited to, a disposition under ORS 419B.325 or 419C.411;
>
> (c) Any final disposition of a petition; and
>
> (d) A final order adversely affecting the rights or duties of a party and made in a proceeding after judgment including, but not limited to, a final order under ORS 419B.449 or 419B.476.

After reviewing both the general and juvenile appeal statutes, the court held that the referee's orders or judgments, even if included in the list of appealable judgments, are not appealable. *J.W. (In re J.W.),* 345 Or at 299. However, the court also commented that it might be "worthwhile for the bench and bar to review forms used in juvenile dependency proceedings to consider whether they should be modified in light of current statutory requirements." *J.W. (In re J.W.),* 345 Or at 299 n 8.

> PRACTICE TIP: In some counties referees hear juvenile court cases and adjudicate petitions, enter dispositional judgments, and otherwise finally dispose of matters. Since these judgments are not appealable, the cautious attorney may find it necessary to request a rehearing of the matter before a judge, pursuant to ORS 419A.150(7). In Multnomah County, where a large number of juvenile cases are heard by referees, the court has instituted a practice of having the referees hold judgments for 10 days, until the statutory

rehearing provisions of ORS 419A.150 have run, and then signing the judgments as judges pro tem.

5. (§4.55) Judgment Adversely Affecting the Party Appealing

Although it is clear that a judgment establishing jurisdiction over a child or youth, or one terminating a parent's rights, has an adverse affect on the aggrieved party, some of the other judgments listed in ORS 419A.205(1) may or may not satisfy the "adversely affected" prong of appealability. *See* ORS 419A.200(1). Because juvenile court proceedings are, by design, continuous, with multiple review hearings following the initial establishment of jurisdiction, the question often arises whether an order that merely continues the status quo adversely impacts a party. To meet this threshold test, the judgment must effect a substantial change in the nature or degree of the conditions established by a previous order of the juvenile court or it must affect the rights or duties of a person by ruling on a motion. *State ex rel. Juvenile Dep't v. Ortiz (In re Ortiz),* 187 Or App 116, 124, 125–126, 65 P3d 1118 (2003); *State ex rel. Juvenile Dep't of Multnomah County v. L.V. (In re A.V.),* 219 Or App 207, 217, 182 P3d 866, 871 (2008).

C. (§4.56) Time to Appeal

A notice of appeal must be filed within 30 days of the date of entry of the juvenile court's judgment. ORS 419A.200(3)(c). It is the trial lawyer's responsibility to file the notice of appeal if requested to do so by the party. ORS 419A.200(4).

> PRACTICE TIP: A court-appointed attorney may discharge this responsibility by following procedures "established by the office of public defense services for appeals of juvenile court judgments." ORS 419A.200(4). The Office of Public Defense Services (OPDS) has a form online for court-appointed attorneys representing parents in juvenile cases, available at www.ojd.state.or.us/web/opds.nsf/Juvenile Dependency Appellate Referral?OpenForm. For attorneys representing children in dependency or termination cases, or youth in delinquency cases, who do not wish to handle the appeal, there is no similar online resource. However, indigent defense contractors may contact the OPDS analyst for their county for assistance in locating appellate counsel.

1. (§4.57) Late Appeals

A limited exception to the 30-day time limit of ORS 419A.200(3)(c) for filing the notice of appeal is provided in ORS 419A.200(5). "Upon motion of a person, other than the state, entitled to appeal under [ORS 419A.200(1)], the appellate court shall grant the person leave to file a notice of appeal after the [30-day time limit]," if the person:

(1) Files "[t]he request for leave to file a notice of appeal after [the 30-day time limit] . . . no later than 90 days after entry of the judgment being appealed," and includes with the request for leave "the notice of appeal sought to be filed";

(2) Demonstrates "a colorable claim of error in the proceeding from which the appeal is taken"; and

(3) Demonstrates "that the failure to file a timely notice of appeal [*i.e.*, within the 30-day period] is not personally attributable to the person." ORS 419A.200(5)(a), (c). "[T]he legislature intended the phrase 'colorable claim of error' as used in ORS 419A.200(5)(a)(A) to describe a claim that a party reasonably may assert under current law and that is plausible given the facts [in the record] and the current law (or a reasonable extension or modification of current law)." *State ex rel. Dep't of Human Servs. v. Rardin (In re Rardin),* 338 Or 399, 408, 110 P3d 580 (2005).

In *State ex rel. Juvenile Dep't of Multnomah County v. M.U. (In re J.H.),* 229 Or App 35, 210 P3d 254 (2009), a mother appealed from a jurisdiction judgment. The court dismissed the appeal on its own motion, holding that the mother had not filed her notice of appeal within 30 days of entry of the judgment, as required by ORS 419A.200(3), and had failed to file a motion for leave to file a late appeal within 90 days as allowed by ORS 419A.200(5).

The mother's attorney had mailed the notice of appeal on the 30th day but failed to comply with ORS 19.260(1) and ORAP 1.35(1)(c), which required acceptable proof of the date of mailing from the post office. *M.U. (In re J.H.),* 229 Or App at 38. The mother thus argued that the failure to properly file a notice of appeal constituted inadequate assistance of counsel, and that she was entitled to a delayed appeal under a line of cases beginning with *State ex rel. Juvenile Dep't of Multnomah County v. Geist*, 310 Or 176, 796 P2d 1193 (1990), and *State ex rel. State Office for Servs. to Children & Families v. Hammons (In re Hammons),* 169

Or App 589, 10 P3d 310 (2000). *M.U. (In re J.H.)*, 229 Or App at 37, 39. Under these cases, parents could raise the issue of inadequate assistance of both trial and appellate counsel. When the inadequacy alleged was the failure to timely file the notice of appeal, a late notice could be filed. *Hammons*, 169 Or App at 594. Subsequent to these decisions, however, the legislature created a remedy in ORS 419A.200(5). The court of appeals held that statute is

> the procedure the legislature has made available to vindicate the right to adequate counsel in the filing of a notice of appeal of a juvenile court judgment. The fact that mother did not timely invoke, and, thus, qualify for, that remedy does not nullify its existence and allow us to, instead, craft, under the rationale of *Hammons*, a more extensive remedy, circumventing the legislatively prescribed restrictions.

M.U. (In re J.H.), 229 Or App at 44.

However, the court specifically expressed no opinion about whether the state or federal constitutions compelled a different result. *M.U. (In re J.H.)*, 229 Or App at 44 n 9.

2. (§4.58) Expedited Process in Dependency and Termination of Parental Rights Cases

The appellate timelines in dependency and termination of parental rights cases are expedited. The appellant's brief and excerpt are due 28 days from the settlement of the transcript and the respondent's brief is due 28 days from the date of the opening brief. ORAP 10.15(6). Each side is permitted only one extension of no more than 14 days. ORAP 10.15(6)(d). Oral argument is set for 56 days from the filing of the opening brief. ORAP 10.15(7).

> PRACTICE TIP: Although the appellate courts are committed to expediting juvenile dependency and termination of parental rights cases, 14-day extensions to file briefs, permitted by ORAP 10.15(6)(d), are routinely granted. It is, however, rare for a party to request or the court to grant anything longer. As a practical matter, if there is a delay is it more likely to come with the preparation and filing of the transcript. Because the cases are calendared within 56 days of the filing of the opening brief if both parties take an additional 14 days for briefing, argument is often scheduled within days of the appellant's receipt of the respondent's brief. Thus, close attention

to calendaring and budgeting time for oral argument preparation are extremely important.

D. (§4.59) Record on Appeal

For purposes of appeal, the record may include only the transcribed or other record of the juvenile court proceedings at issue, materials received in evidence or judicially noticed, offers of proof, and the juvenile court's file maintained according to ORS 419A.255(1). *See* ORS 19.365(2); *State ex rel. Dept. of Human Servs. v. Lewis (In re Lewis)*, 193 Or App 264, 269–270, 89 P3d 1219 (2004); *see also* JUVENILE LAW §9.12 (Oregon CLE 2007). In several recent cases the court of appeals has been critical of the weakness of the record. The court's comments may indicate a growing frustration about appeals in cases when there is virtually no factual record.

In *State ex rel. Juvenile Dep't of Multnomah County v. L.V. (In re A.V.),* 219 Or App 207, 216–219, 182 P3d 866 (2008), the court of appeals reversed the trial court's finding that a father could not currently parent the child, finding that the record contained only "unsupported assertions" that he could not do so. In another appeal from a permanency hearing, *State ex rel. Juvenile Dep't v. K.L. (In re R.J.T.),* 223 Or App 35, 38 n 2, 194 P3d 845 (2008), the court referred to the "limited record" and noted:

The record consists of a DHS 12/14 Month Permanency Review Report and of unsworn colloquies between the court, on the one hand, and mother, mother's attorney, the children's attorney, the DHS representative, and others present in the courtroom, on the other. ORS 419B.325 and ORS 419B.476(1) make admissible reports, testimony, and other material related to the children's history and prognosis without regard to their competency or relevancy under the rules of evidence, but they do not provide for unsworn testimony. It is not clear that all of the evidence would be admissible under these statutes even if it were sworn. However, because no party objects to our using the existing record in deciding this appeal, we do not consider the issue further.

PRACTICE TIP: Proper designation of the record in these cases can be tricky, and particularly so because many times the notice of appeal is filed by a trial attorney with little experience in appellate matters. ORAP 10.15(3)(c) limits the record at various stages of a juvenile case to the proceeding itself. The appellant may move to include as part of the record on

appeal the transcript of an earlier hearing or exhibits offered at the earlier hearing only if it is shown that the trial judge considered them. Inexperienced attorneys can run afoul of this rule by designating too many proceedings. On the other hand, because there are frequent postdispositional hearings, some of which are discrete proceedings and others of which may be the continuation of a proceeding begun on an earlier date, the attorney must be vigilant to include all of the relevant proceedings.

E. (§4.60) Confidentiality of Appellate Records in Juvenile Cases

In an order issued on December 24, 2008 (Hamblen case), Chief Judge Brewer—in a juvenile dependency case on appeal—interpreted ORS 419A.255, the juvenile court confidentiality statute, and concluded that the statute does not bar the court of appeals from disclosing its own orders and the filings of parties on appeal in juvenile cases. The court thus ultimately disclosed the requested records to *The Oregonian*. (Chief judge order is unpublished and not verified by publisher.) Following that ruling, the legislature amended ORS 419A.200 to make it clear that when the record on appeal has been transmitted from the juvenile court to the court to which an appeal has been taken, the record is "subject to the same limitations on inspection, copying and disclosure of records, reports and materials as those set forth under ORS 419A.255 and 419A.257." ORS 419A.200(10)(c). *See* Senate Bill 270A, Staff Measure Summary, House Committee on Judiciary (available at www.leg.state.or.us/comm/sms/SMS09Frameset.html).

F. (§4.61) Inadequate Assistance of Counsel

The right to adequate assistance of counsel for parents in termination of parental rights cases and to review of an attorney's adequacy on direct appeal was established in *State ex rel. Juvenile Dep't of Multnomah County v. Geist,* 310 Or 176, 796 P2d 1193 (1990). In *State ex rel. Juvenile Dep't of Clackamas County v. Austin*, 106 Or App 628, 633, 810 P2d 389 (1991), the court extended the *Geist* holding to dependency jurisdiction appeals, stating:

> The possible deprivation for parents in wardship cases is so drastic that they have a similar need for representation as do parents facing termination of their rights to their children. *See State ex rel Juv. Dept. v. Grannis*, 67 Or App 565, 680 P2d 660 (1984). We conclude that direct review of appointed counsel's performance is available in this type of proceeding.

When both inadequacy of counsel and prejudice are shown, as they were in two termination of parental rights cases involving, respectively, an attorney's failure to review any state records or to prepare for trial in any way, and an attorney's failure to make arrangements for a father to be present at trial and failure to take the court up on its offer of telephonic testimony or to keep the record open, the court of appeals reversed and remanded for new trials. *State ex rel. State Office for Servs. to Children & Families v. Rogers (In re Eldrige)*, 162 Or App 437, 986 P2d 726 (1999); *State ex rel. State Office for Servs. to Children & Families v. Thomas (In re Stephens)*, 170 Or App 383, 12 P3d 537 (2000).

G. (§4.62) De Novo Review

Until the amendment of ORS 419A.200(6) during the 2009 regular legislative session (eliminating subsection (b)), juvenile court factual findings were reviewed de novo. Cases in which the notice of appeal was filed before June 4, 2009, will still be reviewed under that standard. *State ex rel. Juvenile Dep't of Wash. County v. L.B. (In re A.B.)*, 233 Or App 360, 365 & n 1, 226 P3d 66 (2010).

For those cases filed after June 4, 2009, and for which the appellant wishes to have the court review the case de novo, the court has approved amendments to ORAP 5.40 and 5.45, setting forth some of the considerations that may apply. These amendments became effective on January 1, 2011.

H. (§4.63) Mootness

Because the dependency statutes contemplate multiple hearings before permanency is achieved, subsequent review hearings in a juvenile dependency case do not necessarily render an appeal from a permanency hearing judgment moot. The relevant inquiry is whether the judgment from which a parent appeals continues to "have some practical effect on the rights of the parties." *Barcik v. Kubiaczyk*, 321 Or 174, 182, 895 P2d 765 (1995) (internal quotation marks omitted). *See* JUVENILE LAW §9.15 (Oregon CLE 2007).

I. (§4.64) Settlement Program

Juvenile dependency and termination of parental rights cases may be referred to the appellate settlement conference, which is outlined in ORAP 15.05. *See* chapter 9 (Mediation at the Appellate Level).

V. DOMESTIC RELATIONS APPEALS

A. Standards of Review

1. (§4.65) De Novo

Domestic relations cases are cases in equity, which the court of appeals historically has reviewed de novo. *See* 3 FAMILY LAW §19.4 (Oregon CLE 2002 & Supp 2008). In *Kunze & Kunze*, 337 Or 122, 92 P3d 100 (2004), the supreme court noted that even on de novo review, "[t]he trial court's ultimate determination as to what property division is 'just and proper in all the circumstances' is a matter of discretion." *Kunze*, 337 Or at 136 (quoting ORS 107.105(1)(f)). Thus, while factual findings are reviewed de novo, the award itself—that is, the application of law to facts—is reviewed for abuse of discretion. *See Olson & Olson*, 218 Or App 1, 14–15, 178 P3d 272 (2008); FAMILY LAW, *supra*, §19.5.

> PRACTICE TIP: The supreme court may choose whether or not to exercise de novo review. *See* ORS 19.415(4).

2. Substantial Evidence and Error of Law

a. (§4.66) Error of Law

In domestic relations cases, as in any other case, the appellate court reviews legal questions for errors of law. *Fedorov & Fedorov*, 228 Or App 50, 60–61, 206 P3d 1124 (2009).

b. (§4.67) 2009 Amendments to ORS 19.415

The 2009 Legislature amended ORS 19.415(3) to make de novo review discretionary with the court of appeals in most equity cases:

> Upon an appeal in an equitable action or proceeding other than an appeal from a judgment in a proceeding for the termination of parental rights, the Court of Appeals, acting in its sole discretion, *may try the cause anew upon the record or make one or more factual findings anew upon the record*. [Emphasis added.]

In response, the Oregon Supreme Court adopted an amendment to ORAP 5.40, which took effect on January 1, 2011, that required appellants to show what factual findings should be subject to de novo review and why, and stated in general terms that it would exercise its power of de novo review "only in exceptional cases" and that such requests would be disfavored. ORAP 5.40(8)(a)–(c). The court provided

a nonexclusive list of the types of considerations that might lead to de novo review in a particular case. ORAP 5.40(8)(d).

> PRACTICE TIP: The wording of ORS 19.415 suggests that the supreme court, in order to conduct de novo review in a case in which the court of appeals did not, must first find that the court of appeals' refusal was an abuse of its discretion to decide whether the case merited de novo review.

Cases and issues not reviewed de novo are reviewed as in any other legal case, that is, for substantial evidence and errors of law. *See* ORS 19.415(1).

3. (§4.68) Abuse of Discretion

"When a trial court makes a discretionary decision, the record must reflect a proper exercise of that discretion. . . . Although the court's explanation need not be lengthy or complex, it must comport with the applicable legal framework and describe the basic reasons for the decision." *Olson & Olson*, 218 Or App 1, 15, 178 P3d 272 (2008) (citations omitted). "In order to earn the measure of deference to which discretionary decisions are entitled on appeal, a trial court's [decision] must reflect the exercise of discretion under the correct methodology, and it must lie within the range of legally permissible outcomes." *Olson*, 218 Or App at 16.

B. (§4.69) Designating the Record

For the court to conduct de novo review, the entire record must be designated and produced. *See* 3 FAMILY LAW §19.7 (Oregon CLE 2002 & Supp 2008).

C. (§4.70) Staying the Judgment Below

Filing an appeal does not automatically stay a judgment in a domestic relations case. The provisions of ORS 19.355 govern stays in domestic relations cases. This topic is explored in more depth in 3 FAMILY LAW §§19.15–19.18 (Oregon CLE 2002 & Supp 2008).

D. (§4.71) Temporary Relief Pending Appeal

The trial court has discretion to provide for temporary relief pending appeal. This decision can be reviewed by filing a motion in the court of appeals. ORS 107.105(4). *See* 3 FAMILY LAW §19.19 (Oregon CLE 2002 & Supp 2008).

E. (§4.72) Appeals Regarding Attorney Fees

Trial court decisions on attorney fees, costs, and disbursements may be appealed like any other judgment. ORS 20.220(1). The appellate court will review a trial-court decision on attorney fees for abuse of discretion. ORS 20.075(3). *See* 3 FAMILY LAW §19.9 (Oregon CLE 2002 & Supp 2008).

FORM

Form 4-1 Notice of Appeal (NOAP) Due Date Worksheet

Download MS Word

NOAP DUE DATE WORKSHEET

Motion for New Trial and Motion in Arrest of Judgment

➤ Judgment entered: _____

➤ Motion for New Trial or Motion in Arrest of Judgment Filed:

_____

➤ Was the motion filed within 10 days of the judgment entry date?

Yes _____ (go to B) No _____ (go to A)

A. Untimely Motions: A motion for new trial or arrest of judgment must be filed no later than 10 days after the judgment was entered. *State v. Starr*, 210 Or App 409, 412, 150 P3d 1072 (2007); ORS 136.500, 136.535; ORCP 64 F(1).

When the motion is untimely, use the normal NOAP due date (unless the trial court allowed the untimely filing (if so, go to B)).

Judgment entered: _____ + 30 days = _____ (NOAP due date).

B. Timely Motions: Motion was filed no later than 10 days after judgment was entered *or* trial judge allowed late motion. ORS 136.500, 136.535; ORCP 64 F(1).

1. Motion for New Trial

a. If the court fails to enter a written order on the motion, the motion is deemed denied 55 days after entry of the judgment. ORCP 64 F(1). The NOAP is due 30 days thereafter. ORS 138.071(2)(b).

Motion deemed denied:

Judgment entered: _____ + 55 days + 30 days = ____ (NOAP due).

b. If the court timely enters the order denying the motion (i.e., within 55 days of judgment entry date), the NOAP is due within 30 days of the order entry date. ORS 138.071(2)(a).

Motion timely denied:

Order denying entered: _____ + 30 days = _____ (NOAP due).

Note: If an attorney refers a case to this office before the trial court rules on the motion, remind the attorney that should the court allow the motion, the written order *must be entered* within 55 days of the judgment entry date. If the order allowing the new trial is not timely entered, it will be deemed denied notwithstanding the court's oral or letter ruling allowing the motion.

2. Motion in Arrest of Judgment: A motion in arrest of judgment can only be determined by a *written* order. *Starr*, 210 Or App at 411–412.

Order denying entered: _____ + 30 days = _____ (NOAP due).

Note: If an attorney refers a case to this office before the trial court rules on the motion, please inform the trial attorney that we will not take the case at that time, but to contact us immediately after the trial court issues its written ruling.

Worksheet completed by: _____ Date: _____

COMMENT: *See* §4.12.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Chapter 5: ISSUE SELECTION

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I. (§5.1) INTRODUCTION

The topic of issue selection is quite broad. An appeal is merely a vehicle used to present to a reviewing court an issue arising from a proceeding in a lower tribunal, which the appellant contends justifies changing the result of that proceeding. Thus the appellant's foremost responsibility is to present a meritorious issue; that is, an issue that does in fact entitle the appellant to the relief sought. However, this chapter is intended to aid the appellate attorney in identifying issues and deciding whether to raise a particular issue for reasons largely removed from the issue's merits.

With that goal, §§5.2–5.3 deal with defining *issue* and differentiating issues from similar appellate concepts. Sections 5.4–5.9 explore how the array of issues available to select from in any particular case depends on the context of the lower court's proceeding and the nature of the adverse rulings made therein. Sections 5.10–5.14 recognize some practical considerations to take into account when deciding whether to raise a particular issue on appeal. The bulk of the chapter, §§5.15–5.33, highlights the two most important factors to consider when deciding whether to raise an issue: preservation and prejudice. An appellate attorney quickly learns that, no matter an issue's merits, disregard of preservation or prejudice surely leads to the denial of relief on appeal. Section 5.34 concludes the chapter with a suggested approach to evaluating issues in general.

A. (§5.2) The Appellate Issue

The leading legal dictionary defines *issue* as "[a] point in dispute between two or more parties." BLACK'S LAW DICTIONARY 907 (9th ed 2009). The dictionary further defines the term as "'a single, certain, and material point arising out of the allegations and contentions of the parties; it is matter affirmed on one side and denied on the other.'" BLACK'S LAW DICTIONARY, *supra* (quoting 35A CJS, *Federal Civil Procedure* §357 (1960)). An appeal is basically a litigant's allegation to a superior court that correction of an inferior court's error is warranted. *See, e.g.*, *Rauda v. Oregon Roses, Inc.*, 329 Or 265, 270, 986 P2d 1157 (1999) ("'[t]he

purpose of an appeal is to bring up for review an erroneous action of the trial court'" (quoting *Twitchell v. Risley*, 56 Or 226, 228, 107 P 459 (1910))). It follows that an issue is the point of dispute with the respondent on which the appellant alleges reversible error.

But much litigation on appeal focuses on what point of dispute was in fact raised at trial, and how it does or does not relate to the point asserted on appeal. The point of dispute can often be described with varying specificity. For example, the statement that the issue in a case is whether a motorist was lawfully stopped may be an accurate statement, as far as it goes. But a more complete and effective articulation may be: The issue is whether a police officer's belief that he had probable cause to stop a motorist for failing to display license plates on the front of the vehicle in violation of ORS 803.540(1)(b) is objectively reasonable when the officer sees a registration plate propped on the dashboard, inside the windshield. *State v. Nguyen*, 223 Or App 286, 289, 196 P3d 40 (2008).

Consequently, how generally or narrowly a party frames an issue throughout a case is a matter of significance and should be thoughtfully considered. Presenting an issue to the trial court with too broad a brush risks a ruling that a party failed to preserve a particular issue for appeal. Conversely, presenting an overly narrow issue when a broader statement would capture related issues on the same point may bar an appellant from advancing arguments that support the same assignment of error but hinge on a different issue. *See generally* §5.15 (preservation). For the same reasons, a respondent must not feel obliged to accept unquestioningly that the issue the appellant identified corresponds to the issue advanced before the lower court.

B. (§5.3) Issues Distinguished from Rulings, Assignments of Error, and Arguments

It is useful to differentiate between *issue* and other related terms. *Assignment of error*, for example, is a term of art used to identify the lower court ruling that the appellant contends was erroneous. *See* ORAP 5.45(3) ("Each assignment of error shall identify precisely the legal, procedural, factual, or other ruling that is being challenged."). Thus, one may assign error to the trial court's denial of a defendant's motion to suppress evidence obtained through a search of his or her motel room. *See State v. Morgan*, 230 Or App 395, 397, 215 P3d 120 (2009). But the trial court's denial of the motion to suppress would not be the pertinent issue; it

is merely the court's ruling—the outcome of the trial court's resolution of the issue. The issues, rather (and there may be several), could be whether the police officer's observations gave him or her probable cause to arrest the occupants of the motel room and whether exigent circumstances justified police in entering the motel room to arrest those occupants. *See Morgan*, 230 Or App at 397. Additionally, several assignments of error may reduce to a single issue. For example, the single issue that a privately employed uniformed guard was not a "corrections officer" for purposes of the crime of assaulting a public safety officer can be relied on to assign error to the trial court's (1) denial of a motion for judgment of acquittal, (2) exclusion of proffered evidence, and (3) refusal to give a proposed jury instruction. *See State v. Tate*, 223 Or App 636, 640, 196 P3d 1033 (2008), *aff'd,* 347 Or 318 (2009).

Furthermore, for every issue the appellant may summon multiple arguments that support its resolution in his or her favor. *State v. McCullough*, 347 Or 350, 356–363, 220 P3d 1182 (2009) (rejecting the defendant's arguments that assisting his juvenile son with avoiding a probation violation hearing did not constitute hindering prosecution under ORS 162.325(1), because that statute (1) does not proscribe assisting a juvenile offender in attempting to evade juvenile court proceedings or, alternatively, (2) applies only to efforts to hinder felony prosecutions but not hindrance of subsequent probation-violation proceedings). The court of appeals itself has noted the difficulties that sometimes arise in differentiating the issue on appeal from arguments made or authorities cited in support of the appellant's desired resolution of the issue. *State v. Smith*, 184 Or App 118, 121, 55 P3d 553 (2002) ("The problem, of course, is that the cases never have defined precisely what is meant by an 'issue,' as opposed to a 'source' or an 'argument.'"); *see also Mt. Woodworks, Inc. v. Voss*, 218 Or App 707, 721, 180 P3d 735 (2008) ("It is often difficult to characterize a claim made for the first time on appeal as raising a new issue, identifying a new source for a claimed position, or making a different argument than was made below.") (Edmonds, J., concurring).

Consequently, it is important that the appellate attorney start distinguishing issues from rulings, assignments of error, and arguments when considering the basis on which to appeal.

II. INITIAL CONSIDERATIONS

A. (§5.4) The Record

When identifying and evaluating issues for appeal, the attorney needs to understand the limitations set by the record, that is, the trial court file or agency record, exhibits, and designated oral proceedings. ORAP 3.05 (specifying record on appeal), ORAP 4.20 (specifying record on judicial review of administrative agency proceeding). The appellate court, as a general rule, cannot consider matters outside of the record when considering the appeal. *State v. Terry*, 333 Or 163, 180, 37 P3d 157 (2001) ("This court, however, will not look outside the record to find objections."); *cf.* ORAP 4.25 (giving court of appeals discretion on judicial review to allow a party to present additional evidence when there was good cause for failing to present it in the agency proceeding). The record, therefore, determines the issues preserved, the arguments presented to the trial court, the evidence before the trial court, and the factual and legal basis on which the trial court made its ruling.

> CAVEAT: The appellate courts will take judicial notice of facts and law outside the record subject to the limitations and requirements of OEC 201(a)–202 (ORS 40.060–40.090). *See, e.g., State ex rel. Juvenile Dep't of Multnomah County v. S.P. (In re S.P.),* 346 Or 592, 617, 215 P3d 847 (2009). Those limitations authorize notice of only those facts that are "[g]enerally known" within the court's jurisdiction or "[c]apable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned." OEC 201(b) (ORS 40.065). But judicial notice is no substitute for making a record below. Aside from the limitations set by the rules of evidence, the completeness of the record (or lack thereof) is always inextricably linked to the question of preservation.

B. (§5.5) Scope of Review

A necessary consideration for any appeal is the scope of review the reviewing court will exercise on the proceeding below as it defines the types of issues that can be raised on appeal. If an appellate court lacks authority to review an issue under the applicable scope of review, then the appellate court may not review the issue regardless of how certain it is that the lower court committed error with respect to the issue. *Blackledge v. Morrow*, 174 Or App 566, 571, 26 P3d 851 (2001).

The scope of review in Oregon appellate courts is, as a matter of constitutional or statutory law, largely restricted to review of a trial court's legal conclusions for error. The Oregon Constitution expressly sets that scope of review for actions at law. Or Const art VII (amended), §3 ("In actions at law, . . . no fact tried by a jury shall be otherwise re-examined in any court of this state, unless the court can affirmatively say there is no evidence to support the verdict."). The legislature has extended that scope of review to appeals from most equitable proceedings. ORS 19.415(1) ("Except as provided in this section, upon an appeal in an action or proceeding, without regard to whether the action or proceeding was triable to the court or a jury, the scope of review shall be as provided in section 3, Article VII (Amended) of the Oregon Constitution."); *see also* ORCP 62 F ("In an action tried without a jury, except as provided in ORS 19.415(3), the findings of the court upon the facts shall have the same force and effect, and be equally conclusive, as the verdict of a jury.").

De novo review—review in which the appellate court tries the case anew to make its own factual findings as well as legal conclusions— applies only in appeals from equitable actions or proceedings. ORS 19.415(3). Even then, the parties are entitled to de novo review as a matter of statutory right only in appeals from judgments in a proceeding for the termination of parental rights. ORS 19.415(3)(a). In all other appeals from equitable actions or proceedings, the court of appeals, "acting in its sole discretion, may try the cause anew upon the record or make one or more factual findings anew upon the record." ORS 19.415(3)(b). Moreover, in those appeals, the court will exercise its discretion "only in exceptional cases" and only after a party makes the request and gives reasons justifying the exercise of de novo review. Chief Judge Order No. 09-06 (July 14, 2009) (available at www.publications.ojd.state.or.us/RULE155.htm) (adopting temporary amendments to ORAP 5.40 and 5.45 (which became permanent on January 1, 2011) and setting forth nonexclusive considerations for the exercise of discretion). Finally, even when the court of appeals has exercised de novo review, the Oregon Supreme Court may limit its review of the court of appeals' decision to questions of law. ORS 19.415(4).

Note: The 2009 Legislature's decision to extend review for errors of law to almost all equitable actions and proceedings marks a departure from the de novo review previously afforded all appeals from actions in equity. ORS 19.415(3) (2007) (*amended by* 2009 Or Laws ch 231, §2). The amendments apply to appeals

for which a notice of appeal is filed on or after the amendment's effective date of June 4, 2009. 2009 Or Laws ch 231, §3.

Criminal appeals are subject to review for errors of law. ORS 138.220 (limiting scope of review for criminal cases to "only as to questions of law appearing on the record"). Other statutes further limit the scope of review in appeals from certain criminal cases. ORS 138.222 places limits on the scope of review of sentences imposed for a felony committed on or after November 1, 1989. *See State v. Arnold*, 214 Or App 201, 205–212, 164 P3d 334 (2007) (explaining limitations that ORS 138.222 imposes on scope of review). Additionally, when a defendant enters a plea of guilty or no contest, the appellate court will review the judgment imposing conviction and sentence only as to whether the sentence "[e]xceeds the maximum allowable by law; or . . . [i]s unconstitutionally cruel and unusual." ORS 138.050(3).

> CAVEAT: A different scope of review applies when a defendant enters a conditional plea of guilty or no contest. ORS 135.335(3) (authorizing a defendant, on consent of the court and the state, to "enter a conditional plea of guilty or no contest reserving, in writing, the right, on appeal from the judgment, to a review of an adverse determination of any specified pretrial motion").

C. (§5.6) Standards of Review

One of the final preliminary matters that an appellate attorney must understand is the standard of review the appellate court will employ when evaluating a particular issue. The variety of standards of review and their application in specific contexts are outside the scope of this chapter. Rather, the goal of this section is to inform the appellate attorney of the most common standards of review and how widely they differ.

Comparisons between the two applicable standards of review in criminal cases illustrate just how much the standard of review matters. The following quotations are the court of appeals' recitations of the standards of review for (1) challenges to the sufficiency of the evidence and (2) the denial of a jury instruction:

> On appeal, we will uphold a conviction if the evidence and all reasonable inferences flowing from it would enable a rational trier of fact to find the essential elements of the offense beyond a reasonable doubt. . . . In reviewing the evidence,

> we treat all conflicts in the evidence as if they had been decided in the state's favor, . . . and defer to any credibility determinations that the jury may have made.

State v. Schlender, 199 Or App 253, 257, 110 P3d 653 (2005) (citations omitted). "We review a trial court's refusal to give a requested jury instruction for error as a matter of law, . . . and we review the evidence in support of the instruction in the light most favorable to defendant, the party seeking the instruction." *State v. Marsh*, 186 Or App 612, 614, 64 P3d 1141 (2003) (citations and internal quotations omitted). Consequently, adherence to the proper standard of review when presenting an issue is essential.

1. (§5.7) Factual Findings

An appellate court will generally defer to findings made by the jury and trial court if evidence in the record supports them. Or Const art VII (amended), §3. The reviewing court requires only a modicum of evidence to determine that a finding is supported by the record. *Stelts v. State*, 299 Or 252, 255, 701 P2d 1047 (1985) (trial court findings "are binding on [the appellate courts] . . . unless the court can affirmatively say there is no evidence to support them"). When the factual finding is based on an inference that the trier of fact drew, the inference will not be disturbed on appeal unless "on all the evidence in a case there can be no reasonable doubt of the nonexistence" of the inferred fact. *Portland v. Bureau of Labor & Industries*, 298 Or 104, 115 n 5, 690 P2d 475 (1984). When a trial court's ruling depends on contested facts that the trial court did not explicitly resolve, however, the appellate court will presume that the facts were decided in a manner consistent with the trial court's ultimate conclusion. *Ball v. Gladden*, 250 Or 485, 487, 443 P2d 621 (1968).

> CAVEAT: Judicial review of factual findings made in agency proceedings is not subject to such strict limitations on review. ORS 183.482(8)(c) (providing review of findings of fact for "substantial evidence in the record").

2. (§5.8) Questions of Law

A reviewing court does not defer to a trial court's resolution of legal questions. *State v. Ruff*, 229 Or App 98, 100, 211 P3d 277, *rev. denied*, 347 Or 43 (2009). Thus, a trial court's interpretation of a statute is entitled to no deference; the appellate court will independently determine the meaning of a statute. *Filipetti v. Dep't of Fish & Wildlife (In re one black-tailed doe deer named "Snowball"),*

224 Or App 122, 125, 197 P3d 535 (2008). An agency's interpretation of its own rules and regulations, however, is subject to a more deferential standard of review. The court of appeals will "'defer to the agency's plausible interpretation of its own rule, including an interpretation made in the course of applying the rule, if that interpretation is not inconsistent with the wording of the rule, its context, or any other source of law.'" *Gienger v. Dep't of State Lands,* 230 Or App 178, 187, 214 P3d 75 (2009), *rev. denied*, 348 Or 13 (2010) (quoting *Deleon, Inc. v. Dep't of Human Servs.*, 220 Or App 542, 548, 188 P3d 354 (2008)).

NOTE: Difficulties can arise when it is unclear whether an issue is a question of law, a question of fact, or is a mixed question of law and fact. *See Chocktoot v. Smith*, 280 Or 567, 575, 571 P2d 1255 (1977) (distinguishing legal and factual questions raised by attorney malpractice claims). More complications ensue when an issue is neither a pure question of law nor a pure question of fact, but is a mixed question of law and fact for which several standards of review apply. *See Luckhurst v. Bank of Am. (In re Luckhurst)*, 167 Or App 11, 15–17, 1 P3d 1031 (2000) (so exemplifying). Special consideration should be given as to the appellate courts' prior practices when raising an issue of mixed law and fact.

3. (§5.9) Discretionary Rulings

In addition to the standards of review discussed in §§5.6–5.8, a final category of the majority of rulings is that made when a trial court is faced with an issue in which it has discretion to choose from several legally acceptable outcomes. *State v. Rogers*, 330 Or 282, 310–312, 4 P3d 1261 (2000) (discussing review of discretionary rulings). For the most part, those rulings are reviewed for abuse of discretion, that is, whether the trial court reached a determination that was within the range of legally permissible choices. *See, e.g., State v. Borck,* 230 Or App 619, 638, 216 P3d 915, *modified on other grounds, adhered to on recons.*, 232 Or App 266 (2009) (trial court's determination that the probative value of the evidence was not substantially outweighed by a risk of unfair prejudice was "a close discretionary call"; the court of appeals "might have struck the discretionary balance differently" but those factors were immaterial when the trial court's determination was within the permissible range).

CAVEAT: Even though a trial court's determination ordinarily may be reviewed for an abuse of discretion, the appellate courts will view as legal

error a trial court's failure to exercise discretion, refusal to exercise discretion, or failure to make a record that reflects an exercise of discretion. *State v. Mayfield*, 302 Or 631, 645, 733 P2d 438 (1987). A trial court errs as a matter of law when it goes about exercising its discretion in a legally erroneous manner, for example, by using the wrong legal methodology to reach its determination. *State v. Shaw*, 338 Or 586, 614–615, 113 P3d 898 (2005).

III. SELECTING AND EVALUATING ISSUES

A. (§5.10) Less Is Often More for Effective Advocacy

In appellate practice, as with many other ventures, it is advisable to put the best foot forward. The issue and supporting arguments an appellant presents to the appellate court should be the most persuasive available. However, unlike some other contexts, it may be best to limit the appeal to only the best issues and arguments, rather than dilute a brief with trivial, far-fetched, or simply less-persuasive issues or arguments. The observations Chief Justice Burger made on the subject in *Jones v. Barnes*, 463 US 745, 750–754, 103 S Ct 3308, 77 L Ed2d 987 (1983), with regard to court-appointed appellate counsel (only one of which is quoted below) continue to be good advice for any appellate attorney:

> There can hardly be any question about the importance of having the appellate advocate examine the record with a view to selecting the most promising issues for review. This has assumed a greater importance in an era when oral argument is strictly limited in most courts— often to as little as 15 minutes—and when page limits on briefs are widely imposed. . . . Even in a court that imposes no time or page limits, however, [a rule requiring counsel to raise every nonfrivolous issue requested by a criminal defendant] is contrary to all experience and logic. A brief that raises every colorable issue runs the risk of burying good arguments—those that, in the words of the great advocate John W. Davis, 'go for the jugular,' . . .— in a verbal mound made up of strong and weak contentions.

Jones, 463 US at 752–753 (citations omitted).

1. (§5.11) Merits of Issue

The merits of an issue (i.e., the likelihood that a party's position on a point of law is correct) are a primary consideration in deciding whether to raise that issue on appeal. Success on appeal depends on the appellant's ability to convince the reviewing court that his or her proposed resolution of the issue on appeal is correct

and that the trial court's resolution was not. The more certain the appellant is that he or she can persuade the reviewing court of that fact, the more reason to select that issue over others to raise on appeal. The merits of an issue rest on the facts of the case, the law (rule, statute, constitutional provision) governing its resolution, any precedent on point (or nearly so), the weight of the precedent, and the analytical force of the arguments that the appellant can muster. Of the reasons to be confident that any particular issue is a "winning" issue for appeal, little more can be said in this chapter.

2. (§5.12) Anticipated Relief

When selecting issues for appeal, the attorney should consider the corresponding relief to which the appellant would be entitled if an appeal on the issue is successful. For example, a well-preserved, meritorious challenge to an order of restitution in an appeal from a criminal case will do little to exonerate the defendant or reduce his or her term of imprisonment.

3. (§5.13) Mootness

When determining whether to raise an issue on appeal, the attorney should take into consideration the certainty or likelihood that the issue will be moot by the time the appellate courts would issue a ruling. There is little reason to begin the prolonged appeal process if the case will not survive the journey. Similarly, there is no point to appeal from an erroneous ruling after an event "'renders it impossible for the court to grant effectual relief.'" *Hamel v. Johnson*, 330 Or 180, 184, 998 P2d 661 (2000) (quoting *Greyhound Park of Eugene v. Oregon Racing Com.*, 215 Or 76, 79, 332 P2d 634 (1958)).

B. (§5.14) Reasons to Include Subsidiary Issues

Sometimes there are reasons to raise an issue that do not rest on the likelihood of success on appeal. A party to an appeal may raise an issue to avoid being precluded from arguing the point later. *See, e.g., Barlow Trail Mobile Home Park v. Dunham*, 189 Or App 513, 515, 76 P3d 1146 (2003) (although appellant was correct on its assignment of error to the trial court's designation of respondent as the sole prevailing party at trial, the appellate court would not remand the case to allow the appellant to seek attorney fees because the appellant did not assign error to the trial court's failure to designate it as a prevailing party). Similarly, reason exists to challenge a ruling before the appellate court to prevent the ruling from becoming "law of the case." That principle of finality holds that a ruling

made by an appellate court will be binding and conclusive in that case before that court or any inferior court. *Strome v. Lane County Bd. of Comm'rs,* 230 Or App 190, 199, 213 P3d 1269, *rev. denied*, 347 Or 349 (2009). Similarly, in criminal and postconviction appeals, the defendant's attorney must keep in mind exhaustion principles as a factor for raising an issue on direct appeal so that the defendant later may raise it in federal court. *See Farmer v. Baldwin*, 346 Or 67, 205 P3d 871 (2009) (discussing exhaustion principles generally).

IV. (§5.15) PRESERVATION

As a general rule, a party first must present an issue to the trial court before the party can raise it as error on appeal. *Peeples v. Lampert*, 345 Or 209, 219, 191 P3d 637 (2008). The preservation requirement has been made part of the Oregon Rules of Appellate Procedure. ORAP 5.45(1) ("[n]o matter claimed as error will be considered on appeal unless the claim of error was preserved in the lower court"). The Oregon Evidence Code also incorporates the requirement for preservation. OEC 103(1) (ORS 40.025(1)). The parties' stipulation that an issue is preserved is insufficient; the appellate courts will consider preservation sua sponte. *State ex rel. Juvenile Dep't of Multnomah County v. S.P. (In re S.P.),* 346 Or 592, 604, 215 P3d 847 (2009). However, just what a party must do to adequately preserve an issue depends greatly on the context in which the issue arises and on the nature of the issue itself.

> NOTE: The sheer number of preservation rules—procedural and substantive—that apply to specific types of issues makes even a summary survey of them outside the scope of this chapter (consider, e.g., giving, failing to give, and refusing to give jury instructions; *see* ORCP 59 H and *State v. Toth*, 213 Or App 505, 509–510, 162 P3d 317 (2007)). As a broad generalization, however, a party who entered the appropriate motion, objection, or exception in the proper form, at the proper time, and with the proper substantive content most likely has preserved the issue for appeal. Nonetheless, an appellate attorney raising a particular issue for the first time should determine the specific requirements for preservation demanded by case law, statutes, or rules of procedure.

A. (§5.16) Determination of Whether an Issue Is Preserved

The question of preservation is often reduced to a single inquiry: did the party "provide the trial court with an explanation of his or her objection that is specific enough to ensure that the court can identify its alleged error with enough clarity to permit it to consider and correct the error immediately, if correction is warranted"? *State v. Wyatt*, 331 Or 335, 343, 15 P3d 22 (2000). Based on *Wyatt*, the court of appeals has often posed to itself and answered the following question when determining preservation: "[i]f we were to reverse based on [the appellant's] argument, would the trial judge feel 'blindsided' by our ruling?" *State v. Spears*, 223 Or App 675, 681, 196 P3d 1037 (2008) (internal quotation omitted).

The supreme court had previously distinguished between raising an issue at trial as essential for preservation, identifying a source for a claimed position as less important, and making a particular argument as the least important. *State v. Hitz*, 307 Or 183, 188–189, 766 P2d 373 (1988) (also noting that "[e]fficient procedures are instruments for, not obstacles to, deciding the merits"). The court of appeals has viewed the supreme court's articulation in *Wyatt* as a refinement of the "*Hitz* principles" and as describing "the rule of preservation 'in more functional terms, emphasizing the underlying policies of preservation— in particular, fairness and efficiency.'" *Vanspeybroeck v. Tillamook County*, 221 Or App 677, 691 n 5, 191 P3d 712 (2008) (quoting *State v. Timmermann*, 220 Or App 458, 464, 187 P3d 744 (2008)).

The supreme court relied on the *Hitz* principles to determine preservation in a case decided after *Wyatt*. *Gadda v. Gadda*, 341 Or 1, 7–8, 136 P3d 1099 (2006) (utilizing *Hitz* principles to determine that husband's argument at trial and on appeal that mistakenly mailing a notice of appeal to wife's former attorney accomplished timely service sufficiently preserved the "broad legal issue" of whether service was accomplished by legally permissible means and did not prevent husband from arguing for the first time on review that the former attorney's act of forwarding the notice to her current attorney accomplished service by delivery). The supreme court has further cautioned that requiring an appellant to identify and assert each different legal theory that supports an issue may lead to problems, "if the preservation onion is sliced too thinly." *State v. Amaya*, 336 Or 616, 629, 89 P3d 1163 (2004) (rejecting as unpreserved discrete legal theories that could have been raised below but were not).

B. (§5.17) Policies Underlying Preservation

The Oregon Supreme Court has identified two general policies that give rise to the necessity for preserving an issue: efficient judicial administration and fairness to the parties. *State v. Hitz*, 307 Or 183, 188, 766 P2d 373 (1988).

Obliging the parties to explain to the trial court why a ruling would be or was erroneous promotes economy of judicial resources by preventing or correcting errors that lead to appeals and retrials. *Peeples v. Lampert*, 345 Or 209, 219, 191 P3d 637 (2008) ("Preservation gives a trial court the chance to consider and rule on a contention, thereby possibly avoiding an error altogether or correcting one already made, which in turn may obviate the need for an appeal."). Preservation promotes efficiency by "foster[ing] full development of the record, which aids the trial court in making a decision and the appellate court in reviewing it." *Peeples*, 345 Or at 219.

"Preservation also ensures fairness to an opposing party, by permitting the opposing party to respond to a contention and by otherwise not taking the opposing party by surprise." *Peeples*, 345 Or at 219; *see also State v. Nguyen*, 222 Or App 55, 65, 191 P3d 767 (2008) (including as policy for the preservation rule to "ensure that adverse parties are not taken by surprise, misled, or denied the opportunity to present their positions on an issue raised by an adversary"). Requiring a party who notices error to immediately bring it to the trial court's attention also promotes fairness by preventing the party from speculating on the verdict or raising the issue only after the party becomes dissatisfied with the course of the proceedings. *Nguyen*, 222 Or App at 65.

> NOTE: An appellant who has reason to question whether an objection at trial sufficiently preserved an issue for appeal (or a supporting argument that the appellant wants to raise on appeal) should consider the policies underlying the requirement for preservation. Generally, the best argument that the issue is sufficiently preserved is an explanation of how the objection made below served those policies and how addressing the error on appeal, notwithstanding any deficiencies in the objection entered, would not undermine those policies. *See State v. Roble-Baker*, 340 Or 631, 639, 136 P3d 22 (2006) (in determining whether a party preserved an argument, the appellate court views the record in light of the purposes of fairness and efficiency that underlie the preservation requirement).

C. (§5.18) Issues of Statutory Interpretation

The applicability and operation of the rules of preservation are somewhat complicated by an appellate court's independent duty to correctly interpret statutes. *See State v. Timmermann*, 220 Or App 458, 464–467, 187 P3d 744 (2008) (examining conflict). That duty may require the court to consider alternative possible interpretations whether or not identified by the parties. *Stull v. Hoke*, 326 Or 72, 77, 948 P2d 722 (1997). Additionally, the appellate court may even rely on entirely different statutes if it finds that the statutes the parties identified are not dispositive of the issue raised. *Miller v. Water Wonderland Improvement Dist.*, 326 Or 306, 309 n 3, 951 P2d 720 (1998) ("the parties may not prevent a court from noticing and invoking an applicable statute by relying only on other sources of law"). *See generally* INTERPRETING OREGON LAW (OSB Legal Pubs 2009).

The court of appeals has specified how it will decide whether to address an appellant's argument regarding statutory interpretation that was not raised at the trial court. If the appellant's argument on appeal relates only to the scope and meaning of the statute at issue at trial, the court of appeals will address it as appropriately offered contextual support. *State v. Smith*, 184 Or App 118, 122, 55 P3d 553 (2002). In contrast, it will hold as unpreserved the argument if it "relates not only to the scope and meaning of the statutory language but, even more, to whether particular proof was deficient for reasons never urged to the trial court." *Timmermann*, 220 Or App at 466 (citing, as example, *State v. Shields*, 184 Or App 505, 509 n 1, 511 n 2, 56 P3d 937 (2002)).

D. (§5.19) Review of Error of Law Apparent on the Record ("Plain Error")

The primary exception to the requirement that an issue be preserved is an appellate court's discretion to consider error of law apparent on the record, also known as "plain error" and "error apparent." The rules of appellate procedure and rules of evidence each recognize the appellate courts' authority to review plain error:

No matter claimed as error will be considered on appeal unless the claim of error was preserved in the lower court and is assigned as error in the opening brief in accordance with this rule, provided that the appellate court may consider an error of law apparent on the record.

ORAP 5.45(1). "Nothing in this rule precludes taking notice of plain errors affecting substantial rights although they were not brought to the attention of the court." OEC 103(4) (ORS 40.025(4)).

Early cases ascribed plain-error review as appropriate only when "the court, upon an examination of the entire record, can say that the error is manifest and that the ends of justice will not otherwise be satisfied." *State v. Avent*, 209 Or 181, 183, 302 P2d 549 (1956). However, in the modern "principle case" analyzing plain-error review—*Ailes v. Portland Meadows, Inc.*, 312 Or 376, 381–382, 823 P2d 956 (1991)—the supreme court established a two-step test, set forth and discussed in §§5.20–5.21, to determine (1) whether an appellate court may correct unpreserved error and, if so, (2) whether it will exercise its discretion to do so.

> NOTE: An appellant considering a claim of plain error should recognize the substantial hurdles to both establishing that plain error exists and convincing the appellate court to exercise its discretion to address it. The appellate courts consider claims of error apparent in both criminal and civil cases. *See, e.g., Francke v. Gable*, 121 Or App 17, 20, 853 P2d 1366 (1993) (reversing dismissal of wrongful death action as plain error). However, cases in which the appellate courts reach plain error are almost exclusively criminal and postconviction appeals that present significant sentencing errors or violations of the defendant's constitutional rights, particularly when there has been a significant change in the law between trial and appeal.

The few noncriminal appeals in which the reviewing court has reached plain error mainly consist of cases presenting particularly significant errors that contributed to consequences implicating the appellant's constitutional rights. *See, e.g., State ex rel. Dep't of Human Servs. v. Sumpter (In re Carlin),* 201 Or App 79, 116 P3d 942 (2005) (violation of mother's right to trial in termination of parental rights proceeding); *State v. Burge (In re Burge),* 167 Or App 312, 1 P3d 490 (2000) (failure at civil commitment hearing to advise individual of statutory rights or ensure waiver of advice of rights was knowing and voluntary). Less egregious errors are unlikely to move the appellate court to action. As a consequence, most of the discussion that follows in §§5.20–5.21 concerns appeals arising from criminal prosecutions.

1. (§5.20) Elements of Plain Error

The first step in plain-error review is determining whether the alleged error has the three elements necessary to qualify as plain error. *Ailes v. Portland Meadows, Inc.*, 312 Or 376, 381–382, 823 P2d 956 (1991). The three elements are: (1) the error must be one of law; (2) the point of law must be obvious, that is, it is not reasonably in dispute; and (3) the facts on which it depends must be irrefutable so that the court need not go outside the record or select among competing inferences. *See State v. Brown*, 310 Or 347, 355, 800 P2d 259 (1990).

> CAVEAT: The Oregon Supreme Court recently stated that reviewing courts should not consider whether an asserted error meets the three requirements for plain error "if the party seeking review encouraged commission of the error in question *or made a strategic choice not to object*." *State ex rel. Juvenile Dep't of Multnomah County v. S.P. (In re S.P.)*, 346 Or 592, 606, 215 P3d 847 (2009) (emphasis added); *see also State v. Steen*, 346 Or 143, 155–156, 206 P3d 614 (2009) (when the record demonstrated that the defendant's attorney affirmatively chose not to enter a hearsay or confrontation objection to the testimony, the defendant was precluded by forfeiture from asserting error on appeal). In both of those cases there was evidence that the appellant or his trial attorney had affirmatively contributed to the alleged plain error. *S.P. (In re S.P.)*, 346 Or at 602–606; *Steen*, 346 Or at 155–156. When the record is silent as to whether the failure to object was strategic or inadvertent, the reviewing court will consider whether competing inferences can be drawn that would prevent concluding the trial court committed plain error. *See State v. Drinkwater*, 231 Or App 6, 9–10, 217 P3d 1090 (2009), *rev. denied*, 348 Or 13 (2010) (also noting that if failure to object by itself created permissible inference of deliberate strategic choice, no instance of unpreserved error would be reviewable as plain error).

The first and second elements both relate to the legal aspect of the alleged error. Because the scope of review in most appeals is limited to errors of law, the first element is often met. However, the point of law on which the error rests must also be indisputable, that is, the legal point must be beyond question. However, when the appellant must rely on a yet-undecided point of law, the respondent can thwart plain error review merely by demonstrating that the court would need to select between more than one reasonable argument. *See, e.g., State v. Martin*, 221

Or App 78, 81–84, 188 P3d 432, *rev. denied*, 345 Or 418 (2008) (reasonable dispute regarding meaning of administrative rule when respondent identified alternative construction that, "whether correct or incorrect, [was] reasonable").

> NOTE: The court of appeals has determined that the point in time at which alleged plain error must present an obvious or indisputable point of law is the time of the appellate decision rather than when the trial court committed the error. *State v. Jury*, 185 Or App 132, 136, 57 P3d 970 (2002). Therefore, when the appellant has reason to expect that a point of law will be indisputable sometime before the appeal is decided, the appellant may allege that the error based on that point of law will be plain by the time the reviewing court decides the appeal, even in the face of ambiguous, or even contrary, existing law when the case was before the lower court. *See State v. Marroquin*, 215 Or App 330, 335–336, 168 P3d 1246 (2007) (exemplifying how ruling that comports with controlling case law during trial may on appeal constitute plain error because the Oregon Supreme Court has since overruled that decision).

Unlike the first two elements, the third element—that the court need not go outside the record or choose between competing inferences to find the error—concerns the factual aspect of the error. Stated another way, the third element requires the appellant to show, as a matter of historical fact, that the trial court committed the error. A plausible possibility that the error did not occur will prevent plain-error review. Thus, if the record is incomplete such that it is impossible for the reviewing court to conclusively determine that error occurred, the error is not plain. *State v. Harbick*, 234 Or App 699, 704–705, 228 P3d 727 (2010) (determining that consideration of the defendant's claim that the trial court erroneously considered a guilty except for insanity defense that the defendant never asserted would require going outside of the record because the trial court considered the defense after an off-the-record colloquy immediately preceded by a discussion that only a defendant can assert the defense and that the parties and trial court needed to find out whether the defendant would be raising the defense). Similarly, if the respondent can identify a factual inference that is drawn from the record under which no error occurred, the error is not plain. *State v. Akers*, 221 Or App 29, 34, 188 P3d 417 (2008) (the claimed error that the trial court conducted a bench trial without a written jury waiver was not plain error because the

defendant's failure to initial a jury waiver section of a drug court application form could have been inadvertent neglect or deliberate choice).

> NOTE: Whether competing inferences can be drawn from the record can often depend on whether the party complaining of an error on appeal had any legitimate strategic reasons for not entering an objection below. In *State v. Gornick*, 340 Or 160, 169–170, 130 P3d 780 (2006), the defendant claimed that the trial court erred when, after the defendant entered a guilty plea, the court found certain facts and relied on them when imposing the sentence. During the sentencing proceeding the defendant neither objected to the court's finding of the facts nor asserted his right to have the jury find those facts. *Gornick*, 340 Or at 169–170. The supreme court held that it was not plain error because the defendant's failure to assert his right to have the findings made by a jury could have been the product of a conscious or strategic choice to have the judge make those findings (and thus no error on the part of the trial court) or the court could have erred. *Gornick*, 340 Or at 169–170. Following *Gornick*, the court of appeals has clarified that competing inferences from a party's silence at trial will defeat a claim of plain error only when the respondent identifies a plausible strategic reason that the appellant may have consciously chosen not to object to an error. *Compare State v. Lovern*, 234 Or App 502, 512, 228 P3d 688 (2010) (determining that competing inferences could not be drawn from the defendant's failure to object to an inadmissible medical diagnosis of sexual abuse because the state's proposition that the defendant may have wanted the diagnosis admitted "so that he could savage it" during cross-examination was not plausible), *with State v. Raney*, 217 Or App 470, 473–474, 175 P3d 1024, *rev. denied*, 344 Or 671 (2008) (finding, as a permissible inference, that the defendant consciously chose to not enter a confrontation objection to admission of a laboratory report because he knew that the state simply would have called the author of the report to testify).

2. (§5.21) Factors Considered in Exercising Discretion

The second step of plain-error review consists of the appellate court's determination of whether to exercise its discretion to correct the error. An appellant is not entitled to automatic review of a plain error that satisfies the three elements (*see* §5.20) of the first step. Rather, an appellate court's decision to consider plain error is made with "utmost caution" because review of unpreserved error "is

contrary to the strong policies requiring preservation" and undercuts the adversary system of competing arguments on which the appellate court relies to decide issues. *Ailes v. Portland Meadows, Inc.*, 312 Or 376, 382, 823 P2d 956 (1991). "[T]he appellate court must exercise its discretion to consider or not to consider the error, and if the court chooses to consider the error, the court must articulate its reasons for doing so." *Ailes*, 321 Or at 382.

The supreme court provided a nonexclusive list of some permissible factors that the reviewing court may consider:

> the competing interests of the parties; the nature of the case; the gravity of the error; the ends of justice in the particular case; how the error came to the court's attention; and whether the policies behind the general rule requiring preservation have been served in the case in another way, *i.e.*, whether the trial court was, in some manner, presented with both sides of the issue and given an opportunity to correct any error.

Ailes, 312 Or at 382 n 6. The court emphasized that "[t]hose factors do not comprise a necessary or complete checklist; they merely are some of the permissible considerations." *Ailes*, 312 Or at 382 n 6; *see also, e.g., State v. Sosa*, 224 Or App 658, 663–664, 199 P3d 346 (2008) (listing additional factors the court of appeals will consider in regard to sentencing errors).

A reviewing court's failure to expressly set forth the reasons for its decision to exercise its discretion "is itself erroneous." *Ailes*, 321 Or at 382. However, when the court of appeals follows the two-step test and decides to correct plain error, the supreme court has stated that it "normally will not second-guess that exercise of discretion." *Ailes*, 321 Or at 382.

The supreme court has since found few occasions that merited reversal of the court of appeals' decision in cases in which the *Ailes* test applied, plain error was found, and the court of appeals exercised its discretion to correct the error. In a 2007 case, the supreme court held that the court of appeals abused its discretion in reaching plain error by relying on a single factor—the state's lack of any valid interest in requiring the defendant to serve an illegal sentence—a factor that the supreme court noted is present in any sentencing error case. *State v. Fults*, 343 Or 515, 522–524, 173 P3d 822 (2007). On the same day it decided *Fults*, the supreme court held that the court of appeals abused its discretion by remanding a case for resentencing as a correction of the trial court's plain error (submitting the question of whether defendant suffered a "permanent injury" to a judge rather than the jury)

because remanding the case "would not advance the ends of justice." *State v. Ramirez*, 343 Or 505, 513–514, 173 P3d 817 (2007) (concluding that the defendant had a "minimal, if not nonexistent" interest in having a jury find an irrefutable fact but that the state had an interest in avoiding an unnecessary hearing).

E. (§5.22) Other Exceptions

Because the rules of preservation are "pragmatic as well as prudential," the supreme court has recognized that in some specific contexts, enforcing the rules of preservation is unwarranted. *Peeples v. Lampert*, 345 Or 209, 220, 191 P3d 637 (2008). The preservation requirement gives way, for example, "when a party has no practical ability to raise an issue." *Peeples*, 345 Or at 220; *McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 84, 95 n 6, 957 P2d 1200 (1997), *clarified on recons.*, 327 Or 185 (1998) (rule requiring preservation does not preclude supreme court review if the issue first arose when the court of appeals issued its order); *State v. DeCamp*, 158 Or App 238, 241, 973 P2d 922 (1999) (criminal defendant not required to preserve challenge to modification of sentence that the trial court imposed without notice or hearing). Similarly, a party's failure to preserve an issue will be excused if the record establishes that an attempt to do so would have been futile—for example, because the trial court would not have permitted an issue to be raised or the record to be developed. *State v. Olmstead*, 310 Or 455, 800 P2d 277 (1990) (party's failure to make offer of proof as to evidence to support defense did not bar review of issue on appeal when the trial court ruled as a matter of law that the party could not raise the defense).

Rules of preservation have also been held inapplicable to a few select issues. For example, preservation impediments do not apply to issues of jurisdiction, which can be raised at any time, even for the first time on appeal. *Stirton v. Trump*, 202 Or App 252, 255, 121 P3d 714 (2005) (citing *Waddill v. Anchor Hocking, Inc.*, 330 Or 376, 384, 8 P3d 200 (2000)). Finally, on at least one occasion, the supreme court has concluded that "a legal right may not be subject to preservation requirements due to the unique nature of the right itself." *Peeples*, 345 Or at 220–221 (citing *State v. Barber*, 343 Or 525, 530, 173 P3d 827 (2007) ("unique wording of constitutional requirement of written jury trial waiver precluded ordinary rules of preservation for claim relating to denial of jury trial right")).

V. (§5.23) ERROR AND RELIEF

As a general rule, the mere demonstration that a trial court committed a legal error is insufficient to warrant appellate relief. *Gonyea v. Gonyea*, 232 Or 367, 374, 375 P2d 808 (1962) ("error does not, of itself, require reversal"). "To warrant reversal the ruling of the trial court must be not only erroneous, but prejudicial." *Scanlon v. Hartman*, 282 Or 505, 511, 579 P2d 851 (1978). An error is prejudicial when it substantially affects a party's rights. ORS 19.415(2). Conversely, an appellate court will affirm the judgment of a trial court notwithstanding the existence of a "harmless error." *Baker v. English*, 324 Or 585, 590, 932 P2d 57 (1997).

A very narrow exception to the harmless error rule exists for "structural errors," for example, errors in criminal prosecutions constituting violations of fundamental constitutional rights provided by the United States Constitution. *Sullivan v. Louisiana*, 508 US 275, 281–282, 113 S Ct 2078, 124 L Ed2d 182 (1993). Structural error, once established, does not require any analysis of harm. *Chapman v. California*, 386 US 18, 23, 87 S Ct 824, 17 L Ed2d 705 (1967) ("there are some constitutional rights so basic to a fair trial that their infraction can never be treated as harmless error"). Automatic reversal flows from structural error because, whenever such an error occurs, "the trial [court] cannot reliably serve its function as a vehicle for determination of guilt or innocence, . . . and no criminal punishment may be regarded as fundamentally fair." *Rose v. Clark*, 478 US 570, 577–578, 106 S Ct 3101, 92 L Ed2d 460 (1986) (internal citation omitted). To date, structural error has been found only in cases of a trial by a biased judge, the total deprivation of the right to counsel, the denial of the right to self-representation, and the use of a constitutionally deficient reasonable doubt instruction. *Sullivan*, 508 US at 278–282.

Oregon courts have not adopted the "structural error" doctrine with respect to violations of state law. *State v. Wilson*, 216 Or App 226, 232, 173 P3d 150 (2007), *adh'd to as modified on recons.*, 228 Or App 363 (2009) ("[T]he Oregon Supreme Court has repeatedly admonished that the concept of 'structural error' is inapposite to Oregon law."). The reasons the Oregon Supreme Court has given for not adopting the structural-error doctrine include its absence in statute or constitutional provision and its inconsistency with article VII (amended), §3, of the Oregon Constitution, which provides that the appellate court, after considering all matters submitted, must affirm the lower court if it is of the opinion that the

outcome was correct despite any errors during trial. *Ryan*, 338 Or at 294–297; *see* §5.24.

A. Harmless Error, Prejudicial Error

1. Sources of Harmless Error Rule and Requirement to Demonstrate Prejudice from Error

a. (§5.24) Errors Arising Under State Law

The harmless-error rule is provided by the Oregon Constitution and several statutes, each of which sets forth the rule in different terms. The rule set forth in the Oregon Constitution provides that an appellate court must affirm if it is "of [the] opinion, after consideration of all the matters thus submitted, that the judgment of the court appealed from was such as should have been rendered in the case, . . . notwithstanding any error committed during the trial." Or Const art VII (amended), §3. The rule in ORS chapter 19, which governs civil appeals, provides that "[n]o judgment shall be reversed or modified except for error substantially affecting the rights of a party." ORS 19.415(2). The harmless-error rule in ORS chapter 138, which governs appeals from criminal cases, provides in part that "[a]fter hearing the appeal, the court shall give judgment, without regard . . . to technical errors, defects or exceptions which do not affect the substantial rights of the parties." ORS 138.230. Finally, the Oregon Evidence Code provides: "Evidential error is not presumed to be prejudicial. Error may not be predicated upon a ruling which admits or excludes evidence unless a substantial right of the party is affected[.]" OEC 103(1) (ORS 40.025(1)).

In *Shoup v. Wal-Mart Stores, Inc.*, 335 Or 164, 173–174, 61 P3d 928 (2003), the Oregon Supreme Court reassessed the statutory requirement in ORS 19.415(2) that the reviewing court may be reversed or modified only if an error substantially affected the right of a party:

> The possibility that an error might have resulted in a different jury verdict is insufficient under the statute. Instead, the court must be able to conclude, from the record, that the error "substantially affected" the rights of the losing party. Moreover, the statute protects the trial court judgment from reversal or modification "except for" error substantially affecting a party's rights, indicating that reversal of a judgment is the exception, not the rule. The rule embodied in ORS 19.415(2) is neutral as between plaintiffs and defendants; it places the burden to make a record that demonstrates prejudicial error on whichever party

> loses in the trial court and then seeks reversal or modification of the judgment on appeal.

Shoup, 335 Or at 173–174.

b. (§5.25) Federal Constitutional Error

Although errors arising under state law are analyzed under the state harmless-error rules, whether relief follows error based on a denial of rights guaranteed under the United States Constitution is a federal question and must be analyzed under the federal harmless-error test. *Chapman v. California*, 386 US 18, 20–24, 87 S Ct 824, 17 L Ed2d 705 (1967) (so stating and citing sources of federal harmless-error rule in federal statute and federal rules of civil and criminal procedure); *State v. Cook*, 340 Or 530, 543–550, 135 P3d 260 (2006) (implementing federal test of whether the court can determine that the error "was harmless beyond a reasonable doubt" with respect to a violation of the defendant's Sixth Amendment confrontation right).

2. Specific Contexts

a. (§5.26) Instructional Error

"Under Oregon law, there are two different types of error respecting jury instructions: (1) error in the failure to give a proposed jury instruction, and (2) error in the jury instructions that actually were given." *Williams v. Philip Morris, Inc.*, 344 Or 45, 55, 176 P3d 1255 (2008), *cert. dismissed*, ___ US ___, 129 S Ct 1436, 173 L Ed2d 346 (2009).

As a general matter, "[a] party is entitled to a jury instruction on its theory of the case if the requested instruction correctly states the law, is based on the operative pleadings, and is supported by the evidence," and it is reversible error to refuse to give the requested instructions. *State v. Williamson*, 214 Or App 281, 285–286, 164 P3d 315 (2007); *Hernandez v. Barbo Mach. Co.*, 327 Or 99, 106, 957 P2d 147 (1997). A trial court's refusal to give a requested instruction is not reversible error, however, if the substance of the proffered instruction was covered fully by the trial court's other instructions, even if the proffered instructions were legally correct and, in the proponent's view, stated the law more clearly than the instructions given. *State v. Barnes*, 329 Or 327, 334, 986 P2d 1160 (1999).

Errors in instructions that the trial court actually gave may be premised on an argument that an instruction given affirmatively misstated the law (*see, e.g.*,

State v. Pine, 336 Or 194, 82 P3d 130 (2003)), or that the given instructions, as a whole, were incomplete (*see, e.g.*, *State v. Hale*, 335 Or 612, 627, 75 P3d 448 (2003)).

The appellate court will affirm "despite technical imperfections, unless the appellate court can fairly say that the instruction probably created an erroneous impression of the law in the minds of the jur[ors] which affected the outcome of the case." *Waterway Terminals Co. v. P.S. Lord Mechanical Contractors*, 256 Or 361, 370, 474 P2d 309 (1970). Thus, an erroneous instruction constitutes reversible error when, for example, it gives the jury the wrong legal rule to apply in arriving at its verdict (*Wallach v. Allstate Ins. Co.*, 344 Or 314, 325, 180 P3d 19 (2008)), when it allows the jury to find a defendant guilty for conduct that did not constitute the charged crime (*Pine*, 336 Or at 210), or when it "inserted an irrelevant issue . . . into the jury's deliberations" on a matter essential to their verdict (*State v. Oliphant*, 347 Or 175, 194–195, 218 P3d 1281 (2009) (reversible error to introduce question of arresting officer's state of mind into defendant's claim of self-defense)).

The supreme court has distinguished between instructions that give the jury an erroneous legal rule to apply, which is (as discussed above) reversible error, and cases in which the jury is correctly instructed as to the law but involve "a judgment on a general verdict based on multiple specifications, one of which is invalid, if there is evidence to support another, valid specification." *Shoup v. Wal-Mart Stores, Inc.*, 335 Or 164, 176, 61 P3d 928 (2003) (repudiating "we can't tell" rule adopted in *Whinston v. Kaiser Foundation Hosp.*, 309 Or 350, 788 P2d 428 (1990)). In the latter instance, the reviewing court cannot say that the error substantially affected the appellant's rights without some "basis for saying that a correctly instructed jury had relied solely on the invalid specification of [a claim, there,] negligence." *Wallach*, 344 Or at 323.

> CAVEAT: The court has not held that the "we can't tell" rule no longer applies in criminal cases and has suggested otherwise. In *Pine*, 336 Or at 199–200, the court "agree[d] with [the] defendant regarding the significance of the procedural differences between civil and criminal proceedings," that is, "the routine use of special verdict forms and interrogatories in civil proceedings contrasted with the statutory requirement for general verdicts in criminal proceedings." However, the court relied on "a more fundamental reason" to distinguish *Shoup*—if the jury had believed the defendant's

> version of the facts, under which he had not committed the crime for which he was convicted, it still could have convicted him under the erroneous instruction. *Pine*, 336 Or at 200.

Regardless of the context, an appellate court will reverse for instructional error only if the error prejudiced the aggrieved party when the instructions are considered in light of all the other instructions and with the presumption that a jury will follow a trial court's instructions. *Wallach*, 344 Or at 326 & nn 11–12. Conversely, the appellate court will affirm despite instructional error "if there is little likelihood that the error affected the verdict." *State v. Black*, 208 Or App 719, 724–725, 145 P3d 367 (2006).

b. (§5.27) Evidentiary Error in General

"Evidential error is not presumed to be prejudicial. Error may not be predicated upon a ruling which admits or excludes evidence unless a substantial right of the party is affected." OEC 103(1) (ORS 40.025(1)). In *Northwest Natural Gas Co. v. Shirazi*, 214 Or App 113, 118, 162 P3d 367 (2007), the Oregon Court of Appeals endorsed the explanation of the requirement of prejudicial error for reversal given in *Shoup v. Wal-Mart Stores, Inc.*, 335 Or 164, 173–174, 61 P3d 928 (2003), as applicable to evidentiary error. Evidentiary error constitutes reversible error "when, based on [the reviewing court's] assessment of the whole record, [the court] believe[s] that there was a substantial possibility that the error affected the result of the trial." *Christensen v. Cober*, 206 Or App 719, 734, 138 P3d 918 (2006). Under that test, the erroneous admission or exclusion of evidence will almost always be harmless if that evidence is merely cumulative to other evidence in the record that is unchallenged on appeal. *State v. Saunders*, 221 Or App 116, 121, 188 P3d 449, *rev. denied*, 345 Or 416 (2008).

c. (§5.28) Evidentiary Error in Criminal Cases

The appellate courts will affirm a conviction notwithstanding evidentiary error if there is little likelihood of affecting the verdict. *State v. Davis*, 336 Or 19, 32, 77 P3d 1111 (2003). The court of appeals recently outlined the factors it considers in evaluating harm from evidentiary error in the context of an appeal from a criminal case:

> As the court explained in *Davis*, the correct focus of that inquiry "is on the possible influence of the error on the verdict rendered, not whether this court, sitting as a factfinder, would regard the evidence of guilt as substantial and

> compelling." [*Davis*, 336 Or at 32]. As an initial step, the court determines the particular evidentiary issue that is subject to harmless error analysis. *C.f. State v. Cook*, 340 Or 530, 544–45, 135 P3d 260 (2006) (applying that process in the context of a federal harmlessness analysis). After identifying the pertinent issue, the court considers the nature of the erroneously admitted evidence in the context of other evidence on the same issue. *See State v. Gibson*, 338 Or 560, 576–77, 113 P3d 423, *cert den*, 546 US 1044 . . . (2005) (pursuing that inquiry). That consideration involves the assessment of any differences between the quality of the erroneously admitted evidence and other evidence admitted on the same issue. *Davis*, 336 Or at 33–34 (focusing on whether the finder of fact would have regarded the evidence as duplicative, cumulative, or unhelpful in its deliberations). In addition, in determining the possible influence of the error on the verdict, we consider the importance of the erroneously admitted evidence to a party's theory of the case. *Id.* at 34 ("[T]he excluded evidence goes directly to the heart of defendant's factual theory of the case."); *State v. Perkins*, 221 Or App 136, 145, 188 P3d 482 (2008) (declining to find harmlessness where erroneously admitted evidence went "directly to the heart of [the state's] factual theory of the case") (quoting *Davis*, 336 Or at 34). "If erroneously admitted evidence relates to a 'central factual issue' to the case, it is more likely to have affected the determination than if it dealt with a tangential issue." *State v. Roller*, 201 Or App 166, 173, 118 P3d 804 (2005).

State v. Maiden, 222 Or App 9, 13, 191 P3d 803 (2008), *rev. denied*, 345 Or 618 (2009).

Although the court in *Maiden* framed its analysis in terms of evaluating the erroneous admission of evidence, the court considers the same factors when evaluating the erroneous exclusion of evidence. *See, e.g., State v. Johnson*, 225 Or App 545, 550–555, 202 P3d 225 (2009) (determining that erroneous exclusion of testimony of defendant's medical expert was not harmless). For example, the erroneous exclusion of evidence relevant to bias or interest in the case is reversible if it denies the jury an adequate opportunity to assess the credibility of a witness whose credibility is important to the outcome of the trial. *State v. Hubbard*, 297 Or 789, 800, 688 P2d 1311 (1984).

Similarly, evidentiary errors arising from a federal constitutional violation require the reviewing court to review the whole record to determine whether the evidentiary error was harmless, considering "'the importance of the [improperly admitted] testimony in the prosecution's case, whether the testimony was cumulative, the presence or absence of evidence corroborating or contradicting the

testimony of the witness on material points, . . . and, of course, the overall strength of the prosecution's case.'" *State v. Cook*, 340 Or 530, 544, 135 P3d 260 (2006) (quoting *Delaware v. Van Arsdall*, 475 US 673, 684, 106 S Ct 1431, 89 L Ed2d 674 (1986)).

d. (§5.29) Trial Errors in Criminal Cases

In criminal cases in which the defendant appeals from a judgment of conviction based on an error of state law that occurred at trial, the appellate court considers the constitutional standard for harmless error under article VII (amended), §3, of the Oregon Constitution. Although the constitutional provision does not describe how the reviewing court must determine whether the judgment was one that the trial court should have rendered, the supreme court has explained the appropriate test under that provision:

> Oregon's constitutional test for affirmance despite error consists of a single inquiry: Is there little likelihood that the particular error affected the verdict? The correct focus of the inquiry regarding affirmance despite error is on the possible influence of the error on the verdict rendered, not whether this court, sitting as a factfinder, would regard the evidence of guilt as substantial and compelling.

State v. Davis, 336 Or 19, 32, 77 P3d 1111 (2003), *quoted with approval in State v. Link*, 346 Or 187, 203, 208 P3d 936 (2009).

The reviewing court thus does not engage in weighing the evidence while disregarding the error committed to determine whether the verdict of guilt would stand. Rather, the court reviews the record in light of the error at issue and considers whether there was little likelihood that the error affected the verdict. *Davis*, 336 Or at 32. In doing so, the reviewing court may consider the relationship of the error to the jury's determination of guilt. *Davis*, 336 Or at 32 ("[I]f the particular issue to which the error pertains has no relationship to the jury's determination of its verdict, then there is little likelihood that the error affected the verdict.").

In the context of federal constitutional errors, trial errors, as opposed to structural errors, are subject to a harmless-error analysis. *Arizona v. Fulminante*, 499 US 279, 306–309, 111 S Ct 1246, 113 L Ed2d 302 (1991) (listing, with citations, examples of constitutional errors the Court held subject to harmless-error review). The federal harmless-error test requires the appellate court to determine, in light of the entire record, whether the error was harmless beyond a reasonable

doubt. "A federal constitutional error is harmless, such that the conviction will be upheld, 'if the reviewing court may confidently say, on the whole record, that the constitutional error was harmless beyond a reasonable doubt.'" *State v. Cook*, 340 Or 530, 544, 135 P3d 260 (2006) (quoting *Delaware v. Van Arsdall*, 475 US 673, 681, 106 S Ct 1431, 89 L Ed2d 674 (1986)). "The deprivation of . . . a [federal constitutional] right is harmless error when the reviewing court, in examining as a whole, can say, beyond a reasonable doubt, that the error did not contribute to the determination of guilt." *State v. Sierra-Depina*, 230 Or App 86, 93, 213 P3d 863, *rev. denied*, 347 Or 290 (2009).

e. (§5.30) Merger and Sentencing Error in Criminal Cases

Most issues arising in criminal cases after the court or a jury has rendered a verdict or the defendant has entered a guilty or no-contest plea concern errors in failing to merge counts into a single conviction and errors in imposing sentence. The appellate courts have held that failure to merge offenses, even when correcting the error will not have any affect on the defendant's punishment, is not harmless because a defendant has a substantial right to have the judgment accurately reflect his or her criminal history. *See, e.g.*, *State v. Valladares-Juarez*, 219 Or App 561, 564, 184 P3d 1131 (2008) (identifying possible ramifications of not correcting failure to merge offenses).

Procedural errors in arriving at a sentence and errors in the sentence itself will be deemed harmless unless they affect a substantial right of a defendant. *See, e.g.*, *State v. Phaneuf*, 219 Or App 640, 644, 184 P3d 1136 (2008) (erroneous denial of credit for time served when trial court lacked authority to do so was harmless because Department of Corrections must include time served in computing defendant's sentence and trial court's denial was a nullity without force and effect); *State v. Weikert*, 145 Or App 263, 266–267, 929 P2d 1070 (1996) (erroneously extended terms of postprison supervision did not prejudice defendant when the judgment correctly stated the longer term of postprison supervision for the primary offense); *State v. Nelson*, 119 Or App 84, 89–90, 849 P2d 1147 (1993) (erroneous calculation of applicable grid block for sentence did not prejudice the defendant when the error did not change the sentencing range); *State v. Tremillion*, 111 Or App 375, 376, 826 P2d 95 (1992) (erroneous imposition of indeterminate sentence did not prejudice defendant when sentence was to run concurrently with longer sentence). For the same reason, sentencing errors may be deemed harmless

if it is clear that, on remand, the trial court could, and would, impose the same total term of punishment. *State v. Marshall*, 219 Or App 511, 517–518, 183 P3d 241 (2008) (declining to find error harmless because the record did not make it certain that the trial court would impose the same punishment).

Of course, when a sentencing error affects the punishment to which the defendant is subject, the error is reversible. *See, e.g., State v. Pryor*, 96 Or App 181, 184, 772 P2d 431 (1989) (erroneous imposition of dangerous-offender sentence would be prejudicial, even though length of sentence imposed was within maximum allowed without dangerous offender designation, because other consequences follow from such a designation). The appellate courts have concluded that even sentencing errors that might expose a defendant to the possibility of greater punishment prejudice a defendant's rights and merit reversal. *See, e.g., State v. Dotter*, 114 Or App 1, 3, 833 P2d 1369 (1992) (erroneous reservation of 120 custody units when imposing probation, when maximum units authorized was 90, prejudiced the defendant because even though defendant had not yet been required to serve excessive units, he could be required to serve 30 more units than authorized by law).

Procedural errors, too, may merit reversal, even though the trial court otherwise imposed a lawful sentence, when the error affects a defendant's rights. *State v. Arnold*, 214 Or App 201, 215, 164 P3d 334 (2007) (reversible error when a trial court imposes a greater sentence based on an erroneous belief that it cannot, as a matter of law, impose a lesser sentence, which denies the defendant's right to be considered for the lesser sentence); *State v. French*, 208 Or App 652, 657–658, 145 P3d 305 (2006) (reversible error when a trial court exercised discretion to impose greater punishment by modifying a sentence without notice to, and outside the presence of, the defendant because it affected the defendant's right to make statements and arguments against the modification sentence).

B. (§5.31) Affirmance Despite Apparent Prejudice

There are several doctrines that allow or require a reviewing court to affirm notwithstanding error committed by the trial court without regard to, or despite, prejudice resulting from the error. Namely, a reviewing court may affirm notwithstanding a trial court error in reaching a specific ruling if there is an independent basis that supports the ruling. That doctrine, the "right for the wrong reason" doctrine, is borne out of judicial economy. *See* §5.32. The "invited error"

doctrine, which provides that a party who invites error cannot seek reversal because of it, is derived from principles of fairness. *See* §5.33.

1. (§5.32) The Right for the Wrong Reason Doctrine

The "right for the wrong reason" doctrine arises when a respondent invites a reviewing court to affirm a trial court's ruling on a basis other than that relied on by the trial court. A reviewing court may affirm a trial court's ruling as right for the wrong reason if the trial court relied on erroneous reasoning to reach the ruling, but the ruling is supported by another legally correct reason. *Outdoor Media Dimensions, Inc. v. State*, 331 Or 634, 659–660, 20 P3d 180 (2001). Application of the right for the wrong reason doctrine is at the discretion of the reviewing court. *Outdoor Media Dimensions, Inc.*, 331 Or at 659. Moreover, application of the doctrine is only appropriate when three conditions are met:

> "(1) . . . the facts of record [are] sufficient to support the alternative basis for affirmance; (2) . . . the trial court's ruling [is] consistent with the view of the evidence under the alternative basis for affirmance; and (3) . . . the record materially [is] the same one that would have been developed had the prevailing party raised the alternative basis for affirmance below."

State v. Shaw, 230 Or App 257, 267, 215 P3d 105, *rev. denied*, 347 Or 365 (2009) (quoting *Outdoor Media Dimensions, Inc.*, 331 Or at 659–660)).

The right for the wrong reason doctrine rests on a number of justifications: both parties have had the opportunity to present a record to meet the argument, "a trial court will not be gratuitously reversed, and if the trial court's result is, ultimately, correct, it will be affirmed on alternative grounds to avoid an unnecessary remand." *State v. Bentz*, 211 Or App 129, 134–135, 158 P3d 1081 (2007) (internal quotation omitted).

The exercise of discretion to rely on the doctrine to affirm, therefore, must also take account of whether the trial court, if it had been presented with the argument at the time it relied on its erroneous reasoning to issue the ruling, could have issued the ruling on the alternative basis: "'it is not improper to affirm the trial court; provided, of course, that the pleadings are sufficiently broad and there is sufficient evidence in the record. . . .'" *Outdoor Media Dimensions, Inc.*, 331 Or at 659 (quoting *State Farm Fire & Casualty Co. v. Sevier*, 272 Or 278, 298, 537 P2d 88 (1975)). Therefore, the court of appeals has determined that exercising that discretion to affirm on an alternative basis is inappropriate when a respondent

relies on a claim raised for the first time on appeal that by rule should have been, but was not, raised below. *See, e.g.*, *Clemente v. State*, 227 Or App 434, 439–440, 206 P3d 249 (2009) (issue preclusion); *State ex rel. Dewberry v. Kulongoski*, 220 Or App 345, 360–361, 187 P3d 220 (2008), *aff'd*, 346 Or 260 (2009) (claim preclusion); *Fox v. Collins*, 213 Or App 451, 460, 162 P3d 998 (2007) (statute of limitations).

> NOTE: Another pitfall to avoid affirmance despite alleged error is the appellant's failure to challenge all legally sufficient bases for the trial court's ruling. *See, e.g.*, *State ex rel. Dep't of Human Servs. v. Parmentier (In re Thompson)*, 203 Or App 677, 679, 127 P3d 652 (2006) (appellate court must affirm judgment terminating mother's parental rights when mother challenged one of trial court's determinations but did not challenge the other determination that was "an independent and sufficient ground for termination").

2. (§5.33) Invited-Error Doctrine

"'[I]nvited error is not a basis for reversal.'" *State ex rel. Juvenile Dep't of Multnomah County v. S.P. (In re S.P.)*, 346 Or 592, 606, 215 P3d 847 (2009) (quoting *Clay v. Pay Less Drug Stores Northwest, Inc.*, 276 Or 673, 677, 556 P2d 125 (1976)). The invited-error doctrine is quite straightforward: "[A] party who 'was actively instrumental in bringing about' an alleged error 'cannot be heard to complain, and the case ought not to be reversed because of it.'" *State v. Kammeyer*, 226 Or App 210, 214, 203 P3d 274, *rev. denied*, 346 Or 590 (2009) (quoting *Anderson v. Oregon R. Co.*, 45 Or 211, 216–217, 77 P 119 (1904)). The doctrine applies "when a party has invited the trial court to rule in a particular way under circumstances that suggest that the party will be bound by the ruling or will not later seek a reversal on the basis of that ruling." *Kammeyer*, 226 Or App at 214. "The goal of the rule is to ensure that parties who make intentional or strategic trial choices do not later 'blame the court' if those choices prove to be unwise." *Kammeyer*, 226 Or App at 214 (quoting *Crawford v. Jackson*, 252 Or 552, 555, 451 P2d 115 (1969)).

VI. (§5.34) CONCLUSION

This chapter reveals to the appellate attorney the myriad of factors that must be taken into account when either selecting issues to present as an appellant or

deciding how to argue for affirmance as a respondent. As noted in §5.11, an issue's merit is often the driving force when selecting which issues to raise on appeal. But a seasoned appellate attorney would caution against believing that an appellate court will be moved to grant relief on appeal merely because the appellant is "right," that is, has the better side of a disputed legal point. The best practice in deciding whether to present an issue to an appellate court is to envision the opinion that the reviewing court would need to issue to prevail. That path almost unerringly includes determining whether the appellant preserved the same issue before the trial court, whether the issue does in fact demonstrate error below, and whether the error was prejudicial or at least cannot be deemed harmless. Because an appellate attorney must persuasively address each point to succeed on appeal, gaining familiarity with this well-worn path should provide guidance when selecting issues.

Chapter 6: BRIEFING

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I. GETTING STARTED

A. Know What Is in the Record

1. (§6.1) Generally

The parties' attorneys, particularly if involved at the trial level, will have information on the case that could be of interest on appeal—for example, excluded exhibits, arguments made in chambers about a disputed jury instruction, or testimony a witness would have given had the objection been overruled. But with rare exception, the appellate courts can only review the official record of the trial court proceedings. Thus, if the substance of the arguments, proposed testimony, or offered exhibits is not in the record, it is as if it never happened. The attorney will save time and effort if he or she identifies the contents of the record as early as possible in the process.

2. (§6.2) Court File

The attorney should obtain a copy of the court docket, either through an electronic service or by getting a copy from the courthouse file room.

> NOTE: Although the entire court file will eventually be sent to the court of appeals, in civil cases the file remains in the county courthouse until after the briefing is complete. In criminal cases the practice is varied, but the record is usually transmitted to the court of appeals before the appellant's brief is prepared and filed.

The attorney should make sure that the court file contains everything he or she thinks it should. For example, sometimes during the chaos of trial, an attorney will give proposed jury instructions or bench memorandums to the judge and the opposing attorney but forget to take an original to the file room. If those missing documents are important to an issue on appeal, the sooner they are determined to be missing the more likely the attorney will be able to convince the court that the

record should be supplemented with these documents, or to convince the opposing attorney to stipulate to supplementing the record.

The other reason to review the court docket is to make sure all of the pleadings are in the file before starting to formulate an argument. If the pleading file is incomplete, the attorney may not realize, for example, that the case was tried on the basis of allegations in a third amended complaint filed two days before trial rather than the second amended complaint.

If the case has gone through trial, the attorney will also want a list of all exhibits offered and received. Some court reporters provide this with the transcript. If not, the attorney should get a copy from the court file of the exhibit record prepared by the judge's clerk, which should be in the court file.

A searchable electronic transcript can save significant time in preparing the brief. Some court reporters will provide an electronic copy, or a scanner and software can be used to create a searchable PDF version of the transcript.

Whatever form the transcript takes, the attorney will want to read all potentially pertinent portions of the transcript. While reading the transcript, the attorney should make a note of, or copy verbatim, the location and substance of any potentially relevant testimony, attorney statements, or rulings. Organizing that list by topic will both help in formulating arguments and save time later when starting to search for testimony to support an argument.

B. (§6.3) Identifying Issues to Raise on Appeal

The appellant will need to raise at least one issue, in the form of an assignment of error (*see* §6.23), and the respondent should consider whether there are any rulings that should be raised as a cross-assignment of error. For a better understanding of when to cross-appeal, see chapter 3. The difference between a challenge that must be raised by cross-appeal and a challenge that can be raised through a cross-assignment of error in the responsive brief is illustrated in ORAP 5.57(2).

> A cross-assignment of error is appropriate:
>
> (a) If, by challenging the trial court ruling, the respondent does not seek to reverse or modify the judgment on appeal; and
>
> (b) If the relief sought by the appellant were to be granted, respondent would desire reversal or modification of an intermediate ruling of the trial court.

For a good discussion of the proper use of cross-assignments, see *Murray v. State*, 203 Or App 377, 388, 124 P3d 1261 (2005), in which the court explained that "a cross-appeal is not necessary where a respondent raises an alternative ground on which the judgment may be upheld, where reversal or modification of the judgment is not sought, or where reversal of an intermediate ruling of the trial court is sought if the case is remanded," but emphasized that the argument the plaintiffs characterized as a cross-assignment actually required a cross-appeal because they were seeking modification and reversal of part of the judgment. *See also McCollum v. Kmart Corp.*, 228 Or App 101, 122 n 15, 207 P3d 1200 (2009), *vacated on other grounds*, 347 Or 707 (2010) ("Prudent practitioners are well-advised, if there is any doubt as to whether a matter should be cross-appealed, to err on the side of caution. The only additional cost of cross-appealing is a filing fee; conversely, erroneously cross-assigning error rather than filing a cross-appeal is fatally, jurisdictionally, preclusive—and may result in a malpractice judgment.").

Whether the briefing process is started with specific ideas about rulings to challenge on appeal, or whether nothing is known about the proceedings below, the attorney will want to review the record for rulings that could potentially provide a basis for reversal. Any rulings on pretrial motions, rulings during trial, and any posttrial rulings should be considered. A list of possible errors should be made and then researched to determine if there is a meritorious basis for assigning error to the ruling.

Whether identifying potential assignments of error or responding to the opponent's assignments, the attorney should consider the points discussed in §§6.4–6.8 for each assignment (or potential assignment) of error.

1. (§6.4) Strength of the Basis for Arguing that the Ruling Was Wrong

Although the Oregon Court of Appeals sits in panels to decide cases, opinions are those of the court as a whole. If an existing court of appeals decision addresses a similar issue in a manner contrary to the attorney's argument, the court will generally feel bound by it, and the attorney will need to be prepared to explain how his or her case is distinguishable or why the precedent should be overruled. When there is existing supreme court precedent contrary to the attorney's argument, the attorney will need to be prepared to explain how his or her case is

distinguishable. If the case is not distinguishable, the brief should concede that the case is indistinguishable, but explain that the issue is being preserved for the purpose of a later supreme court challenge. If the attorney is not willing to take the case as far as the supreme court, it probably is not worth raising the issue because the court of appeals is generally not receptive to arguments that some supreme court precedent has been "effectively overruled."

2. (§6.5) Whether the Ruling Was Bad Enough to Win a Reversal

Some trial court rulings are largely or even entirely a matter of discretion. Thus, although trial counsel may have made a convincing argument that a particular exhibit was more prejudicial than probative, the attorney should not expect the court's ruling to be reversed absent unusual circumstances. See chapter 5 for a detailed discussion of standards of review.

Another obstacle is the rule that establishing error is not sufficient; the court can reverse only if the error is one "substantially affecting the rights of a party." ORS 19.415(2). The appellant bears the burden of establishing that the alleged error meets that standard. *Shoup v. Wal-Mart Stores, Inc.*, 335 Or 164, 173–174, 61 P3d 928 (2003). For example, the attorney may have a strong argument that a particular evidentiary objection clearly should have been granted, but if the same evidence came in the next day without objection, the argument would not go far.

3. (§6.6) Whether Claim of Error Was Preserved

For each assignment of error, the attorney must be able to "demonstrate that the question or issue presented by the assignment of error timely and properly was raised and preserved in the lower court." ORAP 5.45(4)(a). This formal briefing requirement is discussed in more detail in §6.23. But because preservation rules so strongly constrain what issues the court will address on appeal, it is one of the questions that the attorney should consider before he or she even starts the briefing. Case law establishes specific preservation requirements for particular rulings. *See* §§5.15–5.22.

C. (§6.7) Researching and Planning the Argument

There is no "correct" way to start writing the argument. If the attorney has a general familiarity with the controlling law, he or she may be able to draft a rough, "ideal" argument before conducting research. But at some point, the attorney will

want to read as many Oregon cases as possible and every statute or rule dealing with the issues in the case.

D. (§6.8) Knowing the Audience

Judges on the court of appeals hear oral argument on a new batch of cases every week, amounting to something in the range of 20 to 30 cases per month for which the judge must read briefs—not including the dozens of cases submitted without oral argument each month. Unlike some courts in other states, reading the briefs is not a task that the Oregon appellate judges farm out to law clerks or staff attorneys. Because this extensive reading must fit in with the more visible workload of writing opinions, it's not surprising that some judges on the court of appeals carry a stack of briefs to read almost everywhere they go. This means that judges appreciate briefs that are focused, concise, and complete. It also means that if seeing an exhibit or portion of the record will help the judge understand an argument, the attorney should make sure the element is attached to the brief in the excerpts of record (*see* §§6.40–6.42).

II. BASIC REQUIREMENTS FOR THE OPENING BRIEF

A. (§6.9) Formatting Requirements

The specifications for a brief are set forth in ORAP 5.05.

(1) Font size and type. Effective January 1, 2011, the brief must be printed in either Arial or Times New Roman font of a size no smaller than 14 point—this applies to both the text and the footnotes. The text of the brief must be double-spaced. A Certificate of Compliance in the form of ORAP Appendix 5.05-2 must be attached to each opening, answering, combined or reply brief. ORAP 5.05(2)(d) (effective January 1, 2011).

(2) Margin limits. "Printed or used area on a page shall not exceed 6 1/4 x 9 1/2 inches, exclusive of page numbers, with inside margin 1 1/4 inches, outside margin 1 inch, top and bottom margins 3/4 inch." ORAP 5.05(4)(e).

(3) Page numbering. "Pages shall be consecutively numbered at the top of the page within 3/8 inch from the top of the page." ORAP 5.05(4)(h). Pages of the excerpt of record and any appendixes are separately numbered.

(4) Binding rules. The rule specifically mentions "plastic comb binding" or, for certain briefs, stapling in a manner that allows the pages to lie flat when the brief is open. ORAP 5.05(4)(i).

(5) Brief covers. ORAP 5.05(4) provides the color scheme and content requirements.

B. (§6.10) Page Limit

Effective January 1, 2011, an opening brief to the supreme court may not exceed 14,000 words and an opening brief to the court of appeals may not exceed 10,000 words. If a party is unable to determine the word count, then the brief to the supreme court may not exceed 50 pages and a brief to the court of appeals may not exceed 35 pages. ORAP 5.05(2).

Pages devoted to the index of contents and index of authorities are not counted in these page limits. ORAP 5.05(2)(a). If there is a good reason for needing additional length, the court will consider granting a motion to exceed the page limit. ORAP 5.05(3). However, the rule requires that the attorney make "every reasonable effort to file the motion not less than seven days before the brief is due," and failure to "make every reasonable effort" may cause the court to deny the motion as untimely. ORAP 5.05(3)(a).

C. Terminology

1. (§6.11) References to Parties

The brief must refer to the parties by their designation in the proceedings below, rather than as appellant and respondent. ORAP 5.15. However, if modifying the official designation will make the argument easier to follow, then the attorney should do so. For example, in an insurance coverage case, landlord-tenant case, or certain employment disputes, the labels "plaintiff" and "defendant" may only signify which side filed first. Adding a reference to the parties' role in the dispute may add clarity—labels such as "plaintiff-insurer" and "defendant-insured," or simply "landlord" and "tenant" or "employer" and "employee." Similarly, if the case has groups of defendants or plaintiffs whose interests are identical for purposes of the appeal, it can be helpful to refer to them collectively in the brief—that is, "the Jones Defendants." But the court should always be told what is being done. A footnote inserted at the first reference to the parties to

explain the designation that will be used throughout the brief will be helpful to the court.

2. (§6.12) References to Record

A list of acceptable, common abbreviations is set forth in ORAP 5.20. The list includes "Tr" for transcript, "ER" for excerpt of record, and "Ex" for exhibit. As with party designations, experienced lawyers often insert a footnote to explain their citation forms, especially if there is anything unusual (such as transcript volumes that must be cited by date because they are not consecutively paginated—e.g., TR Vol IV, 9/13/07).

D. Index of Contents and Index of Authorities

1. (§6.13) Index of Contents

The first page of the brief, separately numbered from the text (e.g., "page i," "page ii") must include a list of the parts of the brief and the pages at which they are found. The substance of each assignment of error must be set forth in the index; not simply a generic label like "Assignment of Error 1." ORAP 5.35(1). Attorneys often comply with this requirement by simply copying the language of the assignments of error into the index entry.

2. (§6.14) Index of Authorities

As part of the separate numbering sequence (in addition to the index of the contents of the brief discussed in §6.13), this index should list all authorities, separately and grouped by the type of authority. ORAP 5.35(3).

III. (§6.15) STATEMENT OF THE CASE (ORAP 5.40)

The opening brief should begin with "a clear and concise statement of the case." ORAP 5.40. Although this introductory material can seem tedious or pro forma, it would be a mistake to underestimate the value of this opportunity to orient the busy appellate judges reading the brief to the kind of case being briefed and to the issues on which the attorney is focusing. It is also important that each of the required jurisdictional statements be succinctly addressed so that the judges can move on to reading the arguments without being distracted by concerns about whether the case is even properly before the court.

The statement of the case must address under separate headings each of the points discussed in §§6.16–6.22.

A. (§6.16) Nature of the Action and Relief Sought

The brief must contain a statement of the nature of the action or proceeding and the relief being sought. ORAP 5.40(1). The recitation should be brief, but it is also a critical part of introducing the judges to the case. The goal is for the judges to read and absorb cogent arguments rather than be distracted by wondering about the nature of the case. This section should not be argumentative, but can give a flavor of the case through undisputed details, such as: "This is an action for breach of contract brought when plaintiff stopped supplying fish for defendant's cannery," or "This is an action for adverse possession involving a strip of land that plaintiffs have occupied for 20 years." This section should also describe any significant preliminary rulings, such as limited judgments that disposed of some claims or grants of partial summary judgment that narrowed the issues. This section should conclude with a description of the ultimate outcome of the case below and a statement that reversal (or reversal and remand) is sought on appeal.

B. (§6.17) Statutory Basis of Appellate Jurisdiction

The opening brief must contain a "statement of the statutory basis of appellate jurisdiction." ORAP 5.40(3). In a typical case, this can be a simple reference to the statute giving the court of appeals jurisdiction over the case, such as ORS 2.516 and 19.205 for appeals from civil trial decisions. However, if the case involves any of the complications discussed in the jurisdiction chapter (chapter 2)—such as an appeal from an order or a series of judgments that in combination finally resolve the case—then an explanation should be given to the court as to why it has jurisdiction under the particular facts of the case.

C. (§6.18) Date of Entry of Judgment

The dates of any limited judgments as well as the general judgment and any supplemental judgments must be listed in the opening brief. ORAP 5.40(4). This is particularly necessary if the limited or supplemental judgments have some bearing on establishing jurisdiction or the timeline for appeal.

D. (§6.19) Basis for Agency Jurisdiction

In cases on review from a state or local agency, the opening brief must set forth the jurisdictional bases for the actions of the agency and trial court (if a trial court was involved). ORAP 5.40(5).

E. (§6.20) Questions Presented

This is when the preliminary information that has been set forth begins to draw the judges into the merits of the appeal. A number of factors must be taken into consideration, such as the following:

(1) How many questions should be presented?

Often each assignment of error will present one question of law, but sometimes one alleged error will present more than one question. For example, assigning error to the admission of an exhibit may raise a question about the meaning of one of the hearsay exceptions as well as a question about the proper exercise of discretion under OEC 403 (ORS 40.160). Other times the errors alleged in multiple rulings may all come down to the same basic question; for example, a question about the meaning of a statute.

(2) What should the questions look like?

The questions presented by the case should be set forth "without argument," in general terms, and in the form of a question. ORAP 5.40(6). In the Oregon appellate courts, questions are questions; they end with a question mark and do not start with the word *whether*. The questions presented should be framed as legal questions that go beyond the particular case at hand—thus it may be helpful to think of the difference between the holding of a court opinion and the conclusion of the opinion. However, enough detail should be included that the attorney is not simply presenting a generic question that has been answered in countless past opinions.

EXAMPLE

DO: "Is evidence of the defendant's excessive speed 10 minutes before the collision relevant to whether the defendant was speeding at the time of the collision?"

DO NOT: "Whether the trial court commited reversible error in allowing Ms. Smith's testimony . . . " (too tied to the specific case).

DO NOT: "Whether evidence of a vehicle's speed is relevant to determining negligence of the driver?" (too generic).

Some appellate experts prefer to break a longer question into multiple shorter sentences. This is permitted but not required.

EXAMPLE

DO: "ORS 742.061 generally requires insurance companies to pay the attorney fees of an insured who has recovered through litigation an amount greater than that tendered by the insurer under the policy if 'settlement is not made within six months from the date proof of loss is filed with an insurer.' When plaintiff orally reported the theft of his vehicle to his adjuster, was this 'proof of loss' under the statute?"

DO: "Did the plaintiff's oral report of the vehicle theft to his adjuster constitute the filing of 'proof of loss' for purposes of triggering the insurer's obligation under ORS 742.061 to either settle the claim or pay the attorney fees incurred by an insured who recovers through litigation an amount greater than that tendered by the insurer?"

The questions presented must be set forth without argument. ORAP 5.40(6). Some experts recommend phrasing the questions presented in such a way that there is only one answer—the answer that lets the party presenting the questions prevail. But this advice may be difficult to balance with Oregon's requirement that the statement of the question must be presented without argument. An argumentative statement would be one, for example, that presents as undisputed a statement of fact or law about which there is a dispute.

If the answer to this question is too obviously "yes," that will be a tip-off to the court that the question is probably argumentative (or perhaps not the right question). The judges know that if the appellant is presenting the question, then the trial court has already answered the question no, which means the dispute between the parties is probably more complex than a question with only one answer would suggest. To maximize credibility, the attorney framing the question should aim for phrasing that is honest, but ideally still suggests that the answer the attorney wants is a better choice.

EXAMPLE

DO: "When the only evidence of negligence was testimony from a lay witness that the defendant's car was speeding five to 10 minutes before the collision, did the trial court err in allowing the jury to infer that the defendant was speeding at the time of the collision?"

DO NOT: "Was the defendant entitled to a directed verdict when the plaintiff presented no evidence to support the claim of negligence?"

PRACTICE TIP: Just because the questions come before the argument in the brief does not mean that they have to come before the argument in the drafting process. It is often easier to fine-tune the language of the question once the argument has been drafted.

F. (§6.21) Summary of Arguments

The summary of arguments presented in the brief is to be "concise." ORAP 5.40(7). If presented well, the summary gives the judges a useful "road map" to the arguments the brief will present. As an aid in organizing the arguments for the brief, it can be helpful to draft a summary of argument at the outset. However, the arguments are likely to evolve over the course of researching and drafting the brief. Thus the attorney should make sure that the final version of the summary of argument accurately reflects the arguments presented. Drafting, or revising, the summary of arguments late in the process can also be a good way to test the persuasiveness of the arguments formed. If the argument cannot be summarized in concise points, it probably will not be understood by anyone but the attorney who drafted it.

G. (§6.22) Summary of Facts

Facts pertinent to the arguments presented should be set forth in narrative fashion with citations to places in the record where the facts appear. ORAP 5.40(8). This is a summary, thus the emphasis is on what is pertinent. *State ex rel. Kilian v. West Linn*, 112 Or App 549, 554 n 3, 829 P2d 1029 (1992) (the court declined to strike the appellant's brief for setting forth facts as a "26 page witness-by-witness recitation of the testimony favorable to them," but noted "that such a recitation rarely creates a useful impression of the facts, and we discourage the use of that format").

The facts are to be set forth in a nonargumentative fashion. The challenge is to present the factual summary in a manner that promotes the client's view of the case but is not argumentative. Reciting favorable but undisputed evidence can be a good way to walk this line. Although it is tempting to draft a factual summary that includes only the "good points," or that presents facts in an argumentative manner, that approach is both contrary to the rule and ultimately not beneficial. If the summary does not present the facts in a manner helpful to the court, the court will

turn elsewhere to determine the facts—such as to the opponent's brief—and the attorney will have lost this opportunity to frame the discussion. *Birmingham v. Dept. of Forestry (In re G & N Land Exchange)*, 209 Or App 736, 740 n 3, 149 P3d 600 (2006) (the court ignored the petitioner's statement of facts because "[t]he argumentative nature of the statement of facts in petitioners' opening brief renders it unhelpful to our understanding of the case and is not consistent with ORAP 5.40(8)").

The facts should be recited in a manner consistent with the standard of review. When crafting the narrative statement, it is important to keep in mind the standard by which the court will be reviewing the arguments presented. For example, in an appeal challenging the denial of a directed verdict, the court must review the facts in the light most favorable to the plaintiff, so a factual summary that ignores that standard will likely be deemed unhelpful and simply ignored. On the other hand, the respondent in that appeal, or an appellant challenging a grant of summary judgment, has the luxury of the flip side of the light-most-favorable standard and can appropriately present a factual narrative that includes only the good points.

> PRACTICE TIP: Failure to present the facts in a manner consistent with the standard of review makes the review more difficult for the court and may seriously undermine the client's cause. See *Storm v. McClung*, 168 Or App 62, 64 n 1, 4 P3d 66 (2000), *aff'd and remanded,* 334 Or 210 (2002), in which the court noted that:
>
> > In its brief, the City fails either to describe the facts most favorably to the jury's verdict or to do so in narrative form. Rather, it summarizes each witness' testimony seriatim, requiring the court to attempt to determine the relationship between the events that the various witnesses described. In the first respect the City fails to comply with the appropriate standard of review. In the second, it violates both ORAP 5.40(8) and the basic principles of effective appellate practice.

Worse, an attorney who shades the facts in a way that is inconsistent with the standard of review, or who ignores bad facts, will quickly get a reputation for doing so, and it can be a hard reputation to overcome.

IV. (§6.23) ASSIGNMENTS OF ERROR

The appellant (or petitioner) must specify those rulings of the trial court or agency that are being challenged on appeal. ORAP 5.45. Appendix 5.45 of the Oregon Rules of Appellate Procedure sets forth examples for assignments of error. It is worth paying careful attention to how the assignments are framed, because it can ultimately determine how and even whether the court reviews the arguments. *State v. Cartwright*, 173 Or App 59, 61–62 n 1, 20 P3d 223 (2001), *rev'd and remanded on other grounds*, 336 Or 408 (2004) ("Appellate practitioners would be well advised to understand that the requirement in ORAP 5.45 for precisely assigning error is not a mere formality but serves to frame the issues, to focus the parties' arguments, and to better identify the legal principles that apply to particular rulings."). Sections 6.24–6.27 discuss specific strategies for properly framing assignments of error.

A. (§6.24) Precise Explanation of the Ruling or Action Being Challenged

Each assignment of error should explain precisely the ruling or action being challenged. An assignment of error must be specific enough that there is no question as to exactly what action is claimed to be error. Failure to describe the precise objection can impair the court's ability to appreciate the argument and may even cause the court to refuse to consider the argument. *See Moser v. DKN Ind.*, 191 Or App 346, 348, 82 P3d 1052 (2004) (majority and dissent started from very different interpretations of what appellant was really complaining about in assignment of error); *Wilmoth v. Ann Sacks Tile & Stone, Inc.*, 224 Or App 315, 332, 197 P3d 567 (2008) ("precisely assigning error is not a mere formality but serves to frame the issues, to focus the parties' arguments, and to better identify the legal principles that apply to particular rulings").

The attorney must remember that it is the ruling that is being challenged, not the mistaken reasoning that led the trial court to the ruling. *Hummel v. Land Conservation & Dev. Comm'n,* 152 Or App 404, 412 n 3, 954 P2d 824 (1998) (improper to divide single assignment of error into several pseudo-assignments based on different arguments that the agency rejected); *Oak Crest Constr. Co. v. Austin Mut. Ins. Co.*, 137 Or App 475, 478 n 2, 905 P2d 848 (1995), *aff'd,* 329 Or 620 (2000) (various reasons for ruling on motions for summary judgment are not independently assignable as error).

EXAMPLE

DO: "The trial court erred in allowing John Smith to testify to his observations of the defendant's speed."

DO NOT: "The trial court erred in concluding that John Smith's testimony was not more prejudicial than probative."

B. (§6.25) Error Must Be Assigned to the Correct Ruling

Certain rulings depend on earlier rulings, and the earlier ruling is the one to which error must be assigned. For example, the denial of a motion for a new trial based on insufficiency of the evidence is not appealable; it must have been preceded by the denial of a motion for directed verdict—and that is the ruling to which error must be assigned. *Erwin v. Thomas*, 267 Or 311, 516 P2d 1279 (1973).

C. (§6.26) Error Must Be Separately Assigned to Each Challenged Ruling

Sometimes multiple erroneous rulings flow from the same fundamental error. Although the attorney is permitted to combine closely related rulings for argument purposes, each distinct, objectionable action of the trial court needs its own assignment of error. *Mark v. State Dep't of Fish & Wildlife,* 158 Or App 355, 359 n 3, 974 P2d 716 (1999). Failure to comply with this requirement can be fatal to the appeal.

> The section of the brief concerning preservation of error and the accompanying argument address multiple rulings that involve different legal issues and different preservation concerns. Thus, we are unable to determine what rulings are being challenged in Farmers' fifth claim of error and whether the bases for those challenges were preserved below. Accordingly, to the extent that Farmers' assignment encompasses something other than the instructional error previously discussed, we also decline to reach those claims of error because they are not adequately framed under our rules of appellate procedure.

Strawn v. Farmers Ins. Co., 228 Or App 454, 475, 209 P3d 357 (2009). *See also Olsen v. Deschutes County*, 204 Or App 7, 30, 127 P3d 655 (2006) (Judge Edmonds in dissent emphasized that the defendant's choice to combine in a single assignment of error three rulings subject to different standards of review caused the majority to ignore the ruling on which Edmonds would have reversed).

Even when not fatal, failure to separately assign error to distinct erroneous rulings may earn the attorney unwanted public criticism. *Rogers v. RGIS LLP*, 229 Or App 580, 584 n 5, 213 P3d 583, *modified and adhered to on recons.*, 232 Or App 433 (2009) ("[P]laintiff combined her arguments regarding the attorney fee award to defendant and the limitation of her attorney fee award in a single assignment of error. ORAP 5.45 requires that each issue be raised as a separate assignment of error and, although here we will consider both issues, we discourage that practice."); *Landauer v. Landauer*, 221 Or App 19, 23–24, 188 P3d 406 (2008) ("The grouping of a trial court's rulings under a single assignment of error hinders the evaluation of each individual ruling on its merits and is a practice that should not be followed.").

The following cases provide examples of lessons that other attorneys have learned the hard way.

(1) It is not enough to discuss the erroneous ruling in the argument if no error was assigned to the ruling. *McCathern v. Toyota Motor Corp.*, 160 Or App 201, 233, 985 P2d 804 (1999), *aff'd,* 332 Or 59 (2001).

(2) If error is assigned to a ruling as to one party only, later arguing it as to all or as to other parties will not get a reversal as to the other parties. *Bocci v. Key Pharms., Inc.*, 158 Or App 521, 541 n 11, 974 P2d 758 (1999).

(3) If error is assigned to a ruling, the error should be addressed in the argument; it is not enough just to assign error and refer the court to a trial memorandum to find the argument. *Lichau v. Baldwin*, 166 Or App 411, 423, 999 P2d 1207 (2000), *aff'd in part, rev'd in part,* 333 Or 350 (2002).

(4) It is not sufficient to raise the claim of error in a footnote. *Confederated Tribes of the Siletz Indians v. Employment Dep't,* 165 Or App 65, 81 n 8, 995 P2d 580 (2000); *Noren v. Board of Chiropractic Examiners*, 117 Or App 337, 341 n 3, 843 P2d 1021 (1992); *see* §6.38.

(5) It is not sufficient to raise the claim of error for the first time in the reply brief. *Compare Stanich v. Precision Body & Paint*, 151 Or App 446, 456, 950 P2d 328 (1997) (new claim in reply brief would not be considered), *with Cardinell Crest Homeowners Ass'n v. Lord,* 160 Or App 452, 457 n 2, 982 P2d 35 (1999) (clarification of issues in reply brief is permissible as long as issues are first raised in opening brief).

(6) A claim of error cannot be raised at oral argument if it has not been set forth in the brief as an assignment of error, complete with the required demonstration that it was preserved. *Golden 'B' Products, Inc. v. Clark Equipment Co.*, 60 Or App 39, 41–42, 652 P2d 832 (1982).

D. (§6.27) Each Assignment of Error Must Be Preserved

For each assignment of error the attorney must "demonstrate" that the claim of error was "timely and properly" preserved. ORAP 5.45(4). Failure to satisfy this requirement can be fatal. ORAP 5.45(4)(c) ("The court may decline to consider any assignment of error that requires the court to search the record to find the error or to determine if the error properly was raised and preserved."); *but see State v. Burghart*, 120 Or App 408, 412, 852 P2d 922 (1993) ("Defendants failed to specify the pertinent portions of the record where the specific rulings at issue were made. However, because our review has not been impeded, we exercise our discretion and reach the issue.").

> PRACTICE TIP: The attorney should first determine what type of objection was necessary in the trial court to preserve the ability to challenge the particular ruling. See chapter 5 for a discussion of what is necessary to preserve claims of error to particular rulings. Then the attorney should find where in the record the necessary argument, motion, objection, or offer of proof was made.

Sometimes preservation will be a primary issue in the appeal. Although the requirement to demonstrate preservation is often merely a formality before jumping into the argument, there are cases that turn on whether the trial attorney's efforts were sufficient to preserve the claim of error for appeal. In some instances, the attorney's ability to make a particular argument on appeal will depend on how close the trial attorney came to making the same argument. Although it may seem safer to wait and see whether the answering brief even challenges the sufficiency of the trial attorney's preservation, this strategy has pitfalls. Even if the opponent fails to catch a potential question about preservation, it is almost certain that the judges on the court of appeals will be alert to the possibility. The risk in waiting to see if the judges notice a preservation problem is that the judges may notice, and decide, the preservation issue without the opportunity for any argument from the attorneys.

Thus, if there is any doubt about preservation, the attorney should explain how the actions of the trial attorney satisfied the requirements, in light of the purpose of the preservation requirement. *See State v. Wyatt*, 331 Or 335, 343, 15 P3d 22 (2000) (a party must provide a trial court with an explanation of the party's position that is clear and "specific enough to ensure that the court can identify its alleged error" and correct it immediately before an issue is deemed preserved for appellate review); *Northwest Natural Gas Co. v. Chase Gardens, Inc.*, 328 Or 487, 500, 982 P2d 1117 (1999) (the purpose of this requirement is "'to advance goals such as ensuring that the positions of the parties are presented clearly to the initial tribunal and that parties are not taken by surprise, misled, or denied opportunities to meet an argument'" (quoting *Davis v. O'Brien,* 320 Or 729, 737, 891 P2d 1307 (1995))). For more detail on the way in which challenges to different types of rulings are preserved, see chapter 5.

> PRACTICE TIP: When preservation is an issue, it is often wise to lay out under the "Preservation" subheading the actions of the trial attorney that arguably constitute preservation (e.g., the objection, if any; the ruling, if any; the cites to the record) and explain that the argument section will address in detail why these actions sufficiently preserved the claim of error.

Sometimes an error is so obvious that the attorney thinks the court might address it even though the claim of error was not preserved. The supreme court has set forth the procedure that an appellate court should follow before exercising its discretion to reach a claim of error that was not adequately preserved. The error must be an error "of law"; "it must be 'apparent,' i.e., the point must be obvious, not reasonably in dispute"; the error "must appear 'on the face of the record,' i.e., the reviewing court must not need to go outside the record to identify the error or choose between competing inferences, and the facts constituting the error must be irrefutable." *Ailes v. Portland Meadows, Inc.*, 312 Or 376, 381–382, 823 P2d 956 (1991) (quoting *State v. Brown*, 310 Or 347, 355–356, 800 P2d 259 (1990)).

Even when an error meets all of those criteria, the attorney will need to convince the court that it should exercise its discretion to reach the error in the case at hand. As the court in *Ailes* explained, "A court's decision to recognize unpreserved or unraised error in this manner should be made with utmost caution. Such an action is contrary to the strong policies requiring preservation and raising of error." *Ailes*, 310 Or at 382. For an expanded discussion of plain error, see chapter 5.

PRACTICE TIP: As in cases involving a questionable preservation of a claim of error, a clear failure of preservation should be acknowledged in the statement of preservation, and then the argument section should address in detail why the court should reach the unpreserved plain error in light of the procedure described in *Ailes*.

V. (§6.28) STANDARD OF REVIEW

Under each assignment of error, the opening brief must set forth the subheading "Standard of Review" and describe the applicable standard or standards by which the court reviews the particular claim of error, along with citation to authority. ORAP 5.45(5). For substantive guidance on the appropriate standard of review, see chapter 5.

Some rulings—particularly evidentiary rulings—have a multifactor standard of review. If part of the ruling is reviewed for errors of law and part reviewed for abuse of discretion, for example, that should be explained. *SAIF Corp. v. Avery (In re Avery)*, 167 Or App 327, 331 n 1, 999 P2d 1216 (2000) ("Claimant cites ORS 183.482(7) and (8) and states that review is 'for errors of law, abuse of discretion, and substantial evidence.' Such a recitation is neither helpful nor consistent with ORAP 5.45(6), which requires the brief to identify the 'applicable standard of review.' Normally, the applicable standard of review is not a multiple choice answer."). Appendix 5.45 to the Oregon Rules of Appellate Procedure has a good example of a multifactor standard of review.

Similarly, if there is some variation in how the ruling is reviewed in comparison to other similar rulings, that should be made clear. For example, although a trial court's ruling on preliminary questions is typically reviewed under a sufficiency-of-the-evidence standard, the supreme court has said that it will deviate from that standard for certain recurring questions—such as a trial court's ruling on the admissibility of expert testimony based on scientific evidence. *State v. O'Key,* 321 Or 285, 320, nn 44–45, 899 P2d 663 (1995). Convincing the court to apply a less deferential standard of review can make the difference between winning and losing the appeal.

PRACTICE TIP: The statement of the standard of review should be more than just a generic recitation. The court is best helped with an explanation of how the case is analyzed under the applicable standard of review.

NOT HELPFUL: "This court reviews a trial court's evidentiary ruling 'for an abuse of discretion or errors of law, as appropriate to the subject matter.' *State v. Barnes*, 208 Or App 640, 648, 145 P3d 261 (2006)." (This statement does not tell the court how the particular ruling at issue in this appeal should be reviewed.)

HELPFUL: "The trial court excluded the testimony solely because it believed 'only experts can offer an opinion regarding the speed of a vehicle.' That ruling is reviewed for errors of law. *State v. Barnes*, 208 Or App 640, 648, 156 P3d 261 (2006)."

VI. (§6.29) THE ARGUMENT

Following the statement of the standard of review (*see* §6.28), the opening brief should then set forth an argument for each assigned error. ORAP 5.45(6). The argument section is where all of the preliminary work falls into place—the research, issue selection, identification of error, and standard of review will influence what is put in the argument. A good argument gives the court everything it needs to understand how to reach the attorney's desired conclusion but cuts out redundant, collateral, or confusing discussions that might distract from a clear path to that conclusion. The attorney should remember that good legal writing is simply good writing. Thus the attorney should write clearly and concisely, and draw on sound advice he or she may have gleaned about organizing and editing written work.

PRACTICE TIP: Although the intended audience is very intelligent and experienced, it is important to remember that the judges have not been as immersed in the facts and law of the case as the attorneys writing the briefs, thus the judges may need the attorneys to spell out connections that the attorneys think are obvious. Asking an intelligent nonlawyer (spouse, receptionist, etc.) to read and try to follow the arguments can provide surprisingly valuable feedback for the attorney writing an appellate brief.

A. (§6.30) Combine Assignments When Practicable

After separately assigning error and separately stating the standard of review for each challenged ruling, there is no need to waste valuable brief space repeating arguments on assignments that raise the same legal question. The Oregon Rules of Appellate Procedure specify that when "several assignments of error present

essentially the same legal question, the argument in support of them may be combined so far as practicable." ORAP 5.45(6). However, when assignments challenge rulings that rest on essentially different grounds, the argument as to each should be segregated. *Northwest Natural Gas Co. v. Georgia-Pacific Corp.*, 53 Or App 89, 91 n 2, 630 P2d 1326 (1981) ("The hazards of not doing so are apparent in this case: parts of defendant's argument do not appear to relate to any particular assignment of error and, in some instances (n1, *supra*), there are assignments of error on which there is no specific argument.").

B. (§6.31) Keep the Applicable Standard(s) of Review in Mind When Drafting the Argument

Whether the trial court's ruling was error depends to a great extent on the amount of discretion afforded to the trial court. Some rulings a trial court makes entail no discretion at all (such as purely legal rulings) and are reviewed without any deference to the conclusions of the trial court. Other rulings can involve an aspect of discretion mixed with legal requirements (such as whether to admit certain evidence). For still other rulings—such as factual determinations or denying a directed verdict—the appellate court will view the factual record in the light most favorable to the party who prevailed on the issue. If an attorney submits an argument that ignores the standard of review, the attorney wastes valuable brief space and an opportunity to convince the court that his or her client's position is the correct one.

For example, if the challenged ruling is one for which the appellate courts defer to the trial court's discretion, such as exclusion of testimony as more prejudicial than probative under OEC 403 (ORS 40.160), the argument on appeal must do more than simply repeat the arguments made to the trial court. When review is for abuse of discretion, it is not enough to show the court of appeals why the trial court could have or should have ruled differently; the attorney needs to show the court of appeals how the trial court's ruling was "unjustified by, and clearly against, reason and evidence." *Bloomfield v. Weakland*, 224 Or App 433, 444, 199 P3d 318 (2008) (describing what it means for a trial court to abuse its discretion).

Similarly, if the attorney wants to argue that the trial court should have granted a motion for a directed verdict, it would be a waste of time to argue about the credibility of the plaintiff's witnesses or the superior credentials of his or her

experts. If the evidence was admitted and could support the verdict, the attorney must accept it, unless it is possible to raise a challenge to admission of that evidence as well.

But if the problem is the way the trial court interpreted the governing statute, then the attorney has the advantage of an error-of-law review standard. The attorney can then raise all of the arguments he or she raised in the trial court knowing they will be freshly considered by the appellate court.

C. (§6.32) Show Both Error and Reversible Error

It is not enough for the appellant to establish that a ruling was erroneous and that the claim of error was preserved. To obtain a reversal, the appellant must establish that the alleged error was one "substantially affecting the rights of a party." ORS 19.415(2); *Shoup v. Wal-Mart Stores, Inc.*, 335 Or 164, 61 P3d 928 (2003).

D. (§6.33) Keep the Argument Tone Professional

There is nothing to be gained, and potentially much to lose, with ad hominem attacks on the trial judge and opposing counsel. *Tahvili v. Wash. Mut. Bank*, 224 Or App 96, 108, 197 P3d 541 (2008):

> We have repeatedly, in both published opinions and public professional fora, condemned *ad hominem* attacks on trial judges as offensive and improper. Such "scorched-earth" tactics, when coupled—as they almost invariably are—with lurid and misleadingly incomplete descriptions of the record—are counterproductive. They impair, rather than assist, the appellate process.

E. (§6.34) Deal with Weaknesses from the Outset

Drafting a brief that raises the strongest possible arguments for a client's position is not enough. At some point the attorney should also identify the key obstacles that must be overcome in order to prevail. Although it may be tempting to keep quiet about obstacles that the attorney sees, but that neither the trial court nor the opponent identified below, this tactic can be very risky. By waiting to see if the opponent finds the argument, the attorney loses the advantage of being the first to frame the issue. Or worse, the attorney can lose the opportunity to address the argument at all. Even if the attorney has correctly surmised that the opponent will never identify the client's biggest obstacle, the attorney's arguments will be considered by three judges, their law clerks, and possibly a few staff attorneys.

One of those people will likely notice the obstacle, but that person might not think of the argument around the obstacle that the attorney decided to omit from the brief.

F. Cite Authority Wisely

1. (§6.35) Do Not Just Rely on Common Sense

No matter how well established an attorney believes a legal principle to be, actual authorities should be cited. If the principle is truly well established, a simple case cite should do. However, if there is any room for debate, the attorney should explain the case being cited and explain why that means the outcome of the appeal should be as urged in the brief.

2. (§6.36) Understand Which Authorities Are Binding or Persuasive in Oregon Courts

Oregon courts interpret and apply Oregon law, or occasionally federal law. If the issue is a matter of Oregon law, Oregon cases should be cited unless there is a good reason that cases from another jurisdiction should be persuasive authority. One good reason might be that the Oregon rule, statute, or constitutional provision at issue in the case was patterned after a similar provision from another jurisdiction. Authorities interpreting that other jurisdiction's provision may be persuasive to Oregon courts, particularly if written before Oregon borrowed the text. *See State v. Hirsch*, 338 Or 622, 644, 114 P3d 1104 (2005) (authorities describing Indiana Constitutional provision shed light on meaning of Oregon Constitutional provision patterned after it); *Pearson v. Philip Morris, Inc.*, 208 Or App 501, 504, 145 P3d 298 (2006) (when Oregon statute modeled after federal statute, court would "assume that the legislature intended to incorporate interpretations of that provision existing at the time that the Oregon statute was enacted"); *State v. Cornell*, 109 Or App 396, 400, 820 P2d 11 (1991), *aff'd,* 314 Or 673 (1992) (because OEC 801 (ORS 40.450) is derived from Federal Rules of Evidence 801, "we may look to federal cases applying the federal rule as interpretive guides"). *See* INTERPRETING OREGON LAW §§2.18, 7.11 (OSB Legal Pubs 2009). The attorney should tell the court the reason why the cited non-Oregon case should be persuasive. Although older Oregon opinions tended to rule in a particular way with no reason beyond the fact that some court somewhere else ruled that way, this no longer occurs.

If the issue is one of federal law, the attorney should not simply assume that the court will follow the Ninth Circuit's interpretation of a federal statutory or constitutional provision. Only decisions of the United States Supreme Court are binding on Oregon state courts. *Van De Hey v. United States Nat'l Bank,* 313 Or 86, 95 n 9, 829 P2d 695 (1992). However, the court may be open to considering well-settled law from the Ninth Circuit or other circuits as persuasive. *Compare Miller v. Pac. Trawlers, Inc.*, 204 Or App 585, 612 n 23, 131 P3d 821 (2006) ("Although not bound by federal decisions from the Ninth Circuit, Oregon courts often give particular weight to those decisions because Oregon lies in that circuit."), *with Shaw by & through Zollner v. PACC Health Plan*, 322 Or 392, 402 n 8, 908 P2d 308 (1995) ("When the federal courts are well-settled on a specific interpretation, this court may choose to follow that interpretation, if the underlying reasoning is persuasive. However, federal court decisions, other than those issued by the Supreme Court, are not binding on this court.").

3. (§6.37) Use "String" Cites Sparingly

The brief should not include repetitive case citations. As a general rule, string cites are unnecessary and detract from the argument's substance. If 20 cases recite the same principle, it may be most helpful to cite only the most recent supreme court or court of appeals decision, perhaps with a parenthetical indication that it cites an earlier decision. String cites may occasionally aid an argument, such as emphasizing how long a particular principle has been recognized or how broadly a particular principle has been applied. The point will be made more clearly, though, if each citation is followed by a brief parenthetical description of the case.

> PRACTICE TIP: Even when there is a good reason for giving the court a series of citations, it is often more effective to cite only a couple of the best authorities in the text and include the rest in a footnote.

4. (§6.38) Effective Use of Footnotes

Footnotes are a good place to put information that the court may want to look at but that interrupts the primary argument if included in the body of the brief. Citation to a list of extra supporting authority (as suggested in §6.37) is one helpful use of footnotes. Explanations of abbreviations or party designations used in the brief are other types of information that may be less distracting in a footnote. Footnotes can be a helpful place to put background or procedural details that the

attorney wants the judges to understand but that are not directly relevant to the attorney's argument.

However, if the information is important to the argument, it should not be put in a footnote. Important information generally includes the authority being citing for a proposition. Although law reviews and other legal publications may stick every citation in a footnote, Oregon appellate judges prefer that this practice be avoided in briefs.

A footnote should never be used to raise something as important as a claim of error. *See Confederated Tribes of the Siletz Indians v. Employment Dep't,* 165 Or App 65, 81 n 8, 995 P2d 580 (2000).

The footnote text must be printed in the same font size as the rest of the brief. ORAP 5.05(4)(f).

VII. (§6.39) THE CONCLUSION

Although the rules do not require that a brief contain a conclusion, it is a helpful way to provide a final, short statement reminding the court (and the attorney) of the relief sought and why it should be granted. The conclusion is not a summary of the attorney's argument; the summary goes at the beginning of the brief. An effective conclusion should be able to be stated in one sentence, or two at the most.

EXAMPLES:

(1) "Because the jury was given an inaccurate and misleading instruction, the judgment should be reversed and the case remanded for retrial without the erroneous jury instruction."

(2) "For the reasons set forth above, the verdict should be reversed and judgment entered for the defendant as a matter of law. At a minimum, the verdict should be reversed and the case remanded for new trial."

VIII. (§6.40) EXCERPT OF RECORD

The opening brief must include an excerpt of record that consists of copies of the documents that are part of the record and that the judges will most need to look at when reading the arguments. ORAP 5.50. The attorney should keep in mind that the judges read the briefs in preparation for oral argument without the

benefit of the trial court file. Therefore, if the argument is about an important exhibit or trial court colloquy, the element should be put in the excerpt.

A. (§6.41) Contents

The excerpt of record must contain the following:

(1) Pleadings relevant to the issues raised on appeal; for example, a copy of a complaint dismissed under ORCP 21 or a copy of a challenged jury instruction;

(2) "[A]ny written opinion or findings of fact issued by the trial judge addressing a ruling to which error is assigned" (or the transcript of any oral rulings);

(3) The "judgment document or order being appealed";

(4) "[A]ny other document and part of a document that either is essential to or significantly helpful in understanding the arguments developed in the brief." ORAP 5.50(2)(a)–(b).

> PRACTICE TIP: It can be useful to make copies of documents that are potential candidates for the excerpt of record very early in the process. When referring to a document for an argument, the attorney should make a copy for easy reference and future use in the excerpt.

B. (§6.42) Technical Specifications

The excerpt should consist of copies of actual documents included in the record, rather than summaries of the contents. Portions of documents are permitted as long as the omission does not change the meaning of the portion included and as long as the omission is noted, if not apparent. ORAP 5.50(6)(a).

The excerpt is limited to 50 pages, unless the court has allowed a timely motion for more length. ORAP 5.05(2).

The excerpt is bound with the brief unless the court has allowed a motion for an excerpt longer than 50 pages. ORAP 5.05(3)(b).

IX. (§6.43) APPENDIXES

The excerpt-of-record rule (*see* §§6.40–6.42) has significantly reduced the need for an appendix. Any material taken from the case record should be included in the excerpt of record, not the appendix. ORAP 5.52. However, appendixes can

still be used effectively when the judges will be aided by ready access to some authority pertinent to the arguments. For example, in a case turning on the construction of a long statute, the attorney may wish to quote only pertinent excerpts of the statute in the body of the brief and then attach the full statute in an appendix. The same would apply to the legislative history of a statute when only select passages are quoted in the body of the brief. ORAP 5.52.

X. SPECIAL REQUIREMENTS FOR THE RESPONDENT'S BRIEF

A. (§6.44) Response to Statement of the Case

The respondent's brief must include a heading "Statement of the Case," under which the respondent must specify which portions of the appellant's statement are accepted and specify the reason for any disagreement with the appellant's statement. ORAP 5.55(2). The respondent's summary of argument will of course be different. The respondent may also want to restate the factual summary or questions presented to capture the respondent's theory of the case.

> PRACTICE TIP: The respondent should carefully examine the various portions of the appellant's statement of the case. If the respondent disagrees with the presentation of any portion of the appellant's statement, then he or she should restate it. But if the respondent has no meaningful dispute with how the appellant has presented the facts, it is sound practice (and welcomed by the judges) to accept the appellant's statement of the facts and move on. In fact, if the attorney feels the need to present a respondent's statement of the facts, the reason for doing so should be explained—for example, "because plaintiff omits some key factual details" or "because defendant failed to recite the facts in the light most favorable to plaintiff." If the respondent merely wishes to supplement the appellant's statement of facts, the judges appreciate it if the respondent's brief states just the additional facts and specifies that the respondent otherwise accepts the appellant's statement.

B. (§6.45) Response to Assignment of Error

The respondent's brief must set forth a concise answer to each of the assignments of error preceding the response argument. ORAP 5.55(1).

The pertinent case law should be reviewed to determine whether there is any reason to disagree with the standard of review cited by the appellant.

The court of appeals has tended to take a hard line against appellants on preservation. The respondent should carefully scrutinize the record and the pertinent preservation case law. If the appellant failed to bring an issue or even an argument to the trial court's attention, the respondent should explain why that presents a reason to reject the appellant's challenge.

C. (§6.46) Cross-Assignments of Error

If there is an aspect of the judgment on appeal that the respondent wishes to modify or reverse, then the respondent should have filed a notice of cross-appeal. By contrast, a cross-assignment of error is used to challenge a ruling of the trial court that the respondent wants to see reversed only if the appellant obtains the relief sought. ORAP 5.57(2). Cross-assignments are raised following the argument section of the answering brief and must follow the same format as assignments of error.

> PRACTICE TIP: Some special considerations enter into whether to challenge an intermediate ruling with a cross-assignment. The appellant may not care whether the court of appeals gets the impression that the trial judge had a poor understanding of the law or a tendency to make rash decisions, but that is not the impression the respondent wants to create. Thus, before cross-assigning error to a particular ruling, the attorney should consider whether that will undermine the respondent's message.

D. (§6.47) Supplemental Excerpt of Record

If the appellant's excerpt of record omits documents that the respondent believes are either required or helpful to the judges as they prepare for oral argument, these documents should be put in a supplemental excerpt of record following the body of the respondent's brief. ORAP 5.50(5).

XI. (§6.48) REPLY BRIEF

Reply briefs are automatically permitted—but optional—in most civil and administrative appeals. For certain other types of cases, reply briefs are permitted only with permission from the court. These types of cases are listed in ORAP 5.70(3).

Effective January 1, 2011, the reply brief is limited to 4,000 words in the supreme court and 3,300 words in the court of appeals. ORAP 5.05(2)(c). This is

not enough space to rehash all of the arguments made in the opening brief, and that is not the point of the reply. In fact, if the issues are straightforward, and the response brief just makes the same arguments that the appellant has already refuted, there is probably nothing to be gained from filing a reply brief. The appellant should keep in mind that the judges will have the appellant's opening brief at hand when reading the response brief; they do not need a second brief that simply repeats an abbreviated form of the arguments set forth in the primary brief. Filing a reply brief simply to have the last word is unnecessary, as the appellant has the last word at oral argument.

However, reply briefs are important in some cases. If the respondent's brief raises an argument that the appellant did not anticipate, or suggests an alternative basis for affirming the trial court, the appellant should set forth a response to those new arguments in a reply brief. If the appellant disagrees with some new claim the respondent has made about the record or about what a particular case stands for, that should be spelled out in a reply brief. Or, if the response brief makes a surprising concession, the appellant may want to highlight that and explain how the concession alters the scope of the dispute. If a reply brief is filed, it must be concise and effective.

If the respondent has raised cross-assignments of error or has cross-appealed, the answer to those arguments should be set forth in a separately designated section of the reply brief and should follow the formatting rules for a respondent's brief. ORAP 5.57.

If the respondent has raised cross-assignments of error, or has cross-appealed, the respondent is allowed a brief in reply to the appellant's answering arguments, as long as the case is one for which replies are otherwise permitted. ORAP 5.57(4).

Chapter 7: ORAL ARGUMENT

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*The author wishes to acknowledge John R. Faust, a legendary appellate advocate who authored the Oral Argument chapter in the 1993 version of the Appeal and Review publication, which served as a foundational resource for the current chapter.

I. (§7.1) INTRODUCTION

This chapter is intended as a primer for attorneys with limited or no oral argument experience before the Oregon state appellate courts. It is a distinct privilege to practice in the state appellate courts, and this chapter is intended to successfully guide the attorney through the oral argument experience.

Sections 7.2–7.33 address oral argument generally, with emphasis on cases in the court of appeals, and §§7.34–7.38 address aspects that are unique to argument practice in the Oregon Supreme Court.

As a general matter, the attorney should visit the Oregon Judicial Department Web site (https://portal.courts.oregon.gov/egov/portal) and review ORAP chapter 6, which contains the state appellate court rules relating to oral argument.

II. PRE-ARGUMENT-DAY PROCESS

A. (§7.2) Preliminary and Final Calendars

Filing a brief in a case is a major accomplishment. The next step is to wait. The appellant has to await the respondent's answering brief. Then the respondent waits for the appellant's decision to file or move to file a reply brief.

> NOTE: Appellants in most cases may file a reply brief as a matter of right. *See* chapter 6. Appellants in certain case categories must move the court for leave to file a reply brief. ORAP 5.70.

Sometime after the briefing is completed (the respondent has filed the answering brief or the appellant has filed a reply brief) the case is considered "at issue" and the court of appeals will docket the case on a "preliminary" oral argument calendar. Because the court of appeals hears a very high volume of cases, the preliminary oral argument date may be several months after the case is fully briefed.

The court of appeals issues the preliminary calendar approximately six weeks before the argument. The preliminary calendar is not final; the court can change it at any time. The court of appeals does not identify the panel of judges until the calendar is final.

The court of appeals is required by statute or rule to prioritize certain categories of cases. For example, the oral argument for juvenile dependency cases is held no later than 56 days after the opening brief is filed. ORAP 10.15(7).

The court of appeals issues the final calendar approximately two weeks before argument. *See generally* Oregon Court of Appeals Internal Practices Guidelines 14 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

1. (§7.3) Notification of Argument Date and Return of Notification

The court of appeals will issue a written notice to the attorneys identifying the date and location for the oral argument and whether it will be held during the morning or afternoon session.

Each attorney should complete, sign, and return the notice to the court, identifying the attorney who will argue the case. If an attorney intends to waive oral argument, he or she should indicate that opposing counsel has been notified of the waiver. *See* §7.6.

> PRACTICE TIP: The court of appeals and the calendar clerk try to be accommodating. An attorney may notify the clerk of a scheduled vacation, and the clerk will take that into consideration when setting the preliminary calendar.
>
> CAVEAT: Effective January 1, 2011, the court assumes waiver of oral argument unless an attorney requests argument. ORAP 6.05.

2. (§7.4) Settlement Before Argument

If the parties reach a settlement before argument, the court of appeals calendar clerk should be contacted to cancel the argument. If settlement does not occur and the case goes forward, the court of appeals will reschedule the case for oral argument in due course.

B. (§7.5) Requesting a Setover

While the calendar is still preliminary, the court of appeals will allow one administrative setover for good cause. After conferring with opposing counsel, a request for setover is made by contacting the court of appeals calendar clerk at Calendar.Clerk@ojd.state.or.us. *See* Oregon Court of Appeals Internal Practices Guidelines 14 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

However, when the calendar is final, a setover is strongly disfavored. An attorney must move for the setover, identify the reason for the request, state the opposing attorney's position, and include a certificate of service on all parties. The court will allow the setover only in exceptional circumstances.

C. (§7.6) Waiving Oral Argument

Previously, the court assumed oral argument unless the parties waived it. Effective January 1, 2011, the court now assumes waiver of oral argument unless the parties request it by filing a "Request for Oral Argument" in the form shown in ORAP Appendix 6.05. The request must be directed to the attention of the court's calendar clerk. ORAP 6.05(1)(a).

If one party can not attend oral argument or chooses to waive oral argument, the party should notify the court and the other parties at least 48 hours before the argument. ORAP 6.10(5).

If an attorney fails to appear at oral argument, the court may deem the cause submitted without oral argument as to that party. The attorneys for the other parties are not precluded from presenting oral argument. ORAP 6.10(5)(b).

> COMMENT: The decision to waive oral argument is significant. An attorney should discuss with other, more experienced appellate attorneys whether waiver is appropriate in the attorney's case.

D. (§7.7) Respondent's Confession of Error

If the respondent submits an answering brief that both confesses error to all the assignments of error and raises no objection to the relief the appellant requested, the respondent should notify the court by letter of the confession when the answering brief is filed or shortly thereafter. If the respondent fails to do so, the appellant may notify the court by letter that the respondent appears to have confessed error. If the court agrees, the case is submitted without argument. ORAP 6.05(3).

E. (§7.8) Pro Se Party

When one party appears pro se in the court of appeals and the pro se party is not an attorney representing him- or herself, the case is submitted on the briefs without oral argument. ORAP 6.05(2).

F. (§7.9) Court of Appeals Panels

The court of appeals has 10 judges: the chief judge and nine judges. ORS 2.540–2.550. The nine judges form three panels comprised of three judges per panel. ORS 2.570. Occasionally, a panel may contain a senior judge or a judge pro tempore. ORS 2.570; *see* Oregon Court of Appeals Internal Practices Guidelines 2 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

The court of appeals hears oral argument only in a three-judge panel setting. It does not hear oral argument en banc.

III. PREPARING FOR ORAL ARGUMENT

A. (§7.10) The Attorney's Role

Oral argument in the court of appeals is limited to 15 minutes per side. ORAP 6.15(2)(a). Oral argument does not serve the same function as the brief. It is an opportunity to focus the court on the issue or issues that the attorney believes turns the case and to address the concerns expressed in the court's questions.

The judges will have read the briefs before argument and had a pre-argument conference, but they may not have read the relevant portions of the record or relevant case law. An appellate attorney's fundamental role is to act as a trusted resource for the court for matters that are outside the briefs, such as factual

and procedural matters in the record and questions of law implicated by the issues on appeal but only partially addressed in the briefs.

> COMMENT: An attorney serves as a resource as well as an advocate. The resource role is significant. Laying the predicate factual and legal foundations for the analysis enhances the attorney's credibility and advances the client's interests.

B. (§7.11) Argument Preparation Planning

An attorney is expected to know the record intimately, to know the law relevant to the issues on appeal, to understand the opposing attorney's position, and to be willing and able to engage the court in discussion as to all three matters.

Preparation for oral argument involves gathering relevant information, reducing it to its essence, and organizing it into a coherent presentation. Although each side is limited to only 15 minutes (ORAP 6.15(2)(a)), the process of gathering, sorting, synthesizing, and organizing the information takes hours and even days of preparation.

> PRACTICE TIP: The attorney should set a schedule for pre-argument preparation. Preparation should begin at least two weeks before the argument and should include reviewing the briefs and setting a schedule for record review, case law review, and outline preparation. The goal is to be conversant in the facts and legal issues in the case.

1. (§7.12) Selecting Assignments of Error to Argue

The appellant's attorney may have written multiple assignments of error, but it is extremely difficult to orally argue multiple assignments of error competently in the brief period of time allotted for oral argument. The attorney should choose the one or two assignments of error that are most likely to obtain the result the client seeks. Waiving oral argument on an assignment of error is not a waiver of the legal argument. The court will consider the arguments in the brief that the attorney does not address in oral argument. ORAP 6.15(4).

> PRACTICE TIP: The attorney should be prepared to discuss all the assignments of error, even those he or she does not intend to argue. The court may have questions or wish to discuss different assignments of error than those the attorney selected.

2. (§7.13) Argument Outline

The argument outline is the written end product of the preparation. It is not a speech to be read to the court, but a quick one- to three-page reference guide for use during argument. The outline typically contains the statement of the issue presented, the critical facts of the case, the procedural context for the issues to be discussed, and the logical progression of the oral argument.

> PRACTICE TIP: Because the court of appeals hears several arguments during each session, it may have read the briefs in the case several days before oral argument. After acknowledging the court and counsel and introducing him- or herself, the attorney should consider orienting the court to the general subject area before identifying the specific legal issue to be addressed in the argument.
>
> EXAMPLE: "May it please the court and counsel, my name is ____ and I represent ____, the appellant (or respondent) on appeal. This case presents a search and seizure issue. The question in this case is whether the officer seized the defendant for state or federal constitutional law purposes when he approached the defendant on a public bus at 1 a.m., asked the defendant where he was traveling, and asked for identification."

The attorney should identify the two or three major legal propositions or concepts that are critical to his or her argument and that the attorney wants the court to remember after argument. The outline should be prepared accordingly, by noting the key concepts early in the argument outline.

The court of appeals has an extremely high volume of cases and it, too, is interested in managing its caseload efficiently. The best argument should not be buried at the end of the outline or presentation. If existing precedent is on point and controls the substantive analysis, the court should be told so early in the argument: "This case is controlled by *Smith v. Jones*, 181 Or App 24."

3. (§7.14) Exhibits and Visual Aids

If the attorney wants the court to inspect an exhibit during oral argument, then the attorney must arrange to have the exhibit transferred from the trial court. ORAP 6.15(8). *See* Oregon Court of Appeals Internal Practices Guidelines 19 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

Visual aids are the exception, not the norm, in appellate oral argument. They can be useful, if they are simple and quickly comprehensible. One risk is the visual aid may distract the court from the presentation when discussing material unrelated to the visual aid.

> PRACTICE TIP: It is inadvisable for an attorney with limited or no experience to use a visual aid until he or she has developed a modicum of experience in the appellate courts. The basics should be learned before experimenting.

4. (§7.15) Viewing the Courtroom and Court Proceedings Before Argument

At any given time the court of appeals has approximately two months of cases on its argument calendar. The calendar typically has several cases set on the morning and afternoon dockets.

If an attorney has no experience arguing before an appellate court, he or she should try to visit the court while it is in session to become familiar with the physical layout, to observe the conduct and presentations of other attorneys, and to develop a sense of the questions posed by the court.

5. (§7.16) Memorandum of Additional Authorities

Before argument, a party may file a memorandum of additional authorities without leave of the court. ORAP 5.85(1). After argument, a party must move the court for leave to file a memorandum of additional authorities. If the court allows the motion, the attorney may file the memorandum. ORAP 5.85(1).

The purpose, form, and procedure for filing a memorandum of additional authorities and a response memorandum are set forth in ORAP 5.85. A memorandum of additional authorities and a response memorandum may not exceed two pages, without leave of the court. ORAP 5.85(2).

6. (§7.17) Practicing the Presentation

Writing an outline is not the same as orally presenting it. When giving voice to a presentation the attorney may notice gaps in the logic, or places where he or she may need a particular turn of phrase to communicate the idea.

The attorney should rehearse the presentation alone at least once. The presentation is too long if it cannot be completed well within the time reserved for

argument. The court will likely ask questions, so the uninterrupted presentation should be several minutes shorter than the 15 minutes allotted for the argument.

If resources are available, the attorney should practice his or her argument before a panel of attorneys who are familiar with the briefs and will ask questions.

Discussing the argument with nonlawyers may also be helpful. If an attorney can explain the argument to the satisfaction of a nonlawyer, he or she is then a long way toward being fluent in the material and able to communicate it simply.

IV. ORAL ARGUMENT DAY

A. (§7.18) Time and Place

The court of appeals generally hears argument in the Supreme Court Building at 1163 State Street, Salem, though it sometimes sits in various locations around the state. ORAP 6.20. Metered parking is available on the street outside the court in Salem. The main entrance is on State Street. When entering the courthouse, the attorney must sign in at the security desk. The courtroom is on the third floor of the building.

The attorney must check in with the bailiff, who sits immediately inside the courtroom doors, before 9 a.m. for the morning session and before 1:30 p.m. for the afternoon session. *See* Oregon Court of Appeals Internal Practices Guidelines 15 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

If the attorney's case is scheduled first on the argument calendar, the attorney may proceed directly to one of the forward counsel tables nearest the bench. If the attorney is second on the calendar, he or she should consider sitting at one of the counsel tables farther from the bench; otherwise, the attorney should sit on an available chair or couch along the walls of the gallery.

> PRACTICE TIP: The attorney should check the calendar regularly because cases scheduled before his or her case may come off the calendar or be submitted on the briefs without argument.

B. (§7.19) Time Allotted for Oral Argument

By rule, the court allots 15 minutes to the appellant and 15 minutes to the respondent. ORAP 6.15(2)(a). When two or more parties are on one side of a

cause, the parties divide the allotted time among themselves, unless the court orders otherwise. ORAP 6.15(1)(c).

> CAVEAT: Effective January 1, 2011, reference to argument in the court of appeals was deleted from ORAP 6.15(1). The effect of the amendment on the practice in the court of appeals is not yet known.

> NOTE: Authority for requesting additional time for oral argument is provided in ORAP 6.15(3). The motion must be filed at least seven days before the argument date. In practice, the court will allow the motion only in exceptional cases.

The appellant's attorney should inform the bailiff when checking in of the amount of time he or she wishes to reserve for rebuttal. *See* Oregon Court of Appeals Internal Practices Guidelines 15 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf). Only the appellant has rebuttal; the respondent does not have surrebuttal. The appellant can reserve up to five of the allotted 15 minutes for rebuttal. ORAP 6.15(2)(b).

> PRACTICE TIP: Although the norm is to reserve five minutes for rebuttal, the appellant's attorney should consider using more time in the opening and reserving less time for rebuttal if the opening argument requires substantial development or explanation.

When a case contains a cross-appeal, the cross-appellant is "deemed a respondent" for purposes of oral argument procedure. ORAP 6.15(5).

> NOTE: Other than suggesting the order of oral argument, the rule offers little guidance for oral argument procedure when a case contains a cross-appeal. In practice, the court of appeals generally allows each side a total of 30 minutes for oral argument when the case contains a cross-appeal. The attorney is advised to consult with opposing counsel before oral argument and submit a proposed schedule for the component parts of the argument.

C. (§7.20) Attire

A court appearance is a formal event. The attorney should dress professionally and formally; a jacket is the norm for men and women. Deviation from professional appearance is distracting to the court and injurious to the client's

interests. The court should be focused on the legal argument, not the attorney's attire.

D. (§7.21) What to Bring to Counsel Table

The counsel table can function as a repository for select resource materials. Typically, the attorney should bring the briefs, relevant portions of the transcript, the relevant code, and copies of case law materials. The materials on the counsel table should be organized for quick reference. The documents may serve an attorney well if there is a question about the record or case law that is not specifically addressed in the briefs.

E. (§7.22) What to Bring to the Podium

The argument outline should be brought to the podium. It is best to limit the outline to one, two, or three pages. Less is better. Excess clutter at the podium is distracting to the court and suggests lack of preparation. The attorney may move from the podium to the counsel table to retrieve materials when necessary.

> PRACTICE TIP: A three-ring binder or file folder that sits open with two pages of material should suffice: one page for the argument outline, and one page containing answers to potential questions.

F. (§7.23) Volume, Enunciation, Pace

The court must hear the oral argument to be influenced by it. The attorney should adjust the height of the microphone as necessary to ensure that his or her voice is properly amplified and the court can hear without straining.

Similarly, the court must understand the words to track the argument, thus the attorney needs to speak clearly and enunciate his or her words.

Speaking should be at a pace that allows the listener to absorb, understand, and retain interest in the argument. If the attorney speaks too quickly, the court will be less likely to track his or her argument. If the attorney speaks too slowly, the court may lose interest and become distracted. It may be helpful to adjust the pace according to the importance of the statement. When coming to a key or "the" key concept that must be won to prevail on appeal, the attorney should consider slowing the delivery for emphasis or repeating the concept.

G. (§7.24) Speaking Style

The oral argument setting is formal and the presentation is temporally limited, but the goal is to have a conversation with the court. Making and maintaining eye contact with the judges is preferable. The argument should not be read to the court. The attorney should try to limit instances of reading to quotations from the transcript, statutes, or case law, when appropriate.

Moving around at the podium and pronounced gesturing tends to be more distracting than communicative of the argument.

H. (§7.25) Appellant's Opening Remarks

The attorney must acknowledge the court and the opponent before beginning the legal analysis. The time-honored standard introduction is as follows: "May it please the court and counsel, my name is ____ and I represent ____, the appellant (or respondent) on appeal." *See* Oregon Court of Appeals Internal Practices Guidelines 19–20 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

> COMMENT: The law and oral argument are laden with formality and tradition, which provide structure, familiarity, and grounding to the communicative process. The attorney is not expected, nor is it advisable, to be "original" to capture the court's attention. A solid analysis of the issues in the case is the better means of capturing the court's attention. The focus of the oral argument is on the legal issues, not the attorneys.

After the general introduction, the court should be oriented with a well-honed statement of the controlling legal issue in the case. If the attorney intends to argue more than one assignment of error, the attorney should inform the court of the assignments that he or she intends to address before stating the first issue to be argued.

> EXAMPLE: "This case contains four assignments of error. The oral argument will focus on assignments one and three, unless the court has questions about the other assignments of error. The first assignment involves a search and seizure issue and presents the question whether the officer seized the defendant for state or federal constitutional law purposes when he approached the defendant on a public bus at 1 a.m., asked the defendant where he was traveling, and asked to see identification."

Waiving oral argument on an assignment of error is not a retraction or waiver of the assignment of error. The court will consider the arguments in the brief that the attorney does not address in oral argument. ORAP 6.15(4).

I. (§7.26) Respondent

A respondent has three primary arguments: (1) the appellant failed to preserve the error; (2) the appellant is wrong on the merits; and (3) even assuming the error is preserved and the appellant is correct on the merits, the error is not sufficiently harmful to warrant reversal.

The respondent's main advantage at oral argument is the opportunity to gauge the court's reception of the appellant's arguments. The respondent should try to "read" the court and, without abandoning other arguments, encourage the court to take whichever of the three "doors out" that most attracts the court's interest. A respondent does not waive or abandon an issue or an argument by not addressing it at oral argument. ORAP 6.15(4).

The respondent should know when to sit down. If the court appears receptive to his or her argument and has stopped asking questions, the respondent should consider asking the court if it has any more questions and end the argument.

J. (§7.27) Rebuttal

The appellant gets a rebuttal argument; the respondent does not get a surrebuttal argument.

Rebuttal is limited to the matters within the scope of the respondent's argument. The appellant may not introduce matters that were not addressed in the respondent's oral argument. For example, if the respondent indicates that he or she has nothing to add to the brief, the appellant may not offer rebuttal.

> PRACTICE TIP: The appellant should not attempt to respond to every argument made by the respondent. Rather, the appellant should identify, prioritize, and rebut the two or three arguments the respondent made that appear most threatening to the appellant's position.

K. (§7.28) Demeanor while Opposing Counsel Addresses the Court

The time during which the opposing counsel is addressing the court should be spent wisely. Notes should be taken sparingly. The time is better spent trying to "read" the court to determine the court's concerns and how to respond to them. If

awaiting rebuttal, the time can be spent identifying and prioritizing the two or three responsive points to make in rebuttal.

Grimacing, rolling one's eyes, shaking one's head, or gesturing during opposing counsel's presentation is unprofessional. The court will not be influenced by it, unless it is negatively influenced.

L. (§7.29) Limitation to Cited Authorities

Generally, an attorney is limited at oral argument to referencing authorities that are in the briefs or memorandums of additional authorities. ORAP 6.15(6). If a party wishes to refer to an authority that is not contained in the briefs or memorandums, the attorney must alert opposing counsel "at the earliest practicable time" and obtain leave from the court at the time of argument to refer to them. ORAP 6.15(6).

If the court asks a question that involves going outside the sources cited in the briefs and memorandums, the attorney must alert the court to that effect and obtain the court's permission to reference authorities that are not cited in the briefs.

> PRACTICE TIP: Depending on the significance of the uncited material, the attorney should consider moving for supplemental briefing or for postargument memorandum of additional authorities. ORAP 5.85, 6.15(6).

M. (§7.30) Eliminate the Phrase "I Think"

Oral argument involves a discussion of the law and the record, which are matters external to counsel. The attorney should try to eliminate references to him- or herself (such as "I think" or "I believe") and, instead, phrase the argument in terms of what the record is and what the law contemplates.

N. (§7.31) Questions from the Court

Questions from the court are welcomed, because they offer insight into the court's thought processes. Most legal arguments have several links in the chain that lead to a particular conclusion. The court needs to understand the linkage in an argument, and it is more likely to agree with an attorney's argument if his or her answers clarify the analytical steps leading to the desired legal conclusion.

The attorney should not start answering a question until the judge has completed his or her question. Neither should the attorney try to anticipate where the question is going or talk over the judge.

If the attorney did not hear or understand the question, he or she should deferentially ask the court to repeat or restate the question.

The question should be answered directly. If the question invites a yes or no response, the attorney should answer yes or no and then explain or qualify the answer, assuming it needs explanation or qualification.

If the attorney does not know the answer to a question, he or she should say so and offer to file a memorandum addressing the question. If the court deems it appropriate, it may order the attorney to file a memorandum within a specified number of days and set a schedule for the opposing counsel to respond.

> COMMENT: Dancing around a question does not enhance the attorney's credibility, advance the attorney's argument, or assist the client. The attorney's role is to convince the court that he or she has the better argument. The failure to answer a question directly suggests that the position has a flaw that cannot be favorably resolved. If the court asks a question that touches a weakness in the argument, the attorney should acknowledge the weakness and provide a reason why the weakness is not fatal to his or her position.

> PRACTICE TIP: Though it is advisable to learn the judges' names and past writings in the area, it is not necessary to identify the judges by name when addressing them. Using the phrase "Your Honor" instead of the individual judge's name eliminates the possibility of misidentifying the judge. One exception, though, is referencing a judge when answering a different judge: "As Judge Smith mentioned a few minutes ago . . . "

O. (§7.32) Podium Lights

The podium has two small lights, one on either side of the microphone. One is white and the other is red.

The white light comes on first and signals that two minutes remain for that segment of the argument (opening, response, or rebuttal).

If the appellant is speaking and the white light comes on during the opening argument, it means that two minutes remain in the opening. The red light comes on when the white light goes off. The red light signals that the time reserved for opening argument has been exhausted. The appellant's options are: (1) stop the argument and reserve the remaining time for rebuttal, (2) ask the presiding judge

for leave to use some of the time reserved for rebuttal to finish a thought or finish a response to the court's question, or (3) ask the presiding judge for leave to use time reserved for rebuttal to continue the opening argument. Time that the appellant uses after the red light comes on is deducted from the time reserved for rebuttal. However, time that the appellant does not use in the opening is not added to rebuttal.

If the red light comes on during the appellant's rebuttal, it means that the appellant has exceeded the allotted argument time and the attorney must stop or obtain leave from the presiding judge to either complete the thought or complete an answer to a question from the court.

For respondent, the white light means that two minutes remain in the entire argument, because the respondent does not receive surrebuttal argument. If the red light comes on, the respondent has exceeded the allotted time and must stop or obtain leave from the presiding judge to complete the thought or complete an answer to a question from the court. *See* Oregon Court of Appeals Internal Practices Guidelines 16 (2007) (available at http://courts.oregon.gov/COA/docs/OregonCourt ofAppeals-IPG.pdf).

P. (§7.33) Ending the Argument

If the attorney believes that he or she has satisfactorily communicated to the court the core concepts of the client's position, the argument should end, even if the allotted time for argument has not been exhausted.

After finishing the presentation, the attorney should inform the court that he or she has nothing further to add but is available for additional questions. The standard phrase is: "Unless the court has further questions, I have nothing further to add to the argument." If the court has no additional questions, the attorney should return to his or her seat at the counsel table. When rebuttal is concluded and the presiding judge announces that the case is submitted, the attorney should rise from the counsel table promptly and allow the next attorney access to the table.

V. (§7.34) OREGON SUPREME COURT

Most of the principles discussed in §§7.2–7.33 concerning the court of appeals also pertain to oral arguments before the supreme court. The supreme court hears argument in the same courtroom as the court of appeals. The major

differences in the oral argument before the two courts are highlighted in §§7.35–7.38.

A. (§7.35) Notification of Review Allowed and Oral Argument Date

Unlike the court of appeals, the supreme court will issue a written order that (1) announces it has allowed review; (2) sets oral argument for a "date certain"; and (3) sets a brief due date for the petitioner's brief on the merits, which is typically 28 days from the order allowing review. Respondent typically has 28 days after the filing of the petitioner's brief on the merits to file the responding brief on the merits. ORAP 9.17(2).

The Records Section of the State Court Administrator's office issues a separate document titled "Notification of Oral Argument" that directs the attorneys to notify the court within 10 days of argument "as to which attorney will present oral argument."

> NOTE: Both the order allowing review and the notification of oral argument state that the oral argument will be reset "only upon a showing of extraordinary circumstances" and further notes that if an attorney cannot present argument and is unable to locate substitute counsel, "the case will be submitted without argument as to that party."

B. (§7.36) Time Allotted for Oral Argument

Unless the court orders otherwise, each side has 30 minutes for oral argument. The petitioner may reserve up to 10 minutes for rebuttal. ORAP 6.15(1).

C. (§7.37) Check-in with the Bailiff

Unlike the court of appeals, which sits in morning or afternoon sessions and hears arguments seriatim, the supreme court sets a specific time for oral argument in each case. The court generally allots 30 minutes between cases. It will hear an argument, leave the bench, and return for the next scheduled argument. The attorney should check in before the first argument in the morning or afternoon session or during the breaks between arguments, but preferably not during another argument.

D. (§7.38) Seven Justices

The obvious difference between oral argument in the supreme court and argument in the court of appeals is the number of jurists. The difference adds a

spatial aspect that can be initially disconcerting. In the court of appeals the presiding judge is directly in front of the podium, about 12 feet away, with the other two judges immediately flanking the presiding judge. In the supreme court the seven judges are seated almost wall-to-wall in a crescent-moon configuration. While the attorney is answering a question from a justice on one side of the bench, a justice on the opposite side may ask a question, requiring the attorney to turn to locate the speaker and respond.

The number of justices also affects the number and variety of questions coming from the court, creating unique challenges with respect to managing the argument.

> PRACTICE TIP: It is strongly recommended that the attorney undergo at least one moot court before an appearance in the Oregon Supreme Court. The Oregon Supreme Court is the highest state court, and it functions as the "law announcing court" for the state. Typically, the outcome of the case will affect people and the law well beyond the interests of the client. The attorney should approach the event as well prepared as possible.

Chapter 8: MOTION PRACTICE AND THE APPELLATE COMMISSIONER

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I. SCOPE AND INTRODUCTION

A. (§8.1) Scope of Chapter

This chapter is intended to help practitioners who are less familiar with the appellate process navigate more effectively through motion practice in the Oregon Supreme Court and the Oregon Court of Appeals.

To that end, this chapter addresses motions and motion practice generally in the Oregon appellate courts, including related requests for relief in the form of applications and notices, and own-motion matters in civil and criminal appeals and on judicial review of state agency proceedings. This chapter also addresses basic form and procedure matters; specific kinds of motions encountered in many appeals, such as motions for an extension of time, motions relating to establishing the record on appeal, and motions relating to briefing and oral argument; requests for reconsideration; and matters relating to costs and attorney fees.

A second volume of Appeal and Review, which is to discuss more advanced topics and issues, is in the planning stage (expected publication in 2012). Among other topics, a chapter in that volume will address the surprisingly large number of motions that can or must be filed in the trial court in connection with an appeal, who decides motions on appeal or review, who decides motions in the appellate courts, and some specific kinds of motions, including motions relating to jurisdiction.

B. Oregon Rules of Appellate Procedure; Motions Generally

1. (§8.2) ORAPs Are Amended Periodically

This chapter assumes that the reader is familiar with the Oregon Rules of Appellate Procedure (ORAPs), particularly chapter 7 ("Motions"). The practitioner

must be aware, however, that the appellate courts amend the ORAPs effective January 1st of odd-numbered years. Also, the appellate courts from time to time adopt temporary rules that may become effective on other dates and that will remain in effect until the next regular effective date for amendments. The most current version of the ORAPs and any temporary rules can be found at the Oregon Judicial Department's Web site, www.ojd.state.or.us/Web/OJDPublications.nsf/ORAP?OpenView&count=1000.

Hard copies of the ORAPs are available for purchase from the Oregon Judicial Department, and are also published as part of West's Oregon Rules of Court (State).

2. (§8.3) Motions Generally

A motion is a request for a court order or other relief. *See* ORAP 7.05(1)(a) ("Unless a statute or these rules provide another form of application, a request for an order or other relief shall be made by filing a motion in writing."). In most instances, the request for relief must be in writing. However, ORAP 7.27 provides for oral requests for an extension of time to file a brief (*see* §§8.20, 8.41) and oral requests for relief made at oral argument (typically for leave to file a memorandum of additional authorities).

> NOTE: A common misconception is that there must be a statute or a rule that authorizes a particular motion. There is no such requirement. Although there are myriad statutes and rules that do authorize, regulate, or mention specific kinds of motions, there are many motions not mentioned in any statute or rule. ORAP Appendix 7.10-1 contains a list of commonly filed motions in the appellate courts.

C. A Motion by Any Other Name—Motion-Like Filings

1. (§8.4) Petitions, Applications, and Notices

Not all motion-like requests for relief are called motions. The Oregon Rules of Appellate Procedure (ORAPs) also provide for procedural filings in the form of petitions, applications, and notices.

Although called a petition, an application, or a notice instead of a motion, except for the title and the number of copies that need to be filed, the format for such filings, service requirements on adverse parties, and so on are the same as for

motions generally. A short description of other motion-like filings and some examples are set forth below.

(1) *Petitions.* Some requests must be made in the form of a petition, such as a petition for reconsideration of a dispositive decision of the Oregon Court of Appeals (ORAP 6.25(1)), a petition for reconsideration of a decision of the Oregon Supreme Court (ORAP 9.25), a petition for attorney fees generally (ORAP 13.10), a petition for attorney fees under ORS 20.105, a petition for damages under ORS 19.445, and a petition for reasonable expenses (including attorney fees) under ORAP 1.40(3) and ORCP 17 D (ORAP 13.25).

(2) *Applications.* Other requests for relief must be in the form of an application, such as an application to appear amicus curiae (ORAP 8.15), an application to file an interlocutory appeal in a class action (ORAP 10.05), an application for leave to submit additional evidence on judicial review under the Oregon Administrative Procedures Act, ORS 183.482(5) (ORAP 4.25), and an application for waiver or deferral of courts fees and costs (ORS 21.685; see ORAP 16.20(4), which was adopted by a temporary amendment effective February 2, 2009, and became permanent on January 1, 2011).

(3) *Notices.* The ORAPs provide for the filing of certain "notices" that, themselves, do not request any relief, but that imply that the court may wish to take certain action. Some notices may be accompanied by a memorandum or motion requesting particular relief. See, for example, a notice requesting that nondocumentary exhibits be transmitted as part of the trial court record (ORAP 3.25(1)); a notice of the death of a defendant in a criminal case, implying that the court may dismiss the appeal as moot, which notice may be accompanied by a memorandum addressing whether the court should dismiss the appeal or vacate the judgment, or both (ORAP 8.05(2)); and a notice of facts that may render an appeal moot, which notice may be accompanied by a motion to dismiss (ORAP 8.45).

2. (§8.5) Own-Motion Matters

An appellate court has the authority to take certain actions on its own motion. For example, the court on its own motion may:

(1) Strike a brief or other filing that does not comply with ORAP 5.05 (ORAP 1.20(2), 5.05(5));

(2) Dismiss an appeal for failure to prosecute (ORAP 1.20(4));

(3) Waive any rule of appellate procedure (ORAP 1.20(5)); and

(4) Consolidate cases for appeal or oral argument (ORAP 2.30).

Sometimes the court on its own motion will issue an order requiring a party, or all parties, to address certain issues, such as why the appeal should not be dismissed for want of prosecution or for what appears to be a jurisdictional defect. The form of such an order is similar to that of an order disposing of a motion, and the court expects that a party's response to the order will be in the form of a response to a motion. Furthermore, the court decides such matters in the same manner as it decides motions. When the order is directed to one party, but the adverse party wishes to address the issue so raised, the adverse party's filing would be titled a reply.

Staff members of the Office of the Appellate Court Administrator (also known as the Appellate Court Records Section) screen appeals for jurisdictional defects. If the staff person identifies what appears to be a jurisdictional defect, typically an order will issue over the signature of the chief judge or the appellate commissioner directing the appellant or the petitioner to show cause why the appeal should not be dismissed, or the order may simply dismiss the appeal or judicial review.

A respondent who spots a possible jurisdictional defect in an appellate case initiating document is faced with the decision whether to incur attorney fees by preparing and filing a motion to dismiss or to do nothing and hope that the court itself will spot the same deficiency and take appropriate action on its own motion.

> PRACTICE TIP: If time is important, the respondent should consider affirmatively filing a motion to dismiss an appeal that has an apparent jurisdictional defect. Typically, it can take the court up to a month to screen a case-initiating document and issue an order raising a jurisdictional defect. If more time than that passes without the court issuing an order, the screeners may have missed the defect. Therefore, if time is of the essence, the practitioner should go ahead and file a motion to dismiss.

II. BASICS OF FORM AND FILING

A. (§8.6) Form of Motions in General

ORAP 7.10 sets forth the form requirements for motions (and responses to motions), including requirements regarding paper size, font size, and spacing.

> PRACTICE TIP: It behooves the practitioner to read and comply with those requirements. Although failure to follow the requirements may not result in the motion being denied (or a response ignored), it may annoy the decision-maker reading the motion. It is not in the best interests of the party to file a motion or a response that annoys the decision-maker, who may find the filing to be less persuasive than a filing that does comply with the rules.

The rule also requires that certain information regarding the parties' lawyers (and self-represented parties) be included in the motion or response. ORAP 7.10(1).

Subsection (5) of ORAP 7.05 is also relevant. The rule requires that parties "be referred to by their designation in the appellate court" (i.e., appellant, petitioner, or respondent), and the rule discourages hyphenated designations (such as "plaintiff-appellant or appellant-cross-respondent"). ORAP 7.05(5). However, in motions in domestic relations cases, the rule provides that the "parties shall be referred to as husband or wife, mother or father, or other appropriate specific designations." ORAP 7.05(5).

> PRACTICE TIP: In other cases, the drafter may refer to the parties by their statuses in the case, such as buyer or seller, employer or employee, and so on.

The first page of a motion or response must contain the case caption and a descriptive title. ORAP 7.10(1)(a)–(d). See §§8.7–8.8 regarding motion titles.

> PRACTICE TIP: The drafter should include a short statement of all relief sought on the first page of the motion and, if the motion is more than two or three pages in length, restate the relief sought at the conclusion of the motion. If the relief sought is stated at both the beginning of the motion and in the conclusion, the drafter should review and compare the two statements to ensure that they are consistent. Occasionally the statements are not consistent, leaving the adverse party and the court wondering what relief the party really wants.

B. Motion Titles

1. (§8.7) Motion Titles Generally

Pursuant to ORAP 7.10(1)(b), a motion (or a response to a motion) must include a title that is descriptive of the motion (or response). To aid the practitioner in selecting an appropriate title, the appellate courts have developed a list of commonly used motion titles, which are found in Appendix 7.10-1 to the Oregon Rules of Appellate Procedure. Note that there are two lists, one for motions generally and one for motions for extensions of time.

The appellate courts' development of lists of commonly used motion titles was driven by the appellate courts' adoption of a new case- management system, with the ability to track data about motions and to produce statistical reports. The use of consistent motion titles allows the courts to collect useful information about the volume of certain motions, changing trends in motion practice, and so on.

With some trepidation, the appellate courts included a motion type of "Other," recognizing that the courts would not be able to identify and categorize every conceivable motion that a party might need to file. The danger of allowing use of "Other" as a motion title is that parties will fail to conscientiously inspect the list of commonly used motions, and will label a motion as an "Other" when, in fact, the relief sought reasonably fits into one of the listed types of motions.

> PRACTICE TIP: The pratitioner should always inspect the list of commonly filed motions to determine whether one or more of the listed motions accurately describe a particular motion. Staff in the court clerk's office review motions as necessary to describe them in the case register and, in doing so, may accurately describe a motion labeled "Other" as one of the commonly filed motion types. However, parties should not rely on that practice, which depends on the experience, skill, and workload of the staff person. The case register is a more useful tool for both the court and practitioners to the extent that motions are appropriately labeled by the person filing the motion.

2. (§8.8) Motion Titles in Expedited Cases

In addition to including a descriptive title in the caption of a motion (*see* §8.7), in some instances a motion must also identify the case as an expedited case. The Oregon Rules of Appellate Procedure include provisions relating to expedited

cases in the Land Use Board of Appeals, certain Land Conservation and Development cases, and Columbia River Gorge Commission cases (ORAP 4.60(3)); appeals in adoption and certain juvenile cases (ORAP 10.15(2)); expedited appeals of certain pretrial suppression orders in criminal cases (ORAP 12.07(1)(a), (2)(a)); and expedited reviews in the supreme court of orders of the Energy Facility Siting Council (ORAP 12.25(1)).

C. (§8.9) Administrative vs. Substantive Motions

The appellate courts treat "administrative motions" and "substantive motions" differently.

An administrative motion is one that usually does not raise an issue of fact or law, and usually will not be opposed by the adverse party. Internally, the appellate courts refer to such motions as administrative motions because the motions are processed by administrative staff, rather than legal staff, and, in some instances, the court has delegated to administrative staff the authority to grant the motion. For instance, the following are considered as administrative motions: motions for extensions of time, motions for leave to file a reply brief (when such briefs are not allowed under the Oregon Rules of Appellate Procedure), motions for leave to file an oversized brief or excerpt of record, motions to consolidate cases, motions for substitution of counsel (or appointment of counsel, in cases in which a party may be entitled to court-appointed counsel), appellants' motions to dismiss, and stipulated motions to dismiss. If an administrative motion is contested or appears to be more complex, administrative staff may refer the motion to legal staff for handling.

A substantive motion typically raises one or more issues of fact or law, and in most instances will be opposed by the adverse party. Examples include a respondent's motion to dismiss the appeal, a motion for a stay of enforcement of the judgment pending appeal, and a motion to strike a brief. Generally, the court's legal staff reviews substantive motions and will make recommendations for disposition.

Apart from the manner in which court staff handles a motion in the first instance, administrative and substantive motions differ with respect to the number of copies of the motion that a party must file (a party need file only the original of an administrative motion, but the original and multiple copies of a substantive motion) (*see* ORAP 7.10(3)(b)); who decides the motion; and the amount of time

required before a decision is reached on the motion (typically, an administrative motion will be decided more quickly than a substantive motion).

D. (§8.10) Forms of Orders

Most substantive motions toll the next event in the appellate process. *See* §8.16. Therefore, the court's order disposing of a motion will typically identify the next event in the appellate process and the anticipated date of that event. A party cannot know when a motion will be decided and therefore cannot know the date of the next event in the appellate process. For that reason, and others, both the Oregon Supreme Court and the Oregon Court of Appeals prepare their own orders ruling on motions. It is therefore unnecessary and unproductive for the practitioner to accompany a motion (or a response to a motion) with a form of order.

E. (§8.11) Filing Fees for Certain Motions and Responses

In 2007, the Oregon Legislature authorized the chief justice to adopt filing fees for filing certain motions and responses to those motions in the appellate courts. ORS 21.125. Pursuant to that authority, the chief justice adopted Chief Justice Order No. 08-015 that imposes a fee of $50 for filing a respondent's motion to dismiss or a motion to determine jurisdiction, and a fee of $35 for filing a response to the motion.

The court will not consider a motion or a response to a motion for which a filing fee is due unless and until the fee is paid. ORS 21.125(5).

F. (§8.12) Method of Filing and Service: Mail, Commercial Carrier, E-filing, or Fax

A party may file a motion or a response to a motion over the counter, by mail or commercial carrier, by e-filing, and, for a motion seeking emergency relief, by facsimile transmission.

Regarding filing by mail, a motion or a response to a motion is deemed filed when mailed, and that mailing is deemed complete if the motion or response is by a method of mailing "at least as expeditious as first-class mail." ORAP 1.35(1)(d). A response to a motion must be filed within 14 days after the date the motion was filed. ORAP 7.05(3). Thus, if a party deposits the response to a motion in the mail for delivery by first-class mail on the 14th day after the date the motion was filed, the response is deemed to be filed timely, regardless of when the appellate court ultimately receives the response. Similarly, a motion or a response to a motion that

is delivered to a third-party commercial carrier for filing is deemed to be filed timely upon dispatch of the motion or the response to the carrier.

Copies of motions and responses must be served on the other parties to the case (except as to documents in support of a motion to waive or defer court fees). ORAP 1.35(2)(a). Such service may be accomplished in person, by mail, or by commercial carrier "for delivery within three calendar days." ORAP 1.35(2)(b) And, like filing, service is deemed completed upon deposit in the mail or dispatch to the carrier as long as the method of mailing or delivery is "at least as expeditious as first-class mail." ORAP 1.35(2)(b).

NOTE: Motions can now be filed by electronic means (e-filing). *See* ORAP 16.05(3) (ORAP chapter 16 was adopted by a temporary amendment effective February 2, 2009, and became permanent on January 1, 2011).

PRACTICE TIP: The practitioner is well-advised to take advantage of the opportunity to file documents by e-filing. A lawyer can e-file a document directly from his or her computer, 24 hours a day. With e-filing, the lawyer doesn't have to worry about delivering a document to the Supreme Court Building, the U.S. Postal Service, or a commercial carrier during normal business hours. Furthermore, if the other party's lawyer is also a registered e-filer, a lawyer who e-files a motion may accomplish service of the motion on the other party simply by using the electronic service function of the e-filing system. ORAP 16.45.

COMMENT: Although ORAP 7.35 allows a party to submit by fax a motion seeking emergency relief, the rule bars filing by fax the motion for which most lawyers want a ruling as immediately as possible—that is, a motion for an extension of time. *See* ORAP 7.35(1), (3). In any event, the better practice would be for the lawyer to e-file a motion for an extension of time.

COMMENT: It may seem odd that the rules prohibit lawyers from filing by fax a motion for an extension of time (*see* ORAP 7.35(3)), but allow lawyers to file an objection to such a motion by fax (*see* ORAP 7.25(5)). The reason for the apparent inconsistency is the speed with which the court typically rules on a motion for an extension of time, usually within three days after the motion is filed. Unless the court accepted faxed objections, the

court would seldom receive even a prompt objection before the court ruled on the motion.

NOTE: The rules impose conditions on the use of facsimile transmission to file a motion seeking emergency relief (or a response to such a motion), including limiting the number of pages of transmitted material. *See* ORAP 7.35(3), 7.25(5).

G. Responding to Motions; Replies; Oral Argument on Motions

1. (§8.13) Responding to Motions

In general, a party has 14 days to file a response to a motion. ORAP 7.05(3). However, the court may grant a motion for an extension of time (*see* §§8.18–8.19), or may shorten the time to file a response. ORAP 7.05(3).

The appellate courts seldom exercise the authority to shorten the time to file a response, except when a party files a motion for a stay, or a motion seeking emergency relief under ORAP 7.35. Even then, if the matter is very urgent, the court may decide that it would be more appropriate to grant temporary relief rather than to shorten the time to file a response to a motion. ORAP 7.05(3).

COMMENT: Lawyers are frequently faced with the dilemma of whether to incur attorney fees chargeable to their clients for responding to a motion that, in the considered judgment of counsel, the court will deny anyway. As a practical matter, the court gives less thorough review to an unopposed motion. The failure to file a response to a motion that appears to be well-argued and supported by citation to legal authority may even give rise to the implication that the adverse party believes that the motion is well taken. Thus, a lawyer takes a risk by failing to oppose a motion in anticipation that the court will deny the motion.

PRACTICE TIP: When in doubt about whether the court will deny a motion, the practitioner should file a response to a motion indicating opposition to the motion, even if the response is very succinct. Conversely, if the practitioner does not oppose a motion and if time is of the essence, the practitioner should not hesitate to submit a response (letter form would be sufficient) indicating no opposition to the motion.

2. (§8.14) Replies

The Oregon Rules of Appellate Procedure do not provide for filing a reply to a response to a motion, because the appellate courts do not want to encourage the practice of filing replies. However, the practice of both the supreme court and the court of appeals is to consider a reply if the moving party files one before the court decides the motion.

> PRACTICE TIP: The practitioner should not file a reply to rehash arguments made in the motion itself. A reply is best used when it responds to new and contested facts mentioned in the response or addresses arguments not anticipated in the motion itself. The practitioner who anticipates taking more than a few days to file a reply should contact the Appellate Court Administrator's office to give informal notice that the party intends to file a reply and the date by which the party anticipates filing the reply.

3. (§8.15) Oral Argument on Motions

ORAP 7.05(4) provides that, unless the court directs otherwise, motions will be decided without oral argument. In the Oregon Court of Appeals, the appellate commissioner also has authority to hear oral argument on a motion. The authority to hold oral argument is seldom exercised. In the court of appeals, the Motions Department has held oral argument twice in the past 25 years; the appellate commission has held oral argument a few times since the program was initiated in March 2008. No one recalls the last time the Oregon Supreme Court held oral argument on a motion.

> PRACTICE TIP: Scheduling oral argument on a motion will delay a decision on the motion in most instances. Logistically, it is easier to schedule oral argument before the appellate commissioner than it is to schedule before one or more appellate judges. For a motion filed in the court of appeals, the practitioner might consider requesting oral argument if it is likely that the motion will be decided by the appellate commissioner; some delay in deciding the motion would be tolerable; and the motion raises a significant issue of law, has significant consequences for the client, or might be case dispositive.

H. (§8.16) Motions That Toll the Next Event in the Appellate Process

Unless the court orders otherwise, the filing of a motion that must be decided before the appeal may proceed tolls the next event in the appellate process until the court disposes of the motion. ORAP 7.30. The rule sets forth a nonexclusive list of such motions, including a motion to dismiss, a motion to hold the appeal in abeyance, and a motion to strike a brief. ORAP 7.30(1) provides that the motions listed in the rule "do not toll the running of any period of time established by statute."

In addition, the following rules set forth exceptions to the tolling rule of ORAP 7.30:

(1) ORAP 4.72, on judicial review of decisions by the Land Use Board of Appeals, the Land Conservation and Development Commission, and the Columbia River Gorge Commission; and

(2) ORAP 10.15(8), in juvenile dependency and adoption cases expedited under ORAP 10.15.

Regarding the court's authority to order otherwise, typically the court will do so in the following circumstances: (1) when the court discerns that a party is filing motions for the purpose of delaying the resolution of an appeal, or (2) when the court decides to expedite the resolution of a case (such as when child custody is at issue).

> NOTE: Effective January 1, 2011, ORAP 7.30 was amended to add another exception to ORAP 7.30: "If the court has ordered that no further extensions of time will be granted, no motion tolls the time for the next event in the appellate process as established in these rules." ORAP 7.30(2). However, a party may "move for relief from a no-further-extensions-of-time order based on a showing of extraordinary and compelling circumstances." ORAP 7.30(2).

I. (§8.17) Where to File; Who and When to Contact for Assistance

Motions, responses to motions, etc., filed by mail should be addressed as follows:

Appellate Court Administrator
Appellate Court Records Section
Supreme Court Building

1163 State Street
Salem, OR 97301-2563

When appropriate, a document may be filed by facsimile transmission at the following number: 503-986-5560.

For information on e-filing, see the Oregon Judicial Department's Web site, at http://courts.oregon.gov/OJD/OnlineServices/eFile/index.page?#b. That Web site includes a link to "Oregon Appellate Courts eFiling User Guide," which provides step-by-step instructions for submitting documents for filing using the e-filing system. *See* http://courts.oregon.gov/OJD/docs/OnlineServices/eFile/eFiling_UG.pdf.

For assistance with administrative motions in the Oregon Court of Appeals, the practitioner may telephone 503-986-5555 and ask for the motions paralegal. For assistance with substantive motions, the practitioner may telephone 503-986-5566 and ask to speak to one of the assistant appellate commissioners.

For assistance with motions in the Oregon Supreme Court, the practitioner may telephone 503-986-5555 and ask for the supreme court paralegal.

III. MOTIONS FOR AN EXTENSION OF TIME

A. (§8.18) In General

The appellate courts impose time limits for virtually all filings for the purposes of controlling their dockets, moving cases forward toward final disposition, and minimizing the possibility of cases falling through the cracks. Recognizing that it is impractical to expect total compliance with all time limits, however, the appellate courts allow for extensions of time. ORAP 7.25 governs written motions for an extension of time "for the performance of any act pertaining to an appeal." *See* §8.19. ORAP 7.27 governs oral requests for an extension of time to file a brief. *See* §8.20.

NOTE: Motions for an extension of time for preparation of the transcript are governed by ORAP 3.30. *See* §8.34.

B. (§8.19) Written Motions for Extension of Time

A written motion for an extension of time must contain certain information. *See* ORAP 7.25(2). Because motions for extensions of time are most commonly

filed with respect to briefs, the information required pertains mostly to brief-filing matters.

> PRACTICE TIP: When moving for an extension of time to file a brief, the practitioner should be sure to include in the motion the information required by the rule, including the date to which an extension of time is requested. The motion should not simply request an extension of time and leave it to the court to decide how much time is actually needed. The practitioner should err on the side of requesting more time than he or she might need. By doing so, the practitioner reduces the number of motions for an extension of time that the practitioner may need to file and that the court must process. This practice also offers some "insurance" in the event that the court grants less time than requested.

> A motion for an extension of time can be filed with respect to a variety of other filings. In fact, because so many motions requesting an extension of time are filed, and because—like all motions—motions requesting an extension of time must contain a proper title (*see* ORAP 7.10(1)), the appellate courts have provided a list of commonly used titles for motions requesting an extension of time. *See* ORAP App 7.10-1.

The motion should also state whether opposing counsel objects to, concurs with, or takes no position regarding the request. However, if the motion is a first motion for an extension of time of 28 days or less, the motion need not state the position of opposing parties. ORAP 7.25(3).

> PRACTICE TIP: Up to a point, and except in expedited or other unusual cases, the appellate courts almost always grant a motion for an extension of time, whether or not the adverse party objects. The filing of an objection may result in the court's reducing the amount of time allowed, or imposing a "no further extensions of time" limitation.

> PRACTICE TIP: For sample motions for an extension of time, see ORAP Appendix 7.10-3.

The court typically acts on a motion for an extension of time within a few days, usually sooner than the adverse party can file an objection. An objection received by the court after it has ruled on a motion for an extension of time is treated as a motion for reconsideration of the ruling. If the court modifies its ruling,

the parties will be notified in writing; if not, the request for reconsideration is deemed denied. ORAP 7.25(6).

An objection to a motion for an extension of time must articulate with specificity the grounds for the objection and identify how the extension of time will prejudice the objector. ORAP 7.25(4). The rule specifically provides that an attorney may object on the ground that the client has instructed counsel to do so, but such an objection alone is not a sufficient ground to deny or reduce an extension. ORAP 7.25(4).

Although a motion for an extension of time cannot be filed by fax (*see* §8.12), an objection to such a motion may be filed by fax as long as it does not exceed five pages. ORAP 7.25(5).

Cases referred to the appellate settlement conference program (*see* ORAP chapter 15) are subject to special rules for requesting an extension of time to file a transcript. *See* ORAP 3.30. See also §8.34 for a discussion of those rules. The director of the appellate settlement conference program also has authority to extend the 120-day abatement period for a case in the settlement conference program if the parties need more time to reduce a settlement to writing or to implement a settlement. ORAP 15.05(4)(a)(ii).

Extensions of time in certain expedited cases are limited or nonexistent as follows:

(1) Limited extensions of time will be granted on appeal in adoption and juvenile-dependency cases, for filing a transcript, a brief, and a petition for supreme court review. ORAP 10.15(4), (6)(d), (9).

(2) No motion for an extension of time will be granted on judicial review in land use cases (i.e., decisions of the Land Use Board of Appeals and the Columbia River Gorge Commission, and certain decisions of the Land Conservation and Development Commission). ORAP 4.70.

> PRACTICE TIP: If a party has filed repeated requests for extensions of time or has requested particularly lengthy extensions, or if the adverse party files a persuasive objection, the court may impose a "no further extensions of time" (NFE) limitation. Such limitations are of two types, one with a qualifier (absent a showing of extraordinary circumstances) and one without. In any event, the practitioner should pay serious attention to the limitation.

EXAMPLE: Circumstances that have been found to be sufficiently extraordinary to get an extension of time notwithstanding an NFE limitation include the following: (1) on the eve of the due date of the brief, counsel is hospitalized because of an accident or unexpected medical condition; or (2) counsel experiences a complete and extended failure of counsel's word-processing capability.

EXAMPLE: Circumstances that are not extraordinary include the occurrence of Columbus Day, on which day the U.S. Postal Service is closed and briefs cannot be mailed.

C. (§8.20) Oral Motions for Extension of Time

The appellate courts allow for a one-time oral motion for an extension of time to file a brief. ORAP 7.27(4). The grant of an oral motion requesting an extension of time "will bar any further motion for time to file the brief unless such motion, made in writing, demonstrates extraordinary and compelling circumstances." ORAP 7.27(4). *See* §8.41.

PRACTICE TIP: The oral motion for an extension of time is best used when the practitioner has completed drafting a brief and needs additional time for such tasks as proofreading, arranging for printing of the required number of copies (if the brief will be filed conventionally), filing, or service. If more time is needed to complete the brief because of the exigencies that can arise in the course of drafting a brief, the prudent practitioner will not rely on an oral request for time but, rather, will file a written motion.

IV. MOTIONS RELATING TO UNDERTAKINGS FOR COSTS AND SUPERSEDEAS UNDERTAKINGS

A. (§8.21) Undertakings Generally

An undertaking is a promise to take certain action if the judgment or order being appealed is affirmed on appeal, and the promise is secured in a manner prescribed by law. *See* ORS 19.005(9); *see also* ORS 22.020–22.070.

Regarding appeals from circuit courts, undertakings are of two kinds:

(1) Undertakings for costs on appeal (*see* §§8.22–8.24); and

(2) Undertakings to stay enforcement of the judgment (supersedeas undertakings) (*see* §8.25).

B. Undertakings for Costs

1. (§8.22) Undertakings for Costs Generally

An appellant must file an undertaking to secure ready payment of the respondent's anticipated costs on appeal if the judgment or order being appealed is affirmed by the appellate court. The undertaking must be in the amount of $500, unless (1) the parties to the appeal agree, by written stipulation, to waive, reduce, or limit the undertaking; or (2) the court waives, reduces, or limits the undertaking upon motion and "a showing of good cause" by the appellant. ORS 19.300(1), 19.310.

All filings in connection with the undertaking, including the stipulation or motion (and any objection or response to the motion), must be filed in the circuit court. ORS 19.300(3); *see* ORS 19.310. *See* http://courts.oregon.gov/OJD/docs/OSCA/acs/records/Civil.pdf.

> PRACTICE TIP: The caption of an undertaking filed on appeal should refer to the circuit court rather than the appellate court; that is, the caption should state "In the Circuit Court of the State of Oregon for the County of _____" rather than "In the Court of Appeals of the State of Oregon" or "In the Supreme Court of the State of Oregon." Because an undertaking is filed in conjunction with an appeal, it could be argued that the caption of the case should refer to the appellate court; however, trial court staff is likely to reject an undertaking unless it refers to the circuit court.

An undertaking must generally be secured in a manner prescribed by ORS 22.020–22.070. ORS 19.305(1). However, the state, counties, and cities are exempt from that requirement. ORS 22.010. A surety for an undertaking must be qualified as provided in ORCP 82. ORS 19.305(2); *see also* ORS 22.090. A respondent may object to the sufficiency of an undertaking or the security in support of it; any such objection will be determined by the trial court under ORCP 82. ORS 19.305(3).

An undertaking may be secured by a deposit of cash or by an irrevocable letter of credit from a financial institution. ORS 22.020. See ORS 19.315–19.325 regarding letters of credit.

> PRACTICE TIP: Many parties satisfy the $500 undertaking requirement by depositing cash in that amount with the trial court. For undertakings in

larger amounts, parties often rely on an irrevocable letter of credit, which in many cases is easier to obtain than a corporate bond.

PRACTICE TIP: Many parties confuse the ability to deposit $500 in the trial court as security for an undertaking for costs with the requirement to file an undertaking. The need for an undertaking—a promise to pay the respondent's costs on appeal—and security for that promise are separate requirements. Thus, a written undertaking as prescribed by ORS 19.300 should be filed and should recite that it is secured by the deposit of cash. However, a respondent considering objecting to the sufficiency of a cash deposit without a written undertaking should consider whether any useful purpose will be served by insisting on an undertaking.

PRACTICE TIP: Before challenging any aspect of an undertaking, the practitioner should contact opposing counsel. Many grounds for objecting to the sufficiency of an undertaking can be resolved informally. Both the appellant and the respondent are well advised to confer regarding an undertaking, if for no other reason than to avoid the possibility of additional attorney fees being awarded on appeal for litigation over the undertaking.

As noted in §8.21, ORS 19.310(2) authorizes a court to waive, reduce, or limit an undertaking upon a showing of good cause, "including indigence." *See Salazar & Salazar*, 135 Or App 391, 898 P2d 1366 (1995) (applying *former* ORS 19.045, now ORS 19.310(2)).

An undertaking for costs must be filed within 14 days after the filing of a notice of appeal, ORS 19.300, and the failure to do so is a ground for dismissal of the appeal, ORAP 7.40. However, the failure to file the undertaking within 14 days is not necessarily fatal, as illustrated by ORAP 7.40(1), which requires that the respondent give the appellant at least seven days' notice of intent to move for dismissal for failure to file an undertaking, and ORAP 7.40(4), which contemplates the possibility that an appellant will not have filed an undertaking for costs within the statutory filing deadline.

Any objection to an undertaking must be filed within 14 days after service of the undertaking. ORS 19.305(3).

NOTE: In contrast to litigation over the sufficiency of an undertaking (*see* ORS 19.310), a motion to dismiss an appeal for failure to file an

undertaking for costs must be filed in the appellate court in which the appeal is pending. See §8.23 for a discussion of such a motion.

2. (§8.23) Motion to Dismiss for Failure to File Undertaking

As discussed in §8.22, the appellant must file an undertaking for costs on appeal. Section 8.22 also discusses when a party may seek a waiver, reduction, or limitation of the undertaking requirements. ORAP 7.40 implies that the filing, timely or otherwise, of an undertaking for costs is not jurisdictional. *See also D.C. Thompson & Co. v. Hauge*, 300 Or 651, 653–655, 717 P2d 1169 (1986) (determining that the failure to file the undertaking prescribed by *former* ORS 46.250(4), now ORS 19.310(2), was not jurisdictional). Furthermore, appellate courts do not screen appeals to determine whether an appellant has filed an undertaking. However, a party may move to dismiss an appeal for the failure to file, or to file timely, an undertaking for costs on appeal. ORAP 7.40.

Pursuant to ORAP 7.40(1), a respondent must give the appellant at least seven days' notice of intent to move to dismiss for failure to file an undertaking. Although that notice can be oral, the prudent practitioner will put the notice in writing to avoid litigation over whether and when the notice was given.

> PRACTICE TIP: Quite often the appellant has simply overlooked filing the undertaking. Prior notice, once a matter of professional courtesy and now a requirement, will usually result in the filing of an undertaking.

A motion to dismiss for lack of an undertaking must state that the notice to opposing counsel has been given. ORAP 7.40(2). If the appellant files the undertaking late, the moving party must establish substantial prejudice resulting from the late filing to receive a dismissal. ORAP 7.40(4).

3. (§8.24) Response to Motion to Dismiss; Reply

In the distant past, the Oregon Court of Appeals routinely denied a motion to dismiss for lack of an undertaking if the appellant responded by promptly filing the undertaking. That is no longer necessarily true. Filing an undertaking in response to a motion to dismiss is not, in and of itself, a sufficient response to the motion, but rather the appellant must demonstrate good cause for the failure to file the undertaking timely. ORAP 7.40(3).

If the appellant ultimately files an undertaking and shows good cause for failing to file the undertaking timely, the respondent must file a reply showing

"substantial prejudice" resulting from the late filing to justify dismissal of the appeal. ORAP 7.40(4).

C. (§8.25) Supersedeas Undertakings

The filing of a notice of appeal does not automatically stay the judgment that is the subject of the appeal. ORS 19.330. But an appellant may file a supersedeas undertaking to stay enforcement of the judgment pending disposition of the appeal. *See generally* ORS 19.335; *see also* ORS 19.312 (regarding special supersedeas undertaking provisions for civil actions against a tobacco product manufacturer).

A supersedeas undertaking to stay enforcement of a judgment for the transfer or delivery of possession of personal property may require the trial court to determine the amount of the undertaking. ORS 19.335(3)(a). Instead of filing a supersedeas undertaking, a party may call on the trial court to serve as the depository of personal property or conveyances or to designate an officer or receiver to hold personal property, and the judgment is then stayed pending appeal. ORS 19.335(3)(b), (5).

> PRACTICE TIP: When ORS 19.335 permits an appellant to file a supersedeas undertaking in the first instance without court involvement, the practitioner may be tempted to file the supersedeas undertaking and leave it to the respondent to object if the respondent believes that the amount of the undertaking is insufficient. A more cautious practitioner may prefer to move the trial court in the first instance to determine the amount. The best practice would be for the parties to confer and agree on the amount. In any event, supersedeas undertakings, motions to establish the amount of a supersedeas undertaking, and objections to the sufficiency of an undertaking must be filed in the trial court.
>
> COMMENT: Unlike with an undertaking for costs (*see* §8.22), a supersedeas undertaking need not be filed in order for the appellant to proceed with the appeal, nor is there any time limit prescribed by statute for filing a supersedeas undertaking (*see* ORS 19.300). The consequence of failing to file a supersedeas undertaking, or for filing an insufficient supersedeas undertaking, is that the adverse party can proceed to enforce the judgment pending appeal. Thus, the timing for filing a supersedeas undertaking is driven by the judgment obligor's perceived need to prevent enforcement of the judgment being appealed.

PRACTICE TIP: The respondent should consider the integrity and financial strength of the appellant before insisting on security for a supersedeas undertaking, as well as the likelihood of prevailing on appeal. The appellant's cost of providing security for an undertaking, particularly in the form of a corporate bond with costly premiums, can be substantial. If the appellant prevails on appeal, the appellant can recover the cost of obtaining security for an undertaking. ORS 20.310(2).

D. (§8.26) Review by Appellate Court

At one time, the trial court's order ruling on a partial reduction of an undertaking for costs, and, by implication, any other matter relating to undertakings, was subject to a separate appeal that would be decided at the same time as the appeal on the merits. *See Salazar & Salazar*, 135 Or App 391, 898 P2d 1366 (1995). However, since the legislature's adoption of ORS 19.360, trial court rulings on matters relating to undertakings on appeal are subject to review in the appellate court by motion practice. ORS 19.360(1); *see Bova v. City of Medford*, 236 Or App 257, 266, 236 P3d 760 (2010) (under ORS 19.360(1), "the court's review is by way of 'motion,'" and "motions typically are decided by a single judge").

NOTE: In *Bova*, 236 Or App at 267, the court of appeals concluded that "the Chief Judge may delegate authority to decide a motion under ORS 19.360 to the Appellate Commissioner, and the Appellate Commissioner may decide such motions in the first instance, subject to review by way of a motion for reconsideration as provided in ORAP 7.55."

The motion for review must be filed within 14 days after the date of entry of the court's decision. ORS 19.360(1). There are no reported appellate decisions regarding whether the appellate court has authority to grant an extension of time of the 14-day period, but the practice of the court of appeals has been to do so.

V. (§8.27) MOTIONS SEEKING EMERGENCY RELIEF

Normally, a party has 14 days to file a response to a motion (ORAP 7.05(3)), and, except for a motion for an extension of time, the court will not issue a ruling on a motion for at least another week, typically longer. Therefore, a party who requires substantive relief in less than 21 days should take advantage of ORAP 7.35, which prescribes the procedure for filing a motion seeking emergency relief.

The caption of a motion seeking emergency relief must state "EMERGENCY MOTION UNDER ORAP 7.35." ORAP 7.35(1). The motion, or a response to an emergency motion, may be filed by faxing it to the court, as long as the motion or response does not exceed 10 pages. A faxed filing has the same effect as filing the original. Also, the party filing the motion or response by fax may serve it on other parties by fax, as long as (1) the recipient's fax equipment is located in the recipient's office or the recipient has consented to receive the fax at another location, and (2) the proof of service shows that service was made by fax and includes the recipient's fax number and telephone number. ORAP 7.35(3).

> PRACTICE TIP: There is no point to filing a motion for extension of time as an emergency motion under ORAP 7.35, because the appellate courts rule on such motions within a few days after the motion is filed anyway. ORAP 7.25(6).

VI. MOTIONS FOR STAYS

A. (§8.28) Motions to Stay Enforcement of Circuit Court Judgments Pending Appeal

Although most of this section discusses motions to stay enforcement of circuit court judgments in civil cases, including, specifically, domestic relations cases, it also mentions such motions in criminal cases.

(1) *Civil cases.* Unless the trial court directs otherwise, a judgment is immediately enforceable upon its entry in the trial court register. ORCP 72 A; ORS 18.082(1)(b). A judgment obligor who is threatened with execution on the judgment even before an appeal can be filed may seek relief from the trial court under ORCP 72. Any such relief, however, is discretionary with the trial court. Before a notice of appeal is filed, a would-be appellant may not take advantage of the automatic-stay provisions of ORS 19.335 by filing a supersedeas undertaking under that statute. ORS 19.335(6) (a stay of judgment under the statute does not become effective until after the notice of appeal is filed).

After a notice of appeal has been filed, the trial court has authority to stay enforcement of a judgment to the extent provided under the sections of ORS chapter 19 governing stays on appeal, ORS 19.335, 19.340, and 19.350. ORCP 72 A.

The filing of a notice of appeal does not automatically stay enforcement of a judgment. ORS 19.330. A party may be able to file a supersedeas undertaking to stay enforcement of the judgment pending appeal (*see* §8.25), or a party may be able to move for a discretionary stay under ORS 19.350.

> NOTE: If a party has a remedy under ORS 19.335 to stay enforcement of a judgment pending appeal (i.e., by filing a supersedeas undertaking), a discretionary stay is not available to the party under ORS 19.350. ORS 19.350(1) ("A party may seek a stay of judgment pending a decision on appeal in the manner provided by this section only if the judgment may not be stayed under the provisions of ORS 19.335 or 19.340, or under any other provision of law specifying a procedure or grounds for staying the judgment.").

Although there do not appear to be any reported decisions on the issue, the appellate courts generally will not grant a discretionary stay under ORS 19.350 merely because an appellant is unable to post a sufficient supersedeas undertaking under ORS 19.335.

The legislative scheme commits to the trial court in the first instance the authority to rule on matters relating to supersedeas undertakings under ORS 19.335 that stay enforcements of judgment and to rule on motions for discretionary stays under ORS 19.350. Those decisions are subject to review by the appellate court by motion practice as provided in ORS 19.360. *See Bova v. City of Medford*, 236 Or App 257, 267, 236 P3d 760 (2010) ("the Chief Judge may delegate authority to decide a motion under ORS 19.360 to the Appellate Commissioner, and the Appellate Commissioner may decide such motions in the first instance, subject to review by way of a motion for reconsideration as provided in ORAP 7.55"). *See also* ORAP 8.40 (review of trial court rulings affecting appeal).

Review by the appellate court of a trial court decision relating to an undertaking or a stay is de novo. On review, the court may consider evidence outside the trial court record if (1) "[t]here is additional relevant information relating to the period of time following the decision of the trial court that the appellate court determines to be important to review of the decision" or (2) the party offering the new information establishes that "there was good cause for not submitting the information to the trial court." ORS 19.360(2), (3). Typically, use of affidavits or declarations and documentary evidence will be sufficient. If testimony

is required, the appellate court may remand the matter to the trial court to make the necessary record. *See* ORS 19.360(4).

> PRACTICE TIP: A party needing immediate relief should not hesitate to state in the motion the date by which, or the number of days within which, a ruling is requested. The court should not be left guessing about how urgent the situation is. If the court determines that immediate relief is appropriate, it may contact opposing counsel and arrange a specific date by which a response will be filed, or, in appropriate circumstances, the court may grant temporary relief pending the adverse party's response.

> PRACTICE TIP: Due to the haste with which litigation over stays can proceed, a party wishing to support a motion for review under ORS 19.360 with the transcript of a trial court proceeding may wish to make special arrangements to have the transcriber prepare the particular hearing or proceeding ahead of the remainder of the transcript. A party should not delay filing the motion under ORS 19.360 pending completion of the transcript, but, rather, should advise the court that the transcript is being prepared and will be forwarded as soon possible.

(2) *Domestic relations cases.* A judgment for dissolution of marriage or domestic partnership can include a money award or provide for the transfer of possession of real or personal property, or contain other provisions that, if standing alone, would be subject to the provisions of ORS 19.335 for obtaining a stay by filing a supersedeas undertaking. A party appealing from such a judgment and seeking to stay enforcement of such a provision must comply with the applicable provisions of ORS 19.335. ORS 19.355(1). A party seeking to stay enforcement of a provision of a judgment that is not subject to ORS 19.335, such as a provision relating to child custody, would seek a discretionary stay under ORS 19.350.

(3) *Criminal cases.* The legislature has commended to the trial court the authority to decide whether to stay incarcerative provisions in a judgment of conviction and sentence, but the appellate courts have concurrent authority with trial courts to stay enforcement of provisions of a criminal judgment that impose fines or costs. *See* ORS 135.285(2), 138.135(2); *State v. Wimber*, 108 Or App 1, 4–5, 814 P2d 169 (1991).

B. Motions to Stay Enforcement of Administrative Agency Matters Pending Judicial Review

1. (§8.29) Motions to Stay Orders of Administrative Agencies Under the Administrative Procedures Act

Regarding state agencies whose orders are subject to the Oregon Administrative Procedures Act (*see* ORS chapter 183), the filing of a petition for appellate review of an agency order does not stay enforcement of the order. ORS 183.482(3)(a). However, the agency may stay enforcement of a particular order upon a showing of (1) "irreparable injury" to the petitioner if a stay is not granted and (2) a "colorable claim of error" in the order. ORS 183.482(3)(a). See *Arlington Sch. Dist. No. 3 v. Arlington Educ. Ass'n,* 184 Or App 97, 55 P3d 546 (2002), for a discussion of what constitutes irreparable injury; see *Bergerson v. Salem-Keizer Sch. Dist.*, 185 Or App 649, 658–660,60 P3d 1126 (2003), for a discussion of what constitutes a colorable claim of error.

The agency's denial of a party's request for a stay is subject to review, on motion filed in the appellate court. ORS 183.482(3)(d); ORAP 4.30. The motion must include all documents that the party believes to have been considered by the agency and the agency's decision on the motion. ORAP 4.30. The court's scope of review as to factual issues is for substantial evidence in the record. ORS 183.482(8)(c); *see Bergerson,* 185 Or App at 658.

2. (§8.30) Orders of the Board of Parole and Post-Prison Supervision

Many provisions of the Oregon Administrative Procedures Act do not apply to the State Board of Parole and Post-Prison Supervision. ORS 183.315(1); *see also* ORS 183.315(5)(a). Judicial review of orders of the board is governed by ORS 144.335. The last sentence of ORS 144.335(3) provides: "The filing of the petition [for judicial review] shall not stay the board's order, but the board may do so, or the court may order a stay upon application on such terms as it deems proper."

> PRACTICE TIP: Generally, the Oregon Court of Appeals does not rule on a motion for stay until the board has had a reasonable opportunity to rule on an offender's request for stay of enforcement of a board order. In most instances, the better practice is for the offender to move the board for a stay,

and then if the board denies the request, the offender may move the court of appeals for review of the board's order.

3. (§8.31) Motions to Stay Enforcement of Administrative Rules Pending Judicial Review under ORS 183.400

See *Northwestern Title Loans, LLC v. Div. of Fin. & Corporate Sec.*, 180 Or App 1, 42 P3d 313 (2002), for a discussion of the authority of the court of appeals to stay enforcement of an administrative rule pending judicial review of the rule under ORS 183.400.

C. (§8.32) Motions Invoking Inherent Authority of Courts to Grant Stays

Courts in Oregon recognize the inherent power of a court to grant provisional relief, including stays, as necessary to effect the court's jurisdiction or to protect the moving party from irreparable harm. *See Blair v. Blair*, 199 Or 273, 279–287, 247 P2d 883 (1952) (and cases cited therein); *Armatta v. Kitzhaber*, 149 Or App 498, 501, 943 P2d 634 (1997), *aff'd in part, rev'd in part,* 327 Or 250 (1998).

> PRACTICE TIP: If a statute or other source of law does not point the way to moving for a stay or other emergency relief pending appeal, a practitioner should consider the possibility of invoking the inherent authority of the trial court or appellate court to grant such relief.

Note, however, that relief under the court's inherent authority is not available if the law provides a procedure for obtaining a stay. *Helms Groover & Dubber Co. v. Copenhagen*, 93 Or 410, 416, 177 P 935 (1919); *Blair*, 199 Or at 284. The inability to comply with statutory requirements for obtaining a stay is not a ground for obtaining relief under the court's inherent authority.

The purpose of invoking a court's inherent authority is to preserve the status quo pending appeal, not to obtain affirmative relief. *Helms Groover & Dubber Co.*, 93 Or at 416 (quoted with approval in *Blair*, 199 Or at 283). Therefore, a party who has appealed from a judgment dismissing the party's complaint cannot, under the guise of seeking a "stay," obtain the affirmative relief denied by the trial court.

VII. MOTIONS CONCERNING THE RECORD ON APPEAL OR JUDICIAL REVIEW

A. On Appeal from Circuit Court

1. (§8.33) Motions to Amend the Designation of Record or Statement of Points

Among other things, a notice of appeal must contain a "designation of those portions of the proceedings and exhibits in the trial court that the appellant determines should be included in the record of the case on appeal in addition to the trial court file." ORS 19.250(1)(d). If an appellant designates for inclusion in the record the entire trial court record, including all exhibits, all testimony, and all instructions given and requested, the notice of appeal need not include a statement of points. By contrast, if an appellant designates less than the entire record, then the notice of appeal must contain a "plain and concise" statement of points on which the appellant intends to rely. ORS 19.250(1)(d)–(e).

The purpose of a statement of points is to inform the respondent of the issues that the appellant intends to raise so that the respondent can decide whether to designate additional parts of the record. If a respondent determines that a transcript of additional oral proceedings is "necessary to the determination of the appeal," the respondent may move in the trial court to compel the appellant to pay for the additional transcript. ORS 19.375(2); *see* ORS 19.250(2).

> PRACTICE TIP: An appellant should avoid the temptation to designate only favorable parts of the record, either in an attempt to gain a tactical advantage or to reduce the expense of preparing a transcript. Almost invariably the respondent will designate the remainder of the record and move to require the appellant to pay for the additional transcript. Typically, an appellant engaging in these strategic maneuvers will incur only two things: delay in resolving the appeal, and additional attorney fees.

An appellant may, without seeking leave of the court, amend the designation of record at any time up to 35 days after the transcript is filed. ORS 19.250(1)(d). Thereafter, the appellant must move for leave to amend the designation of record.

If an appellant designated less than the entire record and filed a statement of points relied on, the appellant's brief must be limited to those points. However, an appellant may, without seeking leave of the court, amend a statement of points at

any time up to 15 days after the transcript is filed. Thereafter, the appellant must move for leave to amend the statement of points. ORS 19.205(1)(d)–(e).

The appellate courts do not, on their own motion, enforce the requirement to file a statement of points when an appellant does not file one. The courts also do not, on their own motion, compare a party's brief to the party's statement of points to determine if the appellant's brief has exceeded the statement of points. A party aggrieved by the failure of an appellant to comply with those requirements must file a motion seeking appropriate relief.

> PRACTICE TIP: A party filing a notice of cross-appeal should not necessarily rely on the appellant's designation of record, because appellants can and do dismiss their own appeals. A cross-appellant wishing to proceed with the appeal regardless of whether the appellant abandons the appeal will want to designate as much of the record as the cross-appellant needs to prosecute the cross-appeal.
>
> PRACTICE TIP: When an appellant and a cross-appellant have designated the same oral proceedings as part of the record on appeal, they should consider negotiating to share the cost of preparing the transcript.

2. (§8.34) Motions for Extension of Time to File the Transcript

In general, a transcript that is within the scope of a party's designation of record is due within 30 days after the filing of the notice of appeal. ORS 19.370(2). However, there are two exceptions:

(1) If a case is referred to the Appellate Settlement Conference Program, the transcript must be filed within 30 days after the referral terminates or the abatement period under ORAP 15.05(4) expires. ORS 19.370(3).

(2) In death-penalty cases, the transcript is due 60 days after the appeal packet is served on the transcript coordinator. ORAP 12.10(5)(c).

If the transcript is not going to be prepared and filed within the prescribed period, a motion for extension of time must be filed. If the motion is not filed until after expiration of the prescribed period, it should be coupled with a motion for relief from default. See §8.18 for a discussion of motions for extensions of time generally.

A motion requesting an extension of time may be filed by either the transcriber responsible for preparing the transcript or by the party responsible for

arranging for its preparation. ORAP 3.30(2). If an extension of time is needed because the party responsible for arranging for preparation of the transcript failed to make satisfactory arrangements for payment of the transcript, that party should file the motion. ORAP 3.30(2); *see* ORAP 3.30(4). The motion must be accompanied by the $50 filing fee now applicable to motions for extensions of time. For information on appellate filing fees, see http://courts.oregon.gov/OJD/OSCA/acs/records/filingfees.page?. The court has discretion to deny such a motion and to direct that the appeal proceed without a transcript (ORAP 3.30(4)), but the court seldom exercises that authority unless a party has failed, after multiple opportunities, to arrange for preparation of the transcript. The motion should be filed by the transcriber if the transcriber is the cause of the delay—for example, if the transcriber is responsible for other transcripts due at earlier dates. ORAP 3.30(2); *see* ORAP 3.30(5).

Regarding adoption cases and cases arising in juvenile court, a motion for an extension of time to file the transcript must not seek more than 14 days. ORAP 10.15(4)(a).

3. (§8.35) Motions to Correct the Transcript or to Add to the Record

After the transcript is prepared, a party may realize that errors appear in the transcript or that additional oral proceedings within the designation of record should have been transcribed but were not. A party has 15 days after the filing of the transcript (or after the filing of the last part of a transcript, if more than one transcriber prepared parts of the oral record) to move to correct the transcript or to transcribe additional proceedings. ORS 19.370(5). Any such motion must be filed in the trial court, but a copy must also be submitted to the appellate court.

If the appeal has been referred to the Appellate Settlement Conference Program (*see* ORAP chapter 15) and the transcript is filed during the period in which an appeal is held in abeyance pending the attempt to mediate the dispute, the time for filing a motion to correct or add to the record does not begin to run until 15 days after the period of abatement ends or the referral is terminated. ORS 19.370(6).

Only the appellate court has authority to extend the time for filing a motion to correct or add to the transcript. ORS 19.395. See §§8.18–8.20 for discussion of motions for extensions of time generally. In adoption cases and cases arising in

juvenile court, the court will not grant an extension of time to request correction of the transcript except on a showing of exceptional circumstances. ORAP 10.15(4)(b).

However, after the timely filing of a motion to correct or add to the record, the trial court has authority to grant extensions of time as necessary until the corrected or additional transcript is filed. ORAP 3.40(3).

Upon receipt of a copy of a timely filed motion to correct or add to the record, the appellate court will hold the appeal in abeyance until the appellate court receives notice of the circuit court's order either denying the motion or, if the circuit court granted the motion, settling the record. ORS 19.370(7).

The trial court's ruling on a motion to correct or add to the transcript is subject to review by the appellate court in the manner prescribed in ORAP 8.40.

After the record has settled, the appellate court—on its own motion or on the motion of a party—"may make such order to correct or supplement the record as may be just." ORS 19.365(4). If correcting or supplementing the record requires the preparation of an additional transcript, presumably the court could determine that it would be just to require the appellant to pay for the preparation of the additional transcript, or to require the parties to share that cost.

> COMMENT: Occasionally, a party will belatedly determine that the circuit court conducted one or more additional oral proceedings, the record of which should be part of the record on appeal. Is the correct procedure to move to amend the designation of record under ORS 19.250(1)(d), to move to add to the record under ORS 19.370(5), or to move to supplement the record under ORS 19.365(4)? The technically correct answer may depend upon such factors as whether the oral proceeding was within the scope of the original designation of record, whether the time for amending the designation of record or for moving to add to the record has expired, and whether the record has settled. At the end of the day, however, the court concerns itself less with determining the "correct" remedy and focuses on getting the record right.
>
> PRACTICE TIP: Unless an adverse party is somehow truly prejudiced by whatever motion a party uses in an attempt to get the record right, an adverse party considering objecting to the motion, by whatever name, on the

ground that the motion technically might not be the "right" one, should consider doing something else more productive.

4. Motions for Preparation of the Transcript at State Expense

a. (§8.36) Transcripts in Criminal, Postconviction Relief, Habeas Corpus, Juvenile, and Mental-Commitment Cases

A financially eligible person may seek preparation of the transcript at state expense in criminal, postconviction relief, habeas corpus, juvenile, and mental-commitment cases. *See* ORS 138.500(3) (criminal cases), ORS 138.590(1) (postconviction relief), ORS 34.355 (habeas corpus), ORS 419A.211(1) (juvenile court cases), ORS 426.135 (commitment of mentally ill persons), ORS 427.295 (commitment of developmentally disabled persons).

Generally, a motion for a transcript at state expense is coupled with a motion for appointment of counsel and filed in the circuit court. After the filing of a notice of appeal, the appellate court has concurrent authority to rule on a motion for appointment of counsel. ORS 138.500(2). Although technically the director of the Office of Public Defense Services (OPDS) determines whether an appellant will get a transcript at state expense, if a court has determined that the appellant is financially eligible for appointed counsel, the director must authorize the transcript at state expense. However, a court's determination regarding whether the appellant is financially eligible must be based on standards adopted by the OPDS. If the appellant has not sought court-appointed counsel and therefore has not yet been determined financially eligible by a court, the OPDS director makes the determination of financial eligibility and authorizes preparation of a transcript. ORS 138.500(3)(a).

b. (§8.37) Transcripts in Civil Cases

A party on appeal in a civil case may seek preparation of the transcript at state expense pursuant to ORS 21.695. A party filing such a motion should be aware that:

(1) The motion must be filed in the appellate court, not in the circuit court;

(2) The party must demonstrate that the party is unable to pay the expense of preparing the transcript;

(3) The party must make a "prima facie showing that the transcript is necessary to prosecute the appeal and would reveal reversible error";

(4) The court may authorize preparation of only as much of the transcript as is necessary to prosecute the appeal; and

(5) The court may enter judgment against the appellant for the cost of preparing the transcript. ORS 21.695.

The party should also be aware that the appellate court may consider the extent to which the legislature has appropriated funds to the State Court Administrator for the purpose of paying for transcripts for indigent persons in civil cases. The court can and does deny such requests if the court determines that the legislature has not appropriated sufficient funds for that purpose. *See In re Marriage of Roberts*, 34 Or App 507, 510, 579 P2d 862 (1978) (the legislature had not appropriated such funds); *and City of Lake Oswego v. $23,232.23 in Cash*, 121 Or App 432, 434–35, 855 P2d 201 (1993) (at that time, the legislature had appropriated such funds).

The denial of a motion for a transcript at state expense in a civil case does not violate either the equal privileges clause of article I, §20, of the Oregon Constitution or the equal protection clause of the United States Constitution. *City of Lake Oswego*, 121 Or App at 435–436.

> PRACTICE TIP: Before filing a motion seeking a transcript at state expense, a party should contact the transcript coordinator, determine the estimated cost of preparing the transcript, and include that information in the motion.

B. (§8.38) On Judicial Review of State Agency Orders

For judicial review of agency orders that are subject to the contested-case provisions of the Oregon Administrative Procedures Act (Oregon APA) (ORS chapter 183), the appellate court has authority to "require or permit . . . corrections or additions to the record when deemed desirable." ORS 183.482(4). Other than that general grant of authority, neither the Oregon APA nor any of the other statutes governing judicial review of state agency orders provide a procedure for correcting or adding to the record comparable to ORS 19.370(5)–(7) (*see* §8.35).

The appellate courts have filled that void by adopting ORAP 4.22, which generally follows the procedure applicable to appeals from circuit court. A motion

to correct the record on judicial review of an order of a state agency must be filed with the agency within 15 days after the agency files the record with the court. ORAP 4.22(1). A party who is dissatisfied with the agency's disposition of the motion has 14 days to move the appellate court for review of the agency's decision. ORS 4.22(5).

"If no motion to correct the record or correct or add to the transcript is filed, the record shall be deemed settled 15 days after it is filed, and the period for filing the petitioner's opening brief shall begin the next day." ORAP 4.22(6) (added effective January 1, 2011).

After expiration of the 15-day period under ORAP 4.22(1) to move to correct or add to the record, at least as to state agency orders subject to ORS 183.482(4), a party may file in the appellate court a motion to supplement the record with material based on a showing that the material was before the tribunal but, for unknown reasons, was omitted from the agency record as filed with the court.

> NOTE: The Oregon APA provides an opportunity for a party to seek leave to submit additional evidence that was never presented to the tribunal below. ORS 183.482(5). Such motion must be filed with the appellate court and must be supported by an affidavit showing that such evidence is material and that "there were good and substantial reasons for failure to present it in the proceeding before the agency. ORS 183.482(5); *see* ORAP 4.25. If the motion is granted, the court does not receive the new evidence directly, but rather the agency receives the additional evidence. The court will hold the judicial review in abeyance until the agency files an amended record along with either its modified order or its certificate that the agency elects to stand on its original order. ORS 183.482(5); ORAP 4.25(4).
>
> QUERY: If the appellate court grants a motion to submit additional evidence, may the tribunal also receive rebuttal evidence from any other party to the contested-case hearing without that party having sought and received leave from the appellate court to submit the additional evidence? If the issue were raised on judicial review, the court might allow direct rebuttal evidence, but the further the evidence strayed from direct rebuttal, the less likely the court would consider it properly part of the record.

C. (§8.39) Motions to Take Judicial Notice

The appellate courts have authority to take judicial notice of adjudicative facts. OEC 101 (ORS 40.015(1)); OEC 201(a)–(f) (ORS 40.060–40.080). If a party wants the court to be aware of information that is not part of the record of the tribunal from which an appeal or judicial review is taken, and the information is generally known within the state and is "capable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned," the party may move the appellate court to take judicial notice of the information. OEC 201(b)–(d) (ORS 40.065–40.070). The adverse party will have the opportunity to be heard on both the "propriety" of taking judicial notice and the "tenor" of the information noticed. OEC 201(e) (ORS 40.075).

> NOTE: It is not necessary to move the court to take judicial notice of statutes, administrative rules, case law, etc. *See* OEC 202 (ORS 40.090). In effect, a party requests a court to take judicial notice of law by citing the legal authority in a brief or memorandum.

VIII. MOTIONS CONCERNING BRIEFS AND ORAL ARGUMENT

A. (§8.40) Motions to File Extended or Reply Briefs

> NOTE: The discussion in this section regarding ORAP 5.05 reflects amendments adopted by the appellate courts that change the specifications for the length of briefs. Adopted as temporary amendments effective July 1, 2010, those amendments became permanent on January 1, 2011.

The Oregon Rules of Appellate Procedure set forth specifications for briefs. ORAP 5.05. Under ORAP 5.05(2), the following word-count or page limitations apply:

(1) In the Oregon Supreme Court, an opening, answering, or combined brief may not exceed 14,000 words; in the Oregon Court of Appeals, an opening, answering, or combined brief may not exceed 10,000 words. ORAP 5.05(2)(a)–(b). However, if a party is unable to determine the word count, an opening, answering, or combined brief is acceptable if it does not exceed 50 pages in the supreme court, or 35 pages in the court of appeals. ORAP 5.05(2)(a), (c).

(2) In the supreme court, a reply brief may not exceed 4,000 words; in the court of appeals, a reply brief may not exceed 3,300 words. ORAP 5.05(2)(b).

However, if a party is unable to determine the word count, a reply brief is acceptable if it does not exceed 15 pages in the supreme court, or 10 pages in the court of appeals. ORAP 5.05(2)(a), (c).

(3) A party's excerpt of record or appendix or combined excerpt of record and appendix may not exceed 50 pages. ORAP 5.05(2)(e).

(4) Unless the court orders otherwise, no supplemental brief may exceed five pages. ORAP 5.05(2)(f); *see* ORAP 5.55(4), 5.80, 5.92.

Note, however, that a party may file a motion with the court requesting permission to file a brief, an excerpt of record, an appendix, or a combined excerpt of record and appendix exceeding the prescribed limits. ORAP 5.05(3). The motion should be filed at least seven days before the brief is due, and the motion may be denied if filed untimely. ORAP 5.05(3).

In recent years, the court of appeals has been substantially less willing to grant a motion for leave to file an extended brief, and even less willing to allow an oversized excerpt of record or appendix. The supreme court has held that the petitioner's perceived need to "raise every possible legal issue on appeal to preserve those issues for subsequent review by a federal court" was not a sufficient ground to file an oversized brief. *Pratt v. Armenakis*, 335 Or 35, 40, 56 P3d 920 (2002) ("Federal exhaustion requirements . . . have no bearing on our determination whether petitioner has shown that the number of pages that the Court of Appeals authorized violates the constitutional rights on which he relies.").

> COMMENT: Because the court has access to the record and research materials, there seldom is a good reason to seek leave to file an oversized excerpt of record or appendix.

If the court grants leave to file an oversized excerpt of record or appendix, those materials must be printed on both sides of each page and must be plastic-spiral-bound separately from the brief. ORAP 5.05(3)(b).

> PRACTICE TIP: Before filing a motion for leave to file an oversized brief or excerpt of record, the practitioner should seriously consider the perceived need to do so. A practitioner who ultimately decides to file such a motion should be as specific as is practical about the need for additional pages, and should state how many pages are necessary to develop each argument. This specificity will increase the likelihood of success.

The lawyer should attempt to pare down a voluminous excerpt of record to a manageable size, exercising professional judgment.

The court has authority on its own motion to strike any brief that does not comply with the rule. ORAP 5.05(5).

> PRACTICE TIP: The court is not reluctant to strike a brief that does not comply with the word-count or page limitations set forth in ORAP 5.05. A practitioner should not be tempted, without leave of the court, to file an oversized brief, excerpt of record, or appendix and expect to get away with it.

Reply briefs are not permitted in all cases. *See* ORAP 5.70(3)(a). However, even if the rule provides that a party is not entitled to file a reply brief in a particular case, a party who determines that a reply brief is essential may seek the court's permission file a reply brief. ORAP 5.70(3)(b). A motion for leave to file a reply brief must be submitted within 14 days after the filing of the brief to which permission to reply is sought. ORAP 5.70(3)(b). The motion must demonstrate the need for a reply brief. ORAP 5.70(3)(a).

B. (§8.41) Motions for Extension of Time to File Briefs

A motion requesting an extension of time to file a brief is the most frequently filed motion in the appellate courts. A written motion for an extension of time must contain certain information. *See* ORAP 7.25(2). See also §§8.18–8.19, which discuss ORAP 7.25 and motions for extensions of time generally. Note that the appellate courts provide a suggested form of a motion for an extension of time. *See* ORAP App 7.10-3.

If a case is referred to the appellate court settlement conference program (*see* ORAP chapter 15), the period of time during which the case is held in abeyance while the parties pursue mediation may delay onset of the briefing schedule. *See* ORAP 15.05(4).

> PRACTICE TIP: When counsel asks whether the adverse party objects to an extension of time to file a brief (*see* ORAP 7.25(3)), the prudent adverse party will respond in the negative unless there is a good reason to resist. This response is common professional courtesy, which the adverse party will appreciate when it is that party's turn to ask. Also, counsel should candidly assess how much time is needed to prepare and file the brief, and ask for that

amount of time in a single motion. The lawyer should not repeatedly request shorter extensions of time when he or she anticipates that a shorter time will be insufficient.

A party may call the Appellate Court Administrator to request an oral extension of time of 14 days or less to complete and file a brief. ORAP 7.27. The preferred telephone number for that purpose is 503- 986-6408. The request will be denied if the party previously obtained extensions of time of more than 28 days. ORAP 7.27(1)(b). The grant of the oral motion will bar any further extensions of time absent a showing of "extraordinary and compelling circumstances." ORAP 7.27(4). *See* §8.20.

C. (§8.42) Motions for Additional Time for Oral Argument

NOTE: The discussion in this section regarding ORAP 6.15 reflects temporary amendments adopted by the appellate courts that change the procedure at oral argument (effective February 1, 2010). Those amendments became permanent on January 1, 2011.

In all cases in the Oregon Supreme Court, each side is given no more than 30 minutes to argue orally. ORAP 6.15(1)(a). If there are two or more parties to a side, those parties must apportion the time among themselves, unless the court orders otherwise. ORAP 6.15(1)(c). Each side may reserve no more than 10 minutes of the allotted time for argument in which to reply. ORAP 6.15(1)(b).

In all cases in the Oregon Court of Appeals, each side is limited to 15 minutes for oral argument. ORAP 6.15(2)(a). Each side may reserve no more than five minutes of the allotted time for argument in which to reply. ORAP 6.15(2)(b).

A lawyer who may require more time than allotted for oral argument may file a motion with the appellate court requesting additional time; the motion must be filed at least seven days before the time set for argument. ORAP 6.15(3).

NOTE: The appellate courts rarely grant such requests.

D. (§8.43) Motions to Set Over Date for Oral Argument

On occasion, a lawyer will be unable to appear for oral argument on the assigned date. When necessary, the lawyer may request a setover as described below, explaining why it is necessary:

(1) *Setovers in the court of appeals.*

The Oregon Judicial Department's Web site provides helpful information for a party needing to reschedule an argument in the Oregon Court of Appeals. *See* www.ojd.state.or.us/coadocket. The Appellate Court Records Section releases a preliminary calendar and then a final calendar. The court of appeals "will administratively allow" one setover of a case on the preliminary docket on a "first-come, first-served basis." Practitioners can contact the calendar clerk by e-mail (calendarclerk@ojd .state.or.us), by fax (503-986-5560), or by telephone (503-986-6408).

> PRACTICE TIP: The clerk prefers that such requests be made by telephone.

After one setover on the preliminary calendar or after publication of the final calendar (on or about the 10th day of the month preceding the month in which oral argument is scheduled), the court will grant a request to reschedule oral argument only upon the filing of a written motion showing "extraordinary circumstances" and the position of opposing counsel. The motion must be accompanied by a $50 filing fee. *See* §8.11.

> PRACTICE TIP: If compelling reasons require rescheduling a case, the lawyer should review the preliminary docket to determine whether another date and time is available. The lawyer should keep in mind that the court generally hears argument for three hours in the morning and three hours in the afternoon. If an acceptable date and time are available, the lawyer should contact opposing counsel and confirm that he or she does not object to rescheduling the argument to the proposed date and time.

(2) *Setovers in the supreme court.*

The Oregon Supreme Court does not have a preliminary calendar for oral argument. Rather, the court schedules a firm date for oral argument when the court issues its order granting review or granting a petition for a writ in original jurisdiction cases, or upon the filing of the last brief in direct appeals and judicial reviews. The due date for briefs so scheduled is sufficiently remote (and generally allows each side sufficient time to request an extension of time of 14 days to file a brief) that motions to set over a date for oral argument in the Oregon Supreme Court are rarer than either short Oregon Supreme Court opinions or unanimous U.S. Supreme Court opinions. See §8.15. If a party were to seek a setover,

however, it would be done by written motion explaining the compelling need for a setover, and would be accompanied by the filing fee for such motions.

E. (§8.44) Motions to File Supplemental Authorities

A party who wishes to file a memorandum of additional authorities after the filing of the party's brief but before oral argument may simply do so. After oral argument, however, leave of the court is required. ORAP 5.85(1).

The memorandum must include citations to relevant legal authorities and identify the issue previously briefed to which the citations apply. The memorandum may include argument, but not much, because the memorandum may not exceed two pages in length. ORAP 5.85(2).

If a party files or is given leave to file a memorandum of additional authorities, any other party to the case who has filed a brief may file a response, which is due 14 days after the filing of the memorandum of additional authorities to which the party is responding. ORAP 5.85(3).

A person appearing as amicus curiae may file a memorandum of additional authorities under the same circumstances as a party. ORAP 8.15(7).

> PRACTICE TIP: When filing a motion for leave to file a memorandum of additional authorities, the practitioner should attach a copy of the memorandum to the motion. There is no good reason not to, because the courts rarely deny such motions.

IX. MOTIONS AND PETITIONS FOR RECONSIDERATION OF COURT OF APPEALS DECISIONS

A. (§8.45) Motions for Reconsideration

A *motion* for reconsideration is appropriate when a party is requesting the court of appeals to reconsider an order that does something other than dispose of an appeal, such as an order striking a brief or an order denying a motion to dismiss. On the other hand, a *petition* for reconsideration is appropriate when a party is requesting the court of appeals to reconsider an order ruling on a motion or an own-motion matter that disposes of an appeal. ORAP 6.25(1), (5). See §8.46 regarding petitions for reconsideration.

Unlike with a petition for reconsideration, there is no time limit for filing a motion for reconsideration. However, when a party is seeking reconsideration of a

decision that involves the exercise of discretion, the longer a party waits before seeking reconsideration, the less likely that the motion will be granted. Because a motion for reconsideration is subject to ORAP 7.05 regarding motions generally, an adverse party to a motion for reconsideration has 14 days to file a response. ORAP 7.05(3).

Although a motion for reconsideration need not identify one of the contentions specified in ORAP 6.25(1) as the ground for seeking reconsideration (*see* §8.46), a motion for reconsideration that fails to do so will likely receive summary treatment. Additionally, like a petition for reconsideration that is based on a contention that the court erred in construing or applying the law, a motion for reconsideration that simply rehashes the party's previous legal argument will not be successful. *See* ORAP 6.25(1)(e).

A party need not move (or petition) for reconsideration of an order of the chief judge or an order or opinion of a department of the court disposing of a motion or own-motion matter before petitioning the Oregon Supreme Court for review of the decision. *See* ORAP 6.25(3). However, with one exception, a party must move or petition for reconsideration of a decision of the appellate commissioner before petitioning for review in the supreme court. ORAP 7.55(4)(b), 9.05(1). The exception is this: the appellate commissioner's summary determination of appealability under ORS 19.235(3) and ORAP 2.35 is subject to immediate petition for review in the Oregon Supreme Court. ORAP 7.55(4)(c), 9.05(1).

Although the time for filing a petition for review does not begin to run until the court of appeals issues its written disposition of a petition for reconsideration (*see* ORAP 9.05(2)(b)), a motion for reconsideration is not subject to a comparable tolling provision. Perhaps that is because the types of decisions that are appropriately the subject of a motion for reconsideration are not often suitable fodder for a petition for review. Nevertheless, the practice of the supreme court is to treat a petition for review as timely filed if a party promptly moves for reconsideration of a court of appeals decision and files a petition for review within 35 days after the court of appeals' disposition of the motion. *See* ORAP 9.05(2)(a).

B. (§8.46) Petitions for Reconsideration

The general rule is that a party need not file a petition for reconsideration before filing a petition for review. ORAP 6.25(3). However, there are exceptions to

that rule. A party must file a petition for reconsideration before seeking review in the supreme court if (1) the petition requests correction of a part of the court of appeals decision that would not properly be the subject of a petition for review, or (2) the decision is that of the appellate commissioner, other than a summary determination of jurisdiction under ORS 19.235. *See* ORAP 7.55(4)(b)–(c), 9.05(1).

A petition for reconsideration must be based on one or more of the following contentions:

(1) "A claim of factual error in the decision";

(2) "A claim of error in the procedural disposition of the appeal requiring correction or clarification to make the disposition consistent with the holding or rationale of the decision or the posture of the case below";

(3) "A claim of error in the designation of the prevailing party or award of costs";

(4) "A claim that there has been a change in the statutes or case law since the decision of the Court of Appeals"; or

(5) "A claim that the Court of Appeals erred on construing or applying the law." ORAP 6.25(1).

A petition for reconsideration must be filed within 14 days after the decision of the court of appeals. The rules regarding preparing, filing, and serving a petition for reconsideration are the same as for motions generally (*see* ORAP 7.10), except that (1) the petition must have a title page containing specified information; (2) the petition must be accompanied by a copy of the decision for which reconsideration is sought; and (3) if conventionally filed, the petition must be accompanied by four copies of the petition if the case was decided by a department of the court, or 10 copies if the case was decided by the full court. ORAP 6.25(2).

A party may seek reconsideration of a decision of the appellate commissioner as provided in ORAP 6.25 and 7.55(4). Although not specified in the rule, when seeking reconsideration of a decision of the appellate commissioner, a party needs to file only the original and one copy of the petition.

If the adverse party to a petition for reconsideration wishes to file a response, the response is due within seven days after the petition is filed. ORAP 6.25(4).

PRACTICE TIP: Although ORAP 6.25 does not specifically require it, it stands to reason that a party conventionally filing a response to a petition for reconsideration would file the original response plus the same number of copies as the party filing the petition must file: one for a decision of the appellate commissioner, four for a department decision, and 10 for a full-court decision. Although a response need not contain a title page, no harm will result from including one.

X. (§8.47) REQUESTS FOR COSTS AND ATTORNEYFEES; MOTIONS FOR SANCTIONS AND PENALTIES

See chapter 10 for the procedure to recover costs on appeal in both civil and criminal cases, attorney fees generally on appeal in civil cases, attorney fees as a sanction for a bad-faith appeal under ORS 20.105(1), damages for a frivolous appeal under ORS 19.445, sanctions under ORAP 1.40(3) and ORCP 17 for making a false declaration, and costs and attorney fees on judicial review of state administrative agencies.

Chapter 9: MEDIATION AT THE APPELLATE LEVEL

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I. BACKGROUND

A. (§9.1) General Description of Appellate Settlement Conference Program

Since its inception, the Appellate Settlement Conference Program (hereinafter Settlement Program) has operated to provide postjudgment and final-order litigants with an alternative avenue for resolution to the lengthy and expensive process of an appeal. In addition, it assists in resolving a portion of cases that would otherwise end up on the oral argument calendar.

Before 1995, while not unheard of, settlement at the appellate level rarely occurred. Typically, appellate attorneys received and reviewed the transcripts, researched case law, prepared the brief, and argued the case. Alternatives to appellate court decisions were not always discussed. The Settlement Program has changed the way attorneys practice in general civil, domestic relations, and workers' compensation appeals. Now, appellate attorneys usually discuss with clients alternatives to traditional appellate litigation. Civil cases often present the most complexity, thus requiring the most court resources. Civil case settlements provide a valuable tool for court efficiency. In recent years, the Settlement Program has resolved roughly one-fourth of the court of appeals' civil case load. The Oregon Court of Appeals is bombarded with a number of appeals that is practically unrivaled by other state appellate courts. *See* Oregon Court of Appeals Annual Report (2009), published in 2010 Oregon appellate Courts Advance Sheets No. 5, 2–3 (Feb 22, 2010). Without the Settlement Program, the delay in the average time for all oral arguments would be approximately an additional 6.3 months, compounded over time.

B. (§9.2) Mandatory Program for Certain Types of Appeals

The Appellate Settlement Conference Program (hereinafter Settlement Program) is a mandatory settlement program for certain categories of appeals. As a general rule, appeals in three specific categories—namely general civil, domestic

relations, and workers' compensation—will be automatically referred to the program, after any jurisdictional defects have been corrected. In the domestic relations category, the program refers virtually all child custody cases. This is unusual in that most appellate programs do not accept custody disputes. Program staff make significant efforts to screen referred cases for mediation. Because court resources are limited, it was and has been the philosophy of the court to focus settlement attempts on cases that would otherwise not settle without intervention. These are usually the appeals in which one side wants mediation and the other side does not. That said, the program will accept any appeal, in any subject matter, if both sides want mediation. The program has mediated cases including criminal and quasi-criminal cases, Land Use Board of Appeals, and other types of administrative review cases as voluntary "opt-ins."

Cases generally excluded from the Settlement Program involve restraining orders, stalking orders, and pro se appeals. In addition, appeals that fall into the mandatory Settlement Program categories will not usually be mediated if both sides do not want mediation and there is a justifiable reason for not pursing settlement discussions. As with every rule, there are exceptions, and the Settlement Program has successfully mediated cases that include these very factors. However, these appeals demand significant program resources and are therefore seldom accepted.

C. (§9.3) Success of the Settlement Program

As of the last nationwide review in 1999, Oregon's Appellate Settlement Conference Program (hereinafter Settlement Program) had one of the highest, if not the highest, settlement rate of appellate mediation programs. Nancy Neal Yeend, State Appellate ADR: National Survey and Use Analysis with Implementation Guidelines (John Paul Jones Group 1999). Surprisingly, Oregon has one of the few programs that will try to accept any type (even those outside its general parameters) of voluntarily submitted appeals for mediation. Logically, this would reduce the settlement rate; however, to date, there has not been an adverse statistical effect. The program has averaged approximately a 70% settlement rate.

There are several reasons for Oregon's success. The Settlement Program utilizes program neutrals consisting of highly respected and expert attorneys, retired and sitting judges, administrative law judges, and program staff. When budgets allow, the Settlement Program provides a four-day training session in

conjunction with the Center for Dispute Resolution at the Willamette College of Law. This training focuses on the most difficult mediation models in light of the fact that appeals provide some of the most difficult cases to settle. The reasoning goes that if a mediator can master the most difficult mediation techniques and apply them to the most difficult cases (due to timing, entrenchment, legal issues, etc.), then that mediator can essentially mediate anything.

> COMMENT: This idea can not be empirically proven, but the settlement statistics are compelling.

Other reasons for the program's success involve the high degree of professionalism found in the membership of the Oregon State Bar. For the most part, the attorneys involved in Oregon appeals are collegial, courteous, and professional. This aspect makes mediating difficult appellate cases pleasant for all participants, even when the case is technically challenging for the mediator. In addition, trial courts are usually affirmed. The Settlement Program works because it is flexible and informal. It runs on the honor code and depends on all participants giving good-faith efforts to resolve the dispute. It is a user-friendly and practical program. It focuses on global resolution of all disputes between the parties, not just the limited disputes on appeal. If third parties are necessary to complete global resolutions, they are invited to the table. The costs for the Settlement Program are significantly less than market prices. It is a program that has withstood the test of time, operating successfully and cost-effectively for more than 14 years.

D. (§9.4) Tips for Attorneys with Reluctant Clients

There is often considerable animosity between the parties, with resultant client control issues. The attorney may want to inform his or her client that many Oregon taxpayers pay for relatively few people's use of the appellate courts. Prudent use of taxpayer dollars dictates that court resources be utilized as efficiently as possible. An equally compelling reason to engage in good-faith mediation is that only rarely will the attorney and client know the opponent's real bottom line (or top dollar) unless the parties have sat at the table with a skilled mediator.

II. (§9.5) ORAP 15.05

The basic rules for the Appellate Settlement Conference Program are found in ORAP 15.05. Some of the historical provisions of this program as well as more recent amendments are discussed in §§9.6–9.10.

A. (§9.6) Cases Subject to the Program

The cases subject to the Appellate Settlement Conference Program (hereinafter Settlement Program) are set forth in ORAP 15.05(1). As mentioned in §9.2, however, the program allows for voluntary opt-in requests for all types of appeal.

> PRACTICE TIP: If attorneys for all parties have an appeal for potential mediation that falls outside the general categories of program cases, the attorney should contact the program director at 503-986-6417 for inclusion in the Settlement Program.

B. (§9.7) Abatement of Appeal While in the Program

The timelines for the abatement of an appeal that is in the Appellate Settlement Conference Program (hereinafter Settlement Program) are set forth in ORAP 15.05(4). Generally, the appeal (including transcript preparation and correction, and briefing) is abated for 120 days. The philosophy for the abatement is simple: if 70% of submitted cases settle, the abatement saves the court of appeals and the parties potential time and expense.

If the case does not settle after mediation, or if it is referred to the Settlement Program and later screened out, it is removed from the program and placed back on the active appellate docket. *See* Form 9-1. The parties receive a notice of case reactivation that includes the new date for the next appellate event.

> PRACTICE TIP: If the case does not settle and the litigants want the appeal reactivated immediately, they should contact the director as soon as possible for reactivation. Otherwise, the case will be reactivated when the director is notified of the nonsettlement.

Sometimes a party will insist that the appeal be placed back on the active docket while mediation is being scheduled. Because that is not the best use of court resources, such a request is seldom granted.

C. (§9.8) Motion to Court of Appeals to Dismiss Appeal or to Stay Enforcement of Judgment during Abatement by Program

Under ORAP 15.05(4)(b), a party filing a motion to dismiss the appeal or a motion to stay enforcement of the judgment when the case is being held in abeyance must serve the motion on the Director of the Appellate Settlement Conference Program (Supreme Court Building, 1163 State Street, Salem, OR 97301-2563), along with a letter to the director stating whether the party prefers that the motion be decided before the case proceeds in the program.

> PRACTICE TIP: Attorneys often forget to serve the program director. If the director is not served, the motion may not be timely heard.

D. (§9.9) Fees of Mediators in the Program

The fee structure for the Appellate Settlement Conference Program is set forth in ORAP 15.05(7). It is a straightforward flat fee shared by the parties. However, in some especially complex cases, circumstances may dictate that a mediator receive a special hourly rate, which the parties and the mediator agree to, after expending an initial hour of preparation and five hours of mediation at the program fee. Otherwise, ORAP 15.05(7)(b)(iii) provides that the parties split the additional fee of $150 per hour.

> CAVEAT: Effective January 1, 2011, ORAP 15.05(7)(b)(iii) is amended to provide that the parties split the additional fee of $150 per hour, unless they agree otherwise.

E. (§9.10) Sanctions

ORAP 15.05(9) involves potential sanctions. The Appellate Settlement Conference Program (hereinafter Settlement Program) operates on the honor system. Although sanctions have been imposed, they are extremely rare. Only the court of appeals can impose sanctions, and only on the recommendation of the program director, for failure of a party or its attorney to adhere to the Settlement Program rules. Participants should bear in mind that the Settlement Program is a mandatory program, and that a good-faith effort to reach alternative resolution is in everyone’s best interest.

III. (§9.11) SETTLEMENT PROGRAM IN THE OREGON SUPREME COURT: ORAP 15.10

Although the Appellatte Settlement Conference Program is used most often for cases in the Oregon Court of Appeals, a separate rule (ORAP 15.10) speaks to those instances when the Oregon Supreme Court determines that a case pending before it should be submitted to the program. When the supreme court has made that determination, the chief justice or a designee may abate the proceeding. Whether or not the process is abated, mediation between the parties and an appointed mediator proceeds in the same manner as in the court of appeals.

IV. WHAT TO EXPECT IN A TYPICAL SETTLEMENT PROGRAM MEDIATION

A. (§9.12) Notice to Parties, Request for Information, and Evaluation of Case for Mediation

When a notice of appeal has been filed in the court of appeals and the director of the Appellate Settlement Conference Program (hereinafter Settlement Program) determines that a case is appropriate for inclusion in the Settlement Program, the director notifies all the parties to the appeal and sends them a Settlement Conference Statement Form (hereinafter Statement Form). Although both parties receive the form, only the appellant is required to complete it and return it to the program director. The Statement Form information (*see* Form 9-2) includes the following:

(1) The nature of the case and the result below;

(2) The principal issues likely to be presented on appeal (this list is not binding on the party in any later proceedings);

(3) The identity of any new appellate attorney;

(4) A list of any related cases; and

(5) The history of any prior settlement efforts.

The program director uses that information to assess the probable complexity of the case and its suitability for assignment to a neutral mediator.

The appellant's attorney serves the completed Statement Form on the respondent. Once the Settlement Program receives the Statement Form, the

program's staff contacts the respondent's attorney for input about the practicality of mediation. The program director uses that information to assess suitability for assignment to a neutral mediator. If the program director determines that mediation would be futile or that program resources are better spent on other appeals, the case is removed from the program, and the appeal is reactivated. The court of appeals sends the parties a notice of reactivation with the new date for the next appellate event.

B. (§9.13) Assignment to a Neutral

The Appellate Settlement Conference Program (hereinafter Settlement Program) employs a cadre of neutrals (mediators) with varied backgrounds. They include, among others, judges, administrative law judges, and experienced appellate attorneys. Mediators typically receive several days' training from the Settlement Program (*see* §9.3). Each mediator is selected for a particular case based on his or her background, experience, expertise, and mediation style. The program director usually assigns the mediator and works with the parties and the mediator to set a date and place for the mediation. The mediator usually contacts the parties before the mediation.

C. (§9.14) Preparation for the Mediation

Before the mediation, the mediator ordinarily asks the parties to provide information, including a confidential letter or memorandum, summarizing (as objectively as possible) the main issues for mediation and the attorneys' candid evaluation of them. Because the mediator will have few or none of the trial court filings, the mediator may also request one or more of the parties to provide copies of the principal pleadings, motions, and legal memorandums that were submitted to the trial court. Finally, the mediator may ask for creative suggestions from the parties for potential settlement scenarios.

> PRACTICE TIP: Mediators are experienced attorneys and judges on whom posturing or obfuscation will not be effective. Honest evaluation of issues and realistic settlement proposals, if presented to the mediator ahead of the mediation, advance the prospects of settlement immensely.

D. (§9.15) The Mediator Is Not an Arbitrator

The attorneys and the parties should always bear in mind that the mediation belongs to them. The mediator is a neutral facilitator of settlement, but only the

parties can reach agreement. During the preparations for the mediation, an attorney for any party may communicate ex parte with the mediator about any aspect of the case, to discuss, for example, particular problems with the case or to ask the mediator questions about the mediator's style or plans for conducting the mediation. Just about anything is fair game. The mediator will seldom interject his or her opinions without being asked.

E. (§9.16) Mediation Session

Because each mediator has a different style of operation, and because the nature and alignment of the parties and the case can vary so greatly, it is difficult to describe a "typical" mediation session. However, these aspects are fairly uniform in each mediation:

- Those attending the mediation must set aside as much time as the mediator has told them is necessary. Except for the simplest mediations, for which the mediator may allot half a day, the attendees should set aside a full day for the mediation. Occasionally, but rarely, more than a day will be allotted.
- A party or person with actual authority to settle the case must be present at the mediation, unless the program director has approved in advance the person's absence or appearance by telephone. ORAP 15.05(1)(b)(i).
- At the outset of the mediation, the mediator requests each party and the parties' attorneys to execute a confidentiality agreement (*see, e.g.*, Form 9-3).

Depending on the mediator's personal style or reading of the parties, the mediator may keep the parties in separate rooms for the entire mediation, or separate them after an initial meeting, or ask them to be together for face-to-face negotiation. The mediator may at some point ask to meet with the attorneys separately from their clients, or in multiparty mediations to meet with some but not all of the parties at one time. Mediators commonly engage in "shuttle diplomacy," discussing settlement scenarios with one party while another party and its attorney evaluate settlement offers outside the mediator's hearing.

PRACTICE TIP: Mediation can be grueling. Attorneys should prepare their clients for that reality and be prepared to stay on task. The give-and-

take may be exasperating, but the parties should realize that in mediation the "darkest before the dawn" adage often plays out. Settlements occur in the majority of cases, and a good mediator will keep the negotiations alive and on an even keel to the end.

F. (§9.17) Memorializing the Settlement

If and when parties reach a settlement, the nature and complexity of the agreement will vary widely from case to case, and so will the process for consummation of the settlement. Often the agreement will call for further documents and releases to be prepared and executed. At this point, the mediator will rely on the ongoing goodwill and good faith of the parties. Sometimes the parties draw up and sign a complete settlement agreement on the spot. Usually, the mediator will prepare a short written outline of the settlement, including the material terms, and ask the parties to review and initial or sign their agreement to it. The outline serves as a template for later (usually prompt) preparation and execution of final documents to carry out the settlement. The parties may agree at that point that they will refer points of dispute to the mediator, a local circuit court's presiding judge, or some other person (with that person's advance consent), for binding resolution.

FORMS

Form 9-1 Order to Reactivate

Download MS Word

IN THE COURT OF APPEALS
OF THE STATE OF OREGON

_____,	)
	)
Plaintiff-Appellant,	)
	)
v.	)
	)
_____,	)
	)
Defendant-Respondent	)

[*County name*] County Circuit Court

ORDER REACTIVATING

This case either has been removed from the Appellate Settlement Conference Program or did not settle. The 120-day abeyance period pursuant to ORAP 15.05 has ended and this appeal will now proceed along scheduled appellate timelines.

The transcript will be deemed settled on _____, 20____.

_____	_____
Date	JUDY HENRY, DIRECTOR Appellate Settlement Conference Program

c: _____

[*names*]

COMMENT: *See* §9.7.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Form 9-2 Settlement Conference Statement

Download MS Word

OREGON JUDICIAL DEPARTMENT

Appellate Settlement Conference Program

Supreme Court Building
1163 State Street, Salem Oregon 97301-2563
Phone: (503) 986-5874 / Fax: (503) 986-5922

SETTLEMENT CONFERENCE STATEMENT DATE:

Case Title: Case No.: Case Type: Previous Court:	
The Court of Appeals has directed this case to its Appellate Settlement Conference Program. ***** IMPORTANT***** **Within 10 DAYS of the date of this statement, the appellant/petitioner MUST complete this statement and RETURN THE ORIGINAL AND ONE COPY TO: Appellant Settlement Conference Program, Supreme Court Building, 1163 State Street, Salem, Oregon 97301-2563.** Additionally, a copy of this statement must be served on each of the other parties or their attorney(s). Failure to timely file this statement or to timely correct and resubmit an incomplete statement may result in court-imposed sanctions.	

Please type or print. Attach additional pages if necessary.

1. **PLEASE BRIEFLY DESCRIBE THE NATURE OF THIS ACTION OR PROCEEDINGS AND THE RESULT IN THE TRIAL COURT/AGENCY.**

(Please attach any written findings and letter opinions. You need NOT attach the judgment or order submitted with your notice of appeal/petition for judicial review)

HOW LONG DID THE TRIAL / HEARING TAKE?

IS THERE A RESTRAINING ORDER/STALKING ORDER IN EFFECT?

____ YES ____ NO ____ N/A

2. **ISSUES ON REVIEW AND RELIEF SOUGHT, PLEASE BRIEFLY STATE YOUR LIKELY ASSIGNMENT(S) OF ERROR AND THE RELIEF YOU SEEK IN THE COURT OF APPEALS**

3. **IF TRIAL COURT / AGENCY COUNSEL IS NOT ALSO APPELLATE COUNSEL, PLEASE GIVE JUST THEIR NAME, MAILING ADDRESS AND PHONE NUMBER.**

(1) (2) (3)

ARE THESE ATTORNEYS STILL ACTIVE IN THE CASE?

____ YES ____ NO ____ YES____ NO ____ YES ____ NO

4. **RELATED CASES AND DISPUTES**

a. Is there any other case pending or about to be filed in any court or agency that should be joined with this case for mediation if all disputes between these parties are to beresolved?

____ YES ____ NO

If "yes", list the case name and docket number: _____

Court or agency:

_____

b. Is there any other disputes (not necessarily a case) that one also might try to resolve in the course of trying to resolve this case?

____ YES ____ NO

If "yes", briefly describe it:

5. **SETTLEMENT**

a. Have any of the parties tried to resolve this case through (check all that apply):

Arbitration? ____ YES ____ NO (If "yes", please attach copy of any arbitration award or findings)

Mediation? ____ YES ____ NO

Other Efforts? ____ YES ____ NO (If "yes", please briefly describe them) _____

b. Do you think a settlement conference now could help resolve some or all of the issues on review?

____ YES ____NO Please explain: _____

CERTIFICATE OF SERVICE

I certify that on _____ (date), I served a copy of this settlement conference statement on each of the other parties by mail to:

_____

(Name(s) of other party or their attorney)

Signed: _____

Representing: _____ Date: _____

COMMENT: *See* §9.12.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Form 9-3 Confidentiality Agreement

CONFIDENTIALITY AGREEMENT

Pursuant to ORS 36.210–36.238, we, the undersigned parties, counsel, and mediator agree that the mediation communications in this matter will be confidential. We hereby incorporate and make applicable to this mediation all provisions of ORS 36.210–36.238.

DATED this _____ day of _____ 20____.

_____ Appellant	_____ Counsel for Appellant/ Cross-Appellant
_____ Respondent	_____ Counsel for Respondent/ Cross-Respondent
_____ Mediator	

COMMENT: *See* §9.16.

CAVEAT: This form is illustrative only. Each lawyer must depend on his or her own legal research, knowledge of the law, and expertise in using or modifying this form.

Chapter 10: POSTDECISION MATTERS IN THE COURT OF APPEALS

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* The authors wish to acknowledge Kathryn H. Clarke, who wrote the Attorney Fees, Costs, and Sanctions chapter in the previous edition of Appeal and Review, and Jeff Batchelor and Thomas Sondag who wrote a section on Petitions for Reconsideration.

I. (§10.1) INTRODUCTION

This chapter addresses topics that arise after the court of appeals issues a decision or an order. For instance, if the decision or order is not favorable to the client, the appellate practitioner must assess whether to seek reconsideration. If the decision or order is favorable to the client, the appellate practitioner must assess whether and how to seek costs or attorney fees, or both.

II. RECONSIDERATION

A. (§10.2) Generally

ORAP 6.25 governs reconsideration of various forms of actions by the court of appeals. A party who wants the court of appeals to reconsider a decision must file a petition for reconsideration. A decision includes an opinion (including a per curiam opinion or affirmance without an opinion), or an order ruling on a motion that disposes of an appeal. ORAP 6.25(1). A party who wants the court of appeals to reconsider any other court of appeals order must file a motion for reconsideration. ORAP 6.25(5).

B. Petition for Reconsideration of a Decision

1. (§10.3) Grounds for Petition

A petition for reconsideration may be based only on one or more of the following contentions:

> (a) A claim of factual error in the decision;
>
> (b) A claim of error in the procedural disposition of the appeal requiring correction or clarification to make the disposition consistent with the holding or rationale of the decision or the posture of the case below;
>
> (c) A claim of error in the designation of the prevailing party or award of costs;
>
> (d) A claim that there has been a change in the statutes or case law since the decision of the Court of Appeals;
>
> (e) A claim that the Court of Appeals erred in construing or applying the law.

ORAP 6.25(1).

The rule expressly warns, however: "[c]laims addressing legal issues already argued in the parties' briefs and addressed by the Court of Appeals are disfavored." ORAP 6.25(1)(e). The court of appeals advises in its practice guidelines that it "does not encourage the filing of petitions for reconsideration, particularly when the petitions merely express disagreement with the court's decision," but that it "does encourage such petitions to identify significant factual errors, errors in the designation of prevailing parties, or a change in the law occurring since the issuance of the decision." Oregon Court of Appeals Internal Practice Guidelines 35 (July 6, 2007) (available at www.courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf); *see State v. Torres*, 201 Or App 275, 118 P3d 268 (2005) (withdrawing its former opinion based on significant factual error); *English v. Multnomah County*, 230 Or App 125, 213 P3d 1265 (2009) (modifying its designation of prevailing party); *State v. Marroquin*, 215 Or App 330, 337–338, 168 P3d 1246 (2007) (withdrawing its former opinion based on change in the law).

> PRACTICE TIP: The court of appeals will allow reconsideration based on a factual error in the decision, but a factual error rarely prompts the court to substantially alter its previous opinion. *See, e.g., State v. Jones*, 224 Or

App 451, 199 P3d 317 (2008); *Keller v. Armstrong World Indus.*, 200 Or App 406, 412, 115 P3d 247 (2005), *aff'd,* 342 Or 23 (2006). The court of appeals will on occasion allow reconsideration for the purpose of clarifying that the claimed factual error was not an error. *See, e.g., J.C. Compton Co. v. Brewster*, 187 Or App 709, 69 P3d 719 (2003); *Pratt v. Armenakis*, 201 Or App 217, 221, 118 P3d 821 (2005).

2. (§10.4) Procedure for Petition

A party who wishes to file a petition for reconsideration in the court of appeals must do so within 14 days of the decision. ORAP 6.25(2).

Filing a petition for reconsideration of a court of appeals decision is not a prerequisite to filing a petition for Oregon Supreme Court review of a court of appeals decision or order. ORAP 6.25(3). Also gone are the days when a petition for Oregon Supreme Court review functioned in the first instance as a petition for reconsideration by the court of appeals of the decision for which supreme court review was sought. *Former* ORAP 9.15 (repealed Jan 1, 1994); *see Lardy v. Washington County*, 122 Or App 361, 857 P2d 885 (1993) (court of appeals treating petition for supreme court review as a petition for reconsideration under the former rule).

If a timely petition for reconsideration by the court of appeals is filed, the time for any party to file a petition for supreme court review of that court of appeals decision does not begin to run until the petition for reconsideration is decided. ORAP 9.05(2)(b)(i). If a party obtains an extension of time to file a petition for reconsideration but elects not to file the reconsideration petition, the time for any party to file a petition for Oregon Supreme Court review begins to run from the date the time extension expires. ORAP 9.05(2)(b)(i).

The petition for reconsideration of a court of appeals decision must have a title page containing the information identified in ORAP 6.25(2)(b). A copy of the decision sought to be reconsidered should be attached to the petition. ORAP 6.25(2). If the decision was made by a department of the court of appeals, the party seeking reconsideration should file an original and four copies of its petition and if the decision was made by the full court, the party should file an original and 10 copies. ORAP 6.25(2)(a).

Any response to the reconsideration petition must be filed within seven days after the petition is filed, and the court of appeals may proceed to consider the

petition without awaiting a response. ORAP 6.25(4). In practice, court staff will generally hold a petition for reconsideration until the time for filing a response has expired. Oregon Court of Appeals Internal Practices Guidelines 35 (July 6, 2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

The court of appeals may deny a petition for reconsideration without opinion, deny the petition with an explanatory opinion, or allow the petition with an explanatory opinion. Internal Practices Guidelines, 36.

C. (§10.5) Motion for Reconsideration of an Order

A motion for reconsideration of a court of appeals order on a nondispositive motion must be filed within 14 days of the order. The rule regarding reconsideration does not prescribe a time for bringing a "motion for reconsideration." The processes for preparing, filing, and serving reconsideration motions are governed by the rules regarding motions generally. ORAP 7.05, 6.25(5).

General motions now are often decided by the appellate commissioner. On a motion for reconsideration of an order issued by the appellate commissioner, the appellate commissioner may reconsider, modify, or reverse his or her prior decision on a motion. If the appellate commissioner affirms his or her original order, the commissioner passes the motion for reconsideration up to the Chief Judge or the motions panel for decision. ORAP 7.55(4)(a). See chapter 8 for a detailed discussion of motions and the appellate commissioner.

> NOTE: A decision of the appellate commissioner is not subject to a petition for review in the Oregon Supreme Court. ORAP 7.55(4)(b). If the lawyer plans to petition for review of a decision from the appellate commissioner, the lawyer must first seek reconsideration of the order.

III. (§10.6) MOTION TO RECALL AN APPELLATE JUDGMENT FOR CLARIFICATION

The Oregon Court of Appeals has inherent authority to entertain a motion to recall its judgment for clarification when the court intends to facilitate further action pursuant to its instructions. *Central Oregon Fabricators, Inc. v. Hudspeth*, 165 Or App 717, 720, 998 P2d 740 (2000); *Brewer v. Erwin*, 70 Or App 709, 713–714, 690 P2d 1122 (1984). A motion to recall an appellate judgment for clarification is limited to a request for guidance as to what the court's decision

means, and is not appropriate for seeking to qualify or modify the decision. *Brewer*, 70 Or App at 712–713; *cf.* ORAP 6.25(1)(b) (authorizing petition for reconsideration raising "claim of error in the procedural disposition of the appeal requiring correction or clarification to make the disposition consistent with the holding or rationale of the decision or the posture of the case below").

In *Central Oregon Fabricators*, the court of appeals assumed, but declined to decide, whether it had the inherent authority to recall an appellate judgment even when an aspect of the opinion on which a party sought clarification could have been raised in the ordinary course by way of a timely motion for reconsideration. *Central Oregon Fabricators, Inc.*, 165 Or App at 720–721.

IV. COSTS, ATTORNEY FEES, AND SANCTIONS IN CIVIL APPEALS

A. Prevailing Party

1. (§10.7) Generally

The prevailing party in any appeal to the court of appeals is entitled to recover costs unless a statute provides otherwise or the court otherwise directs. ORS 20.310(1). The court normally allows costs to the prevailing party.

In contrast, a prevailing party is generally entitled to attorney fees only if there is statutory authority or an enforceable contractual provision so providing. *Mattiza v. Foster*, 311 Or 1, 4, 803 P2d 723 (1990). However, courts of equity have the inherent power to award attorney fees in cases in which the plaintiff is a representative and succeeds in protecting certain rights of others as much as his or her own. *Deras v. Myers*, 272 Or 47, 65–66, 535 P2d 541 (1975).

To succeed in a request for *Deras*-type attorney fees, the proceeding must be in equity, the requesting party must be the prevailing party, and the requesting party must have sought to vindicate an important constitutional right which applies to all citizens without any peculiar gain to the party. *Armatta v. Kitzhaber*, 327 Or 250, 287, 959 P2d 49 (1998). The requesting party need not be entirely disinterested to meet the third prong of the *Deras* fees test, but the public benefit of the judgment must be more than an ancillary result of the case, and the resulting benefit to the public must be significant. *Vannatta v. Or. Gov't Ethics Comm'n,* 348 Or 117, 123, 228 P3d 574 (2010) (no fees awarded when statute limiting lobbyist's ability to give legislator a gift was overturned, but statute limiting legislator's ability to receive a gift from lobbyist was upheld); *see also Pendleton*

Sch. Dist. 16R v. State, 347 Or 28, 35, 217 P3d 175, *modified on recons.*, 347 Or 344 (2009) (no fees awarded upon successful declaratory judgment of legislature's constitutional obligation to fund public schools at a certain level, but where court denied injunction requiring legislature to do so).

> NOTE: The Oregon Rules of Civil Procedure do not apply in the appellate court, so ORCP 68 governs neither a request for costs and disbursements nor a petition for attorney fees on appeal. *McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 84, 90, 957 P2d 1200, *adhered to on recons.*, 327 Or 185 (1998).

A party seeking both an award of costs and disbursements and an award of attorney fees should file a statement of costs and disbursements and a petition for attorney fees as separate documents. Oregon Court of Appeals Internal Practices Guidelines 44 (July 6, 2007) (available at http://courts.oregon.gov/COA/docs/OregonCourtofAppeals-IPG.pdf).

2. Determining Prevailing Party

a. (§10.8) Prevailing Party for Costs

At the time of its decision, the court of appeals designates a prevailing party and determines whether the prevailing party is allowed costs. ORAP 13.05(2). The appellant or petitioner will be designated as the prevailing party for purposes of an award of costs if the court "reverses or substantially modifies" the lower tribunal's decision. ORAP 13.05(3). Otherwise, the respondent is the prevailing party for purposes of an award of costs. ORAP 13.05(3).

> NOTE: The prevailing party for appellate costs is not necessarily the same as the prevailing party for attorney fees. *Akins v. Bucyrus-Erie Co.*, 118 Or App 471, 473, 848 P2d 124 (1993). The prevailing party for costs is determined solely by the result of the appeal, not by the ultimate outcome of the case. *Akins*, 118 Or App at 473.

b. (§10.9) Prevailing Party for Attorney Fees

For purposes of prevailing party attorney fees, the prevailing party is generally "the party who receives a favorable judgment . . . on the claim." ORS 20.077(2). However, the appellate court is not limited to awarding prevailing party attorney fees to the party that obtains a favorable judgment. In an appeal of an action in which prevailing party attorney fees are available, the appellate court, in

its discretion, may designate a party as a prevailing party if that party "obtains a substantial modification of the judgment." ORS 20.077(3). The appellate courts therefore have discretion to designate someone other than the party that receives the favorable judgment as the prevailing party on appeal for purposes of an attorney fee award if that other party obtains a "substantial modification." *Haynes v. Adair Homes*, 231 Or App 144, 148–149, 217 P3d 1113 (2009).

If a party prevails on appeal or review and the case is remanded for further proceedings, the appellate court may make a provisional attorney fee award conditioned on the eventual outcome of the litigation. ORAP 13.10(3); *cf. Henderson v. Jantzen, Inc.*, 303 Or 477, 481, 737 P2d 1244 (1987) ("A party who 'prevails' temporarily ultimately may lose the case on the merits. Such temporary gains do not warrant the award of attorney fees.").

3. (§10.10) Recoverable Costs

Under ORS 20.310(2), the court of appeals may allow the prevailing party in any appeal to recover the following:

(1) The filing or appearance fee, ORS 21.010.

(2) The reasonable cost of a bond or irrevocable letter of credit.

(3) The prevailing party fee, ORS 20.190(a). The prevailing party fee is different from prevailing party attorney fees. It is an amount set by statute. Only one prevailing party fee may be awarded per party for the entire appellate process from appeal to the court of appeals through review, if any, by the supreme court. ORS 20.190(4); ORAP 13.05(6)(d)(i). Also, only one prevailing party fee may be assessed against a non-prevailing party, regardless of the number of parties in an action. ORS 20.190(4); ORAP 13.05(6)(d)(iii).

(4) The cost of any printing, including the excerpt of record, required by court rule. Whether a brief is printed or reproduced by other means, a party can recover 10 cents per page for the number of briefs actually filed or required to be filed, whichever is less. ORAP 13.05(6)(a)(i).

(5) Postage for the filing or service of items that are required to be filed or served by law or court rule.

(6) The cost of the transcript of testimony or other proceedings when necessarily forming part of the record on appeal. If the prevailing party paid for

copies of audiotapes or videotapes, either in lieu of a transcript or incident to preparing a transcript, then the cost of the tapes is recoverable. ORAP 13.05(6)(c).

The list of allowable costs in ORS 20.310(2) is apparently exclusive. That statute provides that costs and disbursements on appeal "are" the listed items; it does not say that costs and disbursements on appeal "include" those items.

4. (§10.11) Procedure for Recovering Costs

A party seeking to recover costs must file a statement of costs and disbursements within 21 days after the date of the decision. ORAP 13.05(5)(a). Filing a petition for review or a petition for reconsideration does not suspend or extend the time for filing the statement of costs and disbursements. ORAP 13.05(5)(a).

Only the original statement of costs and disbursements (without copies) needs to be filed, but the statement must be accompanied by proof of service showing that a copy of the statement was served on every other party to the appeal or judicial review. ORAP 13.05(5)(b).

A party objecting to a statement of costs and disbursements must file any objections within 14 days after the statement was served. ORAP 13.05(5)(c). A reply, if any, must be filed within 14 days after the objections were served. ORAP 13.05(5)(c). The original objection or reply must be filed in the court of appeals. ORAP 13.05(5)(c).

The court will award costs in the amount claimed if no objections are filed, and if the prevailing party has filed a timely statement of costs and disbursements. ORAP 13.05(6)(e). This rule has two exceptions: the party from whom the costs are sought must be a party to the proceeding, and the court must have authority to award the particular costs claimed. ORAP 13.05(6)(e).

> NOTE: When no objections are filed, and if it appears that the items claimed are within the authority of the court to allow, the records section of the court will generally include the amounts claimed in the appellate judgment. If objections are filed, or if the items claimed do not appear to be within the authority of the court to allow, the records section forwards the statement of costs and disbursements to the presiding judge of the department that decided the case on the merits.

If a prevailing party untimely files a statement of costs and disbursements or does not file a statement of costs and disbursements, that party is entitled to recover the party's filing or first appearance fee and the prevailing party fee under ORS 20.190(1). ORAP 13.05(6)(f), (g).

5. (§10.12) Attorney Fees on Appeal Generally

As noted in §10.7, a prevailing party on appeal is entitled to recover attorney fees only if a statute or contract authorizes such an award. The standards for award of attorney fees on appeal are set forth in ORS 20.075. *See McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 84, 92, 957 P2d 1200, *adhered to on recons.*, 327 Or 185 (1998) (ORS 20.075 applies to an award of attorney fees by an appellate court).

6. Procedure for Recovering Attorney Fees on Appeal

a. (§10.13) Timing and Filing

A petition for attorney fees on appeal must be "served and filed within 21 days after the date of decision." ORAP 13.10(2). Filing a petition for review or a petition for reconsideration "does not suspend the time for filing the petition for attorney fees." ORAP 13.10(2). Objections to a petition, if any, must be served and filed within 14 days after the date the petition for attorney fees is filed. ORAP 13.10(6). A reply, if any, must be served and filed within 14 days after the date the objections are served. ORAP 13.10(6).

The original of any petition, objections, or reply should be filed with the state court administrator, along with five copies. ORAP 13.10(8). Proof of service on all other parties to the appeal, judicial review, or proceeding must also be attached. ORAP 13.10(8).

In the absence of any timely filed objections to a petition for attorney fees under ORAP 13.10, the appellate court will allow attorney fees in the amount sought in the petition unless the "entity from whom fees are sought was not a party to the proceeding" or the appellate court is "without authority to award fees." ORAP 13.10(9).

b. (§10.14) Contents of the Petition for Attorney Fees

The petition must state the "total amount of attorney fees claimed and the authority relied on for claiming the fees." ORAP 13.10(5)(a). The petition must be supported by a statement that demonstrates the "total amount of attorney time involved, the amount of time devoted to each task, the reasonableness of the

amount of time claimed, the hourly rate at which time is claimed, and the reasonableness of the hourly rate." ORAP 13.10(5)(a). Further, if a petition requests attorney fees pursuant to a statute, the petition must address the factors the court may consider in determining whether, and to what extent, to award attorney fees. ORAP 13.10(5)(b). Those factors include, as relevant, the factors listed in ORS 20.105(1) (willful disobedience of a court order or assertion of a claim, defense, or ground for appeal for which there was no objectively reasonable basis, *see* §10.20) or the factors listed in ORS 20.075(1) and (2), which are:

> (1) . . .
>
> (a) The conduct of the parties in the transactions or occurrences that gave rise to the litigation, including any conduct of a party that was reckless, willful, malicious, in bad faith or illegal.
>
> (b) The objective reasonableness of the claims and defenses asserted by the parties.
>
> (c) The extent to which an award of an attorney fee in the case would deter others from asserting good faith claims or defenses in similar cases.
>
> (d) The extent to which an award of an attorney fee in the case would deter others from asserting meritless claims and defenses.
>
> (e) The objective reasonableness of the parties and the diligence of the parties and their attorneys during the proceedings.
>
> (f) The objective reasonableness of the parties and the diligence of the parties in pursuing settlement of the dispute.
>
> (g) The amount that the court has awarded as a prevailing party fee under ORS 20.190.
>
> (h) Such other factors as the court may consider appropriate under the circumstances of the case.
>
> (2) . . .
>
> (a) The time and labor required in the proceeding, the novelty and difficulty of the questions involved in the proceeding and the skill needed to properly perform the legal services.
>
> (b) The likelihood, if apparent to the client, that the acceptance of the particular employment by the attorney would preclude the attorney from taking other cases.

(c) The fee customarily charged in the locality for similar legal services.

(d) The amount involved in the controversy and the results obtained.

(e) The time limitations imposed by the client or the circumstances of the case.

(f) The nature and length of the attorney's professional relationship with the client.

(g) The experience, reputation and ability of the attorney performing the services.

(h) Whether the fee of the attorney is fixed or contingent.

A prevailing party may request attorney fees based on a percentage of the damages awarded. *Page v. Muzyn*, 124 Or App 137, 140, 861 P2d 382 (1993). The key is that the amount of attorney fees must be reasonable. *Page*, 124 Or App at 140. The list of factors in ORAP 13.10(5) "does not purport to authorize or require use of any particular formula to calculate or award a reasonable fee," and the rule does not "restrict the court to a rate times hours formula, or prevent the court from taking into account the contingency risk of a loss in setting a reasonable fee." *Page*, 124 Or App at 140.

A prevailing party may request a fee enhancement or multiplier. *Strawn v. Farmers Ins. Co.*, 233 Or App 401, 226 P3d 86 (2010) (recognizing that a multiplier may be used on appeal). The appellate court will not, however, simply adopt a multiplier because the trial court did so. *Strawn*, 233 Or App at 417. In analyzing whether to use a multiplier and, if appropriate, the amount of the multiplier, the court will consider the factors identified in ORS 20.075(2), which include:

> (1) the novelty and difficulty of the questions involved in the proceeding and the skill needed to properly perform the legal service; (2) the amount involved in the controversy and the results obtained; (3) the experience, reputation, and ability of the attorney performing the service; and (4) whether the fee of the attorney is contingent.

Strawn, 233 Or App at 416.

A prevailing party may not recover attorney fees that were incurred based solely on an error by that party. *See State ex rel. English v. Multnomah County*, 231 Or App 286, 300, 219 P3d 594, *rev. allowed*, 347 Or 258 (2009) (prevailing

party could not recover fees associated with filing an amended petition necessitated by the party's error).

When the reasonableness of the requested fee is in dispute, the party seeking fees should provide detailed substantiation for his or her arguments and should consider submitting a declaration from an appellate lawyer. *See Computer Concepts v. Brandt*, 141 Or App 275, 280, 918 P2d 430 (1996) (Haselton, J., concurring) ("Just as trial courts benefit from expert opinions as to the reasonableness of fees, so do we."); *Strawn*, 233 Or App at 409 (discussing expert affidavits submitted by parties).

Although the applicable rules do not require findings, the Oregon Supreme Court has stated that they are necessary for its review. *See McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 84, 96, 957 P2d 1200, *adhered to on recons.*, 327 Or 185 (1998) (the supreme court "cannot analyze the record to determine whether a court's decision to award or deny an attorney fee pursuant to statute was an abuse of discretion unless the court, in its findings, identifies the relevant facts and legal criteria on which the court relies in awarding attorney fees"). The court has indicated that adequate findings about the relevant facts and legal criteria "need not be complex or lengthy," but must be in terms "sufficiently clear to permit meaningful appellate review." *McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 185, 190–191, 957 P2d 1200 (1998).

> PRACTICE TIP: A party may request "findings regarding the facts and legal criteria that relate to any claim or objection concerning attorney fees." ORAP 13.10(7). A request for findings must be stated in the caption and a party who fails to request findings waives any objection to the absence of findings by the court. ORAP 13.10(7).

c. (§10.15) Objection to a Petition for Attorney Fees

When a party objects to an attorney fee petition, the bases for the objections should be as specific and particularized as possible. *See Computer Concepts v. Brandt*, 141 Or App 275, 280, 918 P2d 430 (1996) (Haselton, J., concurring) (court is "enlightened by *particularized* objections to fee petitions"). The court will generally limit its inquiry to the specific objections raised by opposing counsel. *Dockins v. State Farm Ins. Co.*, 330 Or 1, 9, 997 P2d 859 (2000) (court's analysis of a fee petition is generally framed by opponent's objections); *McCarthy v. Oregon Freeze Dry, Inc.*, 327 Or 185, 189, 957 P2d 1200 (1998). The court,

however, has recognized that objections directed at specific time entries are not always required and may not always make sense. *See Kahn v. Canfield*, 330 Or 10, 13, 998 P2d 651 (2000) (specific objection to individual time entries not necessary when objection is that total time in responding to a petition for supreme court review was unjustified because the response incorporated much of the party's brief to the court of appeals).

The party objecting to a petition for attorney fees should consider submitting a declaration from an appellate lawyer to support its position and should consider requesting findings by the appellate court. *See* §10.14; *State ex rel. English v. Multnomah County*, 231 Or App 286, 297–298, 219 P3d 594, *rev. allowed*, 347 Or 258 (2009) (noting that the party objecting to an attorney fee award failed to submit an expert affidavit).

B. (§10.16) Penalty for an Appeal That Lacked Probable Cause (ORS 19.445)

ORS 19.445 (*formerly* ORS 19.160) provides:

> Whenever a judgment is affirmed on appeal, and it is for recovery of money, or personal property or the value thereof, the judgment shall be given for 10 percent of the amount thereof, for damages for the delay, unless it appears evident to the appellate court that there was probable cause for taking the appeal.

1. (§10.17) Standard for Recovery

ORS 19.445 (quoted in §10.16) is designed to discourage parties from burdening the judicial system, as well as opposing parties, with appeals that have no merit. *Broyles v. Estate of Brown*, 295 Or 795, 801, 671 P2d 94 (1983).

The appellate courts will award the 10 percent penalty when there is no probable cause for appeal. *Broyles*, 295 Or at 801. Probable cause for an appeal exists when the appellant assigns "grounds that are open to doubt, or are debatable, or over which rational, reasonable or honest discussion may arise." *Broyles*, 295 Or at 801. Probable cause is an objective standard based on what a reasonable lawyer would conclude. *Broyles*, 295 Or at 800–801; *Bornhoft v. Aubry*, 178 Or App 625, 631, 37 P3d 1049 (2002).

There is no specific burden of proof to be carried by any party for proving or disproving the existence of probable cause. *Broyles*, 295 Or at 801. Instead, the sanction provided in ORS 19.455 is available "unless it appears evident to the

appellate court" that probable cause existed for taking the appeal. *Broyles*, 295 Or at 801 (quoting ORS 19.445).

Damages are properly assessed even when a party executed a trial court judgment while the appeal was pending. *Stirling v. Dari-Delite, Inc.*, 262 Or 359, 370, 491 P2d 1168, 494 P2d 252, 498 P2d 753 (1972) (explaining that there can be damage from delay even after execution because of further attorney fees and other expenses and inconvenience).

A necessary predicate for a 10 percent penalty under ORS 19.445 is a money judgment. *See Kam v. Gaughan*, 278 Or 165, 167–168, 563 P2d 673 (1977) (expressing regret that the 10 percent penalty was not available because the appeal was not from a money judgment). An award of attorney fees as a sanction for conduct in the trial court is a money judgment, and the 10 percent penalty is available for a frivolous appeal from that award. *Carleton v. Lowell*, 107 Or App 98, 811 P2d 642 (1991).

2. (§10.18) Examples of Findings That Probable Cause Did Not Exist

There is no probable cause for an appeal where the error assigned on appeal was not presented to the trial court in a timely manner. *Barrett v. Warrington*, 60 Or App 406, 653 P2d 1020 (1982); *Barbour v. Peck*, 44 Or App 363, 606 P2d 628 (1980); *Hunter v. Walls*, 57 Or App 152, 643 P2d 1352 (1982).

There is no probable cause for an appeal where the defendant assigned error to the trial court's denial of a motion for a new trial based on a reference to insurance and where defendant argues the reference was intentional, contrary to a stipulation by that party that the reference was inadvertent. *Broyles v. Estate of Brown*, 295 Or 795, 802, 671 P2d 94 (1983).

3. (§10.19) Procedure for Recovery

A party seeking to recover damages under ORS 19.445 must file a petition within 21 days of the appellate court's decision. ORAP 13.25(1). A request for damages should not be included in a party's brief. ORAP 13.25(1).

C. Attorney Fees for an Appeal Taken without an Objectively Reasonable Basis (ORS 20.105)

1. (§10.20) Standard for Recovery

An appellate court shall award reasonable attorney fees to a prevailing party if the court finds "that the [non-prevailing] party willfully disobeyed a court order or that there was no objectively reasonable basis for asserting the claim, defense or ground for appeal." ORS 20.105(1). When determining whether an objectively reasonable basis does not exist for a position taken by a party, the primary consideration is whether the party's position "'is entirely devoid of legal or factual support at the time it was made.'" *Dimeo v. Gesik*, 195 Or App 362, 371, 98 P3d 397 (2004), *modified on recons.*, 197 Or App 560 (2005) (quoting *Mattiza v. Foster*, 311 Or 1, 8, 803 P2d 723 (1990), regarding an earlier version of ORS 20.105(1) that referred to meritless claims). For example, there is no objectively reasonable ground for an appeal that raises only issues that are barred by claim preclusion. *Jones v. Jones*, 213 Or App 675, 679, 162 P3d 352 (2007).

2. (§10.21) Procedure for Recovery

A party seeking to recover attorney fees under ORS 20.105 must file a petition within 21 days of the appellate court's decision. ORAP 13.25(1). A claim for attorney fees arguing that an appeal lacks any objectively reasonable basis should not be included in the party's brief. ORAP 13.25(1).

> PRACTICE TIP: The party seeking fees under the statute should request that the court of appeals make findings. Although the statute does not specifically require that the court of appeals make findings to support an award of attorney fees under ORS 20.105(1), the Oregon Supreme Court has held that findings are necessary for meaningful appellate review. *Tyler v. Hartford Ins. Group*, 307 Or 603, 605, 771 P2d 274 (1989).

D. Sanctions for Appeals Taken in Bad Faith

1. (§10.22) Certifications of Good Faith (ORAP 1.40(4) and ORCP 17)

Although the Oregon Rules of Civil Procedure (ORCPs) are ordinarily inapplicable in appeals, the Oregon Rules of Appellate Procedure expressly adopt and incorporate ORCP 17, which relates to certifications made to the court upon the signing or filing of a document. ORAP 1.40(4) (ORCP 17 "is hereby adopted

as a rule of appellate procedure applicable to the Supreme Court and Court of Appeals").

ORCP 17 C provides that a signature on a document filed with the court is a certificate that:

(1) The document "is not being presented for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation." ORCP 17 C(2);

(2) The positions taken in the document are "warranted by existing law or by a nonfrivolous argument for the extension, modification or reversal of existing law or the establishment of new law." ORCP 17 C(3); and

(3) The assertions or denials of assertions are supported by evidence.

The person making the certification may "specifically identif[y]" any assertions that he or she does not certify are supported by the evidence, but that he or she reasonably believes will be supported by the evidence after further investigation and discovery. ORCP 17 C(4). Similarly, a person may specifically identify any denials of factual assertions that he or she does not certify to be supported by evidence but believes are "reasonably based on a lack of information or belief." ORCP 17 C(5).

2. (§10.23) Sanctions

The court has discretion to impose sanctions against a person or party found to have made a false certification. ORCP 17 D(1). Before imposing a sanction, the party to be sanctioned must be given notice and an opportunity to be heard. ORCP 17 D(1). "A law firm is jointly liable for any sanction imposed against a [lawyer] of that firm, unless the court determines that joint liability would be unjust under the circumstances." ORCP 17 D(1).

Sanctions are limited to amounts sufficient to reimburse the aggrieved party for expenses incurred as a result of the false certification, including reasonable attorney fees and expenses. ORCP 17 D(4). In fact, a sanction must include an order requiring payment of reasonable attorney fees and expenses incurred by the other party due to the false certification. ORCP 17 D(4). If there is clear and convincing evidence of wanton misconduct, the court may also award "amounts sufficient to deter future false certification by the party or attorney and by other

parties and attorneys." ORCP 17 D(4). "The sanction may include monetary penalties payable to the court." ORCP 17 D(4).

3. (§10.24) Procedure for Recovering Sanctions

Sanctions under ORCP 17 D may be imposed upon motion of a party or upon the court's own motion. ORCP 17 D(2).

A party seeking to recover attorney fees under ORAP 1.40(3) and ORCP 17 must file a petition within 21 days of the appellate court's decision on the appeal. ORAP 13.25(1). The petition should take the form set out in ORAP 13.10. ORAP 13.25(1). See §10.14 for discussion of petitions for attorney fees.

A motion for sanctions must "describe with specificity the alleged false certification." ORCP 17 D(3).

If the motion for sanctions is based on the filing of a "motion or thing," the request for sanctions must be included in the answer or objection to the motion, statement of costs and disbursements, or petition for attorney fees to which the motion for sanctions relates. ORAP 13.25(2). A request for sanctions should not be included in the party's brief. ORAP 13.25(1).

E. (§10.25) Sanctions for Failing to Appear at Oral Argument

A penalty is imposed for an appellant's failure to appear at oral argument without providing at least 48 hours' notice to respondent "unless good cause is shown for such failure." ORAP 6.10(5)(c). The respondent can recover from appellant's counsel the "costs and attorney fees related to preparation for and attendance at oral argument." ORAP 6.10(5)(c).

V. COSTS, FEES, AND SANCTIONS IN CRIMINAL APPEALS

A. (§10.26) Costs Recoverable by Prevailing Criminal Defendant

A prevailing criminal defendant is entitled to recover costs. ORS 138.300 states:

> Except as otherwise specifically provided by law, upon final reversal of the judgment of the lower court in a criminal action, the county shall be liable for costs on appeal to the Court of Appeals and on review by the Supreme Court and with like effect as in the case of natural persons; and such costs shall be paid in the first instance by the county from which the appeal is taken.

The items recoverable as costs and the procedure for recovering costs are the same for a criminal appeal as they are for a civil appeal. *See* §§10.10–10.11.

B. (§10.27) Compensation, Costs, and Expenses Recoverable by Court-Appointed Counsel

Court-appointed counsel in criminal appeals should submit a request for payment of compensation, costs (except transcripts), and expenses to the Public Defense Services Executive Director. ORS 138.500(4).

If the executive director denies the request, and the majority of the compensation and expenses were incurred in the court of appeals, the person requesting payment may appeal to the chief judge of the court of appeals. ORS 138.500(6); ORAP 13.15(2). If most of the compensation and expenses were incurred in the supreme court, the motion should be filed with the chief justice of the supreme court. The motion should be accompanied by a copy of the request for payment and the executive director's disposition of the request. ORAP 13.15(2). A copy of the motion must be served on the executive director. ORAP 13.15(2). The decision of the chief judge or the designee of the chief judge is final. ORS 138.500(6).

C. (§10.28) Request for Sanctions and Penalties in Criminal Appeals

ORAP 1.40(4), adopting ORCP 17 as a rule of appellate procedure, applies to criminal cases as well as civil cases. *See* §§10.22–10.24.

When a court-appointed lawyer believes a client's appeal is meritless, he or she should follow the procedure outlined in ORAP 5.90 and *State v. Balfour*, 311 Or 434, 451–453, 814 P2d 1069 (1991).

VI. COSTS, FEES, AND SANCTIONS IN ADMINISTRATIVE APPEALS

A. (§10.29) Costs

A prevailing petitioner in judicial review of an administrative decision is entitled to recover costs. The source for that entitlement may be the Oregon Administrative Procedures Act (Oregon APA), ORS chapter 183, or ORS 20.120.

The Oregon APA applies to all state agencies except those specifically exempt from its requirements by statute. *See* ORS 183.315 (identifying agencies exempt from Oregon APA). In cases governed by the Oregon APA, costs are recoverable by a prevailing private party on judicial review, but not a prevailing

state agency. ORS 183.497(2) provides that costs are recoverable in "an administrative or judicial proceeding brought by a petitioner against a state agency." In *Shetterly, Irick & Shetterly v. Employment Div.*, 302 Or 139, 141–142, 727 P2d 117 (1986), the court confirmed that the statute only permits costs to be awarded against the state agency and not against a private party.

Under the Oregon APA, an agency may withdraw its order for reconsideration while judicial review is pending. ORS 183.482(6). When an agency withdraws its order and modifies or reverses the order in favor of the petitioner, the petitioner can recover his or her costs but not attorney fees. ORS 183.482(6). Costs recoverable under ORS 183.482(6) include the prevailing party fee provided in ORS 20.190. Voelz Oil & Land Survey v. Oregon State Fire Marshal, 138 Or App 100, 103, 907 P2d 251 (1995).

In non-Oregon-APA cases, ORS 20.120 authorizes the recovery of costs by the prevailing party on appeal. Compton v. Weyerhaeuser Co., 302 Or 366, 369, 730 P2d 540 (1986), superseded by statute on other grounds as stated in Barton v. SAIF Corp., 306 Or 567 (1988). ORS 20.120 states:

> When the decision of an officer, tribunal, or court of inferior jurisdiction is brought before a court for review, such review shall, for all the purposes of costs or disbursements, be deemed an appeal to such court upon errors in law, and costs therein shall be allowed and recovered accordingly.

Pursuant to ORS 20.120 the prevailing party—whether petitioner or the government entity—is entitled to costs.

B. (§10.30) Attorney Fees on Judicial Review of Administrative Agency Actions

The Oregon Administrative Procedures Act (Oregon APA) authorizes courts conducting judicial review of state agency decisions to award attorney fees. ORS 183.497 provides that attorney fees are recoverable when a petitioner seeks judicial review of an agency final order or declaratory ruling, or seeks a judicial determination of the validity of a rule. Whenever the court finds in favor of the petitioner, it has discretion to award attorney fees. ORS 183.497(1)(a). If the court finds in favor of the petitioner and "determines that the state agency acted without a reasonable basis in fact or in law," then the court must award attorney fees, unless it also finds that the agency's "action was substantially justified or that special circumstances exist that make the allowance of all or part of the attorney

fees unjust." ORS 183.497(1)(b); *see Kaib's Roving R. Ph. Agency, Inc. v. Empl. Dep't,* 338 Or 433, 444, 111 P3d 739 (2005) (discussing distinction between discretionary attorney fees under subsection (1)(a) and mandatory fees under subsection (1)(b)).

A decision in favor of a petitioner is not the equivalent of a decision that a petitioner is a prevailing party. Kaib's Roving R. Ph. Agency, Inc., 338 Or at 443–444. "A decision of the court may be 'in favor of' a party, even if it addresses only procedural matters." Kaib's Roving R. Ph. Agency, Inc., 338 Or at 443–444.

An agency acts without a reasonable basis in law or in fact when it ignores or fails to understand a clear statute. Kaib's Roving R. Ph. Agency, Inc., 338 Or at 446.

In a non-Oregon-APA case, attorney fees will be awarded only if there is statutory authority for attorney fees applicable to that specific case. For example, attorney fees are available on appeal to a prevailing petitioner in a workers' compensation cases. ORS 656.385(3), 656.386. Also, ORS 182.090 provides for an award of attorney fees in favor of a petitioner who prevails against a state agency where the agency acted without a "reasonable basis in fact or law." See Citizens' Util. Bd. v. PUC, 157 Or App 409, 412, 971 P2d 459 (1998) (recognizing that ORS 182.090 authorizes attorney fees for judicial review of agency orders).

> PRACTICE TIP: A prevailing party on judicial review should make sure that the court awarding fees states its authority and reasons for making its award. *See Lewis v. Beyer*, 235 Or App 367, 232 P3d 980 (2010) (remanding trial court award of attorney fees where the appellate court could not determine the basis for the award).

C. (§10.31) Request for Sanctions and Penalties

ORAP 1.40(4), which adopts ORCP 17 "as a rule of appellate procedure," applies in any appeal. See §§10.22–10.24 for a discussion of these provisions. However, the sanctions in ORS 19.445 and 20.105 do not appear to apply to administrative appeals. ORS 19.445, the provision for a 10 percent penalty (*see* §§10.16–10.19), cannot be applied unless the appeal is taken from a money judgment. ORS 20.105, permitting an award of attorney fees for a "bad faith" appeal, applies to "any civil appeal." *See* §10.20.

In addition to ORAP 1.40(4), specific sanction provisions may apply to an administrative appeal. For example, in a workers' compensation appeal, ORS 656.390 provides for an "appropriate sanction" against the attorney who filed an appeal or a motion for reconsideration if the court finds that the appeal or motion "was frivolous or was filed in bad faith or for the purpose of harassment." The statute defines *frivolous* as meaning that "the matter is not supported by substantial evidence or the matter is initiated without reasonable prospect of prevailing." ORS 656.390(2). An appropriate sanction may include an order to pay the opponent's expenses, including a reasonable attorney fee. ORS 656.390(1).

Chapter 11: PETITIONING FOR REVIEW IN THE OREGON SUPREME COURT

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I. (§11.1) ORAP CHAPTER 9

Oregon Rules of Appellate Procedure (ORAP) chapter 9 ("Petition for Review and Reconsideration in Supreme Court") contains rules essential for navigating the review process. If an attorney does nothing else, he or she should thoroughly review a current version of chapter 9 both before and during the review process. That chapter provides rules for everything from defining what is a reviewable decision of the Oregon Court of Appeals in the first instance (ORAP 9.05(1)), to procedures for seeking reconsideration of an ultimate decision of the Oregon Supreme Court on the merits (ORAP 9.25). The rules also govern everything in between, including the form, contents, timing, filing, and service of the parties' submissions, criteria for the court's exercise of its discretionary review, and the process for allowance of review.

Although there are rules that must be followed and criteria for review that must be addressed, there is no certain path to obtaining review. Indeed, in a considerable number of the cases that the Oregon Supreme Court selects, the signal importance of the legal issue or issues announces itself, and review may be almost a foregone conclusion. In the other cases, the care and skill of the attorneys can make all the difference in the court's consideration.

II. (§11.2) SEEKING DISCRETIONARY REVIEW

When a party seeks review in the Oregon Supreme Court, not only the playing field but the game itself changes. Unlike the mandatory nature of the original administrative action or proceedings in the circuit court, and unlike the

direct appeal of right in the Oregon Court of Appeals, the Oregon Supreme Court's decision whether to review the case rests squarely in the court's discretion. *See* ORAP 9.07 ("Criteria for granting discretionary review").

Convincing the Oregon Supreme Court to grant review must be paramount in the mind of the party petitioning for review. Depending on the legal issue that the case presents, convincing the court that the petitioner is correct on the law may or may not be important in obtaining review, which is most often based on the importance of the issue. Similarly, for the respondent on review, the primary objective has to be convincing the court to deny review, although it may well be in many cases that the best course of action for the respondent is not to file any response to the petition, rather than to argue about the underlying merits of the petitioner's position.

III. (§11.3) AN OVERVIEW OF THE REVIEW PROCESS: TIMELINES

The costs and lengths of time involved in the review process are critical pieces of information for every client. Sections 11.4–11.16 provide a step-by-step temporal overview of the process for review—from when the Oregon Court of Appeals issues its decision, to when the Oregon Supreme Court either denies review or grants review and then ultimately disposes of the appeal on its merits.

A. Finality of the Court of Appeals' Decision for Purposes of Review

1. (§11.4) Reviewable Decisions

The Oregon Supreme Court reviews in its discretion a "decision" of the Oregon Court of Appeals. ORAP 9.05(1). Reviewable decisions of the court of appeals include an opinion, per curiam opinion, affirmance without an opinion, and an order ruling on a motion or on a petition for attorney fees or costs. Those include decisions of three-judge panels of the court of appeals, the appellate commissioner, the chief judge, and the Motions Department. ORAP 9.05(1). *See* ORAP 7.15 (decisions on motions), ORAP 7.55 (authority of appellate commissioner).

2. (§11.5) Petitions for Reconsideration in the Court of Appeals

If a party files a timely petition for reconsideration of an otherwise final decision of the Oregon Court of Appeals, the due date for filing a petition for

review in the Oregon Supreme Court is 35 days after the court of appeals' written disposition of the petition for reconsideration. ORAP 9.05(2)(b)(i).

B. (§11.6) Petition for Review

The petition for review is due "within 35 days after the date of the decision of the Court of Appeals." ORAP 9.05(2)(a).

Although in many instances the date for timely filing a notice of appeal or a petition for judicial review in the court of appeals may be a jurisdictional requirement, that is not the case for a petition for review to the Oregon Supreme Court. The 35-day filing period may be extended by motion to the Oregon Supreme Court. ORAP 9.05(2)(a).

> PRACTICE TIP: The Oregon Supreme Court generally grants motions to extend the time for filing a petition for review, particularly if they are a first motion for 28 days or fewer. *See generally* ORAP 7.25 (motions for extensions). It is important to file a first motion for extension within the 35-day period for filing the petition for review.
>
> PRACTICE TIP: The attorney should pay close attention to the terms of an order granting an extension, which may limit future extensions. The order may also set a due date different from the one requested.
>
> PRACTICE TIP: If a party fails to file a petition for review by the due date, that ordinarily triggers the process for issuance of an appellate judgment from the court of appeals. If a party seeks to file a petition for review after the due date, the party must file a motion for relief from default, and a motion to vacate the appellate judgment if it has been entered. Exceptional circumstances must support such motions, especially if the appellate judgment has been entered.

C. Response to Petition for Review

1. (§11.7) Timing

A response to the petition for review is due 14 days after the filing of the petition for review. ORAP 9.10(2). The time may be extended, pursuant to ORAP 7.25.

2. (§11.8) Contingent Request for Review

A response to the petition for review may contain not only a response to the issues raised in the petition but also may include "the party's contingent request for review of any question properly before the Court of Appeals in the event that the court grants the petition for review." ORAP 9.10(1). Thus, although a party has not sought review, there may be some aspect of the court of appeals decision that the respondent on review would wish to challenge if the petition for review is granted. An example would be a case in which the court of appeals had affirmed a judgment for the plaintiff, the defendant petitions for review seeking a new trial, and the plaintiff then files a contingent request for review with respect to an evidentiary issue that the plaintiff had lost on appeal, if the case is remanded for a new trial.

D. (§11.9) Amicus Briefs Related to Review

Unless good cause is shown for a different filing date, the application and brief of an amicus curiae in support of or opposed to review must be filed within 14 days after the petition for review is filed. ORAP 8.15(5)(b). *See* §§11.47–11.48.

E. (§11.10) Oregon Supreme Court's Grant or Denial of Review

The timing for the Oregon Supreme Court's order granting or denying review depends on when the parties complete their submissions and the internal flow of business within the chambers of the assigned justice and the court (*see* §§11.31–11.33). As a general matter, it takes approximately two to four months from the date that a petition for review is filed until the date that an order issues granting or denying review.

> NOTE: In relatively rare circumstances, a party will seek reconsideration of the supreme court's decision granting or denying review. A petition for reconsideration must be filed within 14 days after the date of the decision. ORAP 9.25(1). The date can be extended pursuant to ORAP 7.25.

F. Briefs on the Merits

1. (§11.11) Petitioner's Brief on the Merits

The petitioner's brief on the merits is due within 28 days after the date that the court allows review. ORAP 9.17(2).

PRACTICE TIP: Although the due date may be extended, this is different than the more liberal environment for extensions related to a petition for review. Extensions for briefs on the merits are limited by the fact that when the court allows review, the court also sets a fixed date for oral argument. Parties who may seek an extension are well-advised to work out a stipulated briefing schedule within the time frame permitted by the fixed date for oral argument, allowing for sufficient time ultimately between submission of the respondent's brief on the merits and the date set for oral argument. Such schedules typically allow for not more than an additional 28 days per side for filing their briefs on the merits.

2. (§11.12) Respondent's Brief on the Merits

The respondent's brief on the merits is due within 28 days after the petitioner files a brief on the merits, or 28 days after the petitioner's brief on the merits was due if it was not filed. ORAP 9.17(3)(a)(i)–(ii).

CAVEAT: Petitioners virtually always elect to file a brief on the merits. If, however, the petitioner has elected not to file a brief on the merits or has failed to give notice of intent to do so, then the respondent's brief on the merits is due within 28 days after review was allowed. ORAP 9.17(3)(a)(iii).

3. (§11.13) Amicus Briefs on the Merits

The brief of an amicus curiae on the merits is due on the same day as the party with which the amicus is aligned. ORAP 8.15(5)(c)(i). If the amicus is not aligned with a party, then the amicus brief is due when the petitioner's brief is due. ORAP 8.15(5)(c)(ii). When a party is granted an extension, the briefs of amicus are due at the same extended time as the relevant party. ORAP 8.15(5)(e). *See* §11.48.

G. (§11.14) Oral Argument

The Oregon Supreme Court sets a fixed date and time slot for oral argument at the same time that it allows review. As a general matter, oral argument is set for a date approximately four to six months after review is allowed. (The court ordinarily hears argument in the first week or two of the odd-numbered months, excluding July, unless a case is specially set.) The court will consider good-cause requests for another date or time but does not encourage such requests.

H. (§11.15) Oregon Supreme Court's Decision on the Merits

The time from after oral argument until a decision by the court on the merits can vary from a couple of months to a year or more. For the last three years (2008–2010), 69% of the cases reviewed on the merits were resolved within 180 days after the case was argued orally or submitted on the briefs. Only 8% to 10% took up to a year or longer from argument or submission to decision. If the pre-argument time is considered (during which briefs are prepared and filed), the time of course increases. In 2009, for most case types (i.e., not including bar disciplinary cases), the average time from when the petition for review was filed until the date the case was decided was about one year.

I. (§11.16) Petition for Reconsideration

A party seeking reconsideration of a supreme court decision on the merits must do so within 14 days after the date of the decision. ORAP 9.25(1). The date can be extended, pursuant to ORAP 7.25.

IV. PETITION FOR REVIEW

A. (§11.17) Form

A petition for review must be filed in the form of a brief, pursuant to the rules in ORAP chapter 5 governing briefs. ORAP 9.05(3)(a). A petition for review that was filed before July 1, 2010, "shall not exceed 15 pages." ORAP 9.05(3)(a). Effective January 1, 2011, petitions are limited to 5,000 words or fewer, unless the petitioner certifies that he or she does not have access to a system that provides a word count, in which case the petition would be limited to 15 pages. ORAP 9.05(3)(a).

In addition to various other elements, the cover of the petition must "[c]ontain a notice whether, if review is allowed, the petitioner on review intends to file a brief on the merits or to rely on the petition for review" and the briefs filed in the court of appeals. ORAP 9.05(3)(a)(v).

> PRACTICE TIP: There is no apparent reason for a petitioner to elect not to give notice of intent to file a brief on the merits, regardless of whether the petitioner ultimately elects to do so. As a practical matter, virtually all petitioners take advantage of the opportunity to brief the case in the supreme court on the merits.

B. Contents of the Petition for Review

1. (§11.18) Facts

The petition must contain a "short statement of the historical and procedural facts relevant to the review." ORAP 9.05(4)(a). Recognizing the space limitations for petitions discussed in §11.17, the rule provides that facts that the court of appeals correctly stated should not be restated. ORAP 9.05(4)(a). The statement of facts nonetheless commonly includes a statement of the factual and legal basis of the court of appeals' opinion from which review is sought.

2. (§11.19) Legal Question and Rule of Law

This is arguably the most important section of the petition for review. The petition must include "[c]oncise statements of the legal question or questions presented on review and of the rule of law that the petitioner on review proposes be established." ORAP 9.05(4)(b).

Because the Oregon Supreme Court views itself primarily as a "law-making" court of discretionary review, as compared to a "case-deciding" court of mandatory review, it is intensely interested in the interrelated question on review and proposed rule of law. These questions force the petitioner to clarify with great care the precise legal result that is sought and the issue to which it responds.

> PRACTICE TIP: Attorneys should keep in mind that law clerks, often just out of law school, are the initial audience for the petition for review. See §§11.31–11.32 regarding the court's internal process. That is in contrast, for example, to briefs filed in the Oregon Court of Appeals, which are being read first by the judges on the panel. Therefore, an attorney would be well advised not to assume too much legal knowledge or experience when framing the case in the petition for review. This is especially true for issues or areas of law that are infrequently raised or are specialized and highly technical (e.g., utility regulation).

3. (§11.20) Reasons for Review

ORAP 9.05(4)(c) requires a "statement of specific reasons why the legal question or questions presented on review have importance beyond the particular case and require decision by the Supreme Court." See §§11.28–11.30 regarding criteria for review.

4. (§11.21) Argument

The rules do not require, but they do permit if so desired and space allows, "a brief argument concerning the legal question or questions presented on review." ORAP 9.05(4)(d). This provision recognizes not only that the focus of the petition needs to be on the importance of review but also that the rules elsewhere provide that the "parties' briefs in the Court of Appeals will be considered as the main briefs in the Supreme Court," supplemented inter alia by the petition for review and briefs on the merits. ORAP 9.20(4). In other words, there are ample other opportunities to argue the merits, although most petitions for review do take the opportunity to address the issue succinctly there as well.

5. (§11.22) Appendix Supplementing the Record

ORAP 9.20(5) provides that "[t]he record on review shall consist of the record before the Court of Appeals." Yet, tucked away as footnote 1 to ORAP 9.07, the court has recognized an important quasi-exception to the rule, because a different sort of record may be required to establish the importance of an issue than is required to adjudicate its disposition. The footnote authorizes an appendix to the petition for review that can include "materials in support of criteria under this rule that are not otherwise part of the record on appeal." Examples noted include materials that can serve to demonstrate why the case may have far-reaching or important consequences.

> PRACTICE TIP: This presents a unique opportunity to augment the record for purposes of review, with the focus on facts or other materials that can help to demonstrate the importance of the case for review. Briefs of amicus curiae in support of review can also serve the same function.

C. (§11.23) Reply in Support of a Petition for Review

The rules of appellate procedure do not provide for a reply in support of a petition for review. As such, a reply may only be filed by motion, which ideally should attach a copy of the proposed reply.

Replies should be limited strictly to issues raised first by a response to the petition for review. These may include procedural or preservation obstacles to review that were not addressed in the petition for review.

In addition, a reply can be appropriate if the respondent on review has presented a "contingent request for review" pursuant to ORAP 9.10(1). Those

contingent requests seek review of an issue by the respondent if the court grants review to the petitioner. A reply would be the first and only opportunity for a petitioner to respond to such a counter-request before the court makes its decision about review.

V. RESPONSE TO PETITION FOR REVIEW

A. (§11.24) Form

A response to the petition for review should be in the form of a brief, pursuant to the rules in ORAP chapter 5 governing briefs. The cover of the response must be orange. ORAP 9.10(3). Effective January 1, 2011, the response may not exceed 5,000 words, unless the preparer certifies that he or she does not have access to a system that provides a word count, in which case the response is limited to 15 pages. ORAP 9.10(3).

B. Contents

1. (§11.25) Response Is Not Required

A party may, but need not, file a response to the petition for review. If no response is filed, "the party's brief in the Court of Appeals will be considered as the response." ORAP 9.10(1).

2. (§11.26) Contents Are Flexible

No rule prescribes the exact contents of a response to a petition for review.

> PRACTICE TIP: Responses tend to track and respond to the sections in the petition for review. There is more of an opportunity and temptation here, however, to present argument about why the court of appeals reached the correct decision, arguably rendering review unnecessary.

3. (§11.27) Contingent Request for Review

A response to a petition for review may include a "contingent request for review of any question properly before the Court of Appeals in the event that the court grants the petition for review." ORAP 9.10(1).

> PRACTICE TIP: This opportunity for a "contingent request for review" permits a party, if the party so desires, to wait and see whether the other party petitions for review, and then to assert an issue for review in response. See §11.8 for an example.

VI. OREGON SUPREME COURT'S CRITERIA FOR REVIEW

A. (§11.28) ORAP 9.07: 16 Criteria

A list of 16 separate factors, some of which contain more than one component, that the Oregon Supreme Court considers "relevant to the decision whether to grant discretionary review" are set forth in ORAP 9.07. One portion of the petition for review and of the response to the petition for review is dedicated to applying these criteria to the case on review.

The list of criteria is "neither exclusive nor binding." ORAP 9.07. The object of a petition for review should be to focus the court's attention on a limited number of key reasons for review. *See* ORAP 9.07 (petition "may refer to those items that are relevant" and the petition "need not address each listed item").

B. (§11.29) Factors That Favor Review

Notwithstanding the lack of guidance in the rule regarding the relative importance of the many and varied criteria (*see* §11.28), there are certain things that may fairly be said about them. At the core, the petition must state "specific reasons why the legal question or questions presented on review have importance beyond the particular case and require decision by the Supreme Court." ORAP 9.05(4)(c). In so doing, the mere assertion of why the court of appeals is wrong will not be deemed sufficient, without more, to justify review. ORAP 9.05 n 6.

Thus, an issue that "arises often," or that is "important to the public," or that affects many people starts out with some obvious importance beyond the case. ORAP 9.07(2)–(3). Significant legal issues of state law, unencumbered by factual disputes or procedural or preservation obstacles, are generally preferable. ORAP 9.07(1), (4), (7)–(8).

> PRACTICE TIP: In the vast majority of cases the issue is one of state law, thus meeting the criterion in ORAP 9.07(4). Therefore, it does little good to feature that as a principal reason for review.

In addition, the Oregon Supreme Court recognizes a role for itself in resolving inconsistencies and disputes between and within the state circuit courts, court of appeals, and supreme court. ORAP 9.07(9)–(10), (12). Notably, the supreme court pays close attention to how the court of appeals handled the case, including indications that the case has serious import such as whether there was a written opinion, whether there was a divided court or en banc consideration, and

whether a seemingly wrong court of appeals decision creates significant problems and whether the supreme court is the right place for the error to be corrected. ORAP 9.07(14).

C. (§11.30) Factors That Argue against Review

Factors that may argue against review include:

(1) Is the issue one of federal law?

(2) Has the statute at issue since been amended or repealed?

(3) Does the case involve an agency rule that the agency or the legislature can readily clarify or amend?

(4) Are there alternative grounds for the decision, including, for example, statutory resolutions to constitutional issues?

VII. OREGON SUPREME COURT'S INTERNAL PROCESS FOR DECIDING WHETHER TO GRANT REVIEW

A. (§11.31) Assignment of Petitions

As a general matter, petitions for review are assigned serially, in the chronological order that they are filed, to the chambers of one of the six associate justices on the court. That chamber then becomes responsible for analyzing the petition and making a recommendation to the full court concerning review.

B. (§11.32) Petition Memorandum

A law clerk for the justice to whom the petition is assigned is responsible for producing a memorandum that describes and analyzes the case and the legal issues it presents, accompanied by a recommendation from the law clerk to the justice as to whether the court should grant review. The assigned justice reviews the memorandum and sometimes revises it into final form with the clerk, and appends the justice's own recommendation to the memorandum. At that point, the memorandum circulates to the entire court.

> PRACTICE TIP: In preparing the petition for review or a response to the petition, it can be useful to know what else the court will have in front of it when making its decision. This may influence what the attorney may include or feature in the petition or response on review. The chambers for the justice responsible for preparing the petition memorandum has access to the entire

record in the case, the decision of the Oregon Court of Appeals, the briefs in the court of appeals, the petition for review, and any other filings on review including any response to the petition or an amicus submission. When the full court convenes in conference to consider its decision on a petition for review, the other justices typically have a packet that includes the petition for review and any response or amicus filing, the law clerk's petition memorandum with the assigned justice's recommendation, and the decision of the Oregon Court of Appeals.

NOTE: If the court decides in conference to grant review, and before an order granting review will issue, the case is sent back to the original chambers to prepare a second memorandum. This memorandum ensures that jurisdiction is proper, that the claim is justiciable, and that the claim of error has been preserved below.

C. (§11.33) Vote on Whether to Grant Review

The Oregon Supreme Court grants review if one fewer than a majority of the court eligible to participate in the decision votes in the affirmative to grant review. ORAP 9.20(1). Thus, in the ordinary instance, if six or seven justices are participating, then three affirmative votes are required to grant review.

CAVEAT: This vote is unlike the norm for other court actions more generally, in which a majority of the court is required to take an action. Here, by contrast, a vote of three affirmatives as against four negatives will result in an affirmative grant of the petition for review, whereas on an ordinary motion or decision on the merits such a vote would deny relief to the petitioner. If, for example, the court of appeals seeks to certify a case to the supreme court, a majority of the supreme court considering the certification must vote to accept review. ORAP 10.10(6).

Similarly, an equally divided court of three-to-three on the petition for review will result in a grant of the petition for review. By contrast, a vote of three-to-three on the merits would result in an affirmance of the court of appeals that is tantamount in effect to an original denial of review.

An order denying review does not state what the vote was of each of the individual members of the court or of the court as a whole. Nonetheless, justices who would have granted review in cases in which the court denies review can elect

to indicate on the order that they would have granted review. Justices favoring review also can, but rarely do, issue a written dissent from a denial of review.

NOTE: The choice whether or not to be shown on the order as favoring review is entirely up to the individual justice. Justices most commonly elect not to show their vote favoring review on an order denying review. Thus, unless the justice chooses to disclose a vote in favor of review, the parties have no way of knowing that fact.

PRACTICE TIP: When deciding whether to petition for review, it can be helpful to know whether one or more justices voted for taking review in a prior case that may have presented the same or a similar issue. In addition, if one or more justices has disclosed support for a petition, then a party whose petition for review is denied may have reason to file a petition for reconsideration. A petition for reconsideration can be accompanied by additional amicus support, to try to demonstrate the importance of the issue or the effects that the court's denial of review arguably would have, and such new information can be potentially significant to the court.

VIII. OREGON SUPREME COURT'S ORDER GRANTING OR DENYING REVIEW

A. (§11.34) Denial of Review

The Oregon Supreme Court denies review in the vast majority of cases. An order denying review has the adjudicatory effect of affirming the Oregon Court of Appeals' disposition of the case.

An order denying review typically states a simple denial of the petition, without any explanation. Because a decision to deny review is discretionary, it says nothing explicit about the supreme court's position on the merits. *1000 Friends of Oregon v. Board of County Comm'rs,* 284 Or 41, 45, 584 P2d 1371 (1978) (denial of review has no precedential effect).

B. Grant of Review

1. (§11.35) Issues on Review

An order granting review most commonly simply states that the court has granted the petition. In certain circumstances, the court will also state in the order the limited legal or factual issues that it intends to consider on review. ORAP

9.20(2). That is a means of exercising the court's discretion and directing the parties' focus in the subsequent briefing and argument. When the court wishes to be even more directive, it will issue an order that frames certain questions for the parties to address in their briefing and oral argument. ORAP 9.20(3).

2. (§11.36) Dispositions on the Merits

An Oregon Supreme Court decision to grant review triggers further briefing on the merits and ordinarily ultimately leads to a decision on the merits. The court's decision on the merits following a grant of review can affirm, modify, reverse, or vacate, in whole or in part, what had previously transpired in the case. ORS 19.420(1).

> NOTE: In a small number of cases, the Oregon Supreme Court may dismiss review as having been improvidently granted. This can occur at any point in the process, including after oral argument. The reasons for dismissal tend to be concerns that may arise about justiciability (jurisdiction, standing, mootness), preservation of claims of error, and factual or procedural impediments to review of the underlying issue. However, the court generally does not explain the reason for such dismissals.

C. (§11.37) Rates of Review

The Oregon Supreme Court historically has granted review in approximately 10% of the cases in which a petition for review is filed. Blanket statements and overall statistics about the relative rarity of review tend to gloss over significant variations in the review rate among various types of cases. The overall review rate is skewed, for example, by the substantial number of petitions for review that are filed in criminal cases in a relatively pro forma manner to exhaust state court remedies, as a prelude to seeking federal habeas corpus relief, but that are extremely unlikely to result in supreme court review. Conversely, for civil appeals that present a properly preserved and significant issue, the review rate is materially higher than the overall historic rate of 10%.

IX. BRIEFS ON THE MERITS

A. (§11.38) Petitioner's Brief: Form

A petitioner's brief on the merits must be filed in the form of a brief, pursuant to the rules in ORAP chapter 5 governing briefs. The cover of the brief must be white. ORAP 9.17(2)(c).

B. Petitioner's Brief: Contents

1. (§11.39) Question Presented and the Rule of Law

As with a petition for review (*see* §§11.7–11.23), a petitioner's brief on the merits must contain "[c]oncise statements of the legal question or questions presented on review and of the rule of law that petitioner proposes." ORAP 9.17(2)(b)(i). The questions do not have to be verbatim reiterations of the statements in the petition for review, but they cannot be argumentative or add to or change the substance of the original questions. ORAP 9.17(2)(b)(i).

2. (§11.40) Nature of the Action, Relief Sought, and Judgment in the Trial Court

ORAP 9.17(2)(b)(ii)(A) requires a concise statement of the trial court matter, specifically including the nature of the action, relief sought, and judgment rendered.

3. (§11.41) Facts

ORAP 9.17(2)(b)(ii)(B) requires a concise statement of all material facts, in "narrative form" and with citations to the record.

4. (§11.42) Summary of Argument and Argument

ORAP 9.17(2)(b)(iii)–(iv) require sections containing a summary of the argument and the argument, respectively.

5. (§11.43) Conclusion

ORAP 9.17(2)(b)(v) requires a conclusion "specifying with particularity the relief which the party seeks."

C. (§11.44) Respondent's Brief: Form

A respondent's brief on the merits must be filed in the form of a brief, pursuant to the rules in ORAP chapter 5 governing briefs. The cover of the brief must be tan. ORAP 9.17(3)(c).

D. (§11.45) Respondent's Brief: Contents

No rule prescribes the exact contents of a respondent's brief on the merits. In fact, ORAP 9.17(3)(b) expressly provides that the items required to be included in the petitioner's brief on the merits "need not be included in the respondent's brief on the merits on review unless respondent is dissatisfied with their presentation in petitioner's brief on the merits on review."

> PRACTICE TIP: As with the response to the petition for review (*see* §§11.24–11.27), the respondent's brief on the merits tends to respond to and track the sections in the petitioner's brief.

X. (§11.46) AMICUS CURIAE ON REVIEW AND ON THE MERITS

ORAP 8.15 governs the appearances of an amicus curiae both on review and on the merits. An amicus curiae can provide a potent additional voice and perspective, especially in support of a petitioner who is trying to convince the court of the importance of the case on review.

A. (§11.47) Application

Amici may appear only with the court's permission. ORAP 8.15(1). The Oregon Supreme Court ordinarily grants such permission.

An individual or entity seeking to appear as an amicus curiae must file an application "setting forth the interest of the person in the case." ORAP 8.15(1). The application must also apprise the court as to "whether the applicant intends to present a private interest of its own or to present a position as to the correct rule of law that does not affect a private interest of its own." ORAP 8.15(1). The application contains no argument. ORAP 8.15(1).

B. (§11.48) Amicus Brief

Unlike the Oregon Court of Appeals where it is optional, in the Oregon Supreme Court an amicus brief must be filed along with the application. The brief must follow the same rules as the briefs of the parties. ORAP 8.15(3).

C. (§11.49) Review and Merits

A person may seek leave to appear as amicus "in support of or in opposition to a petition for review, on the merits of the case on review, or both." ORAP 8.15(5)(a). An amicus may file a single brief on review and on the merits, at the

time of the filing on review. ORAP 8.15(5)(d). An amicus may file a brief on the merits without further leave of the court if the court granted the application of amicus to appear and thus file a brief on review. ORAP 8.15(5)(d).

XI. (§11.50) RULES FOR FORMAT, FILING, AND SERVICE

Chapter 9 of the Oregon Rules of Appellate Procedure (ORAPs) is replete with rules for the form, filing, and service (paper and electronic) of the parties' submissions. The rules in chapter 9 also incorporate by reference the rules in ORAP chapter 5 for preparation of briefs more generally. *See* ORAP 9.05(3)(a) (petition for review), ORAP 9.10(3) (response to petition for review), ORAP 9.17(2)(c) (petitioner's brief on merits), ORAP 9.17(3)(c) (respondent's brief on the merits), ORAP 9.25(1) (petition for reconsideration).

The attorney and his or her staff must be fully familiar with these rules when preparing and submitting any document for the court's consideration. The care and accuracy with which a document is prepared can subtly reflect on the attorney's overall credibility with the court.